

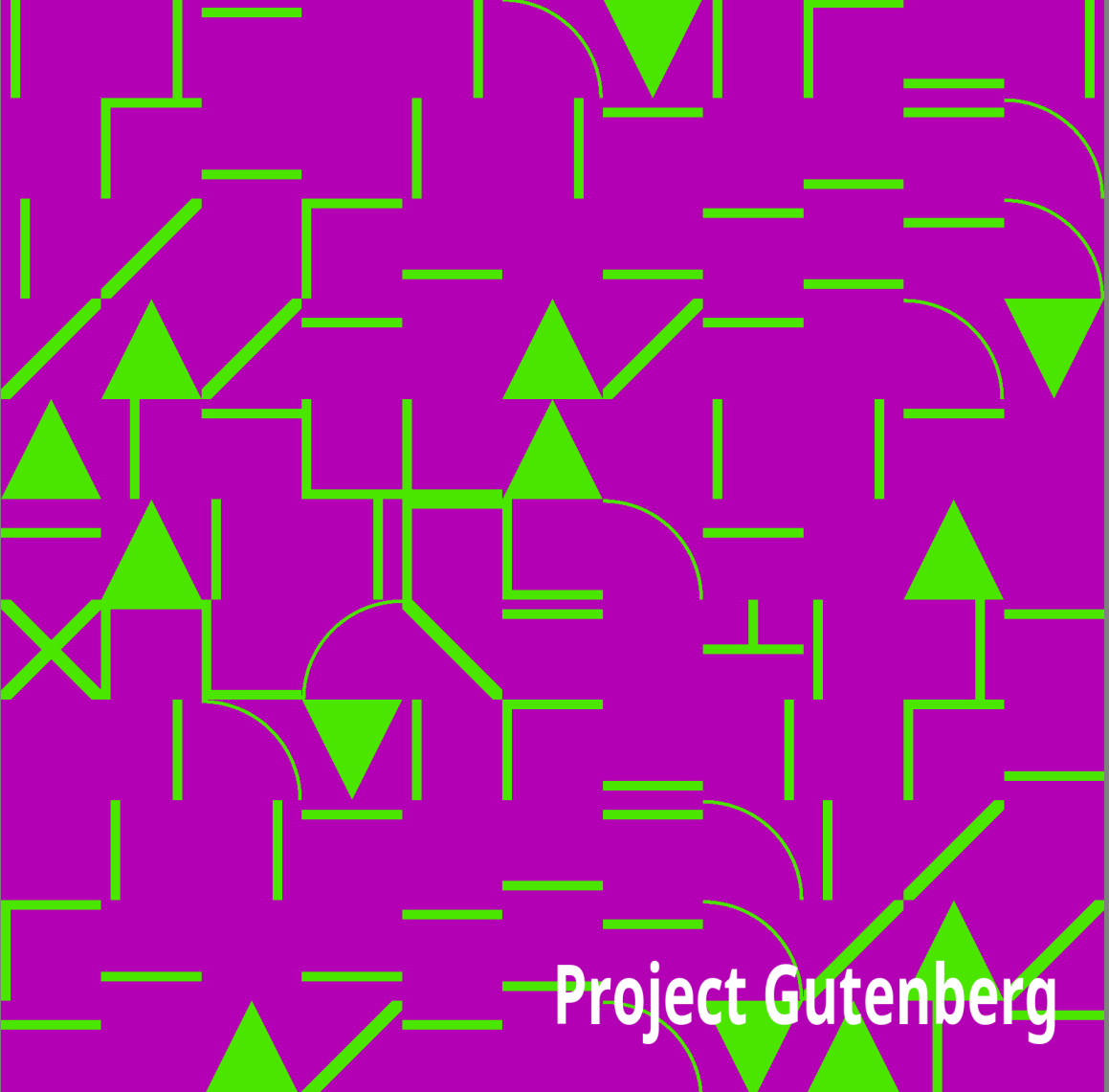
The History of the Reign of Ferdinand and Isabella the Catholic — Volume 1

William Hickling Prescott

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OF THE REIGN OF FERDINAND AND ISABELLA THE CATHOLIC —
VOLUME 1 ***

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HISTORY OF THE REIGN OF FERDINAND AND ISABELLA,
THE CATHOLIC.

BY WILLIAM H. PRESCOTT.

IN THREE VOLUMES. VOL. I.

**TO THE HONORABLE WILLIAM PRESCOTT,
LL.D., THE GUIDE OF MY YOUTH, MY BEST
FRIEND IN RIPER YEARS, THESE VOLUMES,
WITH THE WARMEST FEELINGS OF FILIAL
AFFECTION, ARE RESPECTFULLY
INSCRIBED.**

PREFACE

TO THE FIRST EDITION.

English writers have done more for the illustration of Spanish history, than for that of any other except their own. To say nothing of the recent general compendium, executed for the "Cabinet Cyclopaedia," a work of singular acuteness and information, we have particular narratives of the several reigns, in an unbroken series, from the emperor Charles the Fifth (the First of Spain) to Charles the Third, at the close of the last century, by authors whose names are a sufficient guaranty for the excellence of their productions. It is singular, that, with this attention to the modern history of the Peninsula, there should be no particular account of the period which may be considered as the proper basis of it,— the reign of Ferdinand and Isabella.

In this reign, the several States, into which the country had been broken up for ages, were brought under a common rule; the kingdom of Naples was conquered; America discovered and colonized; the ancient empire of the Spanish Arabs subverted; the dread tribunal of the Modern Inquisition established; the Jews, who contributed so sensibly to the wealth and civilization of the country, were banished; and, in fine, such changes were introduced into the interior administration of the monarchy, as have left a permanent impression on the character and condition of the nation.

The actors in these events were every way suited to their importance. Besides the reigning sovereigns, Ferdinand and Isabella, the latter certainly one of the most interesting personages in history, we have, in political affairs, that consummate statesman, Cardinal Ximenes, in military, the "Great Captain," Gonsalvo de Cordova, and in maritime, the most successful navigator of any age, Christopher Columbus; whose entire biographies fall within the limits of this period. Even such portions of it as have been incidentally touched by English writers, as the Italian wars, for example, have been drawn so exclusively from French and Italian sources, that they may be said to be untrodden ground for the historian of Spain. [1]

It must be admitted, however, that an account of this reign could not have been undertaken at any preceding period, with anything like the advantages at present afforded; owing to the light which recent researches of Spanish scholars, in the greater freedom of inquiry now enjoyed, have shed on some of its most interesting and least familiar features. The most important of the works to which I allude are, the History of the Inquisition, from official documents, by its secretary, Llorente; the analysis of the political institutions of the kingdom, by such writers as Marina, Sempere, and Capmany; the literal version, now made for the first time, of the Spanish-Arab chronicles, by Conde; the collection of original and unpublished documents, illustrating the history of Columbus and the early Castilian navigators, by Navarrete; and, lastly, the copious illustrations of Isabella's reign, by Clemencin, the late lamented secretary of the Royal Academy of History, forming the sixth volume of its valuable Memoirs.

It was the knowledge of these facilities for doing justice to this subject, as well as its intrinsic merits, which led me, ten years since, to select it; and surely no subject could be found more suitable for the pen of an American, than a history of that reign, under the auspices of which the existence of his own favored quarter of the globe was first revealed. As I was conscious that

the value of the history must depend mainly on that of its materials, I have spared neither pains nor expense, from the first, in collecting the most authentic. In accomplishing this, I must acknowledge the services of my friends, Mr. Alexander H. Everett, then minister plenipotentiary from the United States to the court of Madrid, Mr. Arthur Middleton, secretary of the American legation, and, above all, Mr. O. Rich, now American consul for the Balearic Islands, a gentleman, whose extensive bibliographical knowledge, and unwearied researches, during a long residence in the Peninsula, have been liberally employed for the benefit both of his own country and of England. With such assistance, I flatter myself that I have been enabled to secure whatever can materially conduce to the illustration of the period in question, whether in the form of chronicle, memoir, private correspondence, legal codes, or official documents. Among these are various contemporary manuscripts, covering the whole ground of the narrative, none of which have been printed, and some of them but little known to Spanish scholars. In obtaining copies of these from the public libraries, I must add, that I have found facilities under the present liberal government, which were denied me under the preceding. In addition to these sources of information, I have availed myself, in the part of the work occupied with literary criticism and history, of the library of my friend, Mr. George Ticknor, who during a visit to Spain, some years since, collected whatever was rare and valuable in the literature of the Peninsula. I must further acknowledge my obligations to the library of Harvard University, in Cambridge, from whose rich repository of books relating to our own country I have derived material aid. And, lastly, I must not omit to notice the favors of another kind for which I am indebted to my friend, Mr. William H. Gardiner, whose judicious counsels have been of essential benefit to me in the revision of my labors.

In the plan of the work, I have not limited myself to a strict chronological narrative of passing events, but have occasionally paused, at the expense,

perhaps, of some interest in the story, to seek such collateral information as might bring these events into a clearer view. I have devoted a liberal portion of the work to the literary progress of the nation, conceiving this quite as essential a part of its history as civil and military details. I have occasionally introduced, at the close of the chapters, a critical notice of the authorities used, that the reader may form some estimate of their comparative value and credibility. Finally, I have endeavored to present him with such an account of the state of affairs, both before the accession, and at the demise of the Catholic sovereigns, as might afford him the best points of view for surveying the entire results of their reign.

How far I have succeeded in the execution of this plan, must be left to the reader's candid judgment. Many errors he may be able to detect. Sure I am, there can be no one more sensible of my deficiencies than myself; although it was not till after practical experience, that I could fully estimate the difficulty of obtaining anything like a faithful portraiture of a distant age, amidst the shifting hues and perplexing cross lights of historic testimony. From one class of errors my subject necessarily exempts me; those founded on national or party feeling. I may have been more open to another fault; that of too strong a bias in favor of my principal actors; for characters, noble and interesting in themselves, naturally beget a sort of partiality akin to friendship, in the historian's mind, accustomed to the daily contemplation of them. Whatever defects may be charged on the work, I can at least assure myself, that it is an honest record of a reign important in itself, new to the reader in an English dress, and resting on a solid basis of authentic materials, such as probably could not be met with out of Spain, nor in it without much difficulty.

I hope I shall be acquitted of egotism, although I add a few words respecting the peculiar embarrassments I have encountered, in composing these volumes. Soon after my arrangements were made, early in 1826, for

obtaining the necessary materials from Madrid, I was deprived of the use of my eyes for all purposes of reading and writing, and had no prospect of again recovering it. This was a serious obstacle to the prosecution of a work requiring the perusal of a large mass of authorities, in various languages, the contents of which were to be carefully collated, and transferred to my own pages, verified by minute reference. [2] Thus shut out from one sense, I was driven to rely exclusively on another, and to make the ear do the work of the eye. With the assistance of a reader, uninitiated, it may be added, in any modern language but his own, I worked my way through several venerable Castilian quartos, until I was satisfied of the practicability of the undertaking. I next procured the services of one more competent to aid me in pursuing my historical inquiries. The process was slow and irksome enough, doubtless, to both parties, at least till my ear was accommodated to foreign sounds, and an antiquated, oftentimes barbarous phraseology, when my progress became more sensible, and I was cheered with the prospect of success. It certainly would have been a far more serious misfortune, to be led thus blindfold through the pleasant paths of literature; but my track stretched, for the most part, across dreary wastes, where no beauty lurked, to arrest the traveller's eye and charm his senses. After persevering in this course for some years, my eyes, by the blessing of Providence, recovered sufficient strength to allow me to use them, with tolerable freedom, in the prosecution of my labors, and in the revision of all previously written. I hope I shall not be misunderstood, as stating these circumstances to deprecate the severity of criticism, since I am inclined to think the greater circumspection I have been compelled to use has left me, on the whole, less exposed to inaccuracies, than I should have been in the ordinary mode of composition. But, as I reflect on the many sober hours I have passed in wading through black letter tomes, and through manuscripts whose doubtful orthography and defiance of all punctuation were so many stumbling-blocks to my amanuensis, it calls up a scene of whimsical distresses, not usually

encountered, on which the good-natured reader may, perhaps, allow I have some right, now that I have got the better of them, to dwell with satisfaction.

I will only remark, in conclusion of this too prolix discussion about myself, that while making my tortoise-like progress, I saw what I had fondly looked upon as my own ground, (having indeed lain unmolested by any other invader for so many ages,) suddenly entered, and in part occupied, by one of my countrymen. I allude to Mr. Irving's "History of Columbus," and "Chronicle of Granada;" the subjects of which, although covering but a small part of my whole plan, form certainly two of its most brilliant portions. Now, alas! if not devoid of interest, they are, at least, stripped of the charm of novelty. For what eye has not been attracted to the spot on which the light of that writer's genius has fallen?

I cannot quit the subject which has so long occupied me, without one glance at the present unhappy condition of Spain; who, shorn of her ancient splendor, humbled by the loss of empire abroad, and credit at home, is abandoned to all the evils of anarchy. Yet, deplorable as this condition is, it is not so bad as the lethargy in which she has been sunk for ages. Better be hurried forward for a season on the wings of the tempest, than stagnate in a deathlike calm, fatal alike to intellectual and moral progress. The crisis of a revolution, when old things are passing away, and new ones are not yet established, is, indeed, fearful. Even the immediate consequences of its achievement are scarcely less so to a people who have yet to learn by experiment the precise form of institutions best suited to their wants, and to accommodate their character to these institutions. Such results must come with time, however, if the nation be but true to itself. And that they will come, sooner or later, to the Spaniards, surely no one can distrust who is at all conversant with their earlier history, and has witnessed the examples it affords of heroic virtue, devoted patriotism, and generous love of freedom;

"Chè l'antico valore ——non è ancor morto."

Clouds and darkness have, indeed, settled thick around the throne of the youthful Isabella; but not a deeper darkness than that which covered the land in the first years of her illustrious namesake; and we may humbly trust, that the same Providence, which guided her reign to so prosperous a termination, may carry the nation safe through its present perils, and secure to it the greatest of earthly blessings, civil and religious liberty.

November, 1837.

FOOTNOTES

[1] The only histories of this reign by continental writers, with which I am acquainted, are the "Histoire des Rois Catholiques Ferdinand et Isabelle, par l'Abbé Mignot, Paris, 1766," and the "Geschichte der Regierung Ferdinand des Katholischen, von Rupert Becker, Prag und Leipzig, 1790." Their authors have employed the most accessible materials only in the compilation; and, indeed, they lay claim to no great research, which would seem to be precluded by the extent of their works, in neither instance exceeding two volumes duodecimo. They have the merit of exhibiting, in a simple, perspicuous form, those events, which, lying on the surface, may be found more or less expanded in most general histories.

[2] "To compile a history from various authors, when they can only be consulted by other eyes, is not easy, nor possible, but with more skilful and attentive help than can be commonly obtained." [Johnson's *Life of Milton*.] This remark of the great critic, which first engaged my attention in the midst of my embarrassments, although discouraging at first, in the end stimulated the desire to overcome them.

PREFACE

TO THE THIRD ENGLISH EDITION.

Since the publication of the First Edition of this work, it has undergone a careful revision; and this, aided by the communications of several intelligent friends, who have taken an interest in its success, has enabled me to correct several verbal inaccuracies, and a few typographical errors, which had been previously overlooked. While the Second Edition was passing through the press, I received, also, copies of two valuable Spanish works, having relation to the reign of the Catholic sovereigns, but which, as they appeared during the recent troubles of the Peninsula, had not before come to my knowledge. For these I am indebted to the politeness of Don Angel Calderon de la Barca, late Spanish Minister at Washington; a gentleman, whose frank and liberal manners, personal accomplishments, and independent conduct in public life, have secured for him deservedly high consideration in the United States, as well as in his own country.

I must still further acknowledge my obligation to Don Pascual de Gayangos, the learned author of the "Mahommedan Dynasties in Spain," recently published in London,—a work, which, from its thorough investigation of original sources, and fine spirit of criticism, must supply, what has been so long felt as an important desideratum with the student,—the means of forming a perfect acquaintance with the Arabian portion of the

Peninsular annals. There fell into the hands of this gentleman, on the breaking up of the convents of Saragossa in 1835, a rich collection of original documents, comprehending, among other things, the autograph correspondence of Ferdinand and Isabella, and of the principal persons of their court. It formed, probably, part of the library of Geronimo Zurita,—historiographer of Aragon, under Philip the Second,—who, by virtue of his office, was intrusted with whatever documents could illustrate the history of the country. This rare collection was left at his death to a monastery in his native city. Although Zurita is one of the principal authorities for the present work, there are many details of interest in this correspondence, which have passed unnoticed by him, although forming the basis of his conclusions; and I have gladly availed myself of the liberality and great kindness of Señor de Gayangos, who has placed these manuscripts at my disposal, transcribing such as I have selected, for the corroboration and further illustration of my work. The difficulties attending this labor of love will be better appreciated, when it is understood, that the original writing is in an antiquated character, which *few* Spanish scholars of the present day could comprehend, and often in cipher, which requires much patience and ingenuity to explain. With these various emendations, it is hoped that the present Edition may be found more deserving of that favor from the public, which has been so courteously accorded to the preceding.

March, 1841.

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OF THE SOVEREIGNS CEREMONIES ON THE OCCUPATION OF A CITY RELEASE OF
CHRISTIAN CAPTIVES POLICY IN FOMENTING THE MOORISH FACTIONS
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ANTONIO DE LEBRIJA**

INTRODUCTION.

SECTION I.

VIEW OF THE CASTILIAN MONARCHY BEFORE THE FIFTEENTH CENTURY.

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Slow

Reconquest of the Country.—Religious Enthusiasm of the Spaniards.—
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Limited Extent of the Prerogative.

For several hundred years after the great Saracen invasion in the beginning of the eighth century, Spain was broken up into a number of small but independent states, divided in their interests, and often in deadly hostility with one another. It was inhabited by races, the most dissimilar in their origin, religion, and government, the least important of which has exerted a sensible influence on the character and institutions of its present inhabitants. At the close of the fifteenth century, these various races were blended into one great nation, under one common rule. Its territorial limits were widely extended by discovery and conquest. Its domestic institutions,

and even its literature, were moulded into the form, which, to a considerable extent, they have maintained to the present day. It is the object of the present narrative to exhibit the period in which these momentous results were effected,—the reign of Ferdinand and Isabella.

By the middle of the fifteenth century, the number of states, into which the country had been divided, was reduced to four; Castile, Aragon, Navarre, and the Moorish kingdom of Granada. The last, comprised within nearly the same limits as the modern province of that name, was all that remained to the Moslems of their once vast possessions in the Peninsula. Its concentrated population gave it a degree of strength altogether disproportioned to the extent of its territory; and the profuse magnificence of its court, which rivalled that of the ancient caliphs, was supported by the labors of a sober, industrious people, under whom agriculture and several of the mechanic arts had reached a degree of excellence, probably unequalled in any other part of Europe during the Middle Ages.

The little kingdom of Navarre, embosomed within the Pyrenees, had often attracted the avarice of neighboring and more powerful states. But, since their selfish schemes operated as a mutual check upon each other, Navarre still continued to maintain her independence, when all the smaller states in the Peninsula had been absorbed in the gradually increasing dominion of Castile and Aragon.

This latter kingdom comprehended the province of that name, together with Catalonia and Valencia. Under its auspicious climate and free political institutions, its inhabitants displayed an uncommon share of intellectual and moral energy. Its long line of coast opened the way to an extensive and flourishing commerce; and its enterprising navy indemnified the nation for the scantiness of its territory at home, by the important foreign conquests of Sardinia, Sicily, Naples, and the Balearic Isles.

The remaining provinces of Leon, Biscay, the Asturias, Galicia, Old and New Castile, Estremadura, Murcia, and Andalusia, fell to the crown of Castile, which, thus extending its sway over an unbroken line of country from the Bay of Biscay to the Mediterranean, seemed by the magnitude, of its territory, as well as by its antiquity, (for it was there that the old Gothic monarchy may be said to have first revived after the great Saracen invasion,) to be entitled to a pre-eminence over the other states of the Peninsula. This claim, indeed, appears to have been recognized at an early period of her history. Aragon did homage to Castile for her territory on the western bank of the Ebro, until the twelfth century, as did Navarre, Portugal, and, at a later period, the Moorish kingdom of Granada. [1] And, when at length the various states of Spain were consolidated into one monarchy, the capital of Castile became the capital of the new empire, and her language the language of the court and of literature.

It will facilitate our inquiry into the circumstances which immediately led to these results, if we briefly glance at the prominent features in the early history and constitution of the two principal Christian states, Castile and Aragon, previous to the fifteenth century. [2]

The Visigoths who overran the Peninsula, in the fifth century, brought with them the same liberal principles of government which distinguished their Teutonic brethren. Their crown was declared elective by a formal legislative act. [3] Laws were enacted in the great national councils, composed of prelates and nobility, and not unfrequently ratified in an assembly of the people. Their code of jurisprudence, although abounding in frivolous detail, contained many admirable provisions for the security of justice; and, in the degree of civil liberty which it accorded to the Roman inhabitants of the country, far transcended those of most of the other barbarians of the north. [4] In short, their simple polity exhibited the germ of some of those institutions, which, with other nations, and under happier

auspices, have formed the basis of a well-regulated constitutional liberty. [5]

But, while in other countries the principles of a free government were slowly and gradually unfolded, their development was much accelerated in Spain by an event, which, at the time, seemed to threaten their total extinction,—the great Saracen invasion at the beginning of the eighth century. The religious, as well as the political institutions of the Arabs, were too dissimilar to those of the conquered nation, to allow the former to exercise any very sensible influence over the latter in these particulars. In the Spirit of toleration, which distinguished the early followers of Mahomet, they conceded to such of the Goths, as were willing to continue among them after the conquest, the free enjoyment of their religious, as well as of many of the civil privileges which they possessed under the ancient monarchy. [6] Under this liberal dispensation it cannot be doubted, that many preferred remaining in the pleasant regions of their ancestors, to quitting them for a life of poverty and toil. These, however, appear to have been chiefly of the lower order; [7] and the men of higher rank, or of more generous sentiments, who refused to accept a nominal and precarious independence at the hands of their oppressors, escaped from the overwhelming inundation into the neighboring countries of France, Italy, and Britain, or retreated behind those natural fortresses of the north, the Asturian hills and the Pyrenees, whither the victorious Saracen disdained to pursue them. [8]

Here the broken remnant of the nation endeavored to revive the forms, at least, of the ancient government. But it may well be conceived, how imperfect these must have been under a calamity, which, breaking up all the artificial distinctions of society, seemed to resolve it at once into its primitive equality. The monarch, once master of the whole Peninsula, now beheld his empire contracted to a few barren, inhospitable rocks. The noble,

instead of the broad lands and thronged halls of his ancestors, saw himself at best but the chief of some wandering horde, seeking a doubtful subsistence, like himself, by rapine. The peasantry, indeed, may be said to have gained by the exchange; and, in a situation, in which all factitious distinctions were of less worth than individual prowess and efficiency, they rose in political consequence. Even slavery, a sore evil among the Visigoths, as indeed among all the barbarians of German origin, though not effaced, lost many of its most revolting features, under the more generous legislation of later times. [9]

A sensible and salutary influence, at the same time, was exerted on the moral energies of the nation, which had been corrupted in the long enjoyment of uninterrupted prosperity. Indeed, so relaxed were the morals of the court, as well as of the clergy, and so enervated had all classes become, in the general diffusion of luxury, that some authors have not scrupled to refer to these causes principally the perdition of the Gothic monarchy. An entire reformation in these habits was necessarily effected in a situation, where a scanty subsistence could only be earned by a life of extreme temperance and toil, and where it was often to be sought, sword in hand, from an enemy far superior in numbers. Whatever may have been the vices of the Spaniards, they cannot have been those of effeminate sloth. Thus a sober, hardy, and independent race was gradually formed, prepared to assert their ancient inheritance, and to lay the foundations of far more liberal and equitable forms of government, than were known to their ancestors.

At first, their progress was slow and almost imperceptible. The Saracens, indeed, reposing under the sunny skies of Andalusia, so congenial with their own, seemed willing to relinquish the sterile regions of the north to an enemy whom they despised. But, when the Spaniards, quitting the shelter of their mountains, descended into the open plains of Leon and Castile, they

found themselves exposed to the predatory incursions of the Arab cavalry, who, sweeping over the face of the country, carried off in a single foray the hard-earned produce of a summer's toil. It was not until they had reached some natural boundary, as the river Douro, or the chain of the Guadarrama, that they were enabled, by constructing a line of fortifications along these primitive bulwarks, to secure their conquests, and oppose an effectual resistance to the destructive inroads of their enemies.

Their own dissensions were another cause of their tardy progress. The numerous petty states, which rose from the ruins of the ancient monarchy, seemed to regard each other with even a fiercer hatred than that with which they viewed the enemies of their faith; a circumstance that more than once brought the nation to the verge of ruin. More Christian blood was wasted in these national feuds, than in all their encounters with the infidel. The soldiers of Fernan Gonzalez, a chieftain of the tenth century, complained that their master made them lead the life of very devils, keeping them in the harness day and night, in wars, not against the Saracens, but one another. [10]

These circumstances so far palsied the arm of the Christians, that a century and a half elapsed after the invasion, before they had penetrated to the Douro, [11] and nearly thrice that period before they had advanced the line of conquest to the Tagus, [12] notwithstanding this portion of the country had been comparatively deserted by the Mahometans. But it was easy to foresee that a people, living, as they did, under circumstances so well adapted to the development of both physical and moral energy, must ultimately prevail over a nation oppressed by despotism, and the effeminate indulgence, to which it was naturally disposed by a sensual religion and a voluptuous climate. In truth, the early Spaniard was urged by every motive that can give efficacy to human purpose. Pent up in his barren mountains, he beheld the pleasant valleys and fruitful vineyards of his ancestors

delivered over to the spoiler, the holy places polluted by his abominable rites, and the crescent glittering on the domes, which were once consecrated by the venerated symbol of his faith. His cause became the cause of Heaven. The church published her bulls of crusade, offering liberal indulgences to those who served, and Paradise to those who fell in battle, against the infidel. The ancient Castilian was remarkable for his independent resistance of papal encroachment; but the peculiarity of his situation subjected him in an uncommon degree to ecclesiastical influence at home. Priests mingled in the council and the camp, and, arrayed in their sacerdotal robes, not unfrequently led the armies to battle. [13] They interpreted the will of Heaven as mysteriously revealed in dreams and visions. Miracles were a familiar occurrence. The violated tombs of the saints sent forth thunders and lightnings to consume the invaders; and, when the Christians fainted in the fight, the apparition of their patron, St. James, mounted on a milk-white steed, and bearing aloft the banner of the cross, was seen hovering in the air, to rally their broken squadrons, and lead them on to victory. [14] Thus the Spaniard looked upon himself as in a peculiar manner the care of Providence. For him the laws of nature were suspended. He was a soldier of the Cross, fighting not only for his country, but for Christendom. Indeed, volunteers from the remotest parts of Christendom eagerly thronged to serve under his banner; and the cause of religion was debated with the same ardor in Spain, as on the plains of Palestine. [15] Hence the national character became exalted by a religious fervor, which in later days, alas! settled into a fierce fanaticism. Hence that solicitude for the purity of the faith, the peculiar boast of the Spaniards, and that deep tinge of superstition, for which they have ever been distinguished above the other nations of Europe.

The long wars with the Mahometans served to keep alive in their bosoms the ardent glow of patriotism; and this was still further heightened by the body of traditional minstrelsy, which commemorated in these wars the

heroic deeds of their ancestors. The influence of such popular compositions on a simple people is undeniable. A sagacious critic ventures to pronounce the poems of Homer the principal bond which united the Grecian states. [16] Such an opinion may be deemed somewhat extravagant. It cannot be doubted, however, that a poem like that of the "Cid," which appeared as early as the twelfth century, [17] by calling up the most inspiring national recollections in connection with their favorite hero, must have operated powerfully on the moral sensibilities of the people.

It is pleasing to observe, in the cordial spirit of these early effusions, little of the ferocious bigotry which sullied the character of the nation in after ages. [18] The Mahometans of this period far excelled their enemies in general refinement, and had carried some branches of intellectual culture to a height scarcely surpassed by Europeans in later times. The Christians, therefore, notwithstanding their political aversion to the Saracens, conceded to them a degree of respect, which subsided into feelings of a very different complexion, as they themselves rose in the scale of civilization. This sentiment of respect tempered the ferocity of a warfare, which, although sufficiently disastrous in its details, affords examples of a generous courtesy, that would do honor to the politest ages of Europe. [19] The Spanish Arabs were accomplished in all knightly exercises, and their natural fondness for magnificence, which shed a lustre over the rugged features of chivalry, easily communicated itself to the Christian cavaliers. In the intervals of peace, these latter frequented the courts of the Moorish princes, and mingled with their adversaries in the comparatively peaceful pleasures of the tourney, as in war they vied with them in feats of Quixotic gallantry. [20]

The nature of this warfare between two nations, inhabitants of the same country, yet so dissimilar in their religious and social institutions as to be almost the natural enemies of each other, was extremely favorable to the

exhibition of the characteristic virtues of chivalry. The contiguity of the hostile parties afforded abundant opportunities for personal rencounter and bold romantic enterprise. Each nation had its regular military associations, who swore to devote their lives to the service of God and their country, in perpetual war against the *infidel* [21] The Spanish knight became the true hero of romance, wandering over his own land, and even into the remotest climes, in quest of adventures; and, as late as the fifteenth century, we find him in the courts of England and Burgundy, doing battle in honor of his mistress, and challenging general admiration by his uncommon personal intrepidity. [22] This romantic spirit lingered in Castile, long after the age of chivalry had become extinct in other parts of Europe, continuing to nourish itself on those illusions of fancy, which were at length dispelled by the caustic satire of Cervantes.

Thus patriotism, religious loyalty, and a proud sense of independence, founded on the consciousness of owing their possessions to their personal valor, became characteristic traits of the Castilians previously to the sixteenth century, when the oppressive policy and fanaticism of the Austrian dynasty contrived to throw into the shade these generous virtues. Glimpses of them, however, might long be discerned in the haughty bearing of the Castilian noble, and in that erect, high-minded peasantry, whom oppression has not yet been able wholly to subdue. [23]

To the extraordinary position, in which the nation was placed, may also be referred the liberal forms of its political institutions, as well as a more early development of them than took place in other countries of Europe. From the exposure of the Castilian towns to the predatory incursions of the Arabs, it became necessary, not only that they should be strongly fortified, but that every citizen should be trained to bear arms in their defence. An immense increase of consequence was given to the burgesses, who thus constituted the most effective part of the national militia. To this

circumstance, as well as to the policy of inviting the settlement of frontier places by the grant of extraordinary privileges to the inhabitants, is to be imputed the early date, as well as liberal character, of the charters of community in Castile and Leon. [24] These, although varying a good deal in their details, generally conceded to the citizens the right of electing their own magistrates for the regulation of municipal affairs. Judges were appointed by this body for the administration of civil and criminal law, subject to an appeal to the royal tribunal. No person could be affected in life or property, except by a decision of this municipal court; and no cause while pending before it could be evoked thence into the superior tribunal. In order to secure the barriers of justice more effectually against the violence of power, so often superior to law in an imperfect state of society, it was provided in many of the charters that no nobles should be permitted to acquire real property within the limits of the community; that no fortress or palace should be erected by them there; that such as might reside within its territory, should be subject to its jurisdiction; and that any violence, offered by them to its inhabitants, might be forcibly resisted with impunity. Ample and inalienable funds were provided for the maintenance of the municipal functionaries, and for other public expenses. A large extent of circumjacent country, embracing frequently many towns and villages, was annexed to each city with the right of jurisdiction over it. All arbitrary tallages were commuted for a certain fixed and moderate rent. An officer was appointed by the crown to reside within each community, whose province it was to superintend the collection of this tribute, to maintain public order, and to be associated with the magistrates of each city in the command of the forces it was bound to contribute towards the national defence. Thus while the inhabitants of the great towns in other parts of Europe were languishing in feudal servitude, the members of the Castilian corporations, living under the protection of their own laws and magistrates in time of peace, and

commanded by their own officers in war, were in full enjoyment of all the essential rights and privileges of freemen. [25]

It is true, that they were often convulsed by intestine feuds; that the laws were often loosely administered by incompetent judges; and that the exercise of so many important prerogatives of independent states inspired them with feelings of independence, which led to mutual rivalry, and sometimes to open collision. But with all this, long after similar immunities in the free cities of other countries, as Italy for example, [26] had been sacrificed to the violence of faction or the lust of power, those of the Castilian cities not only remained unimpaired, but seemed to acquire additional stability with age. This circumstance is chiefly imputable to the constancy of the national legislature, which, until the voice of liberty was stifled by a military despotism, was ever ready to interpose its protecting arm in defence of constitutional rights.

The earliest instance on record of popular representation in Castile occurred at Burgos, in 1169; [27] nearly a century antecedent to the celebrated Leicester parliament. Each city had but one vote, whatever might be the number of its representatives. A much greater irregularity, in regard to the number of cities required to send deputies to cortes on different occasions, prevailed in Castile, than ever existed in England; [28] though, previously to the fifteenth century, this does not seem to have proceeded from any design of infringing on the liberties of the people. The nomination of these was originally vested in the householders at large, but was afterwards confined to the municipalities; a most mischievous alteration, which subjected their election eventually to the corrupt influence of the crown. [29] They assembled in the same chamber with the higher orders of the nobility and clergy; but, on questions of moment, retired to deliberate by themselves. [30] After the transaction of other business, their own petitions were presented to the sovereign, and his assent gave them the validity of

laws. The Castilian commons, by neglecting to make their money grants depend on correspondent concessions from the crown, relinquished that powerful check on its operations so beneficially exerted in the British parliament, but in vain contended for even there, till a much later period than that now under consideration. Whatever may have been the right of the nobility and clergy to attend in cortes, their sanction was not deemed essential to the validity of legislative acts; [31] for their presence was not even required in many assemblies of the nation which occurred in the fourteenth and fifteenth centuries. [32] The extraordinary power thus committed to the commons was, on the whole, unfavorable to their liberties. It deprived them of the sympathy and co-operation of the great orders of the state, whose authority alone could have enabled them to withstand the encroachments of arbitrary power, and who, in fact, did eventually desert them in their utmost need. [33]

But, notwithstanding these defects, the popular branch of the Castilian cortes, very soon after its admission into that body, assumed functions and exercised a degree of power on the whole superior to that enjoyed by it in other European legislatures. It was soon recognized as a fundamental principle of the constitution, that no tax could be imposed without its consent; [34] and an express enactment to this effect was suffered to remain on the statute book, after it had become a dead letter, as if to remind the nation of the liberties it had lost. [35] The commons showed a wise solicitude in regard to the mode of collecting the public revenue, oftentimes more onerous to the subject than the tax itself. They watched carefully over its appropriation to its destined uses. They restrained a too prodigal expenditure, and ventured more than once to regulate the economy of the royal household. [36] They kept a vigilant eye on the conduct of public officers, as well as on the right administration of justice, and commissions were appointed at their suggestion for inquiring into its abuses. They entered into negotiation for alliances with foreign powers, and, by

determining the amount of supplies for the maintenance of troops in time of war, preserved a salutary check over military operations. [37] The nomination of regencies was subject to their approbation, and they defined the nature of the authority to be entrusted to them. Their consent was esteemed indispensable to the validity of a title to the crown, and this prerogative, or at least the image of it, has continued to survive the wreck of their ancient liberties. [38] Finally, they more than once set aside the testamentary provisions of the sovereigns in regard to the succession. [39]

Without going further into detail, enough has been said to show the high powers claimed by the commons, previously to the fifteenth century, which, instead of being confined to ordinary subjects of legislation, seem, in some instances, to have reached to the executive duties of the administration. It would, indeed, show but little acquaintance with the social condition of the Middle Ages, to suppose that the practical exercise of these powers always corresponded with their theory. We trace repeated instances, it is true, in which they were claimed and successfully exerted; while, on the other hand, the multiplicity of remedial statutes proves too plainly how often the rights of the people were invaded by the violence of the privileged orders, or the more artful and systematic usurpations of the crown. But, far from being intimidated by such acts, the representatives in cortes were ever ready to stand forward as the intrepid advocates of constitutional freedom; and the unqualified boldness of their language on such occasions, and the consequent concessions of the sovereign, are satisfactory evidence of the real extent of their power, and show how cordially they must have been supported by public opinion.

It would be improper to pass by without notice an anomalous institution peculiar to Castile, which sought to secure the public tranquillity by means scarcely compatible themselves with civil subordination. I refer to the celebrated *Hermidad*, or Holy Brotherhood, as the association was

sometimes called, a name familiar to most readers in the lively fictions of Le Sage, though conveying there no very adequate idea of the extraordinary functions which it assumed at the period under review. Instead of a regularly organized police, it then consisted of a confederation of the principal cities bound together by solemn league and covenant, for the defence of their liberties in seasons of civil anarchy. Its affairs were conducted by deputies, who assembled at stated intervals for this purpose, transacting their business under a common seal, enacting laws which they were careful to transmit to the nobles and even the sovereign himself, and enforcing their measures by an armed force. This wild kind of justice, so characteristic of an unsettled state of society, repeatedly received the legislative sanction; and, however formidable such a popular engine may have appeared to the eye of the monarch, he was often led to countenance it by a sense of his own impotence, as well as of the overweening power of the nobles, against whom it was principally directed. Hence these associations, although the epithet may seem somewhat overstrained, have received the appellation of "cortès extraordinary." [40]

With these immunities, the cities of Castile attained a degree of opulence and splendor unrivalled, unless in Italy, during the middle ages. At a very early period, indeed, their contact with the Arabs had familiarized them with a better system of agriculture, and a dexterity in the mechanic arts unknown in other parts of Christendom. [41]

On the occupation of a conquered town, we find it distributed into quarters or districts, appropriated to the several crafts, whose members were incorporated into guilds, under the regulation of magistrates and by-laws of their own appointment. Instead of the unworthy disrepute, into which the more humble occupations have since fallen in Spain, they were fostered by a liberal patronage, and their professors in some instances elevated to the rank of knighthood. [42] The excellent breed of sheep, which early became

the subject of legislative solicitude, furnished them with an important staple which, together with the simpler manufactures and the various products of a prolific soil, formed the materials of a profitable commerce. [43] Augmentation of wealth brought with it the usual appetite for expensive pleasures; and the popular diffusion of luxury in the fourteenth and fifteenth centuries is attested by the fashionable invective of the satirist, and by the impotence of repeated sumptuary enactments. [44] Much of this superfluous wealth, however, was expended on the construction of useful public works. Cities, from which the nobles had once been so jealously excluded, came now to be their favorite residence. [45] But, while their sumptuous edifices and splendid retinues dazzled the eyes of the peaceful burghers, their turbulent spirit was preparing the way for those dismal scenes of faction, which convulsed the little commonwealths to their centre during the latter half of the fifteenth century.

The flourishing condition of the communities gave their representatives a proportional increase of importance in the national assembly. The liberties of the people seemed to take deeper root in the midst of those political convulsions, so frequent in Castile, which unsettled the ancient prerogatives of the crown. Every new revolution was followed by new concessions on the part of the sovereign, and the popular authority continued to advance with a steady progress until the accession of Henry the Third, of Trastamara, in 1393, when it may be said to have reached its zenith. A disputed title and a disastrous war compelled the father of this prince, John the First, to treat the commons with a deference unknown to his predecessors. We find four of their number admitted into his privy council, and six associated in the regency, to which he confided the government of the kingdom during his son's minority. [46] A remarkable fact, which occurred in this reign, showing the important advances made by the commons in political estimation, was the substitution of the sons of burgesses for an equal number of those of the nobility, who were stipulated

to be delivered as hostages for the fulfilment of a treaty with Portugal, in 1393. [47] There will be occasion to notice, in the first chapter of this History, some of the circumstances, which, contributing to undermine the power of the commons, prepared the way for the eventual subversion of the constitution.

The peculiar situation of Castile, which had been so favorable to popular rights, was eminently so to those of the aristocracy. The nobles, embarked with their sovereign in the same common enterprise of rescuing their ancient patrimony from its invaders, felt entitled to divide with him the spoils of victory. Issuing forth, at the head of their own retainers, from their strong-holds or castles, (the great number of which was originally implied in the name of the country,) [48] they were continually enlarging the circuit of their territories, with no other assistance than that of their own good swords. [49] This independent mode of effecting their conquests would appear unfavorable to the introduction of the feudal system, which, although its existence in Castile is clearly ascertained, by positive law, as well as usage, never prevailed to anything like the same extent as it did in the sister kingdom of Aragon, and other parts of Europe. [50]

The higher nobility, or *ricos hombres*, were exempted from general taxation, and the occasional attempt to infringe on this privilege in seasons of great public emergency, was uniformly repelled by this jealous body. [51] They could not be imprisoned for debt; nor be subjected to torture, so repeatedly sanctioned in other cases by the municipal law of Castile. They had the right of deciding their private feuds by an appeal to arms; a right of which they liberally availed themselves. [52] They also claimed the privilege, when aggrieved, of denaturalizing themselves, or, in other words, of publicly renouncing their allegiance to their sovereign, and of enlisting under the banners of his enemy. [53] The number of petty states, which swarmed over the Peninsula, afforded ample opportunity for the exercise of

this disorganizing prerogative. The Laras are particularly noticed by Mariana, as having a "great relish for rebellion," and the Castros as being much in the habit of going over to the Moors. [54] They assumed the license of arraying themselves in armed confederacy against the monarch, on any occasion of popular disgust, and they solemnized the act by the most imposing ceremonials of religion. [55] Their rights of jurisdiction, derived to them, it would seem, originally from royal grant, [56] were in a great measure defeated by the liberal charters of incorporation, which, in imitation of the sovereign, they conceded to their vassals, as well as by the gradual encroachment of the royal judicatures. [57] In virtue of their birth they monopolized all the higher offices of state, as those of constable and admiral of Castile, *adelantados* or governors of the provinces, cities, etc. [58] They secured to themselves the grand-masterships of the military orders, which placed at their disposal an immense amount of revenue and patronage. Finally, they entered into the royal or privy council, and formed a constituent portion of the national legislature.

These important prerogatives were of course favorable to the accumulation of great wealth. Their estates were scattered over every part of the kingdom, and, unlike the *grandees* of Spain at the present day, [59] they resided on them in person, maintaining the state of petty sovereigns, and surrounded by a numerous retinue, who served the purposes of a pageant in time of peace, and an efficient military force in war. The demesnes of John, lord of Biscay, confiscated by Alfonso the Eleventh to the use of the crown, in 1327, amounted to more than eighty towns and castles. [60] The "good constable" Davalos, in the time of Henry the Third, could ride through his own estates all the way from Seville to Compostella, almost the two extremities of the kingdom. [61] Alvaro de Luna, the powerful favorite of John the Second, could muster twenty thousand vassals. [62] A contemporary, who gives a catalogue of the annual rents of the principal Castilian nobility at the close of the fifteenth or beginning of

the following century, computes several at fifty and sixty thousand ducats a year, [63] an immense income, if we take into consideration the value of money in that age. The same writer estimates their united revenues as equal to one-third of those in the whole kingdom. [64]

These ambitious nobles did not consume their fortunes, or their energies in a life of effeminate luxury. From their earliest boyhood they were accustomed to serve in the ranks against the infidel, [65] and their whole subsequent lives were occupied either with war, or with those martial exercises which reflect the image of it. Looking back with pride to their ancient Gothic descent, and to those times, when they had stood forward as the peers, the electors of their sovereign, they could ill brook the slightest indignity at his hand. [66] With these haughty feelings and martial habits, and this enormous assumption of power, it may readily be conceived that they would not suffer the anarchical provisions of the constitution, which seemed to concede an almost unlimited license of rebellion, to remain a dead letter. Accordingly, we find them perpetually convulsing the kingdom with their schemes of selfish aggrandizement. The petitions of the commons are filled with remonstrances on their various oppressions, and the evils resulting from their long, desolating feuds. So that, notwithstanding the liberal forms of its constitution, there was probably no country in Europe, during the Middle Ages, so sorely afflicted with the vices of intestine anarchy, as Castile. These were still further aggravated by the improvident donations of the monarch to the aristocracy, in the vain hope of conciliating their attachment, but which swelled their already overgrown power to such a height, that, by the middle of the fifteenth century, it not only overshadowed that of the throne, but threatened to subvert the liberties of the state.

Their self-confidence, however, proved eventually their ruin. They disdained a co-operation with the lower orders in defence of their

privileges, and relied too unhesitatingly on their power as a body, to feel jealous of their exclusion from the national legislature, where alone they could have made an effectual stand against the usurpations of the crown.—The course of this work will bring under review the dexterous policy, by which the crown contrived to strip the aristocracy of its substantial privileges, and prepared the way for the period, when it should retain possession only of a few barren though ostentatious dignities. [67]

The inferior orders of nobility, the *hidalgos*, (whose dignity, like that of the *ricos hombres*, would seem, as their name imports, to have been originally founded on wealth,) [68] and the *cavalleros*, or knights, enjoyed many of the immunities of the higher class, especially that of exemption from taxation. [69] Knighthood appears to have been regarded with especial favor by the law of Castile. Its ample privileges and its duties are defined with a precision and in a spirit of romance, that might have served for the court of King Arthur. [70] Spain was indeed the land of chivalry. The respect for the sex, which had descended from the Visigoths, [71] was mingled with the religious enthusiasm, which had been kindled in the long wars with the infidel. The apotheosis of chivalry, in the person of their apostle and patron, St. James, [72] contributed still further to this exaltation of sentiment, which was maintained by the various military orders, who devoted themselves, in the bold language of the age, to the service "of God and the ladies." So that the Spaniard may be said to have put in action what, in other countries, passed for the extravagances of the minstrel. An example of this occurs in the fifteenth century, when a passage of arms was defended at Orbigo, not far from the shrine of Compostella, by a Castilian knight, named Sueño de Quenones, and his nine companions, against all comers, in the presence of John the Second and his court. Its object was to release the knight from the obligation, imposed on him by his mistress, of publicly wearing an iron collar round his neck every Thursday. The jousts continued for thirty days, and the doughty champions fought without shield or target,

with weapons bearing points of Milan steel. Six hundred and twenty-seven encounters took place, and one hundred and sixty-six lances were broken, when the emprise was declared to be fairly achieved. The whole affair is narrated with becoming gravity by an eye-witness, and the reader may fancy himself perusing the adventures of a Launcelot or an Amadis. [73]

The influence of the ecclesiastics in Spain may be traced back to the age of the Visigoths, when they controlled the affairs of the state in the great national councils of Toledo. This influence was maintained by the extraordinary position of the nation after the conquest. The holy warfare, in which it was embarked, seemed to require the co-operation of the clergy, to propitiate Heaven in its behalf, to interpret its mysterious omens, and to move all the machinery of miracles, by which the imagination is so powerfully affected in a rude and superstitious age. They even condescended, in imitation of their patron saint, to mingle in the ranks, and, with the crucifix in their hands, to lead the soldiers on to battle. Examples of these militant prelates are to be found in Spain so late as the sixteenth century. [74]

But, while the native ecclesiastics obtained such complete ascendancy over the popular mind, the Roman See could boast of less influence in Spain than in any other country in Europe. The Gothic liturgy was alone received, as canonical until the eleventh century; [75] and, until the twelfth, the sovereign held the right of jurisdiction over all ecclesiastical causes, of collating to benefices, or at least of confirming or annulling the election of the chapters. The code of Alfonso the Tenth, however, which borrowed its principles of jurisprudence from the civil and canon law, completed a revolution already begun, and transferred these important prerogatives to the pope, who now succeeded in establishing a usurpation over ecclesiastical rights in Castile, similar to that which had been before effected in other parts of Christendom. Some of these abuses, as that of the

nomination of foreigners to benefices, were carried to such an impudent height, as repeatedly provoked the indignant remonstrances of the cortes. The ecclesiastics, eager to indemnify themselves for what they had sacrificed to Rome, were more than ever solicitous to assert their independence of the royal jurisdiction. They particularly insisted on their immunity from taxation, and were even reluctant to divide with the laity the necessary burdens of a war, which, from its sacred character, would seem to have imperative claims on them. [76]

Notwithstanding the immediate dependence thus established on the head of the church by the legislation of Alfonso the Tenth, the general immunities secured by it to the ecclesiastics operated as a powerful bounty on their increase; and the mendicant orders in particular, that spiritual militia of the popes, were multiplied over the country to an alarming extent. Many of their members were not only incompetent to the duties of their profession, being without the least tincture of liberal culture, but fixed a deep stain on it by the careless laxity of their morals. Open concubinage was familiarly practised by the clergy, as well as laity, of the period; and, so far from being reprobated by the law of the land, seems anciently to have been countenanced by it. [77] This moral insensibility may probably be referred to the contagious example of their Mahometan neighbors; but, from whatever source derived, the practice was indulged to such a shameless extent, that, as the nation advanced in refinement, in the fourteenth and fifteenth centuries, it became the subject of frequent legislative enactments, in which the concubines of the clergy are described as causing general scandal by their lawless effrontery and ostentatious magnificence of apparel. [78]

Notwithstanding this prevalent licentiousness of the Spanish ecclesiastics, their influence became every day more widely extended, while this ascendancy, for which they were particularly indebted in that

rude age to their superior learning and capacity, was perpetuated by their enormous acquisitions of wealth. Scarcely a town was reconquered from the Moors, without a considerable portion of its territory being appropriated to the support of some ancient, or the foundation of some new, religious establishment. These were the common reservoir, into which flowed the copious streams of private as well as royal bounty; and, when the consequences of these alienations in mortmain came to be visible in the impoverishment of the public revenue, every attempt at legislative interference was in a great measure defeated by the piety or superstition of the age. The abbess of the monastery of Huelgas, which was situated within the precincts of Burgos, and contained within its walls one hundred and fifty nuns of the noblest families in Castile, exercised jurisdiction over fourteen capital towns, and more than fifty smaller places; and she was accounted inferior to the queen only in dignity. [79] The archbishop of Toledo, by virtue of his office primate of Spain and grand chancellor of Castile, was esteemed, after the pope, the highest ecclesiastical dignitary in Christendom. His revenues, at the close of the fifteenth century, exceeded eighty thousand ducats; while the gross amount of those of the subordinate beneficiaries of his church rose to one hundred and eighty thousand. He could muster a greater number of vassals than any other subject in the kingdom, and held jurisdiction over fifteen large and populous towns, besides a great number of inferior places. [80]

These princely funds, when intrusted to pious prelates, were munificently dispensed in useful public works, and especially in the foundation of eleemosynary institutions, with which every great city in Castile was liberally supplied. [81] But, in the hands of worldly men, they were perverted from these noble uses to the gratification of personal vanity, or the disorganizing schemes of faction. The moral perceptions of the people, in the mean time, were confused by the visible demeanor of a hierarchy, so repugnant to the natural conceptions of religious duty. They learned to

attach an exclusive value to external rites, to the forms rather than the spirit of Christianity; estimating the piety of men by their speculative opinions, rather than their practical conduct.—The ancient Spaniards, notwithstanding their prevalent superstition, were untinged with the fiercer religious bigotry of later times; and the uncharitable temper of their priests, occasionally disclosed in the heats of religious war, was controlled by public opinion, which accorded a high degree of respect to the intellectual, as well as political superiority of the Arabs. But the time was now coming when these ancient barriers were to be broken down; when a difference of religious sentiment was to dissolve all the ties of human brotherhood; when uniformity of faith was to be purchased by the sacrifice of any rights, even those of intellectual freedom; when, in fine, the Christian and the Mussulman, the oppressor and the oppressed, were to be alike bowed down under the strong arm of ecclesiastical tyranny. The means by which a revolution so disastrous to Spain was effected, as well as the incipient stages of its progress, are topics that fall within the scope of the present history.

From the preceding survey of the constitutional privileges enjoyed by the different orders of the Castilian monarchy, previous to the fifteenth century, it is evident that the royal authority must have been circumscribed within very narrow limits. The numerous states, into which the great Gothic empire was broken after the conquest, were individually too insignificant to confer on their respective sovereigns the possession of extensive power, or even to authorize their assumption of that state, by which, it is supported in the eyes of the vulgar. When some more fortunate prince, by conquest or alliance, had enlarged the circle of his dominions, and thus in some measure remedied the evil, it was sure to recur upon his death, by the subdivision of his estates among his children. This mischievous practice was even countenanced by public opinion; for the different districts of the country, in their habitual independence of each other, acquired an exclusiveness of

feeling, which made it difficult for them ever cordially to coalesce; and traces of this early repugnance to each other are to be discerned in the mutual jealousies and local peculiarities which still distinguish the different sections of the Peninsula, after their consolidation into one monarchy for more than three centuries.

The election to the crown, although no longer vested in the hands of the national assembly, as with the Visigoths, was yet subject to its approbation. The title of the heir apparent was formerly recognized by a cortes convoked for the purpose; and, on the demise of his parent, the new sovereign again convened the estates to receive their oath of allegiance, which they cautiously withheld until he had first sworn to preserve inviolate the liberties of the constitution. Nor was this a merely nominal privilege, as was evinced on more than one memorable occasion. [82]

We have seen, in our review of the popular branch of the government, how closely its authority pressed even on the executive functions of the administration. The monarch was still further controlled, in this department, by his Royal or Privy Council, consisting of the chief nobility and great officers of state, to which, in later times, a deputation of the commons was sometimes added. [83] This body, together with the king, had cognizance of the most important public transactions, whether of a civil, military, or diplomatic nature. It was established by positive enactment, that the prince, without its consent, had no right to alienate the royal demesne, to confer pensions beyond a very limited amount, or to nominate to vacant benefices. [84] His legislative powers were to be exercised in concurrence with the cortes; [85] and, in the judicial department, his authority, during the latter part of the period under review, seems to have been chiefly exercised in the selection of officers for the higher judicatures, from a list of candidates presented to him on a vacancy by their members concurrently with his privy council. [86]

The scantiness of the king's revenue corresponded with that of his constitutional authority. By an ancient law, indeed, of similar tenor with one familiar to the Saracens, the sovereign was entitled to a fifth of the spoils of victory. [87] This, in the course of the long wars with the Moslems, would have secured him more ample possessions than were enjoyed by any prince in Christendom. But several circumstances concurred to prevent it.

The long minorities, with which Castile was afflicted perhaps more than any country in Europe, frequently threw the government into the hands of the principal nobility, who perverted to their own emoluments the high powers intrusted to them. They usurped the possessions of the crown, and invaded some of its most valuable privileges; so that the sovereign's subsequent life was often consumed in fruitless attempts to repair the losses of his minority. He sometimes, indeed, in the impotence of other resources, resorted to such unhappy expedients as treachery and assassination. [88] A pleasant tale is told by the Spanish historians, of the more innocent device of Henry the Third, for the recovery of the estates extorted from the crown by the rapacious nobles during his minority.

Returning home late one evening, fatigued and half famished, from a hunting expedition, he was chagrined to find no refreshment prepared for him, and still more so, to learn from his steward, that he had neither money nor credit to purchase it. The day's sport, however, fortunately furnished the means of appeasing the royal appetite; and, while this was in progress, the steward took occasion to contrast the indigent condition of the king with that of his nobles, who habitually indulged in the most expensive entertainments, and were that very evening feasting with the archbishop of Toledo. The prince, suppressing his indignation, determined, like the far-famed caliph in the "Arabian Nights," to inspect the affair in person, and, assuming a disguise, introduced himself privately into the archbishop's

palace, where he witnessed with his own eyes the prodigal magnificence of the banquet, teeming with costly wines and the most luxurious viands.

The next day he caused a rumor to be circulated through the court, that he had fallen suddenly and dangerously ill. The courtiers, at these tidings, thronged to the palace; and, when they had all assembled, the king made his appearance among them, bearing his naked sword in his hand, and, with an aspect of unusual severity, seated himself on his throne at the upper extremity of the apartment.

After an interval of silence in the astonished assembly, the monarch, addressing himself to the primate, inquired of him, "How many sovereigns he had known in Castile?" The prelate answering four, Henry put the same question to the duke of Benevente, and so on to the other courtiers in succession. None of them, however, having answered more than five, "How is this," said the prince, "that you, who are so old, should have known so few, while I, young as I am, have beheld more than twenty! Yes," continued he, raising his voice, to the astonished multitude, "you are the real sovereigns of Castile, enjoying all the rights and revenues of royalty, while I, stripped of my patrimony, have scarcely wherewithal to procure the necessaries of life." Then giving a concerted signal, his guards entered the apartment, followed by the public executioner bearing along with him the implements of death. The dismayed nobles, not relishing the turn the jest appeared likely to take, fell on their knees before the monarch and besought his forgiveness, promising, in requital, complete restitution of the fruits of their rapacity. Henry, content with having so cheaply gained his point, allowed himself to soften at their entreaties, taking care, however, to detain their persons as security for their engagements, until such time as the rents, royal fortresses, and whatever effects had been filched from the crown, were restored. The story, although repeated by the gravest Castilian writers, wears, it must be owned, a marvellous tinge of romance. But, whether fact,

or founded on it, it may serve to show the dilapidated condition of the revenues at the beginning of the fourteenth century, and its immediate causes. [89]

Another circumstance, which contributed to impoverish the exchequer, was the occasional political revolutions in Castile, in which the adhesion of a faction was to be purchased only by the most ample concessions of the crown.—Such was the violent revolution, which placed the House of Trastamara on the throne, in the middle of the fourteenth century.

But perhaps a more operative cause, than all these, of the alleged evil, was the conduct of those imbecile princes, who, with heedless prodigality, squandered the public resources on their own personal pleasures and unworthy minions. The disastrous reigns of John the Second and Henry the Fourth, extending over the greater portion of the fifteenth century, furnish pertinent examples of this. It was not unusual, indeed, for the cortes, interposing its paternal authority, by passing an act for the partial resumption of grants thus illegally made, in some degree to repair the broken condition of the finances. Nor was such a resumption unfair to the actual proprietors. The promise to maintain the integrity of the royal demesnes formed an essential part of the coronation oath of every sovereign; and the subject, on whom he afterwards conferred them, knew well by what a precarious, illicit tenure he was to hold them.

From the view which has been presented of the Castilian constitution at the beginning of the fifteenth century, it is apparent, that the sovereign was possessed of less power, and the people of greater, than in other European monarchies at that period. It must be owned, however, as before intimated, that the practical operation did not always correspond with the theory of their respective functions in these rude times; and that the powers of the executive, being susceptible of greater compactness and energy in their

movements, than could possibly belong to those of more complex bodies, were sufficiently strong in the hands of a resolute prince, to break down the comparatively feeble barriers of the law. Neither were the relative privileges, assigned to the different orders of the state, equitably adjusted. Those of the aristocracy were indefinite and exorbitant. The license of armed combinations too, so freely assumed both by this order and the commons, although operating as a safety-valve for the escape of the effervescing spirit of the age, was itself obviously repugnant to all principles of civil obedience, and exposed the state to evils scarcely less disastrous than those which it was intended to prevent.

It was apparent, that, notwithstanding the magnitude of the powers conceded to the nobility and the commons, there were important defects, which prevented them from resting on any sound and permanent basis. The representation of the people in cortes, instead of partially emanating, as in England, from an independent body of landed proprietors, constituting the real strength of the nation, proceeded exclusively from the cities, whose elections were much more open to popular caprice and ministerial corruption, and whose numerous local jealousies prevented them from acting in cordial co-operation. The nobles, notwithstanding their occasional coalitions, were often arrayed in feuds against each other. They relied, for the defence of their privileges, solely on their physical strength, and heartily disdained, in any emergency, to support their own cause by identifying it with that of the commons. Hence, it became obvious, that the monarch, who, notwithstanding his limited prerogative, assumed the anomalous privilege of transacting public business with the advice of only one branch of the legislature, and of occasionally dispensing altogether with the attendance of the other, might, by throwing his own influence into the scale, give the preponderance to whichever party he should prefer; and, by thus dexterously availing himself of their opposite forces, erect his own authority on the ruins of the weaker.—How far and how successfully this

policy was pursued by Ferdinand and Isabella, will be seen in the course of this History.

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Notwithstanding the general diligence of the Spanish historians, they have done little towards the investigation of the constitutional antiquities of Castile, until the present century. Dr. Geddes's meagre notice of the cortes preceded probably, by a long interval, any native work upon that subject. Robertson frequently complains of the total deficiency of authentic sources of information respecting the laws and government of Castile; a circumstance, that suggests to a candid mind an obvious explanation of several errors, into which he has fallen. Capmany, in the preface to a work, compiled by order of the central junta in Seville, in 1809, on the ancient organization of the cortes in the different states of the Peninsula, remarks, that "no author has appeared, down to the present day, to instruct us in regard to the origin, constitution, and celebration of the Castilian cortes, on all which topics there remains the most profound ignorance." The melancholy results to which such an investigation must necessarily lead, from the contrast it suggests of existing institutions to the freer forms of antiquity, might well have deterred the modern Spaniard from these inquiries; which, moreover, it can hardly be supposed, would have received the countenance of government. The brief interval, however, in the early part of the present century, when the nation so ineffectually struggled to resume its ancient liberties, gave birth to two productions, which have gone far to supply the *desiderata* in this department. I allude to the valuable works of Marina, on the early legislation, and on the cortes, of Castile, to which repeated reference has been made in this section. The latter, especially, presents us with a full exposition of the appropriate functions assigned to the several departments of government, and with the parliamentary history of Castile deduced from original unpublished records.

It is unfortunate that his copious illustrations are arranged in so unskilful a manner as to give a dry and repulsive air to the whole work. The original documents, on which it is established, instead of being reserved for an appendix, and their import only conveyed in the text, stare at the reader in every page, arrayed in all the technicalities, periphrases, and repetitions incident to legal enactments. The course of the investigation is, moreover, frequently interrupted by impertinent dissertations on the constitution of 1812, in which the author has fallen into abundance of crudities, which he would have escaped, had he but witnessed the practical operation of those liberal forms of government, which he so justly admires. The sanguine temper of Marina has also betrayed him into the error of putting, too uniformly, a favorable construction on the proceedings of the commons, and of frequently deriving a constitutional precedent from what can only be regarded as an accidental and transient exertion of power in a season of popular excitement.

The student of this department of Spanish history may consult, in conjunction with Marina, Sempere's little treatise, often quoted, on the History of the Castilian Cortes. It is, indeed, too limited and desultory in its plan to afford anything like a complete view of the subject. But, as a sensible commentary, by one well skilled in the topics that he discusses, it is of undoubted value. Since the political principles and bias of the author were of an opposite character to Marina's, they frequently lead him to opposite conclusions in the investigation of the same facts. Making all allowance for obvious prejudices, Sempere's work, therefore, may be of much use in correcting the erroneous impressions made by the former writer, whose fabric of liberty too often rests, as exemplified more than once in the preceding pages, on an ideal basis.

But, with every deduction, Marina's publications must be considered an important contribution to political science. They exhibit an able analysis of

a constitution, which becomes singularly interesting, from its having furnished, together with that of the sister kingdom of Aragon, the earliest example of representative government, as well as from the liberal principles on which that government was long administered.

FOOTNOTES

[1] Aragon was formally released from this homage in 1177, and Portugal in 1264. (Mariana, *Historia General de España*, (Madrid, 1780,) lib. 11, cap. 14; lib. 13, cap. 20.) The king of Granada, Aben Alahmar, swore fealty to St. Ferdinand, in 1245, binding himself to the payment of an annual rent, to serve under him with a stipulated number of his knights in war, and personally *attend cortes when summoned*;—a whimsical stipulation this for a Mahometan prince. Conde, *Historia de la Dominacion de los Arabes en España*, (Madrid, 1820, 1821,) tom. iii. cap. 30.

[2] Navarre was too inconsiderable, and bore too near a resemblance in its government to the other Peninsular kingdoms, to require a separate notice; for which, indeed, the national writers afford but very scanty materials. The Moorish empire of Granada, so interesting in itself, and so dissimilar, in all respects, to Christian Spain, merits particular attention. I have deferred the consideration of it, however, to that period of the history which is occupied with its subversion. See Part I., Chapter 8.

[3] See the Canons of the fifth Council of Toledo. Florez, *España Sagrada*, (Madrid, 1747-1776,) tom. vi. p. 168.

[4] Recesvinto, in order more effectually to bring about the consolidation of his Gothic and Roman subjects into one nation, abrogated the law prohibiting their intermarriage. The terms in which his enactment is conceived disclose a far more enlightened policy than that pursued either by

the Franks or Lombards. (See the *Fuero Juzgo*, (ed. de la Acad., Madrid, 1815,) lib. 3, tit. 1, ley 1.)—The Visigothic code, *Fuero Juzgo*, (*Forum Judicum*), originally compiled in Latin, was translated into Spanish under St. Ferdinand; a copy of which version was first printed in 1600, at Madrid. (Los Doctores Asso y Manuel, *Instituciones del Derecho Civil de Castilla*, (Madrid, 1792,) pp. 6, 7.) A second edition, under the supervision of the Royal Spanish Academy, was published in 1815. This compilation, notwithstanding the apparent rudeness and even ferocity of some of its features, may be said to have formed the basis of all the subsequent legislation of Castile. It was, doubtless, the exclusive contemplation of these features, which brought upon these laws the sweeping condemnation of Montesquieu, as "puériles, gauches, idiots,— frivoles dans le fond et gigantesques dans le style." *Espirit des Loix*, liv. 28, chap. 1.

[5] Some of the local usages, afterwards incorporated in the *fueros*, or charters, of the Castilian communities, may probably be derived from the time of the Visigoths. The English reader may form a good idea of the tenor of the legal institutions of this people and their immediate descendants, from an article in the sixty-first Number of the *Edinburgh Review*, written with equal learning and vivacity.

[6] The Christians, in all matters exclusively relating to themselves, were governed by their own laws, (See the *Fuero Juzgo*, Introd. p. 40,) administered by their own judges, subject only in capital cases to an appeal to the Moorish tribunals. Their churches and monasteries (*rosae inter spinas*, says the historian) were scattered over the principal towns, Cordova retaining seven, Toledo six, etc.; and their clergy were allowed to display the costume, and celebrate the pompous ceremonial, of the Romish communion. Florez, *España Sagrada*, tom. x. trat. 33, cap. 7.— Morales, *Corónica General de España*, (Obras, Madrid, 1791-1793,) lib. 12, cap. 78.—Conde, *Domination de los Arabes*, part 1, cap. 15, 22.

[7] Morales, *Corónica*, lib. 12, cap. 77.—Yet the names of several nobles resident among the Moors appear in the record of those times. (See Salazar de Mendoza, *Monarquía de España*, (Madrid, 1770,) tom. i. p. 34, note.) If we could rely on a singular fact, quoted by Zurita, we might infer that a large proportion of the Goths were content to reside among their Saracen conquerors. The intermarriages among the two nations had been so frequent, that, in 1311, the ambassador of James II., of Aragon, stated to his Holiness, Pope Clement V., that of 200.000 persons composing the population of Granada, not more than 500 were of pure Moorish descent! (*Anales de la Corona de Aragon*, (Zaragoza, 1610,) lib. 5, cap. 93.) As the object of the statement was to obtain certain ecclesiastical aids from the pontiff, in the prosecution of the Moorish war, it appears very suspicious, notwithstanding the emphasis laid on it by the historian.

[8] Bleda, *Corónica de los Moros de España*, (Valencia, 1618,) p. 171.—This author states, that in his time there were several families in Ireland, whose patronymics bore testimony to their descent from these Spanish exiles. That careful antiquarian, Morales, considers the regions of the Pyrenees lying betwixt Aragon and Navarre, together with the Asturias, Biscay, Guipuscoa, the northern portion of Galicia and the Alpuxarras, (the last retreat, too, of the Moors, under the Christian domination,) to have been untouched by the Saracen invaders. See lib. 12, cap. 76.

[9] The lot of the Visigothic slave was sufficiently hard. The oppressions, which this unhappy race endured, were such as to lead Mr. Southey, in his excellent Introduction to the "*Chronicle of the Cid*," to impute to their co-operation, in part, the easy conquest of the country by the Arabs. But, although the laws, in relation to them, seem to be taken up with determining their incapacities rather than their privileges, it is probable that they secured to them, on the whole, quite as great a degree of civil consequence, as was enjoyed by similar classes in the rest of Europe. By the *Fuero Juzgo*, the

slave was allowed to acquire property for himself, and with it to purchase his own redemption. (Lib. 5, tit. 4, ley 16.) A certain proportion of every man's slaves were also required to bear arms, and to accompany their master to the field. (Lib. 9, tit 2, ley 8.) But their relative rank is better ascertained by the amount of composition (that accurate measurement of civil rights with all the barbarians of the north) prescribed for any personal violence inflicted on them. Thus, by the Salic law, the life of a free Roman was estimated at only one-fifth of that of a Frank, (Lex Salica, tit. 43, sec. 1, 8;) while, by the law of the Visigoths, the life of a slave was valued at half of that of a freeman, (lib. 6, tit. 4, ley 1.) In the latter code, moreover, the master was prohibited, under the severe penalties of banishment and sequestration of property, from either maiming or murdering his own slave, (lib. 6, tit. 5, leyes 12, 13;) while, in other codes of the barbarians, the penalty was confined to similar trespasses on the slaves of another; and, by the Salic law, no higher mulct was imposed for killing, than for kidnapping a slave. (Lex Salica, tit. 11, sec. 1, 3.) The legislation of the Visigoths, in those particulars, seems to have regarded this unhappy race as not merely a distinct species of property. It provided for their personal security, instead of limiting itself to the indemnification of their masters.

[10] *Corónica General*, part. 3, fol. 54.

[11] According to Morales, (*Corónica*, lib. 13, cap. 57,) this took place about 850.

[12] Toledo was not reconquered until 1085; Lisbon, in 1147.

[13] The archbishops of Toledo, whose revenues and retinues far exceeded those of the other ecclesiastics, were particularly conspicuous in these holy wars. Mariana, speaking of one of these belligerent prelates, considers it worthy of encomium, that "it is not easy to decide whether he

was most conspicuous for his good government in peace, or his conduct and valor in war." Hist. de España, tom. ii. p. 14.

[14] The first occasion, on which the military apostle condescended to reveal himself to the Leonese, was the memorable day of Clavijo, A. D. 844, when 70,000 infidels fell on the field. From that time, the name of St. Jago became the battle-cry of the Spaniards. The truth of the story is attested by a contemporary charter of Ramiro I. to the church of the saint, granting it an annual tribute of corn and wine from the towns in his dominions, and a knight's portion of the spoils of every victory over the Mussulmans. The *privilegio del voto*, as it is called, is given at length by Florez in his Collection, (España Sagrada, tom. xix. p. 329,) and is unhesitatingly cited by most of the Spanish historians, as Garibay, Mariana, Morales, and others.—More sharp-sighted critics discover, in its anachronisms, and other palpable blunders, ample evidence of its forgery. (Mondejar, Advertencias & la Historia de Mariana (Valencia, 1746,) no. 157,—Masdeu, Historia Crítica de España, y de la Cultura Española, (Madrid, 1783-1805,) tom. xvi. supl. 18.) The canons of Compostella, however, seem to have found their account in it, as the tribute of good cheer, which it imposed, continued to be paid by some of the Castilian towns, according to Mariana, in his day. Hist. de España, tom. i. p. 416.

[15] French, Flemish, Italian, and English volunteers, led by men of distinguished rank, are recorded by the Spanish writers to have been present at the sieges of Toledo, Lisbon, Algeziras, and various others. More than sixty, or, as some accounts state, a hundred thousand, joined the army before the battle of Navas de Tolosa; a round exaggeration, which, however, implies the great number of such auxiliaries. (Garibay, Compendio Historial de las Crónicas de España, (Barcelona, 1628,) lib. 12, cap. 33.) The crusades in Spain were as rational enterprises, as those in the East were vain and chimerical. Pope Pascal II. acted like a man of sense, when he sent back

certain Spanish adventurers, who had embarked in the wars of Palestine, telling them that "the cause of religion could be much better served by them at home."

[16] See Heeren, *Politics of Ancient Greece*, translated by Bancroft, chap. 7.

[17] The oldest manuscript extant of this poem, (still preserved at Bivar, the hero's birth-place,) bears the date of 1207, or at latest 1307, for there is some obscurity in the writing. Its learned editor, Sanchez, has been led by the peculiarities of its orthography, metre, and idiom, to refer its composition to as early a date as 1153. (*Coleccion de Poesías Castellanas anteriores al Siglo XV*. (Madrid 1779-90,) tom. i. p. 223.)

Some of the late Spanish antiquaries have manifested a skepticism in relation to the "Cid," truly alarming. A volume was published at Madrid, in 1792, by Risco, under the title of "*Castilla, o Historia de Rodrigo Diaz*," etc., which the worthy father ushered into the world with much solemnity, as a transcript of an original manuscript coeval with the time of the "Cid," and fortunately discovered by him in an obscure corner of some Leonese monastery. (Prólogo). Masdeu, in an analysis of this precious document, has been led to scrutinize the grounds on which the reputed achievements of the "Cid" have rested from time immemorial, and concludes with the startling assertion, that "of Rodrigo Diaz, el Campeador, we absolutely know nothing with any degree of probability, not even his existence!" (*Hist. Crítica*, tom. xx. p. 370.) There are probably few of his countrymen, that will thus coolly acquiesce in the annihilation of their favorite hero, whose exploits have been the burden of chronicle, as well as romance, from the twelfth century down to the present day.

They may find a warrant for their fond credulity, in the dispassionate judgment of one of the greatest of modern historians, John Muller, who, so

far from doubting the existence of the Campeador, has succeeded, in his own opinion at least, in clearing from his history the "mists of fable and extravagance," in which it has been shrouded. See his *Life of the Cid*, appended to Escobar's "*Romancero*," edited by the learned and estimable Dr. Julius, of Berlin. Frankfort, 1828.

[18] A modern minstrel inveighs loudly against this charity of his ancestors, who devoted their "*cantos de cigarra*," to the glorification of this "*Moorish rabble*," instead of celebrating the prowess of the Cid, Bernardo, and other worthies of their own nation. His discourtesy, however, is well rebuked by a more generous brother of the craft.

"No es culpa si de los Moros los valientes hechos cantan, pues tanto mas resplandecen nuestras celebres hazañas; que el encarecer los hechos del vencido en la batalla, engrandece al vencedor, aunque no hablen de el palabra."

Duran, *Romancero de Romances Moriscos*, (Madrid, 1828.) p. 227.

[19] When the empress queen of Alfonso VII. was besieged in the castle of Azeca, in 1139, she reproached the Moslem cavaliers for their want of courtesy and courage in attacking a fortress defended by a female. They acknowledged the justice of the rebuke, and only requested that she would condescend to show herself to them from her palace; when the Moorish chivalry, after paying their obeisance to her in the most respectful manner, instantly raised the siege, and departed. (Ferrerias, *Histoire Générale d'Espagne*, traduite par d'Hermilly, (Paris, 1742-51.) tom. in. p. 410.) It was a frequent occurrence to restore a noble captive to liberty without ransom, and even with costly presents. Thus Alfonso XI. sent back to their father two daughters of a Moorish prince, who formed part of the spoils of the battle of Tarifa. (Mariana, *Hist. de España*, tom. ii. p. 32.) When this same Castilian sovereign, after a career of almost uninterrupted victory over the

Moslems, died of the plague before Gibraltar, in 1350, the knights of Granada put on mourning for him, saying, that "he was a noble prince, and one that knew how to honor his enemies as well as his friends." Conde, *Domination de los Arabes*, tom. iii. p. 149.

[20] One of the most extraordinary achievements, in this way, was that of the grand master of Alcantara, in 1394, who, after ineffectually challenging the king of Granada to meet him in single combat, or with a force double that of his own, marched boldly up to the gates of his capital, where he was assailed by such an overwhelming host, that he with all his little band perished on the field. (Mariana, *Hist. de España*, lib. 19, cap. 3.) It was over this worthy compeer of Don Quixote that the epitaph was inscribed, "Here lies one who never knew fear," which led Charles V. to remark to one of his courtiers, that "the good knight could never have tried to snuff a candle with his fingers."

[21] This singular fact, of the existence of an Arabic military order, is recorded by Conde. (*Domination de los Arabes*, tom. i. p. 619, note.) The brethren were distinguished for the simplicity of their attire, and their austere and frugal habits. They were stationed on the Moorish marches, and were bound by a vow of perpetual war against the Christian infidel. As their existence is traced as far back as 1030, they may possibly have suggested the organization of similar institutions in Christendom, which they preceded by a century at least. The loyal historians of the Spanish military orders, it is true, would carry that of St. Jago as far back as the time of Ramiro I., in the ninth century; (Caro de Torres, *Historia de las Ordenes Militares de Santiago, Calatrava, y Alcantara*, (Madrid, 1629,) fol. 2.—Rades y Andrada, *Crónica de las Tres Ordenes y Cavallerías*, (Toledo, 1572,) fol. 4,) but less prejudiced critics, as Zurita and Mariana, are content with dating it from the papal bull of Alexander III., 1175.

[22] In one of the Paston letters, we find the notice of a Spanish knight appearing at the court of Henry VI., "wyth a Kercheff of Plesaunce iwrapped aboute hys arme, the gwyth Knight," says the writer, "wyl renne a cours wyth a sharpe spere for his sou'eyn lady sake." (Fenn, *Original Letters*, (1787,) vol. i. p. 6.) The practice of using sharp spears, instead of the guarded and blunted weapons usual in the tournament, seems to have been affected by the chivalrous nobles of Castile; many of whom, says the chronicle of Juan II., lost their lives from this circumstance, in the splendid tourney given in honor of the nuptials of Blanche of Navarre and Henry, son of John II. (*Crónica de D. Juan II.*, (Valencia, 1779,) p. 411.) Monstrelet records the adventures of a Spanish cavalier, who "travelled all the way to the court of Burgundy to seek honor and reverence" by his feats of arms. His antagonist was the Lord of Chargny; on the second day they fought with battle-axes, and "the Castilian attracted general admiration, by his uncommon daring in fighting with his visor up." *Chroniques*, (Paris, 1595,) tom. ii. p. 109.

[23] The Venetian ambassador, Navagiero, speaking of the manners of the Castilian nobles, in Charles V.'s time, remarks somewhat bluntly, that, "if their power were equal to their pride, the whole world would not be able to withstand them." *Viaggio fatto in Spagna et in Francia*, (Vinegia, 1563,) fol. 10.

[24] The most ancient of these regular charters of incorporation, now extant, was granted by Alfonso V., in 1020, to the city of Leon and its territory. (Mariana rejects those of an earlier date, adduced by Asso and Manuel and other writers. *Ensayo Histórico-Crítico, sobre la Antigua Legislation de Castilla*, (Madrid, 1808,) pp. 80-82.) It preceded, by a long interval, those granted to the burgesses in other parts of Europe, with the exception, perhaps, of Italy; where several of the cities, as Milan, Pavia, and Pisa, seem early in the eleventh century to have exercised some of the

functions of independent states. But the extent of municipal immunities conceded to, or rather assumed by, the Italian cities at this early period, is very equivocal; for their indefatigable antiquarian confesses that all, or nearly all their archives, previous to the time of Frederick I., (the latter part of the twelfth century,) had perished amid their frequent civil convulsions. (See the subject in detail, in Muratori, *Dissertazioni sopra le Antichità Italiane*, (Napoli, 1752,) dissert. 45.) Acts of enfranchisement became frequent in Spain during the eleventh century; several of which are preserved, and exhibit, with sufficient precision, the nature of the privileges accorded to the inhabitants.—Robertson, who wrote when the constitutional antiquities of Castile had been but slightly investigated, would seem to have little authority, therefore, for deriving the establishment of communities from Italy, and still less for tracing their progress through France and Germany to Spain. See his *History of the Reign of the Emperor Charles V*, (London, 1796,) vol. i. pp. 29, 30.

[25] For this account of the ancient polity of the Castilian cities, the reader is referred to Sempere, *Histoire des Cortès d'Espagne*, (Bordeaux, 1815,) and Marina's valuable works, *Ensayo Histórico-Crítico sobre la Antigua Legislacion de Camilla*, (Nos. 160-196,) and *Teoría de las Cortes*, (Madrid, 1813, part. 2, cap. 21-23,) where the meagre outline given above is filled up with copious illustration.

[26] The independence of the Lombard cities had been sacrificed, according to the admission of their enthusiastic historian, about the middle of the thirteenth century. Sismondi, *Histoire des Républiques Italiennes du Moyen-Age*, (Paris, 1818,) ch. 20.

[27] Or in 1160, according to the *Corónica General*, (part. 4, fol. 344, 345,) where the fact is mentioned; Mariana refers this celebration of cortes to 1170, (*Hist. de España*, lib. 11, cap. 2;) but Ferreras, who often rectifies

the chronological inaccuracies of his predecessor, fixes it in 1169. (Hist. d'Espagne, tom. iii. p. 484) Neither of these authors notices the presence of the commons in this assembly; although the phrase used by the Chronicle, *los cibdadanos*, is perfectly unequivocal.

[28] Capmany, *Práctica y Estilo de Celebrar Cortes en Aragon, Cataluña, y Valencia*, (Madrid, 1821,) pp. 230, 231.—Whether the convocation of the third estate to the national councils proceeded from politic calculation in the sovereign, or was in a manner forced on him by the growing power and importance of the cities, it is now too late to inquire. It is nearly as difficult to settle on what principles the selection of cities to be represented depended. Marina asserts, that every great town and community was entitled to a seat in the legislature, from the time of receiving its municipal charter from the sovereign, (Teoría, tom. i. p. 138;) and Sempere agrees, that this right became general, from the first, to all who chose to avail themselves of it. (Histoire des Cortès, p. 56.) The right, probably, was not much insisted on by the smaller and poorer places, which, from the charges it involved, felt it often, no doubt, less of a boon than a burden. This, we know, was the case in England.

[29] It was an evil of scarcely less magnitude, that contested elections were settled by the crown. (Capmany, *Práctica y Estilo*, p. 231.) The latter of these practices, and, indeed, the former to a certain extent, are to be met with in English history.

[30] Marina leaves this point in some obscurity. (Teoría, tom. i. cap. 28.) Indeed, there seems to have been some irregularity in the parliamentary usages themselves. From minutes of a meeting of cortes at Toledo, in 1538, too soon for any material innovation on the ancient practice, we find the three estates sitting in separate chambers, from the very commencement to

the close of the session. See the account drawn up by the count of Coruña, apud Capmany, *Práctica y Estilo*, pp. 240 et seq.

[31] This, however, so contrary to the analogy of other European governments, is expressly contradicted by the declaration of the nobles, at the cortes of Toledo, in 1538. "Oida esta respuesta se dijo, que pues S. M. habia dicho que no eran Córtes ni habia Brazos, no podian tratar cosa alguna, *que ellos sin procuradores, y los procuradores sin ellos, no seria válido lo que hicieren.*" *Relacion del Conde de Coruña*, apud Capmany, *Práctica y Estilo*, p. 247.

[32] This omission of the privileged orders was almost uniform under Charles V. and his successors. But it would be unfair to seek for constitutional precedent in the usages of a government, whose avowed policy was altogether subversive of the constitution.

[33] During the famous war of the *Comunidades*, under Charles V. For the preceding paragraph consult Marina, (*Teoría*, part. 1, cap. 10, 20, 26, 29,) and Capmany. (*Práctica y Estilo*, pp. 220-250.) The municipalities of Castile seem to have reposed but a very limited confidence in their delegates, whom they furnished with instructions, to which they were bound to conform themselves literally. See Marina, *Teoría*, part. 1, cap. 23.

[34] The term "fundamental principle" is fully authorized by the existence of repeated enactments to this effect. Sempere, who admits the "usage," objects to the phrase "fundamental law," on the ground that these acts were specific, not general, in their character. *Histoire des Cortès*, p. 254.

[35] "Los Reyes en nuestros Reynos progenitores establecieron por leyes, y ordenanças fechas en Cortes, que no se echassen, ni repartiessen ningunos pechos, seruicios, pedidos, ni monedas, ni otros tributes nuevos, especial, ni

generalmente en todos nuestros Reynos, sin que primeramente sean llamados à Cortes los procuradores de todas las Ciudades, y villas de nuestros Reynos, y sean otorgados por los dichos procuradores que á las Cortes vinieren." (Recopilacion de las Leyes, (Madrid, 1640,) tom. ii. fol. 124.) This law, passed under Alfonso XI., was confirmed by John II., Henry III., and Charles V.

[36] In 1258, they presented a variety of petitions to the king, in relation to his own personal expenditure, as well as that of his courtiers; requiring him to diminish the charges of his table, attire, etc., and, bluntly, to "bring his appetite within a more reasonable compass;" to all which he readily gave his assent. (Sempere y Guarinos, *Historia del Luxo, y de las Leyes Suntuarias de España*, (Madrid, 1788,) tom. i. pp. 91, 92.) The English reader is reminded of a very different result, which attended a similar interposition of the commons in the time of Richard II., more than a century later.

[37] Marina claims also the right of the cortes to be consulted on questions of war and peace, of which he adduces several precedents. (Teoría, part. 2, cap. 19, 20.) Their interference in what is so generally held the peculiar province of the executive, was perhaps encouraged by the sovereign, with the politic design of relieving himself of the responsibility of measures whose success must depend eventually on their support. Hallam notices a similar policy of the crown, under Edward III., in his view of the English constitution during the Middle Ages. *View of the State of Europe during the Middle Ages*, (London, 1819,) vol. iii. chap. 8.

[38] The recognition of the title of the heir apparent, by a cortes convoked for that purpose, has continued to be observed in Castile down to the present time. *Práctica y Estilo*, p. 229.

[39] For the preceding notice of the cortes, see Marina, *Teoría*, part. 2, cap. 13, 19, 20, 21, 31, 35, 37, 38.

[40] So at least they are styled by Marina. See his account of these institutions; (*Teoría*, part. 2, cap. 39;) also Salazar de Mendoza, (*Monarquía*, lib. 3, cap. 15, 16,) and Sempere, (*Histoire des Cortès*, chap. 12, 13.) One hundred cities associated in the Hermandad of 1315. In that of 1295, were thirty-four. The knights and inferior nobility frequently made part of the association. The articles of confederation are given by Risco, in his continuation of Florez. (*España Sagrada*, (Madrid, 1775- 1826,) tom. xxxvi. p. 162.) In one of these articles it is declared, that, if any noble shall deprive a member of the association of his property, and refuse restitution, his house shall be razed to the ground. (Art. 4.) In another, that if any one, by command of the king, shall attempt to collect an unlawful tax, he shall be put to death on the spot. Art. 9.

[41] See Sempere, *Historia del Luxo*, tom. i. p. 97.—Masdeu, *Hist. Crítica*, tom. xiii. nos. 90, 91.—Gold and silver, curiously wrought into plate, were exported in considerable quantities from Spain, the tenth and eleventh centuries. They were much used in the churches. The tiara of the pope was so richly encrusted with the precious metals, says Masdeu, as to receive the name of *Spanodista*. The familiar use of these metals as ornaments of dress is attested by the ancient poem of the "Cid." See, in particular, the costume of the Campeador; vv. 3099 et seq.

[42] Zuñiga, *Annales Ecclesiasticos y Seculares de Sevilla*, (Madrid, 1677,) pp. 74, 75.—Sempere, *Historia del Luxo*, tom. i. p. 80.

[43] The historian of Seville describes that city, about the middle of the fifteenth century, as possessing a flourishing commerce and a degree of opulence unexampled since the conquest. It was filled with an active population, employed in the various mechanic arts. Its domestic fabrics, as

well as natural products, of oil, wine, wool, etc., supplied a trade with Prance, Flanders, Italy, and England. (Zuñiga, *Annales de Sevilla*, p. 341.— See also Sempere, *Historia del Luxo*, p. 81, nota 2.) The ports of Biscay, which belonged to the Castilian crown, were the marts of an extensive trade with the north, during the thirteenth and fourteenth centuries. This province entered into repeated treaties of commerce with France and England; and her factories were established at Bruges, the great emporium of commercial intercourse during this period between the north and south, before those of any other people in Europe, except the Germans. (*Diccionario Geográfico-Histórico de España*, por la Real Academia de la Historia, (Madrid, 1802,) tom. i. p. 333.)

The institution of the *mesta* is referred, says Laborde, (*Itinéraire Descriptif de l'Espagne*, (Paris, 1827-1830,) tom. iv. p. 47,) to the middle of the fourteenth century, when the great plague, which devastated the country so sorely, left large depopulated tracts open to pasturage. This popular opinion is erroneous, since it engaged the attention of government, and became the subject of legislation as anciently as 1273, under Alfonso the Wise. (See Asso y Manuel, *Instituciones*, Introd. p. 56.) Capmany, however, dates the great improvement in the breed of Spanish sheep from the year 1394, when Catharine of Lancaster brought with her, as a part of her dowry to the heir apparent of Castile, a flock of English merinos, distinguished, at that time, above those of every other country, for the beauty and delicacy of their fleece. (*Memorias Históricas sobre la Marina, Comercio, y Artes de Barcelona*, (Madrid, 1779-1792,) tom. iii. pp. 336, 337.) This acute writer, after a very careful examination of the subject, differing from those already quoted, considers the raw material for manufacture, and the natural productions of the soil, to have constituted almost the only articles of export from Spain, until after the fifteenth century. (*Ibid.*, p. 338.) We will remark, in conclusion of this desultory note, that the term *merinos* is derived, by Conde, from *moedinos*, signifying "wandering;" the name of an Arabian

tribe, who shifted their place of residence with the season. (Hist. de los Arabes en España, tom. i. p. 488, nota.) The derivation might startle any but a professed etymologist.

[44] See the original acts, cited by Sempere. (Historia del Luxo, passim.) The archpriest of Hita indulges his vein freely against the luxury, cupidity, and other fashionable sins of his age. (See Sanchez, Poesias Castellanas, tom. iv.)—The influence of Mammon appears to have been as supreme in the fourteenth century as at any later period.

"Sea un ome nescio, et rudo labrador,
Los dineros le fasen fidalgo e sabidor,
Quanto mas algo tiene, tanto es mas de valor,
El que no ba dineros, non es de si señor."

Vv. 465 et seq.

[45] Marina, Ensayo, nos. 199, 297.—Zuñiga, Annales de Sevilla, p. 341.

[46] Marina, Teoría, part. 2, cap. 28.—Mariana, Hist. de España, lib. 18, cap. 15.—The admission of citizens into the king's council would have formed a most important epoch for the commons, had they not soon been replaced by jurisconsults, whose studies and sentiments inclined them less to the popular side than to that of prerogative.

[47] Ibid., lib. 18, cap. 17.

[48] *Castilla*. See Salazar de Mendoza, Monarquía, tom. i. p. 108.—Livy mentions the great number of these towers in Spain in his day. "Multas et locis altis positas tures Hispania habet." (Lib. 22, cap. 19.)—A castle was emblazoned on the escutcheon of Castile, as far back as the reign of Urraca, in the beginning of the twelfth century, according to Salazar de Mendoza, (Monarquía, tom. i. p. 142,) although Garibay discerns no vestige of these

arms on any instrument of a much older date than the beginning of the thirteenth century. Compendio, lib. 12, cap. 32.

[49]

"Hizo guerra a los Moros,
Ganando sus fortalezas
Y sus villas.
Y en las lides que Venció
Caballeros y Caballos
Se perdiéron,
Y en este ofloio ganó
Las rentas y los vasallos
Que le dieron." Coplas de Manrique, copla 31.

[50] Asso and Manuel derive the introduction of fiefs into Castile, from Catalonia. (Instituciones, p. 96.) The twenty-sixth title, part. 4, of Alfonso X.'s code, (Siete Partidas,) treats exclusively of them. (De los Feudos.) The laws 2, 4, 5, are expressly devoted to a brief exposition of the nature of a fief, the ceremonies of investiture, and the reciprocal obligations of lord and vassal. Those of the latter consisted in keeping his lord's counsel, maintaining his interest, and aiding him in war. With all this, there are anomalies in this code, and still more in the usages of the country, not easy to explain on the usual principles of the feudal relation; a circumstance, which has led to much discrepancy of opinion on the subject, in political writers, as well as to some inconsistency. Sempere, who entertains no doubt of the establishment of feudal institutions in Castile, tells us, that "the nobles, after the Conquest, succeeded in obtaining an exemption from military service,"—one of the most conspicuous and essential of all the feudal relations. Histoire des Cortès, pp. 30, 72, 249.

[51] Asso y Manuel, *Instituciones*, p. 26.—Sempere, *Histoire des Cortès*, chap. 4.—The incensed nobles quitted the cortes in disgust, and threatened to vindicate their rights by arms, on one such occasion, 1176. Mariana, *Hist. de España*, tom. i. p. 644. See also tom. ii. p. 176.

[52] *Idem auctores, ubi supra*.—Prieto y Sotelo, *Historia del Derecho Real de España*, (Madrid, 1738,) lib. 2, cap. 23; lib. 3, cap. 8.

[53] *Siete Partidas*, (ed. de la Real Acad., Madrid, 1807,) part. 4, tit. 25, ley 11. On such occasions they sent him a formal defiance by their king at arms. Mariana, *Hist. de España*, tom. i. pp. 768, 912.

[54] *Ibid.*, tom. i. pp. 707, 713.

[55] The forms of this solemnity may be found in Mariana, *Hist. de España*, tom. i. p. 907.

[56] Marina, *Ensayo*, p. 128.

[57] John I., in 1390, authorized appeals from the seignorial tribunals to those of the crown. *Ibid.*, tom. ii. p. 179.

[58] The nature of these dignities is explained in Salazar de Mendoza, *Monarquía*, tom. i. pp. 155, 166, 203.

[59] From the scarcity of these baronial residences, some fanciful etymologists have derived the familiar saying of "*Châteaux en Espagne*." See Bourgoanne, *Travels in Spain*, tom. ii. chap. 12.

[60] Mariana, *Hist. de España*, tom. i. p. 910.

[61] *Crónica de Don Alvaro de Luna*, (ed. de la Acad. Madrid, 1784,) App. p. 465.

[62] Guzman, *Generaciones y Semblanzas*, (Madrid, 1775,) cap. 84.—His annual revenue is computed by Perez de Guzman, at 100,000 doblas of gold; a sum equivalent to 856,000 dollars at the present day.

[63] The former of these two sums is equivalent to \$438,875, or £91,474 sterling; and the latter to \$526,650, or £109,716, nearly. I have been guided by a dissertation of Clemencin, in the sixth volume of the *Memorias de la Real Academia de la Historia*, (Madrid, 1821, pp. 507-566,) in the reduction of sums in this History. That treatise is very elaborate and ample, and brings under view all the different coins of Ferdinand and Isabella's time, settling their specific value with great accuracy. The calculation is attended with considerable difficulty, owing to the depreciation of the value of the precious metals, and the repeated adulteration of the *real*. In his tables, at the end, he exhibits the commercial value of the different denominations, ascertained by the quantity of wheat (as sure a standard as any), which they would buy at that day. Taking the average of values, which varied considerably in different years of Ferdinand and Isabella, it appears that the ducat, reduced to our own currency, will be equal to about eight dollars and seventy-seven cents, and the dobla to eight dollars and fifty-six cents.

[64] The ample revenues of the Spanish grandee of the present time, instead of being lavished on a band of military retainers, as of yore, are sometimes dispensed in the more peaceful hospitality of supporting an almost equally formidable host of needy relations and dependants. According to Bourgoanne (*Travels in Spain*, vol. 1. chap. 4), no less than 3000 of these gentry were maintained on the estates of the duke of Arcos, who died in 1780.

[65] Mendoza records the circumstance of the head of the family of Ponce de Leon, (a descendant of the celebrated marquis of Cadiz,) carrying his son, then thirteen years old, with him into battle; "an ancient usage," he

says, "in that noble house." (Guerra de Granada, (Valencia, 1776,) p. 318.) The only son of Alfonso VI. was slain, fighting manfully in the ranks, at the battle of Ucles, in 1109, when only eleven years of age. Mariana, Hist. de España, tom. i. p. 565.

[66] The northern provinces, the theatre of this primitive independence, have always been consecrated by this very circumstance, in the eyes of a Spaniard. "The proudest lord," says Navagiero, "feels it an honor to trace his pedigree to this quarter." (Viaggio, fol. 44.) The same feeling has continued, and the meanest native of Biscay, or the Asturias, at the present day, claims to be noble; a pretension, which often contrasts ridiculously enough with the humble character of his occupation, and has furnished many a pleasant anecdote to travellers.

[67] An elaborate dissertation, by the advocate Don Alonso Carillo, on the pre-eminence and privileges of the Castilian grandee, is appended to Salazar de Mendoza's *Origen de las Dignidades Seglares de Castilla*, (Madrid, 1794.) The most prized of these appears to be that of keeping the head covered in the presence of the sovereign; "prerogativa tan ilustre," says the writer, "que ella sola imprime el principal caracter de la Grandeza. Y considerada *por sus efectos admirables*, ocupa dignamente el primero lugar." (Discurso 3.) The sentimental citizen Bourgoanne, finds it necessary to apologize to his republican brethren, for noticing these "important trifles." *Travels in Spain*, vol. i. chap. 4.

[68] "Los llamaron fijosdalgo, que muestra a tanto como fijos de bien." (Siete Partidas, part. 2, tit. 21.) "Por hidalgos se entienden *los hombres escogidos de buenos lugares é con algo*." Asso y Manuel, *Instituciones*, pp. 33, 34.

[69] Recop. de las Leyes, lib. 6, tit. 1, leyes 2, 9; tit. 2, leyes 3, 4, 10; tit. 14, leyes 14, 19.—They were obliged to contribute to the repair of

fortifications and public works, although, as the statute expresses it, "tengan privilegios para que sean essentos de todos pechos."

[70] The knight was to array himself in light and cheerful vestments, and, in the cities and public places his person was to be enveloped in a long and flowing mantle, in order to impose greater reverence on the people. His good steed was to be distinguished by the beauty and richness of his caparisons. He was to live abstemiously, indulging himself in none of the effeminate delights of couch or banquet. During his repast, his mind was to be refreshed with the recital, from history, of deeds of ancient heroism; and in the fight he was commanded to invoke the name of his mistress, that it might infuse new ardor into his soul, and preserve him from the commission of unknightly actions. See *Siete Partidas*, part, 2, tit. 21, which is taken up with defining the obligations of chivalry.

[71] See *Fuero Juzgo*, lib. 3, which is devoted almost exclusively to the sex. Montesquieu discerns in the jealous surveillance, which the Visigoths maintained over the honor of their women, so close an analogy with oriental usages, as must have greatly facilitated the conquest of the country by the Arabians. *Esprit des Loix*, liv. 14, chap. 14.

[72] Warton's expression. See vol. i. p. 245, of the late learned edition of his *History of English Poetry*, (London, 1824.)

[73] See the "Passo Honroso" appended to the *Crónica de Alvaro de Luna*.

[74] The present narrative will introduce the reader to more than one belligerent prelate, who filled the very highest post in the Spanish, and, I may say, the Christian Church, next the papacy. (See Alvaro Gomez, *De Rebus Gestis a Francisco Ximenio Cisnerio*, (Compluti, 1569,) fol. 110 et seq.) The practice, indeed, was familiar in other countries, as well as Spain,

at this late period. In the bloody battle of Ravenna, in 1512, two cardinal legates, one of them the future Leo X., fought on opposite sides. Paolo Giovio, *Vita Leonis X.*, apud "*Vitae Illustrium Virorum*," (Basiliae, 1578,) lib. 2.

[75] The contest for supremacy, between the Mozarabic ritual and the Roman, is familiar to the reader, in the curious narrative extracted by Robertson from Mariana, *Hist. de España*, lib. 9, cap. 18.

[76] *Siete Partidas*, part. 1, tit. 6.—Florez, *España Sagrada*, tom. xx. p. 16.—The Jesuit Mariana appears to grudge this appropriation of the "sacred revenues of the Church" to defray the expenses of the holy war against the Saracen. (*Hist. de España*, tom. i. p. 177.) See also the *Ensayo*, (nos. 322-364,) where Marina has analyzed and discussed the general import of the first of the *Partidas*.

[77] Marina, *Ensayo*, ubi supra, and nos. 220 et seq.

[78] See the original acts quoted by Sempere, in his *Historia del Luxo*, tom. i. pp. 166 et seq.

[79] Lucio Marineo Siculo, *Cosas Memorables de España*, (Alcalá de Henares, 1539,) fol. 16.

[80] Navagiero, *Viaggio*, fol. 9.—L. Marineo, *Cosas Memorables*, fol. 12.—Laborde reckons the revenues of this prelate, in his tables, at 12,000,000 reals, or 600,000 dollars. (*Itinéraire*, tom. vi. p. 9.) The estimate is grossly exaggerated for the present day. The rents of this see, like those of every other in the kingdom, have been grievously clipped in the late political troubles. They are stated by the intelligent author of "*A Year in Spain*," on the authority of the clergy of the diocese, at one-third of the

above sum, only; (p. 217, Boston ed. 1829;) an estimate confirmed by Mr. Inglis, who computes them at £40,000. Spain in 1830, vol. i. ch. 11.

[81] Modern travellers, who condemn without reserve the corruption of the inferior clergy, bear uniform testimony to the exemplary piety and munificent charities of the higher dignitaries of the church.

[82] Marina, *Teoría*, part. 2, cap. 2, 5, 6.—A remarkable instance of this occurred as late as the accession of Charles V.

[83] The earliest example of this permanent committee of the commons, residing at court, and entering into the king's council, was in the minority of Ferdinand IV., in 1295. The subject is involved in some obscurity, which Marina has not succeeded in dispelling. He considers the deputation to have formed a necessary and constituent part of the council, from the time of its first appointment. (*Teoría*, tom. ii. cap. 27, 28.) Sempere, on the other hand, discerns no warrant for this, after its introduction, till the time of the Austrian dynasty. (*Histoire des Cortès*, chap. 29.) Marina, who too often mistakes anomaly for practice, is certainly not justified, even by his own showing, in the sweeping conclusions to which he arrives. But, if his prejudices lead him to see more than has happened, on the one hand, those of Sempere, on the other, make him sometimes high gravel blind.

[84] The important functions and history of this body are investigated by Marina. (*Teoría*, part. 2, cap. 27, 28, 29.) See also Sempere, (*Histoire des Cortès*, cap. 16,) and the *Informe de Don Agustin Riol*, (apud *Semanario Erudito*, tom. iii. pp. 113 et seq.) where, however, its subsequent condition is chiefly considered.

[85] Not so exclusively, however, by any means, as Marina pretends. (*Teoría*, part. 2, cap. 17, 18.) He borrows a pertinent illustration from the famous code of Alfonso X., which was not received as law of the land till it

had been formally published in cortes, in 1348, more than seventy years after its original compilation. In his zeal for popular rights, he omits to notice, however, the power so frequently assumed by the sovereign of granting *fueros*, or municipal charters; a right, indeed, which the great lords, spiritual and temporal, exercised in common with him, subject to his sanction. See a multitude of these seignorial codes, enumerated by Asso and Manuel. (Instituciones, Introd., pp. 31 et seq.) The monarch claimed, moreover, though not by any means so freely as in later times, the privilege of issuing *pragmáticas*, ordinances of an executive character, or for the redress of grievances submitted to him by the national legislature. Within certain limits, this was undoubtedly a constitutional prerogative; But the history of Castile, like that of most other countries in Europe, shows how easily it was abused in the hands of an arbitrary prince.

[86] The civil and criminal business of the kingdom was committed, in the last resort, to the very ancient tribunal of *alcaldes de casa y corte*, until, in 1371, a new one, entitled the royal audience or chancery, was constituted under Henry II., with supreme and ultimate jurisdiction in civil causes. These, in the first instance, however, might be brought before the *alcaldes de la corte*, which continued, and has since continued, the high court in criminal matters.

The *audiencia*, or chancery, consisted at first of seven judges, whose number varied a good deal afterwards. They were appointed by the crown, in the manner mentioned in the text. Their salaries were such as to secure their independence, as far as possible, of any undue influence; and this was still further done by the supervision of cortes, whose acts show the deep solicitude with which it watched over the concerns and conduct of this important tribunal. For a notice of the original organization and subsequent modifications of the Castilian courts, consult Marina, (Teoría, part. 2, cap. 21-25,) Riol, (Informe, apud Semanario Erudito, tom. iii. pp. 129 et seq.)

and Sempere, (*Histoire des Cortès*, chap. 15,) whose loose and desultory remarks show perfect familiarity with the subject, and presuppose more than is likely to be found in the reader.

[87] *Siete Partidas*, part. 2, tit. 26, leyes 5, 6, 7.—Mendoza notices this custom as recently as Philip II.'s day. *Guerra de Granada*, p. 170.

[88] Mariana, *Hist. de España*, lib. 15, cap. 19, 20.

[89] Garibay, *Compendio*, tom. ii. p. 399.—Mariana, *Hist. de España*, tom. ii. pp. 234, 235.—Pedro Lopez de Ayala, chancellor of Castile and chronicler of the reigns of four of its successive monarchs, terminated his labors abruptly with the sixth year of Henry III., the subsequent period of whose administration is singularly barren of authentic materials for history. The editor of Ayala's *Chronicle* considers the adventure, quoted in the text, as fictitious, and probably suggested by a stratagem employed by Henry for the seizure of the duke of Benevente, and by his subsequent imprisonment at Burgos. See Ayala, *Crónica de Castilla*, p. 355, note, (ed. de la Acad., 1780.)

SECTION II.

REVIEW OF THE CONSTITUTION OF ARAGON TO THE MIDDLE OF THE FIFTEENTH CENTURY.

Rise of Aragon.—Ricos Hombres.—Their Immunities.—Their Turbulence.—

Privileges of Union.—The Legislature.—Its Forms.—Its Powers.—General Privilege.—Judicial Functions of Cortes.—The Justice.—His Great Authority.—Else and Opulence of Barcelona.—Her Free Institutions.—Intellectual Culture.

The political institutions of Aragon, although bearing a general resemblance to those of Castile, were sufficiently dissimilar to stamp a peculiar physiognomy on the character of the nation, which still continued after it had been incorporated with the great mass of the Spanish monarchy.—It was not until the expiration of nearly five centuries after the Saracen invasion, that the little district of Aragon, growing up under the shelter of the Pyrenees, was expanded into the dimensions of the province which now bears that name. During this period, it was painfully struggling into being, like the other states of the Peninsula, by dint of fierce, unintermitted warfare with the infidel.

Even after this period, it would probably have filled but an insignificant space in the map of history, and, instead of assuming an independent

station, have been compelled, like Navarre, to accommodate itself to the politics of the potent monarchies by which it was surrounded, had it not extended its empire by a fortunate union with Catalonia in the twelfth, and the conquest of Valencia in the thirteenth century. [1] These new territories were not only far more productive than its own, but, by their long line of coast and commodious ports, enabled the Aragonese, hitherto pent up within their barren mountains, to open a communication with distant regions.

The ancient county of Barcelona had reached a higher degree of civilization than Aragon, and was distinguished by institutions quite as liberal. The sea-board would seem to be the natural seat of liberty. There is something in the very presence, in the atmosphere of the ocean, which invigorates not only the physical, but the moral energies of man. The adventurous life of the mariner familiarizes him with dangers, and early accustoms him to independence. Intercourse with various climes opens new and more copious sources of knowledge; and increased wealth brings with it an augmentation of power and consequence. It was in the maritime cities scattered along the Mediterranean that the seeds of liberty, both in ancient and modern times, were implanted and brought to maturity. During the Middle Ages, when the people of Europe generally maintained a toilsome and infrequent intercourse with each other, those situated on the margin of this inland ocean found an easy mode of communication across the high road of its waters. They mingled in war too as in peace, and this long period is filled with their international contests, while the other free cities of Christendom were wasting themselves in civil feuds and degrading domestic broils. In this wide and various collision their moral powers were quickened by constant activity; and more enlarged views were formed, with a deeper consciousness of their own strength, than could be obtained by those inhabitants of the interior, who were conversant only with a limited

range of objects, and subjected to the influence of the same dull, monotonous circumstances.

Among these maritime republics, those of Catalonia were eminently conspicuous. By the incorporation of this country with the kingdom of Aragon, therefore, the strength of the latter was greatly augmented. The Aragonese princes, well aware of this, liberally fostered institutions to which the country owed its prosperity, and skilfully availed themselves of its resources for the aggrandizement of their own dominions. They paid particular attention to the navy, for the more perfect discipline of which a body of laws was prepared by Peter the Fourth, in 1354, that was designed to render it invincible. No allusion whatever is made in this stern code to the mode of surrendering to, or retreating from the enemy. The commander, who declined attacking any force not exceeding his own by more than one vessel, was punished with death. [2] The Catalan navy successfully disputed the empire of the Mediterranean with the fleets of Pisa, and still more of Genoa. With its aid, the Aragonese monarchs achieved the conquest successively of Sicily, Sardinia, and the Balearic Isles, and annexed them to the empire. [3] It penetrated into the farthest regions of the Levant; and the expedition of the Catalans into Asia, which terminated with the more splendid than useful acquisition of Athens, forms one of the most romantic passages in this stirring and adventurous era. [4]

But, while the princes of Aragon were thus enlarging the bounds of their dominion abroad, there was probably not a sovereign in Europe possessed of such limited authority at home. The three great states with their dependencies, which constituted the Aragonese monarchy, had been declared by a statute of James the Second, in 1319, inalienable and indivisible. [5] Each of them, however, maintained a separate constitution of government, and was administered by distinct laws. As it would be fruitless to investigate the peculiarities of their respective institutions,

which bear a very close affinity to one another, we may confine ourselves to those of Aragon, which exhibit a more perfect model than those either of Catalonia or Valencia, and have been far more copiously illustrated by her writers.

The national historians refer the origin of their government to a written constitution of about the middle of the ninth century, fragments of which are still preserved in certain ancient documents and chronicles. On occurrence of a vacancy in the throne, at this epoch, a monarch was elected by the twelve principal nobles, who prescribed a code of laws, to the observance of which he was obliged to swear before assuming the sceptre. The import of these laws was to circumscribe within very narrow limits the authority of the sovereign, distributing the principal functions to a *Justicia*, or Justice, and these same peers, who, in case of a violation of the compact by the monarch, were authorized to withdraw their allegiance, and, in the bold language of the ordinance, "to substitute any other ruler in his stead, even a pagan, if they listed." [6] The whole of this wears much of a fabulous aspect, and may remind the reader of the government which Ulysses met with in Phaeacia; where King Alcinous is surrounded by his "twelve illustrious peers or archons," subordinate to himself, "who," says he, "rule over the people, I myself being the thirteenth." [7] But, whether true or not, this venerable tradition must be admitted to have been well calculated to repress the arrogance of the Aragonese monarchs, and to exalt the minds of their subjects by the image of ancient liberty which it presented. [8]

The great barons of Aragon were few in number. They affected to derive their descent from the twelve peers above mentioned, and were styled *ricos hombres de natura*, implying by this epithet, that they were not indebted for their creation to the will of the sovereign. No estate could be legally conferred by the crown, as an *honor* (the denomination of fiefs in Aragon),

on any but one of these high nobles. This, however, was in time evaded by the monarchs, who advanced certain of their own retainers to a level with the ancient peers of the land; a measure which proved a fruitful source of disquietude. [9] No baron could be divested of his fief, unless by public sentence of the Justice and the cortes. The proprietor, however, was required, as usual, to attend the king in council, and to perform military service, when summoned, during two months in the year, at his own charge. [10]

The privileges, both honorary and substantial, enjoyed by the *ricos hombres*, were very considerable. They filled the highest posts in the state. They originally appointed judges in their domains for the cognizance of certain civil causes, and over a class of their vassals exercised an unlimited criminal jurisdiction. They were excused from taxation except in specified cases; were exempted from all corporal and capital punishment; nor could they be imprisoned, although their estates might be sequestered for debt. A lower class of nobility styled *infanzones*, equivalent to the Castilian *hidalgos*, together with the *caballeros*, or knights, were also possessed of important though inferior immunities. [11] The king distributed among the great barons the territory reconquered from the Moors, in proportions determined by the amount of their respective services. We find a stipulation to this effect from James the First to his nobles, previous to his invasion of Majorca. [12] On a similar principle they claimed nearly the whole of Valencia. [13] On occupying a city, it was usual to divide it into *barrios*, or districts, each of which was granted by way of fief to some one of the *ricos hombres*, from which he was to derive his revenue. What proportion of the conquered territory was reserved for the royal demesne does not appear. [14] We find one of these nobles, Bernard de Cabrera, in the latter part of the fourteenth century, manning a fleet of king's ships on his own credit; another, of the ancient family of Luna, in the fifteenth century, so wealthy that he could travel through an almost unbroken line of his estates all the

way from Castile to France. [15] With all this, their incomes in general, in this comparatively poor country, were very inferior to those of the great Castilian lords. [16]

The laws conceded certain powers to the aristocracy of a most dangerous character. They were entitled, like the nobles of the sister kingdom, to defy, and publicly renounce their allegiance to their sovereign, with the whimsical privilege, in addition, of commending their families and estates to his protection, which he was obliged to accord, until they were again reconciled. [17] The mischievous right of private war was repeatedly recognized by statute. It was claimed and exercised in its full extent, and occasionally with circumstances of peculiar atrocity. An instance is recorded by Zurita of a bloody feud between two of these nobles, prosecuted with such inveteracy that the parties bound themselves by solemn oath never to desist from it during their lives, and to resist every effort, even on the part of the crown itself, to effect a pacification between them. [18] This remnant of barbarism lingered longer in Aragon than in any other country in Christendom.

The Aragonese sovereigns, who were many of them possessed of singular capacity and vigor, [19] made repeated efforts to reduce the authority of their nobles within more temperate limits. Peter the Second, by a bold stretch of prerogative, stripped them of their most important rights of jurisdiction. [20] James the Conqueror artfully endeavored to counterbalance their weight by that of the commons and the ecclesiastics. [21] But they were too formidable when united, and too easily united, to be successfully assailed. The Moorish wars terminated, in Aragon, with the conquest of Valencia, or rather the invasion of Murcia, by the middle of the thirteenth century. The tumultuous spirits of the aristocracy, therefore, instead of finding a vent, as in Castile, in these foreign expeditions, were turned within, and convulsed their own country with perpetual revolution.

Haughty from the consciousness of their exclusive privileges and of the limited number who monopolized them, the Aragonese barons regarded themselves rather as the rivals of their sovereign, than as his inferiors. Intrenched within the mountain fastnesses, which the rugged nature of the country everywhere afforded, they easily bade defiance to his authority. Their small number gave a compactness and concert to their operations, which could not have been obtained in a multitudinous body. Ferdinand the Catholic well discriminated the relative position of the Aragonese and Castilian nobility, by saying, "it was as difficult to divide the one, as to unite the other." [22]

These combinations became still more frequent after formally receiving the approbation of King Alfonso the Third, who, in 1287, signed the two celebrated ordinances entitled the "Privileges of Union," by which his subjects were authorized to resort to arms on an infringement of their liberties. [23] The *hermandad* of Castile had never been countenanced by legislative sanction; it was chiefly resorted to as a measure of police, and was directed more frequently against the disorders of the nobility, than of the sovereign; it was organized with difficulty, and, compared with the union of Aragon, was cumbrous and languid in its operations. While these privileges continued in force, the nation was delivered over to the most frightful anarchy. The least offensive movement on the part of the monarch, the slightest encroachment on personal right or privilege, was the signal for a general revolt. At the cry of *Union*, that "last voice," says the enthusiastic historian, "of the expiring republic, full of authority and majesty, and an open indication of the insolence of kings," the nobles and the citizens eagerly rushed to arms. The principal castles belonging to the former were pledged as security for their fidelity, and intrusted to conservators, as they were styled, whose duty it was to direct the operations and watch over the interests of the Union. A common seal was prepared, bearing the device of armed men kneeling before their king, intimating at once their loyalty and

their resolution, and a similar device was displayed on the standard and the other military insignia of the confederates. [24]

The power of the monarch was as nothing before this formidable array. The Union appointed a council to control all his movements, and, in fact, during the whole period of its existence, the reigns of four successive monarchs, it may be said to have dictated law to the land. At length Peter the Fourth, a despot in heart, and naturally enough impatient of this eclipse of regal prerogative, brought the matter to an issue, by defeating the army of the Union, at the memorable battle of Epila, in 1348, "the last," says Zurita, "in which it was permitted to the subject to take up arms against the sovereign for the cause of liberty." Then, convoking an assembly of the states at Saragossa, he produced before them the instrument containing the two Privileges, and cut it in pieces with his dagger. In doing this, having wounded himself in the hand, he suffered the blood to trickle upon the parchment, exclaiming, that "a law which had been the occasion of so much blood, should be blotted out by the blood of a king." [25] All copies of it, whether in the public archives, or in the possession of private individuals, were ordered, under a heavy penalty, to be destroyed. The statute passed to that effect carefully omits the date of the detested instrument, that all evidence of its existence might perish with it. [26]

Instead of abusing his victory, as might have been anticipated from his character, Peter adopted a far more magnanimous policy. He confirmed the ancient privileges of the realm, and made in addition other wise and salutary concessions. From this period, therefore, is to be dated the possession of constitutional liberty in Aragon; (for surely the reign of unbridled license, above described, is not deserving that name;) and this not so much from the acquisition of new immunities, as from the more perfect security afforded for the enjoyment of the old. The court of the *Justicia*, that great barrier interposed by the constitution between despotism on the one

hand and popular license on the other, was more strongly protected, and causes hitherto decided by arms were referred for adjudication to this tribunal. [27] From this period, too, the cortes, whose voice was scarcely heard amid the wild uproar of preceding times, was allowed to extend a beneficial and protecting sway over the land. And, although the social history of Aragon, like that of other countries in this rude age, is too often stained with deeds of violence and personal feuds, yet the state at large, under the steady operation of its laws, probably enjoyed a more uninterrupted tranquillity than fell to the lot of any other nation in Europe.

The Aragonese cortes was composed of four branches, or arms; [28] the ricos hombres, or great barons; the lesser nobles, comprehending the knights; the clergy, and the commons. The nobility of every denomination were entitled to a seat in the legislature. The ricos hombres were allowed to appear by proxy, and a similar privilege was enjoyed by baronial heiresses. The number of this body was very limited, twelve of them constituting a quorum. [29]

The arm of the ecclesiastics embraced an ample delegation from the inferior as well as higher clergy. [30] It is affirmed not to have been a component of the national legislature until more than a century and a half after the admission of the commons. [31] Indeed, the influence of the church was much less sensible in Aragon, than in the other kingdoms of the peninsula. Notwithstanding the humiliating concessions of certain of their princes to the papal see, they were never recognized by the nation, who uniformly asserted their independence of the temporal supremacy of Rome; and who, as we shall see hereafter, resisted the introduction of the Inquisition, that last stretch of ecclesiastical usurpation, even to blood. [32]

The commons enjoyed higher consideration and civil privileges than in Castile. For this they were perhaps somewhat indebted to the example of

their Catalan neighbors, the influence of whose democratic institutions naturally extended to other parts of the Aragonese monarchy. The charters of certain cities accorded to the inhabitants privileges of nobility, particularly that of immunity from taxation; while the magistrates of others were permitted to take their seats in the order of hidalgos. [33] From a very early period we find them employed in offices of public trust, and on important missions. [34] The epoch of their admission into the national assembly is traced as far back as 1133, several years earlier than the commencement of popular representation in Castile. [35] Each city had the right of sending two or more deputies selected from persons eligible to its magistracy; but with the privilege of only one vote, whatever might be the number of its deputies. Any place, which had been once represented in cortes, might always claim to be so. [36]

By a statute of 1307, the convocation of the states, which had been annual, was declared biennial. The kings, however, paid little regard to this provision, rarely summoning them except for some specific necessity. [37] The great officers of the crown, whatever might be their personal rank, were jealously excluded from their deliberations. The session was opened by an address from the king in person, a point of which they were very tenacious; after which the different *arms* withdrew to their separate apartments. [38] The greatest scrupulousness was manifested in maintaining the rights and dignity of the body; and their intercourse with one another, and with the king, was regulated by the most precise forms of parliamentary etiquette. [39] The subjects of deliberation were referred to a committee from each order, who, after conferring together, reported to their several departments. Every question, it may be presumed, underwent a careful examination; as the legislature, we are told, was usually divided into two parties, "the one maintaining the rights of the monarch, the other, those of the nation," corresponding nearly enough with those of our day. It was in the power of any member to defeat the passage of a bill, by opposing to it his *veto* or

dissent, formally registered to that effect. He might even interpose his negative on the proceedings of the house, and thus put a stop to the prosecution of all further business during the session. This anomalous privilege, transcending even that claimed in the Polish diet, must have been too invidious in its exercise, and too pernicious in its consequences, to have been often resorted to. This may be inferred from the fact, that it was not formally repealed until the reign of Philip the Second, in 1592. During the interval of the sessions of the legislature, a deputation of eight was appointed, two from each arm, to preside over public affairs, particularly in regard to the revenue, and the security of justice; with authority to convoke a cortes extraordinary, whenever the exigency might demand it. [40]

The cortes exercised the highest functions whether of a deliberative, legislative, or judicial nature. It had a right to be consulted on all matters of importance, especially on those of peace and war. No law was valid, no tax could be imposed, without its consent; and it carefully provided for the application of the revenue to its destined uses. [41] It determined the succession to the crown; removed obnoxious ministers; reformed the household, and domestic expenditure, of the monarch; and exercised the power, in the most unreserved manner, of withholding supplies, as well as of resisting what it regarded as an encroachment on the liberties of the nation. [42]

The excellent commentators on the constitution of Aragon have bestowed comparatively little attention on the development of its parliamentary history; confining themselves too exclusively to mere forms of procedure. The defect has been greatly obviated by the copiousness of their general historians. But the statute-book affords the most unequivocal evidence of the fidelity with which the guardians of the realm discharged the high trust reposed in them, in the numerous enactments it exhibits, for the security both of person and property. Almost the first page which meets the eye in

this venerable record contains the General Privilege, the Magna Charta, as it has been well denominated, of Aragon. It was granted by Peter the Great to the cortes at Saragossa, in 1283. It embraces a variety of provisions for the fair and open administration of justice; for ascertaining the legitimate powers intrusted to the cortes; for the security of property against exactions of the crown; and for the conservation of their legal immunities to the municipal corporations and the different orders of nobility. In short, the distinguishing excellence of this instrument, like that of Magna Charta, consists in the wise and equitable protection which it affords to all classes of the community. [43] The General Privilege, instead of being wrested, like King John's charter, from a pusillanimous prince, was conceded, reluctantly enough, it is true, in an assembly of the nation, by one of the ablest monarchs who ever sat on the throne of Aragon, at a time when his arms, crowned with repeated victory, had secured to the state the most important of her foreign acquisitions. The Aragonese, who rightly regarded the General Privilege as the broadest basis of their liberties, repeatedly procured its confirmation by succeeding sovereigns. "By so many and such various precautions," says Blancas, "did our ancestors establish that freedom which their posterity have enjoyed; manifesting a wise solicitude, that all orders of men, even kings themselves, confined within their own sphere, should discharge their legitimate functions without jostling or jarring with one another; for in this harmony consists the temperance of our government. Alas!" he adds, "how much of all this has fallen into desuetude from its antiquity, or been effaced by new customs." [44]

The judicial functions of the cortes have not been sufficiently noticed by writers. They were extensive in their operation, and gave it the name of the General Court. They were principally directed to protect the subject from the oppressions of the crown and its officers; over all which cases it possessed original and ultimate jurisdiction. The suit was conducted before the Justice, as president of the cortes, in its judicial capacity, who delivered

an opinion conformable to the will of the majority. [45] The authority, indeed, of this magistrate in his own court was fully equal to providing adequate relief in all these cases. [46] But for several reasons this parliamentary tribunal was preferred. The process was both more expeditious and less expensive to the suitor. Indeed, "the most obscure inhabitant of the most obscure village in the kingdom, although a foreigner," might demand redress of this body; and, if he was incapable of bearing the burden himself, the state was bound to maintain his suit, and provide him with counsel at its own charge. But the most important consequence, resulting from this legislative investigation, was the remedial laws frequently attendant on it. "And our ancestors," says Blancas, "deemed it great wisdom patiently to endure contumely and oppression for a season, rather than seek redress before an inferior tribunal, since, by postponing their suit till the meeting of cortes, they would not only obtain a remedy for their own grievance, but one of a universal and permanent application." [47]

The Aragonese cortes maintained a steady control over the operations of government, especially after the dissolution of the Union; and the weight of the commons was more decisive in it, than in other similar assemblies of that period. Its singular distribution into four estates was favorable to this. The knights and *hidalgos*, an intermediate order between the great nobility and the people, when detached from the former, naturally lent additional support to the latter, with whom, indeed, they had considerable affinity. The representatives of certain cities, as well as a certain class of citizens, were entitled to a seat in this body; [48] so that it approached both in spirit and substance to something like a popular representation. Indeed, this arm of the cortes was so uniformly vigilant in resisting any encroachment on the part of the crown, that it has been said to represent, more than any other, the liberties of the nation. [49] In some other particulars the Aragonese commons possessed an advantage over those of Castile. 1. By postponing

their money grants to the conclusion of the session, and regulating them in some degree by the previous dispositions of the crown, they availed themselves of an important lever relinquished by the Castilian cortes. [50]

2. The kingdom of Aragon proper was circumscribed within too narrow limits to allow of such local jealousies and estrangements, growing out of an apparent diversity of interests, as existed in the neighboring monarchy. Their representatives, therefore, were enabled to move with a more hearty concert, and on a more consistent line of policy. 3. Lastly, the acknowledged right to a seat in cortes, possessed by every city which had once been represented there, and this equally whether summoned or not, if we may credit Capmany, [51] must have gone far to preserve the popular branch from the melancholy state of dilapidation to which it was reduced in Castile by the arts of despotic princes. Indeed, the kings of Aragon, notwithstanding occasional excesses, seem never to have attempted any systematic invasion of the constitutional rights of their subjects. They well knew, that the spirit of liberty was too high among them to endure it. When the queen of Alfonso the Fourth urged her husband, by quoting the example of her brother the king of Castile, to punish certain refractory citizens of Valencia, he prudently replied, "My people are free, and not so submissive as the Castilians. They respect me as their prince, and I hold them for good vassals and comrades." [52]

No part of the constitution of Aragon has excited more interest, or more deservedly, than the office of the *Justicia*, or Justice; [53] whose extraordinary functions were far from being limited to judicial matters, although in these his authority was supreme. The origin of this institution is affirmed to have been coeval with that of the constitution or frame of government itself. [54] If it were so, his authority may be said, in the language of Blancas, "to have slept in the scabbard" until the dissolution of the Union; when the control of a tumultuous aristocracy was exchanged for

the mild and uniform operation of the law, administered by this, its supreme interpreter.

His most important duties may be briefly enumerated. He was authorized to pronounce on the validity of all royal letters and ordinances. He possessed, as has been said, concurrent jurisdiction with the cortes over all suits against the crown and its officers. Inferior judges were bound to consult him in all doubtful cases, and to abide by his opinion, as of "equal authority," in the words of an ancient jurist, "with the law itself." [55] An appeal lay to his tribunal from those of the territorial and royal judges. [56] He could even evoke a cause, while pending before them, into his own court, and secure the defendant from molestation on his giving surety for his appearance. By another process, he might remove a person under arrest from the place in which he had been confined by order of an inferior court, to the public prison appropriated to this purpose, there to abide his own examination of the legality of his detention. These two provisions, by which the precipitate and perhaps intemperate proceedings of subordinate judicatures were subjected to the revision of a dignified and dispassionate tribunal, might seem to afford sufficient security for personal liberty and property. [57] In addition to these official functions, the Justice of Aragon was constituted a permanent counsellor of the sovereign, and, as such, was required to accompany him where-ever he might reside. He was to advise the king on all constitutional questions of a doubtful complexion; and finally, on a new accession to the throne, it was his province to administer the coronation oath; this he performed with his head covered, and sitting, while the monarch, kneeling before him bare-headed, solemnly promised to maintain the liberties of the kingdom. A ceremony eminently symbolical of that superiority of law over prerogative, which was so constantly asserted in Aragon. [58]

It was the avowed purpose of the institution of the Justicia to interpose such an authority between the crown and the people, as might suffice for the entire protection of the latter. This is the express import of one of the laws of Sopenarbe, which, whatever he thought of their authenticity, are undeniably of very high antiquity. [59] This part of his duties is particularly insisted on by the most eminent juridical writers of the nation. Whatever estimate, therefore, may be formed of the real extent of his powers, as compared with those of similar functionaries in other states of Europe, there can be no doubt that this ostensible object of their creation, thus openly asserted, must have had a great tendency to enforce their practical operation. Accordingly we find repeated examples, in the history of Aragon, of successful interposition on the part of the Justice for the protection of individuals persecuted by the crown, and in defiance of every attempt at intimidation. [60] The kings of Aragon, chafed by this opposition, procured the resignation or deposition, on more than one occasion, of the obnoxious magistrate. [61] But, as such an exercise of prerogative must have been altogether subversive of an independent discharge of the duties of this office, it was provided by a statute of Alfonso the Fifth, in 1442, that the Justice should continue in office during life, removable only, on sufficient cause, by the king and the cortes united. [62]

Several provisions were enacted, in order to secure the nation more effectually against the abuse of the high trust reposed in this officer. He was to be taken from the equestrian order, which, as intermediate between the high nobility and the people, was less likely to be influenced by undue partiality to either. He could not be selected from the ricos hombres, since this class was exempted from corporal punishment, while the Justice was made responsible to the cortes for the faithful discharge of his duties, under penalty of death. [63] As this supervision of the whole legislature was found unwieldy in practice, it was superseded, after various modifications by a commission of members elected from each one of the four estates,

empowered to sit every year in Saragossa, with authority to investigate the charges preferred against the Justice, and to pronounce sentence upon him. [64]

The Aragonese writers are prodigal of their encomiums on the pre-eminence and dignity of this functionary, whose office might seem, indeed, but a doubtful expedient for balancing the authority of the sovereign; depending for its success less on any legal powers confided to it, than on the efficient and constant support of public opinion. Fortunately the Justice of Aragon uniformly received such support, and was thus enabled to carry the original design of the institution into effect, to check the usurpations of the crown, as well as to control the license of the nobility and the people. A series of learned and independent magistrates, by the weight of their own character, gave additional dignity to the office. The people, familiarized with the benignant operation of the law, referred to peaceful arbitration those great political questions, which, in other countries at this period, must have been settled by a sanguinary revolution. [65] While, in the rest of Europe, the law seemed only the web to ensnare the weak, the Aragonese historians could exult in the reflection, that the fearless administration of justice in their land "protected the weak equally with the strong, the foreigner with the native." Well might their legislature assert, that the value of their liberties more than counterbalanced "the poverty of the nation, and the sterility of their soil." [66]

The governments of Valencia and Catalonia, which, as has been already remarked, were administered independently of each other after their consolidation into one monarchy, bore a very near resemblance to that of Aragon. [67] No institution, however, corresponding in its functions with that of the Justicia, seems to have obtained in either. [68] Valencia, which had derived a large portion of its primitive population, after the conquest, from Aragon, preserved the most intimate relations with the parent

kingdom, and was constantly at its side during the tempestuous season of the Union. The Catalans were peculiarly jealous of their exclusive privileges, and their civil institutions wore a more democratical aspect than those of any other of the confederated states; circumstances, which led to important results that fall within the compass of our narrative. [69]

The city of Barcelona, which originally gave its name to the county of which it was the capital, was distinguished from a very early period by ample municipal privileges. [70] After the union with Aragon in the twelfth century, the monarchs of the latter kingdom extended towards it the same liberal legislation; so that, by the thirteenth, Barcelona had reached a degree of commercial prosperity rivalling that of any of the Italian republics. She divided with them the lucrative commerce with Alexandria; and her port, thronged with foreigners from every nation, became a principal emporium in the Mediterranean for the spices, drugs, perfumes, and other rich commodities of the east, whence they were diffused over the interior of Spain and the European continent. [71] Her consuls, and her commercial factories, were established in every considerable port in the Mediterranean and in the north of Europe. [72] The natural products of her soil, and her various domestic fabrics, supplied her with abundant articles of export. Fine wool was imported by her in considerable quantities from England in the fourteenth and fifteenth centuries, and returned there manufactured into cloth; an exchange of commodities the reverse of that existing between the two nations at the present day. [73] Barcelona claims the merit of having established the first bank of exchange and deposit in Europe, in 1401; it was devoted to the accommodation of foreigners as well as of her own citizens. She claims the glory, too, of having compiled the most ancient written code, among the moderns, of maritime law now extant, digested from the usages of commercial nations, and which formed the basis of the mercantile jurisprudence of Europe during the Middle Ages. [74]

The wealth which flowed in upon Barcelona, as the result of her activity and enterprise, was evinced by her numerous public works, her docks, arsenal, warehouses, exchange, hospitals, and other constructions of general utility. Strangers, who visited Spain in the fourteenth and fifteenth centuries, expatiate on the magnificence of this city, its commodious private edifices, the cleanliness of its streets and public squares (a virtue by no means usual in that day), and on the amenity of its gardens and cultivated environs. [75]

But the peculiar glory of Barcelona was the freedom of her municipal institutions. Her government consisted of a senate or council of one hundred, and a body of *regidores* or counsellors, as they were styled, varying at times from four to six in number; the former intrusted with the legislative, the latter with the executive functions of administration. A large proportion of these bodies were selected from the merchants, tradesmen, and mechanics of the city. They were invested, not merely with municipal authority, but with many of the rights of sovereignty. They entered into commercial treaties with foreign powers; superintended the defence of the city in time of war; provided for the security of trade; granted letters of reprisal against any nation who might violate it; and raised and appropriated the public moneys for the construction of useful works, or the encouragement of such commercial adventures as were too hazardous or expensive for individual enterprise. [76]

The counsellors, who presided over the municipality, were complimented with certain honorary privileges, not even accorded to the nobility. They were addressed by the title of *magníficos*; were seated, with their heads covered, in the presence of royalty; were preceded by mace-bearers, or lictors, in their progress through the country; and deputies from their body to the court were admitted on the footing, and received the honors, of foreign ambassadors. [77] These, it will be recollected, were plebeians,—

merchants and mechanics. Trade never was esteemed a degradation in Catalonia, as it came to be in Castile. [78] The professors of the different arts, as they were called, organized into guilds or companies, constituted so many independent associations, whose members were eligible to the highest municipal offices. And such was the importance attached to these offices, that the nobility in many instances, resigning the privileges of their rank, a necessary preliminary, were desirous of being enrolled among the candidates for them. [79] One cannot but observe in the peculiar organization of this little commonwealth, and in the equality assumed by every class of its citizens, a close analogy to the constitutions of the Italian republics; which the Catalans, having become familiar with in their intimate commercial intercourse with Italy, may have adopted as the model of their own.

Under the influence of these democratic institutions, the burghers of Barcelona, and indeed of Catalonia in general, which enjoyed more or less of a similar freedom, assumed a haughty independence of character beyond what existed among the same class in other parts of Spain; and this, combined with the martial daring fostered by a life of maritime adventure and warfare, made them impatient, not merely of oppression, but of contradiction, on the part of their sovereigns, who have experienced more frequent and more sturdy resistance from this quarter of their dominions, than from every other. [80] Navagiero, the Venetian ambassador to Spain, early in the sixteenth century, although a republican himself, was so struck with what he deemed the insubordination of the Barcelonians, that he asserts, "The inhabitants have so many privileges, that the king scarcely retains any authority over them; their liberty," he adds, "should rather go by the name of license." [81] One example among many, may be given, of the tenacity with which they adhered to their most inconsiderable immunities.

Ferdinand the First, in 1416, being desirous, in consequence of the exhausted state of the finances on his coming to the throne, to evade the payment of a certain tax or subsidy customarily paid by the kings of Aragon to the city of Barcelona, sent for the president of the council, John Fiveller, to require the consent of that body to this measure. The magistrate, having previously advised with his colleagues, determined to encounter any hazard, says Zurita, rather than compromise the rights of the city. He reminded the king of his coronation oath, expressed his regret that he was willing so soon to deviate from the good usages of his predecessors, and plainly told him, that he and his comrades would never betray the liberties entrusted to them. Ferdinand, indignant at this language, ordered the patriot to withdraw into another apartment, where he remained in much uncertainty as to the consequences of his temerity. But the king was dissuaded from violent measures, if he ever contemplated them, by the representation of his courtiers, who warned him not to reckon too much on the patience of the people, who bore small affection to his person, from *the little familiarity with which he had treated them* in comparison with their preceding monarchs, and who were already in arms to protect their magistrate. In consequence of these suggestions, Ferdinand deemed it prudent to release the counsellor, and withdrew abruptly from the city on the ensuing day, disgusted at the ill success of his enterprise. [82]

The Aragonese monarchs well understood the value of their Catalan dominions, which sustained a proportion of the public burdens equal in amount to that of both the other states of the kingdom. [83] Notwithstanding the mortifications, which they occasionally experienced from this quarter, therefore, they uniformly extended towards it the most liberal protection. A register of the various customs paid in the ports of Catalonia, compiled in 1413, under the above-mentioned Ferdinand, exhibits a discriminating legislation, extraordinary in an age when the true principles of financial policy were so little understood. [84] Under James

the First, in 1227, a navigation act, limited in its application, was published, and another under Alfonso the Fifth, in 1454, embracing all the dominions of Aragon; thus preceding by some centuries the celebrated ordinance, to which England owes so much of her commercial grandeur. [85]

The brisk concussion given to the minds of the Catalans in the busy career in which they were engaged, seems to have been favorable to the development of poetical talent, in the same manner as it was in Italy. Catalonia may divide with Provence the glory of being the region where the voice of song was first awakened in modern Europe. Whatever may be the relative claims of the two countries to precedence in this respect, [86] it is certain that under the family of Barcelona, the Provençal of the south of France reached its highest perfection; and, when the tempest of persecution in the beginning of the thirteenth century fell on the lovely valleys of that unhappy country, its minstrels found a hospitable asylum in the court of the kings of Aragon; many of whom not only protected, but cultivated the *gay science* with considerable success. [87] Their names have descended to us, as well as those of less illustrious troubadours, whom Petrarch and his contemporaries did not disdain to imitate; [88] but their compositions, for the most part, lie still buried in those cemeteries of the intellect so numerous in Spain, and call loudly for the diligence of some Sainte Palaye or Raynouard to disinter them. [89]

The languishing condition of the poetic art, at the close of the fourteenth century, induced John the First, who mingled somewhat of the ridiculous even with his most respectable tastes, to depute a solemn embassy to the king of France, requesting that a commission might be detached from the Floral Academy of Toulouse, into Spain, to erect there a similar institution. This was accordingly done, and the Consistory of Barcelona was organized, in 1390. The kings of Aragon endowed it with funds, and with a library valuable for that day, presiding over its meetings in person, and distributing

the poetical premiums with their own hands. During the troubles consequent on the death of Martin, this establishment fell into decay, until it was again revived, on the accession of Ferdinand the First, by the celebrated Henry, marquis of Villena, who transplanted it to Tortosa. [90]

The marquis, in his treatise on the *gaya sciencia*, details with becoming gravity the pompous ceremonial observed in his academy on the event of a public celebration. The topics of discussion were "the praises of the Virgin, love, arms, and other good usages." The performances of the candidates, "inscribed on parchment of various colors, richly enamelled with gold and silver, and beautifully illuminated," were publicly recited, and then referred to a committee, who made solemn oath to decide impartially and according to the rules of the art. On the delivery of the verdict, a wreath of gold was deposited on the victorious poem, which was registered in the academic archives; and the fortunate troubadour, greeted with a magnificent prize, was escorted to the royal palace amid a *cortège* of minstrelsy and chivalry; "thus manifesting to the world," says the marquis, "the superiority which God and nature have assigned to genius over dulness." [91]

The influence of such an institution in awakening a poetic spirit is at best very questionable. Whatever effect an academy may have in stimulating the researches of science, the inspirations of genius must come unbidden;

"Adflata est numine quando
Jam propiore del."

The Catalans, indeed, seem to have been of this opinion; for they suffered the Consistory of Tortosa to expire with its founder. Somewhat later, in 1430, was established the University of Barcelona, placed under the direction of the municipality, and endowed by the city with ample funds for instruction in the various departments of law, theology, medicine, and the

belles-lettres. This institution survived until the commencement of the last century. [92]

During the first half of the fifteenth century, long after the genuine race of the troubadours had passed away, the Provençal or Limousin verse was carried to its highest excellence by the poets of Valencia. [93] It would be presumptuous for any one, who has not made the *Romance* dialects his particular study, to attempt a discriminating criticism of these compositions, so much of the merit of which necessarily consists in the almost impalpable beauties of style and expression. The Spaniards, however, applaud, in the verses of Ausias March, the same musical combinations of sound, and the same tone of moral melancholy, which pervade the productions of Petrarch. [94] In prose too, they have (to borrow the words of Andres) their Boccaccio in Martorell; whose fiction of "Tirante el Blanco" is honored by the commendation of the curate in Don Quixote, as "the best book in the world of the kind, since the knights-errant in it eat, drink, sleep, and die quietly in their beds, like other folk, and very unlike most heroes of romance." The productions of these, and some other of their distinguished contemporaries, obtained a general circulation very early by means of the recently invented art of printing, and subsequently passed into repeated editions.[95] But their language has long since ceased to be the language of literature. On the union of the two crowns of Castile and Aragon, the dialect of the former became that of the court and of the Muses. The beautiful Provençal, once more rich and melodious than any other idiom in the Peninsula, was abandoned as a *patois* to the lower orders of the Catalans, who, with the language, may boast that they also have inherited the noble principles of freedom which distinguished their ancestors.

* * * * *

The influence of free institutions in Aragon is perceptible in the familiarity displayed by its writers with public affairs, and in the freedom with which they have discussed the organization, and general economy of its government. The creation of the office of national chronicler, under Charles V., gave wider scope to the development of historic talent. Among the most conspicuous of these historiographers was Jerome Blancas, several of whose productions, as the "Coronaciones de los Reyes," "Modo de Proceder en Cortes," and "Commentarii Rerum Aragonensium," especially the last, have been repeatedly quoted in the preceding section. This work presents a view of the different orders of the state, and particularly of the office of the Justicia, with their peculiar functions and privileges. The author, omitting the usual details of history, has devoted himself to the illustration of the constitutional antiquities of his country, in the execution of which he has shown a sagacity and erudition equally profound. His sentiments breathe a generous love of freedom, which one would scarcely suppose to have existed, and still less to have been promulgated, under Philip II. His style is distinguished by the purity and even elegance of its latinity. The first edition, being that which I have used, appeared in 1588, in folio, at Saragossa, executed with much typographical beauty. The work was afterwards incorporated into Schottus's "Hispania Illustrata."—Blancas, after having held his office for ten years, died in his native city of Saragossa, in 1590.

Jerome Martel, from whose little treatise, "Forma de Celebrar Cortes," I have also liberally cited, was appointed public historiographer in 1597. His continuation of Zurita's Annals, which he left unpublished at his decease, was never admitted to the honors of the press, because, says his biographer, Uztarroz, *verdades lastiman*; a reason as creditable to the author as disgraceful to the government.

A third writer, and the one chiefly relied on for the account of Catalonia, is Don Antonio Capmany. His "Memorias Históricas de Barcelona," (5 tom. 4to, Madrid, 1779-1792,) may be thought somewhat too discursive and circumstantial for his subject; but it is hardly right to quarrel with information so rare, and painfully collected; the sin of exuberance at any rate is much less frequent, and more easily corrected, than that of sterility. His work is a vast repertory of facts relating to the commerce, manufactures, general policy, and public prosperity, not only of Barcelona, but of Catalonia. It is written with an independent and liberal spirit, which may be regarded as affording the best commentary on the genius of the institutions which he celebrates.—Capmany closed his useful labors at Madrid, in 1810, at the age of fifty-six.

Notwithstanding the interesting character of the Aragonese constitution, and the amplitude of materials for its history, the subject has been hitherto neglected, as far as I am aware, by continental writers. Robertson and Hallam, more especially the latter, have given such a view of its prominent features to the English reader, as must, I fear, deprive the sketch which I have attempted, in a great degree, of novelty. To these names must now be added that of the author of the "History of Spain and Portugal," (Cabinet Cyclopaedia,) whose work, published since the preceding pages were written, contains much curious and learned disquisition on the early jurisprudence and municipal institutions of both Castile and Aragon.

FOOTNOTES

[1] Catalonia was united with Aragon by the marriage of queen Petronilla with Raymond Berengere, count of Barcelona, in 1150. Valencia was conquered from the Moors by James I., in 1238.

[2] Capmany, Mem. de Barcelona, tom. iii. pp. 45-47.—The Catalans were much celebrated during the Middle Ages for their skill with the crossbow; for a more perfect instruction in which, the municipality of Barcelona established games and gymnasiums. Ibid., tom. i. p. 113.

[3] Sicily revolted to Peter III., in 1282.—Sardinia was conquered by James II., in 1324, and the Balearic Isles by Peter IV., in 1343-4. Zurita, Anales, tom. i. fol. 247; tom. ii. fol. 60.—Hermilly, Histoire du Royaume de Majorque, (Maestricht, 1777,) pp. 227-268.

[4] Hence the title of duke of Athens, assumed by the Spanish sovereigns. The brilliant fortunes of Roger de Flor are related by count Moncada, (Expedicion de los Catalanes y Aragoneses contra Turcos y Griegos, Madrid, 1805) in a style much commended by Spanish critics for its elegance. See Mondejar, Advertencias, p. 184.

[5] It was confirmed by Alfonso III., in 1328. Zurita, Anales, tom. ii. fol. 90.

[6] See the fragments of the *Fuero de Soprarbe*, cited by Blancas, Aragonensium Rerum Commentarii, (Caesaraugustae, 1588.) pp. 25-29.—The well-known oath of the Aragonese to their sovereign on his accession, "Nos que valemus tanto como vos," etc., frequently quoted by historians, rests on the authority of Antonio Perez, the unfortunate minister of Philip II., who, however good a voucher for the usages of his own time, has made a blunder in the very sentence preceding this, by confounding the Privilege of Union with one of the Laws of Soprarbe, which shows him to be insufficient, especially as he is the only authority for this ancient ceremony. See Antonio Perez, Relaciones, (Paris, 1598,) fol. 92.

[7]

Dodeka gar kata daemon aripretees Basilaees

Archoi krainonsi, triskaidekatos d' ego autos.
Odyss. O 390.

In like manner Alfonso III. alludes to "the ancient times in Aragon, when there were as many kings as ricos hombres." See Zurita, Anales, tom. i. fol. 316.

[8] The authenticity of the "Fuero de Soprarbe" has been keenly debated by the Aragonese and Navarrese writers. Moret, in refutation of Blancas, who espouses it, (see *Commentarii*, p. 289,) states, that after a diligent investigation of the archives of that region, he finds no mention of the laws, nor even of the name, of Soprarbe, until the eleventh century; a startling circumstance for the antiquary. (*Investigaciones Históricas de las Antigüedades del Reyno de Navarra*, (Pamplona, 1766,) tom. vi. lib. 2, cap. 11.) Indeed, the historians of Aragon admit, that the public documents previous to the fourteenth century suffered so much from various causes as to leave comparatively few materials for authentic narrative. (Blancas, *Commentarii*, Pref.—Risco, *España Sagrada*, tom. xxx. Prólogo.) Blancas transcribed his extract of the laws of Soprarbe principally from Prince Charles of Viana's History, written in the fifteenth century. See *Commentarii*, p. 25.

[9] Asso y Manuel, *Instituciones*, pp. 39, 40.—Blancas, *Commentarii*, pp. 333, 334, 340.—*Fueros y Observancias del Reyno de Aragon*, (Zaragoza, 1667,) tom. i. fol. 130.—The *ricos hombres*, thus created by the monarch, were styled *de mesnada*, signifying "of the household." It was lawful for a *rico hombre* to bequeath his honors to whichever of his legitimate children he might prefer, and, in default of issue, to his nearest of kin. He was bound to distribute the bulk of his estates in fiefs among his knights, so that a complete system of sub-infeudation was established. The knights, on restoring their fiefs, might change their suzerains at pleasure.

[10] Asso y Manuel, Instituciones, p. 41.—Blancas, Commentarii, pp. 307, 322, 331.

[11] Fueros y Observancias, tom. i. fol. 130.—Martel, Forma de Celebrar Cortes en Aragon, (Zaragoza, 1641,) p. 98.—Blancas, Commentarii, pp. 306, 312-317, 323, 360.—Asso y Manual, Instituciones, pp. 40-43.

[12] Zurita, Anales, tom. i. fol. 124.

[13] Blancas, Commentarii, p. 334.

[14] See the partition of Saragossa by Alonso the Warrior. Zurita, Anales, tom. i. fol. 43.

[15] Mariana, Hist. de España, tom. ii. p. 198.—Blancas, Commentarii, p. 218. [16] See a register of these at the beginning of the sixteenth century, apud L. Marineo, Cosas Memorables, fol. 25.

[17] Zurita, Anales, tom. ii. fol. 127.—Blancas, Commentarii, p. 324.—*"Adhaec Ricis hominibus ipsis majorum more institutisque concedebatur, ut sese possent, dum ipsi vellent, a nostrorum Regum jure et potestare, quasi nodum aliquem, expedire; neque expedire solum, sed dimisso prius, quo potirentur, Honore, bellum ipsis inferre; Reges vero Rici hominis sic expediti uxorem, filios, familiam, res, bona, et fortunas omnes in suam recipere fidem tenebantur. Neque ulla erat eorum utilitatis facienda jactura."*

[18] Fueros y Observancias, tom. i. p. 84.—Zurita, Anales, tom. i. fol. 350.

[19] Blancas somewhere boasts, that no one of the kings of Aragon has been stigmatized by a cognomen of infamy, as in most of the other royal races of Europe. Peter IV., "the Ceremonious," richly deserved one.

[20] Zurita, Anales, tom. i. fol. 102.

[21] Zurita, Anales, tom. i. fol. 198.—He recommended this policy to his son-in-law, the king of Castile.

[22] Sempere, Histoire des Cortès, p. 164.

[23] Zurita, Anales, lib. 4, cap. 96.—Abarca dates this event in the year preceding. Reyes de Aragon, en Anales Históricos, (Madrid, 1682-1684,) tom. ii. fol. 8.

[24] Blancas, Commentarii, pp. 192, 193.—Zurita, Anales, tom. i. fol. 266 et alibi.

[25] Zurita, Anales, tom. ii. fol. 126-130.—Blancas, Commentarii, pp. 195-197.—Hence he was styled "Peter of the Dagger;" and a statue of him, bearing in one hand this weapon, and in the other the Privilege, stood in the Chamber of Deputation at Saragossa in Philip II.'s time. See Antonio Perez, Relaciones, fol. 95.

[26] See the statute, De Prohibità Unione, etc. Fueros y Observancias, tom. i. fol. 178.—A copy of the original Privileges was detected by Blancas among the manuscripts of the archbishop of Saragossa; but he declined publishing it from deference to the prohibition of his ancestors. Commentarii, p. 179.

[27] "Haec itaque domestica Regis victoria, quae miserrimum universae Reipublicae interitum videbatur esse allatura, stabilem nobis constituit pacem, tranquillitatem, et otium. Inde enim Magistratus Justitiae Aragonum in eam, quam nunc colimus, amplitudinem dignitatis devenit." Ibid., p. 197.

[28] Martel, Forma de Celebrar Cortes, cap. 8.—"Bracos del reino, porque *abraçan*, y tienen en si."—The cortes consisted only of three arms

in Catalonia and Valencia; both the greater and lesser nobility sitting in the same chamber. Perguera, *Cortes en Cataluña*, and Matheu y Sanz, *Constitucion de Valencia*, apud Capmany, *Práctica y Estilo*, pp. 65, 183, 184.

[29] Martel, *Forma de Celebrar Cortes*, cap. 10, 17, 21, 46.—Blancas, *Modo de Proceder en Cortes de Aragon*, (Zaragoza, 1641,) fol. 17, 18.

[30] Capmany, *Práctica y Estilo*, p. 12.

[31] Blancas, *Modo de Proceder*, fol. 14,—and *Commentarii*, p. 374.—Zurita, indeed, gives repeated instances of their convocation in the thirteenth and twelfth centuries, from a date almost coeval with that of the commons; yet Blancas, who made this subject his particular study, who wrote posterior to Zurita, and occasionally refers to him, postpones the era of their admission into the legislature to the beginning of the fourteenth century.

[32] One of the monarchs of Aragon, Alfonso the Warrior, according to Mariana, bequeathed all his dominions to the Templars and Hospitallers. Another, Peter II., agreed to hold his kingdom as a fief of the see of Rome, and to pay it an annual tribute. (*Hist. de España*, tom. i. pp. 596, 664.) This so much disgusted the people, that they compelled his successors to make a public protest against the claims of the church, before their coronation.—See Blancas, *Coronaciones de los Serenisimos Reyes de Aragon*, (Zaragoza, 1641,) Cap. 2.

[33] Martel, *Forma de Celebrar Cortes*, cap. 22.—Asso y Manuel, *Instituciones*, p. 44.

[34] Zurita, *Anales*, tom. i. fol. 163, A.D. 1250.

[35] Ibid., tom. i. fol. 51.—The earliest appearance of popular representation in Catalonia is fixed by Ripoll at 1283, (apud Capmany, *Práctica y Estilo*, p. 135.) What can Capmany mean by postponing the introduction of the commons into the cortes of Aragon to 1300? (See p. 55.) Their presence and names are commemorated by the exact Zurita, several times before the close of the twelfth century.

[36] *Práctica y Estilo*, pp. 14, 17, 18, 30.—Martel, *Forma de Celebrar Cortes*, cap. 10.—Those who followed a mechanical occupation, *including surgeons and apothecaries*, were excluded from a seat in cortes. (Cap. 17.) The faculty have rarely been treated with so little ceremony.

[37] Martel, *Forma de Celebrar Cortes*, cap. 7.—The cortes appear to have been more frequently convoked in the fourteenth century, than in any other. Blancas refers to no less than twenty-three within that period, averaging nearly one in four years. (*Commentarii*, Index, *voce* Comitia.) In Catalonia and Valencia, the cortes was to be summoned every three years. Berart, *Discurso Breve sobre la Celebracion de Cortes de Aragon*, (1626,) fol. 12.

[38] Capmany, *Práctica y Estilo*, p. 15.—Blancas has preserved a specimen of an address from the throne, in 1398, in which the king, after selecting some moral apothegm as a text, rambles for the space of half an hour through Scripture history, etc., and concludes with announcing the object of his convening the cortes together, in three lines. *Commentarii*, pp. 376-380.

[39] See the ceremonial detailed with sufficient prolixity by Martel, (*Forma de Celebrar Cortes*, cap. 52, 53,) and a curious illustration of it in Zurita, *Anales*, tom. iv. fol. 313.

[40] Capmany, *Práctica y Estilo*, pp. 44 et seq.—Martel, *Forma de Celebrar Cortes*, cap. 50, 60 et seq.—*Fueros y Observancias*, tom. i. fol. 229.—Blancas, *Modo de Proceder*, fol. 2-4.—Zurita, *Anales*, tom. iii. fol. 321. —Robertson, misinterpreting a passage of Blancas, (*Commentarii*, p. 375,) states, that a "session of Cortes continued forty days." (*History of Charles V.*, vol. i. p. 140.) It usually lasted months.

[41] *Fueros y Observancias*, fol. 6, tit. Privileg. Gen.—Blancas, *Commentarii*, p. 371.—Capmany, *Práctica y Estilo*, p. 51.—It was anciently the practice of the legislature to grant supplies of troops, but not of money. When Peter IV. requested a pecuniary subsidy, the cortes told him, that "such thing had not been usual; that his Christian subjects were wont to serve him with their persons, and it was only for Jews and Moors to serve him with money." Blancas, *Modo de Proceder*, cap. 18.

[42] See examples of them in Zurita, *Anales*, tom. i. fol. 51, 263; tom. ii. fol. 391, 394, 424.—Blancas, *Modo de Proceder*, fol. 98, 106.

[43] "There was such a conformity of sentiment among all parties," says Zurita, "that the privileges of the nobility were no better secured than those of the commons. For the Aragonese deemed that the existence of the commonwealth depended not so much on its strength, as on its liberties." (*Anales*, lib. 4, cap. 38.) In the confirmation of the privilege by James the Second, in 1325, torture, then generally recognized by the municipal law of Europe, was expressly prohibited in Aragon, "as unworthy of freemen." See Zurita, *Anales*, lib. 6, cap. 61,—and *Fueros y Observancias*, tom. i. fol. 9. *Declaratio Priv. Generalis*.

[44] The patriotism of Blancas warms as he dwells on the illusory picture of ancient virtue, and contrasts it with the degeneracy of his own day. "Et vero prisca haec tanta severitas, desertaque illa et inculta vita, quando dies noctesque nostri armati concursabant, ac in bello et Maurorum sanguine

assidui versabantur; verè quidem parsimoniae, fortitudinis, temperantiae, caeterarumque virtutum omnium magistra fuit. In quá maleficia ac scelera, quae nunc in otiosâ hac nostrâ umbratili et delicatâ gignuntur, gigni non solebant; quinimmo ita tunc aequaliter omnes omni genere virtutum floruerunt, ut egregia haec laus videatur non hominum solum, verum illorum etiam temporum fuisse." Commentarii, p. 340.

[45] It was more frequently referred, both for the sake of expedition, and of obtaining a more full investigation, to commissioners nominated conjointly by the cortes and the party demanding redress. The nature of the *greuges*, or grievances, which might be brought before the legislature, and the mode of proceeding in relation to them, are circumstantially detailed by the parliamentary historians of Aragon. See Berart, Discurso sobre la Celebracion de Cortes, cap. 7.—Capmany, Práctica y Estilo, pp. 37-44.—Blancas, Modo de Proceder, cap. 14,—and Martel, Forma de Celebrar Cortes, cap. 54-59.

[46] Blancas, Modo de Proceder, cap. 14.—Yet Peter IV., in his dispute with the justice Fernandez de Castro, denied this. Zurita, Anales, tom. ii. fol. 170.

[47] Blancas, Modo de Proceder, ubi supra.

[48] As for example the *ciudadanos honrados* of Saragossa. (Capmany, Práctica y Estilo, p. 14.) A *ciudadano honrado* in Catalonia, and I presume the same in Aragon, was a landholder, who lived on his rents without being engaged in commerce or trade of any kind, answering to the French *propriétaire*. See Capmany, Mem. de Barcelona, tom. ii. Apend. no. 30.

[49] Blancas, Modo de Proceder, fol. 102.

[50] Not, however, it must be allowed, without a manly struggle in its defence, and which, in the early part of Charles V.'s reign, in 1525, wrenched a promise from the crown, to answer all petitions definitively, before the rising of cortes. The law still remains on the statute-book, (Recop. de las Leyes, lib. 6, tit. 7, ley 8,) a sad commentary on the faith of princes.

[51] *Práctica y Estilo*, p. 14.

[52] "Y nos tenemos á ellos como buenos vassallos y compañeros."—Zurita, *Anales*, lib. 7, cap. 17.

[53] The noun "justicia" was made masculine for the accommodation of this magistrate, who was styled "*el justicia*." Antonio Perez, *Relaciones*, fol. 91.

[54] Blancas, *Commentarii*, p. 26.—Zurita, *Anales*, tom. i. fol. 9.

[55] Molinus, apud Blancas, *Commentarii*, pp. 343, 344.—*Fueros y Observancias*, tom. i. fol. 21, 25.

[56] Blancas, *Commentarii*, p. 536.—The principal of these jurisdictions was the royal audience in which the king himself presided in person. *Ibid.*, p. 355.

[57] *Fueros y Observancias*, tom. i. fol. 23, 60 et seq., 155, lib. 3, tit. De *Manifestationibus Personarum*.—Also fol. 137 et seq., tit. 7, De *Firmis Juris*.—Blancas, *Commentarii*, pp. 350, 351.—Zurita, *Anales*, lib. 10, cap. 37.—The first of these processes was styled *firma de derecho*, the last, *manifestation*. The Spanish writers are warm in their encomiums of these two provisions. "Quibus duobus praesidiis," says Blancas, "ita nostrae reipublicae status continetur, ut nulla pars communium fortunarum tutelâ

vacua relinquatur." Both this author and Zurita have amplified the details respecting them, which the reader may find extracted, and in part translated, by Mr. Hallam, *Middle Ages*, vol. ii. pp. 75-77, notes.

When complex litigation became more frequent, the Justice was allowed one, afterwards two, and at a still later period, in 1528, five lieutenants, as they were called, who aided him in the discharge of his onerous duties. Martel, *Forma de Celebrar Cortes*, *Notas de Uztarroz*, pp. 92-96.—Blancas, *Commentarii*, pp. 361-366.

[58] *Ibid.*, pp. 343, 346, 347.—*Idem*, *Coronaciones*, pp. 200, 202.—Antonio Perez, *Relaciones*, fol. 92.

Sempere cites the opinion of an ancient canonist, Canellas, bishop of Huesca, as conclusive against the existence of the vast powers imputed by later commentators to the Justicia. (*Histoire des Cortès*, chap. 19.) The vague, rhapsodical tone of the extract shows it to be altogether undeserving of the emphasis laid on it; not to add, that it was written more than a century before the period, when the Justicia possessed the influence or the legal authority claimed for him by Aragonese writers,—by Blancas, in particular, from whom Sempere borrowed the passage at second hand.

[59] The law alluded to runs thus: "Ne quid autem damni detrimtive leges aut libertates nostrae patiantur, judex quidam medius adesto, ad quem a Rege provocare, si aliquem laeserit, injuriasque arcere si quas forsan Reipub. intulerit, jus fasque esto." Blancas, *Commentarii*, p. 26.

[60] Such instances may be found in Zurita, *Anales*, tom. ii. fol. 385, 414.—Blancas, *Commentarii*, pp. 199, 202-206, 214, 225.—When Ximenes Cerdan, the independent Justice of John I., removed certain citizens from the prison, in which they had been unlawfully confined by the king, in defiance equally of that officer's importunities and menaces, the inhabitants

of Saragossa, says Abarca, came out in a body to receive him on his return to the city, and greeted him as the defender of their ancient and natural liberties. (Reyes de Aragon, tom. i. fol. 155.) So openly did the Aragonese support their magistrate in the boldest exercise of his authority.

[61] This occurred once under Peter III., and twice under Alfonso V. (Zurita, Anales, tom. iii. fol. 255.—Blancas, Commentarii, pp. 174, 489, 499.) The Justice was appointed by the king.

[62] Fueros y Observancias, tom. i. fol. 22.

[63] Ibid., tom. i. fol. 25.

[64] Ibid., tom. i. lib. 3, tit. Forum Inquisitionis Officii Just. Arag., and tom. ii. fol. 37-41.—Blancas, Commentarii, pp. 391-399.

The examination was conducted in the first instance before a court of four inquisitors, as they were termed; who, after a patient hearing of both sides, reported the result of their examination to a council of seventeen, chosen like them from the cortes, from whose decision there was no appeal. No lawyer was admitted into this council, lest the law might be distorted by verbal quibbles, says Blancas. The council, however, was allowed the advice of two of the profession. They voted by ballot, and the majority decided. Such, after various modifications, were the regulations ultimately adopted in 1461, or rather 1467. Robertson appears to have confounded the council of seventeen with the court of inquisition. See his History of Charles V., vol. i. note 31.

[65] Probably no nation of the period would have displayed a temperance similar to that exhibited by the Aragonese at the beginning of the fifteenth century, in 1412; when the people, having been split into factions by a contested succession, agreed to refer the dispute to a committee of judges,

elected equally from the three great provinces of the kingdom; who, after an examination conducted with all the forms of law, and on the same equitable principles as would have guided the determination of a private suit, delivered an opinion, which was received as obligatory on the whole nation.

[66] See Zurita, *Anales*, lib. 8, cap. 29,—and the admirable sentiments cited by Blancas from the parliamentary acts, in 1451. *Commentarii*, p. 350.

From this independent position must be excepted, indeed, the lower classes of the peasantry, who seem to have been in a more abject state in Aragon than in most other feudal countries. "Era tan absolute su dominio (of their lords) que podian meter con hambre, sed, y frio á sus vasallos de servidumbre." (Asso y Manuel, *Instituciones*, p. 40,—also Blancas, *Commentarii*, p. 309.) These serfs extorted, in an insurrection, the recognition of certain rights from their masters, on condition of paying a specified tax; whence the name *villanos de parada*.

[67] Although the legislatures of the different states of the crown of Aragon were never united in one body when convened in the same town, yet they were so averse to all appearance of incorporation, that the monarch frequently appointed for the places of meeting three distinct towns, within their respective territories and contiguous, in order that he might pass the more expeditiously from one to the other. See Blancas, *Modo de Proceder*, cap. 4.

[68] It is indeed true, that Peter III., at the request of the Valencians, appointed an Aragonese knight Justice of that kingdom, in 1283. (Zurita, *Anales*, tom. i. fol. 281.) But we find no further mention of this officer, or of the office. Nor have I met with any notice of it in the details of the Valencian constitution, compiled by Capmany from various writers. (*Práctica y Estilo*, pp. 161-208.) An anecdote of Ximenes Cerdan, recorded by Blancas, (*Commentarii*, p. 214,) may lead one to infer, that the places in

Valencia, which received the laws of Aragon, acknowledged the jurisdiction of its Justicia.

[69] Capmany, *Práctica y Estilo*, pp. 62-214.—Capmany has collected copious materials, from a variety of authors, for the parliamentary history of Catalonia and Valencia, forming a striking contrast to the scantiness of information he was able to glean respecting Castile. The indifference of the Spanish writers, till very recently, to the constitutional antiquities of the latter kingdom, so much more important than the other states of the Peninsula, is altogether inexplicable.

[70] Corbera, *Cataluña Ilustrada*, (Nápoles, 1678,) lib. 1, c. 17.—Petrus de Marca cites a charter of Raymond Berenger, count of Barcelona, to the city, as ancient as 1025, confirming its former privileges. See *Marca Hispanica, sive Limes Hispanicus*, (Parisiis, 1688,) Apend. no. 198.

[71] Navarrete, *Discurso Histórico*, apud *Mem. de la Acad. de Hist.*, tom. v. pp. 81, 82, 112, 113.—Capmany, *Mem. de Barcelona*, tom. i. part. 1, cap. 1, pp. 4, 8, 10, 11.

[72] *Mem. de Barcelona*, part. 1, cap. 2, 3.—Capmany has given a register of the consuls and of the numerous stations, at which they were established throughout Africa and Europe, in the fourteenth and fifteenth centuries, (tom. ii. Apend. no. 23.) These officers during the Middle Ages discharged much more important duties than at the present day, if we except those few residing with the Barbary powers. They settled the disputes arising between their countrymen, in the ports where they were established; they protected the trade of their own nation with these ports; and were employed in adjusting commercial relations, treaties, etc. In short, they filled in some sort the post of a modern ambassador, or resident minister, at a period when this functionary was only employed on extraordinary occasions.

[73] Macpherson, *Annals of Commerce*, (London, 1825,) vol. i. p. 655.—The woollen manufacture constituted the principal staple of Barcelona. (Capmany, *Mem. de Barcelona*, tom. i. p. 241.) The English sovereigns encouraged the Catalan traders by considerable immunities to frequent their ports during the fourteenth century. Macpherson, *ubi supra*, pp. 502, 551, 588.

[74] Heeren, *Essai sur l'Influence des Croisades*, traduit par Villers, (Paris, 1808,) p. 376.—Capmany, *Mem. de Barcelona*, tom. i. p. 213, also pp. 170-180.—Capmany fixes the date of the publication of the *Consulado del Mar* at the middle of the thirteenth century, under James I. He discusses and refutes the claims of the Pisans to precedence in this codification. See his Preliminary Discourse to the *Costumbres Maritimas de Barcelona*.

[75] Navagiero, *Viaggio*, fol. 3.—L. Marineo styles it "the most beautiful city he had ever seen, or, to speak more correctly, in the whole world." (*Cosas Memorables*, fol. 18.) Alfonso V., in one of his ordinances, in 1438, calls it "urbs venerabilis in egregiis templis, tuta ut in optimis, pulchra in caeteris aedificiis," etc. Capmany, *Mem. de Barcelona*, tom. ii. Apend. no. 13.

[76] Capmany, *Mem. de Barcelona*, Apend. no. 24.—The senate or great council, though styled the "one hundred," seems to have fluctuated at different times between that number and double its amount.

[77] Corbera, *Cataluña Illustrada*, p. 84.—Capmany, *Mem. de Barcelona*, tom. ii. Apend. no. 29.

[78] Capmany, *Mem. de Barcelona*, tom. i. part. 3, p. 40, tom. iii. part. 2, pp. 317, 318.

[79] Capmany, Mem. de Barcelona, tom. i. part. 2, p. 187.—tom. ii. Apend. 30.—Capmany says *principal nobleza*; yet it may be presumed that much the larger proportion of these noble candidates for office was drawn from the inferior class of the privileged orders, the knights and hidalgos. The great barons of Catalonia, fortified with extensive immunities and wealth, lived on their estates in the country, probably little relishing the levelling spirit of the burghers of Barcelona.

[80] Barcelona revolted and was twice besieged by the royal arms under John II., once under Philip IV., twice under Charles II., and twice under Philip V. This last siege, 1713-14, in which it held out against the combined forces of France and Spain under Marshal Berwick, is one of the most memorable events in the eighteenth century. An interesting account of the siege may be found in Coxe's Memoirs of the Kings of Spain of the House of Bourbon, (London, 1815,) vol. ii. chap. 21.—The late monarch, Ferdinand VII., also had occasion to feel, that the independent spirit of the Catalans did not become extinct with their ancient constitution.

[81] Viaggio, fol. 3.

[82] Abarca, Reyes de Aragon, tom. ii. fol. 183.—Zurita, Anales, tom. iii. lib. 12, cap. 59.—The king turned his back on the magistrates, who came to pay their respects to him, on learning his intention of quitting the city. He seems, however, to have had the magnanimity to forgive, perhaps to admire, the independent conduct of Fiveller; for at his death, which occurred very soon after, we find this citizen mentioned as one of his executors. See Capmany, Mem. de Barcelona, tom. ii. Apend. 29.

[83] The taxes were assessed in the ratio of one-sixth on Valencia, two-sixths on Aragon, and three-sixths on Catalonia. See Martel, Forma de Celebrar Cortes, cap. 71.

[84] See the items specified by Capmany, *Mem. de Barcelona*, tom. i. pp. 231, 232.

[85] *Idem*, tom. i. pp. 221, 234.—Capmany states, that the statute of Alfonso V. prohibited "all foreign ships from taking cargoes in the ports of his dominions." (See also *Colec. Dipl.*, tom. ii. no. 187.) The object of this law, like that of the British Navigation Act, was the encouragement of the national marine. It deviated far, however, from the sagacious policy of the latter, which imposed no restriction on the exportation of domestic produce to foreign countries, except, indeed, its own colonies.

[86] Andres, *Dell' Origine, de' Progressi, e dello Stato Attuale d' Ogni Letteratura*, (Venezia, 1783,) part. 1, cap. 11.—Lampillas, *Saggio Storico-Apologetico della Letteratura Spagnuola*, (Genova, 1778,) part. 1, dis. 6, sec. 7.—Andres conjectures, and Lampillas decides, in favor of Catalonia. *Arcades ambo*; and the latter critic, the worst possible authority on all questions of national preference.

[87] Velazquez, *Orígenes de la Poesía Castellana*, (Málaga, 1797,) pp. 20- 22.—Andres, *Letteratura*, part. 1, cap. 11.—Alfonso II., Peter II., Peter III, James I., Peter IV., have all left compositions in the Limousin tongue behind them; the three former in verse; the two latter in prose, setting forth the history of their own time. For a particular account of their respective productions, see Latassa, (*Escritores Aragoneses*, tom. i. pp. 175-179, 185-189, 222, 224, 242-248; tom. ii. p. 28,) also Lanuza, (*Historias Eclesiásticas y Seculares de Aragon*, (Zaragoza, 1622,) tom. i. p. 553.) The Chronicle of James I. is particularly esteemed for its fidelity.

[88] Whether Jordi stole from Petrarch, or Petrarch from Jordi, has been matter of hot debate between the Spanish and French *littérateurs*. Sanchez, after a careful examination of the evidence, candidly decides against his countryman, (*Poesías Castellanas*, tom. i. pp. 81-84.) A competent critic in

the Retrospective Review, (No. 7, art. 2,) who enjoyed the advantage over Sanchez of perusing a MS. copy of Jordi's original poem, makes out a very plausible argument in favor of the originality of the Valencian poet. After all, as the amount stolen, or, to speak more reverently, borrowed, does not exceed half a dozen lines, it is not of vital importance to the reputation of either poet.

[89] The abate Andres lamented fifty years ago, that the worms and moths should be allowed to revel among the precious relics of ancient Castilian literature. (*Letteratura*, tom. ii. p. 306.) Have their revels been disturbed yet?

[90] Mayáns y Siscár, *Orígenes de la Lengua Española*, (Madrid, 1737,) tom. ii. pp. 323, 324.—Crescimbeni, *Istoria della Volgar Poesia*, (Venezia, 1731,) tom. ii. p. 170.—Mariana, *Hist. de España*, tom. i. p. 183.—Velazquez, *Poesía Castellana*, pp. 23, 24.

[91] Mayáns y Siscár, *Orígenes*, tom. ii. pp. 325-327.

[92] Andres, *Letteratura*, tom. iv. pp. 85, 86.—Capmany, *Mem. de Barcelona*, tom. ii. Apend. no. 16.—There were thirty-two chairs, or professorships, founded and maintained at the expense of the city; six of theology; six of jurisprudence; five of medicine; six of philosophy; four of grammar; one of rhetoric; one of surgery; one of anatomy; one of Hebrew, and another of Greek. It is singular, that none should have existed for the Latin, so much more currently studied at that time, and of so much more practical application always, than either of the other ancient languages.

[93] The Valencian, "the sweetest and most graceful of the Limousin dialects," says Mayáns y Siscár, *Orígenes*, tom. i. p. 58.

[94] Nicolás Antonio, *Bibliotheca, Hispana Vetus*, (Matriti, 1788,) tom. ii. p. 146.—Andres, *Letteratura*, tom. iv. p. 87.

[95] Cervantes, *Don Quixote*, (ed. de Pellicer, Madrid, 1787,) tom. i, p. 62.—Mendez, *Typographia Española*, (Madrid, 1796,) pp. 72-75.—Andres, *Letteratura*, ubi supra.—Pellicer seems to take Martorell's word in good earnest, that his book is only a version from the Castilian.

The *names* of some of the most noted troubadours are collected by Velazquez, *Poesía Castellana*, (pp. 20-24.—Capmany, *Mem. de Barcelona*, tom. ii. Apend. no. 5.) Some extracts and pertinent criticisms on their productions may be found by the English reader in the *Retrospective Review*. (No. 7, art. 2.) It is to be regretted that the author has not redeemed his pledge of continuing his notices to the Castilian era of Spanish poetry.

[Illustration: GENEALOGY OF FERDINAND AND ISABELLA.]

PART FIRST.

1406-1492.

THE PERIOD WHEN THE DIFFERENT KINGDOMS OF SPAIN WERE FIRST UNITED UNDER ONE MONARCHY, AND A THOROUGH REFORM WAS INTRODUCED INTO THEIR INTERNAL ADMINISTRATION; OR THE PERIOD EXHIBITING MOST FULLY THE DOMESTIC POLICY OF FERDINAND AND ISABELLA.

CHAPTER I.

STATE OF CASTILE AT THE BIRTH OF ISABELLA.—REIGN OF JOHN II., OF CASTILE.

1406-1454.

Revolution of Trastamara.—Accession of John II.—Rise of Alvaro de Luna.

—Jealousy of the Nobles.—Oppression of the Commons.—Its Consequences.—

Early Literature of Castile.—Its Encouragement under John II.—Decline of Alvaro de Luna.—His Fall.—Death of John II.—Birth of Isabella.

The fierce civil feuds, which preceded the accession of the House of Trastamara in 1368, were as fatal to the nobility of Castile, as the wars of the Hoses were to that of England. There was scarcely a family of note, which had not poured out its blood on the field or the scaffold. The influence of the aristocracy was, of course, much diminished with its numbers. The long wars with foreign powers, which a disputed succession entailed on the country, were almost equally prejudicial to the authority of the monarch, who was willing to buoy up his tottering title by the most liberal concession of privileges to the people. Thus the commons rose in proportion as the crown and the privileged orders descended in the scale; and, when the claims of the several competitors for the throne were finally

extinguished, and the tranquillity of the kingdom was secured, by the union of Henry the Third with Catharine of Lancaster at the close of the fourteenth century, the third estate may be said to have attained to the highest degree of political consequence which it ever reached in Castile.

The healthful action of the body politic, during the long interval of peace that followed this auspicious union, enabled it to repair the strength, which had been wasted in its murderous civil contests. The ancient channels of commerce were again opened; various new manufactures were introduced, and carried to a considerable perfection; [1] wealth, with its usual concomitants, elegance and comfort, flowed in apace; and the nation promised itself a long career of prosperity under a monarch, who respected the laws in his own person, and administered them with vigor. All these fair hopes were blasted by the premature death of Henry the Third, before he had reached his twenty-eighth year. The crown devolved on his son John the Second, then a minor, whose reign was one of the longest and the most disastrous in the Castilian annals. [2] As it was that, however, which gave birth to Isabella, the illustrious subject of our narrative, it will be necessary to pass its principal features under review, in order to obtain a correct idea of her government.

The wise administration of the regency, during a long minority, postponed the season of calamity; and when it at length arrived, it was concealed for some time from the eyes of the vulgar by the pomp and brilliant festivities, which distinguished the court of the young monarch. His indisposition, if not incapacity for business, however, gradually became manifest; and, while he resigned himself without reserve to pleasures, which it must be confessed were not unfrequently of a refined and intellectual character, he abandoned the government of his kingdom to the control of favorites.

The most conspicuous of these was Alvaro de Luna, grand master of St. James, and constable of Castile. This remarkable person, the illegitimate descendant of a noble house in Aragon, was introduced very early as a page into the royal household, where he soon distinguished himself by his amiable manners and personal accomplishments. He could ride, fence, dance, sing, if we may credit his loyal biographer, better than any other cavalier in the court; while his proficiency in music and poetry recommended him most effectually to the favor of the monarch, who professed to be a connoisseur in both. With these showy qualities, Alvaro de Luna united others of a more dangerous complexion. His insinuating address easily conciliated confidence, and enabled him to master the motives of others, while his own were masked by consummate dissimulation. He was as fearless in executing his ambitious schemes, as he was cautious in devising them. He was indefatigable in his application to business, so that John, whose aversion to it we have noticed, willingly reposed on him the whole burden of government. The king, it was said, only signed, while the constable dictated and executed. He was the only channel of promotion to public office, whether secular or ecclesiastical. As his cupidity was insatiable, he perverted the great trust confided to him to the acquisition of the principal posts in the government for himself or his kindred, and at his death is said to have left a larger amount of treasure than was possessed by the whole nobility of the kingdom. He affected a magnificence of state corresponding with his elevated rank. The most considerable grandees in Castile contended for the honor of having their sons, after the fashion of the time, educated in his family. When he rode abroad, he was accompanied by a numerous retinue of knights and nobles, which left his sovereign's court comparatively deserted; so that royalty might be said on all occasions, whether of business or pleasure, to be eclipsed by the superior splendors of its satellite. [3] The history of this man may remind the English reader of that of Cardinal Wolsey, whom he

somewhat resembled in character, and still more in his extraordinary fortunes.

It may easily be believed, that the haughty aristocracy of Castile would ill brook this exaltation of an individual so inferior to them in birth, and who withal did not wear his honors with exemplary meekness. John's blind partiality for his favorite is the key to all the troubles which agitated the kingdom during the last thirty years of his reign. The disgusted nobles organized confederacies for the purpose of deposing the minister. The whole nation took sides in this unhappy struggle. The heats of civil discord were still further heightened by the interference of the royal house of Aragon, which, descended from a common stock with that of Castile, was proprietor of large estates in the latter country. The wretched monarch beheld even his own son Henry, the heir to the crown, enlisted in the opposite faction, and saw himself reduced to the extremity of shedding the blood of his subjects in the fatal battle of Olmedo. Still the address, or the good fortune, of the constable enabled him to triumph over his enemies; and, although he was obliged occasionally to yield to the violence of the storm and withdraw a while from the court, he was soon recalled and reinstated in all his former dignities. This melancholy infatuation of the king is imputed by the writers of that age to sorcery on the part of the favorite. [4] But the only witchcraft which he used, was the ascendancy of a strong mind over a weak one.

During this long-protracted anarchy, the people lost whatever they had gained in the two preceding reigns. By the advice of his minister, who seems to have possessed a full measure of the insolence, so usual with persons suddenly advanced from low to elevated station, the king not only abandoned the constitutional policy of his predecessors in regard to the commons, but entered on the most arbitrary and systematic violation of their rights. Their deputies were excluded from the privy council, or lost all

influence in it. Attempts were made to impose taxes without the legislative sanction. The municipal territories were alienated, and lavished on the royal minions. The freedom of elections was invaded, and delegates to cortes were frequently nominated by the crown; and, to complete the iniquitous scheme of oppression, *pragmaticas*, or royal proclamations, were issued, containing provisions repugnant to the acknowledged law of the land, and affirming in the most unqualified terms the right of the sovereign to legislate for his subjects. [5] The commons indeed, when assembled in cortes, stoutly resisted the assumption of such unconstitutional powers by the crown, and compelled the prince not only to revoke his pretensions, but to accompany his revocation with the most humiliating concessions. [6] They even ventured so far, during this reign, as to regulate the expenses of the royal household; [7] and their language to the throne on all these occasions, though temperate and loyal, breathed a generous spirit of patriotism, evincing a perfect consciousness of their own rights, and a steady determination to maintain them. [8]

Alas! what could such resolution avail, in this season of misrule, against the intrigues of a cunning and profligate minister, unsupported too, as the commons were, by any sympathy or co-operation on the part of the higher orders of the state! A scheme was devised for bringing the popular branch of the legislature more effectually within the control of the crown, by diminishing the number of its constituents. It has been already remarked, in the Introduction, that a great irregularity prevailed in Castile as to the number of cities which, at different times, exercised the right of representation. During the fourteenth century, the deputation from this order had been uncommonly full. The king, however, availing himself of this indeterminateness, caused writs to be issued to a very small proportion of the towns which had usually enjoyed the privilege. Some of those that were excluded indignantly though ineffectually remonstrated against this abuse. Others, previously despoiled of their possessions by the rapacity of the

crown, or impoverished by the disastrous feuds into which the country had been thrown, acquiesced in the measure from motives of economy. From the same mistaken policy several cities, again, as Burgos, Toledo, and others, petitioned the sovereign to defray the charges of their representatives from the royal treasury; a most ill-advised parsimony, which suggested to the crown a plausible pretext for the new system of exclusion. In this manner the Castilian cortes, which, notwithstanding its occasional fluctuations, had exhibited during the preceding century what might be regarded as a representation of the whole commonwealth, was gradually reduced, during the reigns of John the Second and his son Henry the Fourth, to the deputations of some seventeen or eighteen cities. And to this number, with slight variation, it has been restricted until the occurrence of the recent revolutionary movements in that kingdom. [9]

The non-represented were required to transmit their instructions to the deputies of the privileged cities. Thus Salamanca appeared in behalf of five hundred towns and fourteen hundred villages; and the populous province of Galicia was represented by the little town of Zamora, which is not even included within its geographical limits. [10] The privilege of a *voice in cortes*, as it was called, came at length to be prized so highly by the favored cities, that when, in 1506, some of those which were excluded solicited the restitution of their ancient rights, their petition was opposed by the former on the impudent pretence, that "the right of deputation had been reserved by ancient law and usage to only eighteen cities of the realm." [11] In this short-sighted and most unhappy policy, we see the operation of those local jealousies and estrangements, to which we have alluded in the Introduction. But, although the cortes, thus reduced in numbers, necessarily lost much of its weight, it still maintained a bold front against the usurpations of the crown. It does not appear, indeed, that any attempt was made under John the Second, or his successor, to corrupt its members, or to control the freedom of debate; although such a proceeding is not improbable, as

altogether conformable to their ordinary policy, and as the natural result of their preliminary measures. But, however true the deputies continued to themselves and to those who sent them, it is evident that so limited and partial a selection no longer afforded a representation of the interests of the whole country. Their necessarily imperfect acquaintance with the principles or even wishes of their widely scattered constituents, in an age when knowledge was not circulated on the thousand wings of the press, as in our day, must have left them oftentimes in painful uncertainty, and deprived them of the cheering support of public opinion. The voice of remonstrance, which derives such confidence from numbers, would hardly now be raised in their deserted halls with the same frequency or energy as before; and, however the representatives of that day might maintain their integrity uncorrupted, yet, as every facility was afforded to the undue influence of the crown, the time might come when venality would prove stronger than principle, and the unworthy patriot be tempted to sacrifice his birthright for a mess of pottage. Thus early was the fair dawn of freedom overcast, which opened in Castile under more brilliant auspices, perhaps, than in any other country in Europe.

While the reign of John the Second is so deservedly odious in a political view, in a literary, it may be inscribed with what Giovio calls "the golden pen of history." It was an epoch in the Castilian, corresponding with that of the reign of Francis the First in French literature, distinguished not so much by any production of extraordinary genius, as by the effort made for the introduction of an elegant culture, by conducting it on more scientific principles than had been hitherto known. The early literature of Castile could boast of the "Poem of the Cid," in some respects the most remarkable performance of the middle ages. It was enriched, moreover, with other elaborate compositions, displaying occasional glimpses of a buoyant fancy, or of sensibility to external beauty, to say nothing of those delightful romantic ballads, which seemed to spring up spontaneously in every quarter

of the country, like the natural wild flowers of the soil. But the unaffected beauties of sentiment, which seem rather the result of accident than design, were dearly purchased, in the more extended pieces, at the expense of such a crude mass of grotesque and undigested verse, as shows an entire ignorance of the principles of the art. [12]

The profession of letters itself was held in little repute by the higher orders of the nation, who were altogether untinctured with liberal learning. While the nobles of the sister kingdom of Aragon, assembled in their poetic courts, in imitation of their Provençal neighbors, vied with each other in lays of love and chivalry, those of Castile disdained these effeminate pleasures as unworthy of the profession of arms, the only one of any estimation in their eyes. The benignant influence of John was perceptible in softening this ferocious temper. He was himself sufficiently accomplished, for a king; and, notwithstanding his aversion to business, manifested, as has been noticed, a lively relish for intellectual enjoyment. He was fond of books, wrote and spoke Latin with facility, composed verses, and condescended occasionally to correct those of his loving subjects. [13] Whatever might be the value of his criticisms, that of his example cannot be doubted. The courtiers, with the quick scent for their own interest which distinguished the tribe in every country, soon turned their attention to the same polite studies; [14] and thus Castilian poetry received very early the courtly stamp, which continued its prominent characteristic down to the age of its meridian glory.

Among the most eminent of these noble *savans*, was Henry, marquis of Villena, descended from the royal houses of Castile and Aragon, [15] but more illustrious, as one of his countrymen has observed, by his talents and attainments, than by his birth. His whole life was consecrated to letters, and especially to the study of natural science. I am not aware that any specimen of his poetry, although much lauded by his contemporaries, [16] has come

down to us. [17] He translated Dante's "Commedia" into prose, and is said to have given the first example of a version of the Aeneid into a modern language. [18] He labored assiduously to introduce a more cultivated taste among his countrymen, and his little treatise on the *gaya sciencia*, as the divine art was then called, in which he gives an historical and critical view of the poetical Consistory of Barcelona, is the first approximation, however faint, to an Art of Poetry in the Castilian tongue. [19] The exclusiveness with which he devoted himself to science, and especially astronomy, to the utter neglect of his temporal concerns, led the wits of that day to remark, that "he knew much of heaven, and nothing of earth." He paid the usual penalty of such indifference to worldly weal, by seeing himself eventually stripped of his lordly possessions, and reduced, at the close of life, to extreme poverty. [20] His secluded habits brought on him the appalling imputation of necromancy. A scene took place at his death, in 1434, which is sufficiently characteristic of the age, and may possibly have suggested a similar adventure to Cervantes. The king commissioned his son's preceptor, Brother Lope de Barrientos, afterwards bishop of Cuença, to examine the valuable library of the deceased; and the worthy ecclesiastic consigned more than a hundred volumes of it to the flames, as savoring too strongly of the black art. The Bachelor Cibdareal, the confidential physician of John the Second, in a lively letter on this occurrence to the poet John de Mena, remarks, that "some would fain get the reputation of saints, by making others necromancers;" and requests his friend "to allow him to solicit, in his behalf, some of the surviving volumes from the king, that in this way the soul of Brother Lope might be saved from further sin, and the spirit of the defunct marquis consoled by the consciousness, that his books no longer rested on the shelves of the man who had converted him into a conjuror." [21] John de Mena denounces this *auto da fe* of science in a similar, but graver tone of sarcasm, in his "Laberinto." These liberal sentiments in the

Spanish writers of the fifteenth century may put to shame the more bigoted criticism of the seventeenth. [22]

Another of the illustrious wits of this reign was Iñigo Lopez de Mendoza, marquis of Santillana, "the glory and delight of the Castilian nobility," whose celebrity was such, that foreigners, it was said, journeyed to Spain from distant parts of Europe to see him. Although passionately devoted to letters, he did not, like his friend the marquis of Villena, neglect his public or domestic duties for them. On the contrary, he discharged the most important civil and military functions. He made his house an academy, in which the young cavaliers of the court might practise the martial exercises of the age; and he assembled around him at the same time men eminent for genius and science, whom he munificently recompensed, and encouraged by his example. [23] His own taste led him to poetry, of which he has left some elaborate specimens. They are chiefly of a moral and preceptive character; but, although replete with noble sentiment, and finished in a style of literary excellence far more correct than that of the preceding age, they are too much infected with mythology and metaphorical affectations to suit the palate of the present day. He possessed, however, the soul of a poet; and when he abandons himself to his native *redondillas*, delivers his sentiments with a sweetness and grace inimitable. To him is to be ascribed the glory, such as it is, of having naturalized the Italian sonnet in Castile, which Boscan, many years later, claimed for himself with no small degree of self-congratulation. [24] His epistle on the primitive history of Spanish verse, although containing notices sufficiently curious from the age and the source whence they proceed, has perhaps done more service to letters by the valuable illustrations it has called forth from its learned editor. [25]

This great man, who found so much leisure for the cultivation of letters amidst the busy strife of politics, closed his career at the age of sixty, in 1458. Though a conspicuous actor in the revolutionary scenes of the period,

he maintained a character for honor and purity of motive, unimpeached even by his enemies. The king, notwithstanding his devotion to the faction of his son Henry, conferred on him the dignities of count of Real de Manzanares and marquis of Santillana; this being the oldest creation of a marquis in Castile, with the exception of Villena. [26] His eldest son was subsequently made duke of Infantado, by which title his descendants have continued to be distinguished to the present day.

But the most conspicuous, for his poetical talents, of the brilliant circle which graced the court of John the Second, was John de Mena, a native of fair Cordova, "the flower of science and of chivalry," [27] as he fondly styles her. Although born in a middling condition of life, with humble prospects, he was early smitten with a love of letters; and, after passing through the usual course of discipline at Salamanca, he repaired to Rome, where, in the study of those immortal masters whose writings had but recently revealed the full capacities of a modern idiom, he imbibed principles of taste, which gave a direction to his own genius, and, in some degree, to that of his countrymen. On his return to Spain, his literary merit soon attracted general admiration, and introduced him to the patronage of the great, and above all to the friendship of the marquis of Santillana. [28] He was admitted into the private circle of the monarch, who, as his gossiping physician informs us, "used to have Mena's verses lying on his table, as constantly as his prayer-book." The poet repaid the debt of gratitude by administering a due quantity of honeyed rhyme, for which the royal palate seems to have possessed a more than ordinary relish. [29] He continued faithful to his master amidst all the fluctuations of faction, and survived him less than two years. He died in 1456; and his friend, the marquis of Santillana, raised a sumptuous monument over his remains, in commemoration of his virtues and of their mutual affection.

John de Mena is affirmed by some of the national critics to have given a new aspect to Castilian poetry. [30] His great work was his "Laberinto," the outlines of whose plan may faintly remind us of that portion of the "Divina Commedia" where Dante resigns himself to the guidance of Beatrice. In like manner the Spanish poet, under the escort of a beautiful personification of Providence, witnesses the apparition of the most eminent individuals, whether of history or fable; and, as they revolve on the wheel of destiny, they give occasion to some animated portraiture, and much dull, pedantic disquisition. In these delineations we now and then meet with a touch of his pencil, which, from its simplicity and vigor, may be called truly *Dantesque*. Indeed, the Castilian Muse never before ventured on so bold a flight; and, notwithstanding the deformity of the general plan, the obsolete barbarisms of the phraseology, its quaintness and pedantry, notwithstanding the cantering dactylic measure in which it is composed, and which to the ear of a foreigner can scarcely be made tolerable, the work abounds in conceptions, nay in whole episodes, of such mingled energy and beauty, as indicate genius of the highest order. In some of his smaller pieces his style assumes a graceful flexibility, too generally denied to his more strained and elaborate efforts. [31]

It will not be necessary to bring under review the minor luminaries of this period. Alfonso de Baena, a converted Jew, secretary of John the Second, compiled the fugitive pieces of more than fifty of these ancient troubadours into a *cancionero*, "for the disport and divertisement of his highness the king, when he should find himself too sorely oppressed with cares of state," a case we may imagine of no rare occurrence. The original manuscript of Baena, transcribed in beautiful characters of the fifteenth century, lies, or did lie until very lately, unheeded in the cemetery of the Escorial, with the dust of many a better worthy. [32] The extracts selected from it by Castro, although occasionally exhibiting some fluent graces with considerable

variety of versification, convey, on the whole, no very high idea of taste or poetic talent. [33].

Indeed, this epoch, as before remarked, was not so much distinguished by uncommon displays of genius, as by its general intellectual movement and the enthusiasm kindled for liberal studies. Thus we find the corporation of Seville granting a hundred *doblas* of gold as the guerdon of a poet who had celebrated in some score of verses the glories of their native city; and appropriating the same sum as an annual premium for a similar performance. [34] It is not often that the productions of a poet laureate have been more liberally recompensed even by royal bounty. But the gifted spirits of that day mistook the road to immortality. Disdaining the untutored simplicity of their predecessors, they sought to rise above them by an ostentation of learning, as well as by a more classical idiom. In the latter particular they succeeded. They much improved the external forms of poetry, and their compositions exhibit a high degree of literary finish, compared with all that preceded them. But their happiest sentiments are frequently involved in such a cloud of metaphor, as to become nearly unintelligible; while they invoke the pagan deities with a shameless prodigality that would scandalize even a French lyric. This cheap display of school-boy erudition, however it may have appalled their own age, has been a principal cause of their comparative oblivion with posterity. How far superior is one touch of nature, as the "Finojosa" or "Querella de Amor," for example, of the marquis of Santillana, to all this farrago of metaphor and mythology!

The impulse, given to Castilian poetry, extended to other departments of elegant literature. Epistolary and historical composition were cultivated with considerable success. The latter, especially, might admit of advantageous comparison with that of any other country in Europe at the same period; [35] and it is remarkable, that, after such early promise, the

modern Spaniards have not been more successful in perfecting a classical prose style.

Enough has been said to give an idea of the state of mental improvement in Castile under John the Second. The Muses, who had found a shelter in his court from the anarchy which reigned abroad, soon fled from its polluted precincts under the reign of his successor Henry the Fourth, whose sordid appetites were incapable of being elevated above the objects of the senses. If we have dwelt somewhat long on a more pleasing picture, it is because our road is now to lead us across a dreary waste exhibiting scarcely a vestige of civilization.

While a small portion of the higher orders of the nation was thus endeavoring to forget the public calamities in the tranquillizing pursuit of letters, and a much larger portion in the indulgence of pleasure, [36] the popular aversion for the minister Luna had been gradually infusing itself into the royal bosom. His too obvious assumption of superiority, even over the monarch who had raised him from the dust, was probably the real though secret cause of this disgust. But the habitual ascendancy of the favorite over his master prevented the latter from disclosing this feeling until it was heightened by an occurrence which sets in a strong light the imbecility of the one and the presumption of the other. John, on the death of his wife, Maria of Aragon, had formed the design of connecting himself with a daughter of the king of France. But the constable, in the mean time, without even the privity of his master, entered into negotiations for his marriage with the princess Isabella, granddaughter of John the First of Portugal; and the monarch, with an unprecedented degree of complaisance, acquiesced in an arrangement professedly repugnant to his own inclinations. [37] By one of those dispensations of Providence, however, which often confound the plans of the wisest, as of the weakest, the column,

which the minister had so artfully raised for his support, served only to crush him.

The new queen, disgusted with his haughty bearing, and probably not much gratified with the subordinate situation to which he had reduced her husband, entered heartily into the feelings of the latter, and indeed contrived to extinguish whatever spark of latent affection for his ancient favorite lurked within his breast. John, yet fearing the overgrown power of the constable too much to encounter him openly, condescended to adopt the dastardly policy of Tiberius on a similar occasion, by caressing the man whom he designed to ruin, and he eventually obtained possession of his person, only by a violation of the royal safe-conduct. The constable's trial was referred to a commission of jurists and privy counsellors, who, after a summary and informal investigation, pronounced on him the sentence of death on a specification of charges either general and indeterminate, or of the most trivial import. "If the king," says Garibay, "had dispensed similar justice to all his nobles, who equally deserved it in those turbulent times, he would have had but few to reign over." [38]

The constable had supported his disgrace, from the first, with an equanimity not to have been expected from his elation in prosperity; and he now received the tidings of his fate with a similar fortitude. As he rode along the streets to the place of execution, clad in the sable livery of an ordinary criminal, and deserted by those who had been reared by his bounty, the populace, who before called so loudly for his disgrace, struck with this astonishing reverse of his brilliant fortunes, were melted into tears. [39] They called to mind the numerous instances of his magnanimity. They reflected, that the ambitious schemes of his rivals had been not a whit less selfish, though less successful, than his own; and that, if his cupidity appeared insatiable, he had dispensed the fruits of it in acts of princely munificence. He himself maintained a serene and even cheerful aspect.

Meeting one of the domestics of Prince Henry, he bade him request the prince "to reward the attachment of his servants with a different guerdon from what his master had assigned to him." As he ascended the scaffold, he surveyed the apparatus of death with composure, and calmly submitted himself to the stroke of the executioner, who, in the savage style of the executions of that day, plunged his knife into the throat of his victim, and deliberately severed his head from his body. A basin, for the reception of alms to defray the expenses of his interment, was placed at one extremity of the scaffold; and his mutilated remains, after having been exposed for several days to the gaze of the populace, were removed, by the brethren of a charitable order, to a place called the hermitage of St. Andrew, appropriated as the cemetery for malefactors. [40]

Such was the tragical end of Alvaro de Luna; a man, who, for more than thirty years, controlled the counsels of the sovereign, or, to speak more properly, was himself the sovereign of Castile. His fate furnishes one of the most memorable lessons in history. It was not lost on his contemporaries; and the marquis of Santillana has made use of it to point the moral of perhaps the most pleasing of his didactic compositions. [41] John did not long survive his favorite's death, which he was seen afterwards to lament even with tears. Indeed, during the whole of the trial he had exhibited the most pitiable agitation, having twice issued and recalled his orders countermanding the constable's execution; and, had it not been for the superior constancy, or vindictive temper of the queen, he would probably have yielded to these impulses of returning affection. [42]

So far from deriving a wholesome warning from experience, John confided the entire direction of his kingdom to individuals not less interested, but possessed of far less enlarged capacities, than the former minister. Penetrated with remorse at the retrospect of his unprofitable life, and filled with melancholy presages of the future, the unhappy prince

lamented to his faithful attendant Cibdareal, on his deathbed, that "he had not been born the son of a mechanic, instead of king of Castile." He died July 21st, 1454, after a reign of eight and forty years, if reign it may be called, which was more properly one protracted minority. John left one child by his first wife, Henry, who succeeded him on the throne; and by his second wife two others, Alfonso, then an infant, and Isabella, afterwards queen of Castile, the subject of the present narrative. She had scarcely reached her fourth year at the time of her father's decease, having been born on the 22d of April, 1451, at Madrigal. The king recommended his younger children to the especial care and protection of their brother Henry, and assigned the town of Cuellar, with its territory and a considerable sum of money, for the maintenance of the Infanta Isabella. [43]

FOOTNOTES

[1] Sempere y Guarinos, *Historia del Luxo, y de las Leyes Suntuarias de España*, (Madrid, 1788,) tom. i. p. 171.

[2] *Crónica de Enrique III.*, edicion de la Academia, (Madrid, 1780,) *passim*.—*Crónica de Juan II.*, (Valencia, 1779,) p. 6.

[3] *Crónica de Alvaro de Luna*, edition de la Academia, (Madrid, 1784,) tit. 3, 5, 68, 74.—Guzman, *Generaciones y Semblanzas*, (Madrid, 1775,) cap. 33, 34.—Abarca, *Reyes de Aragon*, en *Anales Históricos*, (Madrid, 1682,) tom. i. fol. 227.—*Crónica de Juan II.*, *passim*.—He possessed sixty towns and fortresses, and kept three thousand lances constantly in pay. Oviedo, *Quincuagenas*, MS.

[4] Guzman, *Generaciones*, cap. 33.—*Crónica de Don Juan II.*, p. 491, *et alibi*. His complaisance for the favorite, indeed, must be admitted, if we believe Guzman, to have been of a most extraordinary kind. "E lo que con

mayor maravilla se puede decir é oír, que aun en los autos naturales se dió así á la ordenanza del condestable, que seyendo él mozo bien complexionado, é teniendo á la reyna su muger moza y hermosa, si el condestable se lo contradixiese, no iria á dormir á su cama della." Ubi supra.

[5] Marina, Teoría de las Cortes, (Madrid, 1813,) tom. i. cap. 20.—tom. ii. pp. 216, 390, 391.—tom. iii. part. 2, no. 4.—Capmany, Práctica y Estilo de Celebrar Cortes en Aragon, Cataluña y Valencia, (Madrid, 1821,) pp. 234, 235.—Sempere, Histoire des Cortès d'Espagne, (Bordeaux, 1815,) ch. 18, 24.

[6] Several of this prince's laws for redressing the alleged grievances are incorporated in the great code of Philip II., (Recopilacion de las Leyes, (Madrid, 1640,) lib. 6, tit. 7, leyes 5, 7, 2,) which declares, in the most unequivocal language, the right of the commons to be consulted on all important matters. "Porque en los hechos arduos de nuestros reynos es necesario consejo de nuestros subditos, y naturales, *especialmente de los procuradores de las nuestras ciudades, villas, y lugares de los nuestros reynos.*" It was much easier to extort good laws from this monarch, than to enforce them.

[7] Mariana, Historia de España, (Madrid, 1780,) tom. ii. p. 299.

[8] Marina, Teoría, ubi supra.

[9] Capmany, Práctica y Estilo, p. 228.—Sempere, Hist. des Cortès, chap. 19.—Marina, Teoría, part. 1, cap. 16.—In 1656, the city of Palencia was content to repurchase its ancient right of representation from the crown, at an expense of 80,000 ducats.

[10] Capmany, *Práctica y Estilo*, p. 230.—Sempere, *Histoire des Cortès d'Espagne*, chap. 19.

[11] Marina, *Teoría*, tom. i. p. 161.

[12] See the ample collections of Sanchez, "*Poesías Castellanas anteriores al Siglo XV.*" 4 tom. Madrid, 1779-1790.

[13] Guzman, *Generaciones*, cap. 33.—Gomez de Cibdareal, *Centon Epistolario*, (Madrid, 1775,) epist. 20, 49.—Cibdareal has given us a specimen of this royal criticism, which Juan de Mena, the subject of it, was courtier enough to adopt.

[14] Velazquez, *Orígenes de la Poesía Castellana*, (Málaga, 1797,) p. 45.— Sanchez, *Poesías Castellanas*, tom. i. p. 10.—"The *Cancioneros Generales*, in print and in manuscript," says Sanchez, "show the great number of dukes, counts, marquises, and other nobles, who cultivated this art."

[15] He was the grandson, not, as Sanchez supposes (tom. i. p.15), the son, of Alonso de Villena, the first marquis as well as constable created in Castile, descended from James II. of Aragon. (See Dormer, *Enmiendas y Advertencias de Zurita*, (Zaragoza, 1683,) pp. 371-376.) His mother was an illegitimate daughter of Henry II., of Castile. Guzman, *Generaciones*, cap. 28.—Salazar de Mendoza, *Monarquía de España*, (Madrid, 1770,) tom. i. pp. 203, 339.

[16] Guzman, *Generaciones*, cap. 28.—Juan de Mena introduces Villena into his "*Laberinto*," in an agreeable stanza, which has something of the mannerism of Dante.

"Aquel claro padre aquel dulce fuente
aquel que en el castolo monte resuena
es don Enrique Señor de Villena
honrra de España y del siglo presente," etc.

Juan de Mena, Obras, (Alcalá, 1566,) fol. 138.

[17] The recent Castilian translators of Bouterwek's History of Spanish Literature have fallen into an error in imputing the beautiful *cancion* of the "Querella de Amor" to Villena. It was composed by the Marquis of Santillana. (Bouterwek, Historia de la Literatura Española, traducida por Cortina y Hugalde y Mollinedo, (Madrid, 1829,) p. 196, and Sanchez, Poesías Castellanas, tom. i. pp. 38, 143.)

[18] Velazquez, Orígenes de la Poesía Castellana, p. 45.—Bouterwek, Literatura Española, trad. de Cortina y Mollinedo, nota S.

[19] See an abstract of it in Mayans y Siscar, Orígenes de la Lengua Española, (Madrid, 1737,) tom. ii. pp. 321 et seq.

[20] Zurita, Anales de la Corona de Aragon, (Zaragoza, 1669,) tom. iii. p. 227.—Guzman, Generaciones, cap. 28.

[21] Centon Epistolario, epist. 66.—The bishop endeavored to transfer the blame of the conflagration to the king. There can be little doubt, however, that the good father infused the suspicions of necromancy into his master's bosom. "The angels," he says in one of his works, "who guarded Paradise, presented a treatise on magic to one of the posterity of Adam, from a copy of which Villena derived his science." (See Juan de Mena, Obras, fol. 139, glosa.) One would think that such an orthodox source might have justified Villena in the use of it.

[22] Comp. Juan de Mena, Obras, copl. 127, 128; and Nic. Antonio, Bibliotheca Vetus, tom. ii. p. 220.

[23] Pulgar, Claros Varones de Castilla, y Letras, (Madrid, 1755,) tit. 4.—Nic. Antonio, Bibliotheca Vetus, lib. 10, cap. 9.—Quincuagenas de Gonzalo de Oviedo, MS., batalla 1, quinc. 1, dial. 8.

[24] Garcilasso de la Vega, Obras, ed. de Herrera, (1580,) pp. 75, 76—Sanchez, Poesías Castellanas, tom. i. p. 21.—Boscan, Obras, (1543,) fol. 19.—It must be admitted, however, that the attempt was premature, and that it required a riper stage of the language to give a permanent character to the innovation.

[25] See Sanchez, Poesías Castellanas, tom. i. pp. 1-119.—A copious catalogue of the marquis de Santillana's writings is given in the same volume, (pp. 33 et seq.) Several of his poetical pieces are collected in the Cancionero General, (Anvers, 1573,) fol. 34 et seq.

[26] Pulgar, Claros Varones, tit. 4.—Salazar de Mendoza, Monarquía, tom. i. p. 218.—Idem, Orígen de las Dignidades Seglares de Castilla y Leon, (Madrid, 1794,) p. 285.—Oviedo makes the marquis much older, seventy-five years of age, when he died. He left, besides daughters, six sons, who all became the founders of noble and powerful houses. See the whole genealogy, in Oviedo, Quincuagenas, MS., bat. 1, quinc. 1, dial. 8.

[27] "Flor de saber y cabellería." El Laberinto, copla 114.

[28] Nic. Antonio, Bibliotheca Vetus, tom. ii. pp. 265 et seq.

[29] Cibdareal, Centon Epistolario, epist. 47, 49.

[30] See Velazquez, Poesía Castellana, p. 49.

[31] A collection of them is incorporated in the Cancionero General, fol. 41 et seq.

[32] Castro, Biblioteca Española, (Madrid, 1781,) tom. i, pp. 266, 267.—This interesting document, the most primitive of all the Spanish *cancioneros*, notwithstanding its local position in the library is specified by Castro with great precision, eluded the search of the industrious translators of Bouterwek, who think it may have disappeared during the French invasion. *Literatura Española*, trad. de Cortina y Mollinedo, p. 205, nota Hh.

[33] See these collected in Castro, Biblioteca Española, tom. ii. p. 265 et seq.—The veneration entertained for the poetic art in that day may be conceived from Baena's whimsical prologue. "Poetry," he says, "or the gay science, is a very subtle and delightful composition. It demands in him, who would hope to excel in it, a curious invention, a sane judgment, a various scholarship, familiarity with courts and public affairs, high birth and breeding, a temperate, courteous, and liberal disposition, and, in fine, honey, sugar, salt, freedom, and hilarity in his discourse." p. 268.

[34] Castro, Biblioteca Española, tom. i. p. 273.

[35] Perhaps the most conspicuous of these historical compositions for mere literary execution is the Chronicle of Alvaro de Luna, to which I have had occasion to refer, edited in 1784, by Flores, the diligent secretary of the Royal Academy of History. He justly commends it for the purity and harmony of its diction. The loyalty of the chronicler seduces him sometimes into a swell of panegyric, which may he thought to savor too strongly of the current defect of Castilian prose; but it more frequently imparts to his narrative a generous glow of sentiment, raising it far above the lifeless details of ordinary history, and occasionally even to positive eloquence.

Nic. Antonio, in the tenth book of his great repository, has assembled the biographical and bibliographical notices of the various Spanish authors of the fifteenth century, whose labors diffused a glimmering of light over their own age, which has become faint in the superior illumination of the succeeding.

[36] Sempere, in his *Historia del Luxo*, (tom. i. p. 177,) has published an extract from an unprinted manuscript of the celebrated marquis of Villena, entitled *Triunfo de las Doñas*, in which, adverting to the *petits-maîtres* of his time, he recapitulates the fashionable arts employed by them for the embellishment of the person, with a degree of minuteness which might edify a modern *dandy*.

[37] *Crónica de Juan II.*, p. 499.—Faria y Sousa, *Europa Portuguesa*, (1679,) tom. ii. pp. 335, 372.

[38] *Crónica de Alvaro de Luna*, tit. 128.—*Crónica de Juan II.*, pp. 457, 460, 572.—Abarca, *Reyes de Aragon*, tom. ii. fol. 227, 228.—Garibay, *Compendio Historial de las Crónicas de España*, (Barcelona, 1628,) tom. ii. p. 493.

[39] *Crónica de Alvaro de Luna*, tit. 128.—What a contrast to all this is afforded by the vivid portrait, sketched by John de Mena, of the constable in the noontide of his glory.

"Este caualga sobre la fortuna
y doma su cuello con asperas riendas
y aunque del tenga tan muchas de prendas
ella non le osa tocar de ninguna," etc.

Laberinto, coplas 235 et seq.

[40] Cibdareal, Centon Epistolario, ep. 103.—Crónica de Juan II., p. 564.
—Crónica de Alvaro de Luna, tit. 128, and Apend. p. 458.

[41] Entitled "Doctrinal de Privados." See the Cancionero General, fol. 37 et seq.—In the following stanza, the constable is made to moralize with good effect on the instability of worldly grandeur.

"Quo se hizo la moneda que guarde para mis daños tantos tiempos
tantos años plata joyas oro y seda y de todo no me queda sine este
cadahalso; mundo malo mundo falso no ay quien contigo pueda."

Manrique has the same sentiments in his exquisite "Coplas." I give Longfellow's version, as spirited as it is literal.

"Spain's haughty Constable,—the great
And gallant Master,—cruel fate
Stripped him of all.
Breathe not a whisper of his pride,
He on the gloomy scaffold died,
Ignoble fall!
The countless treasures of his care,
Hamlets and villas green and fair,
His mighty power,—
What were they all but grief and shame,
Tears and a broken heart,—when came.
The parting hour!"

Stanza 21.

[42] Cibdareal, Centon Epistolario, ep. 103.—Crónica de Alvaro de Luna, tit. 128.

[43] Crónica de Juan II., p. 576.—Cibdareal, Centon Epistolario, epist. 105.

There has been considerable discrepancy, even among cotemporary writers, both as to the place and the epoch of Isabella's birth, amounting, as regards the latter, to nearly two years. I have adopted the conclusion of Señor Clemencin, formed from a careful collation of the various authorities, in the sixth volume of the *Memorias de la Real Academia de Historia*, (Madrid, 1821,) Ilust. 1, pp. 56-60. Isabella was descended both on the father's and mother's side from the famous John of Gaunt, duke of Lancaster. See Florez, *Memorias de las Reynas Cathólicas*, (2d ed. Madrid, 1770,) tom. ii. pp. 743, 787.

CHAPTER II.

CONDITION OF ARAGON DURING THE MINORITY OF FERDINAND.—REIGN OF JOHN II., OF ARAGON.

1452-1472.

John of Aragon.—Difficulties with his Son Carlos.—Birth of Ferdinand.—Insurrection of Catalonia.—Death of Carlos.—His Character.—Tragical Story of Blanche.—Young Ferdinand besieged by the Catalans.—Treaty between France and Aragon.—Distress and Embarrassments of John.—Siege and Surrender of Barcelona.

We must now transport the reader to Aragon, in order to take a view of the extraordinary circumstances, which opened the way for Ferdinand's succession in that kingdom. The throne, which had become vacant by the death of Martin, in 1410, was awarded by the committee of judges to whom the nation had referred the great question of the succession, to Ferdinand, regent of Castile during the minority of his nephew, John the Second; and thus the sceptre, after having for more than two centuries descended in the family of Barcelona, was transferred to the same bastard branch of Trastamara, that ruled over the Castilian monarchy. [1] Ferdinand the First was succeeded after a brief reign by his son Alfonso the Fifth, whose personal history belongs less to Aragon than to Naples, which kingdom he acquired by his own prowess, and where he established his residence,

attracted, no doubt, by the superior amenity of the climate and the higher intellectual culture, as well as the pliant temper of the people, far more grateful to the monarch than the sturdy independence of his own countrymen.

During his long absence, the government of his hereditary domains devolved on his brother John, as his lieutenant-general in Aragon. [2] This prince had married Blanche, widow of Martin, king of Sicily, and daughter of Charles the Third, of Navarre. By her he had three children; Carlos, prince of Viana; [3] Blanche, married to and afterwards repudiated by Henry the Fourth, of Castile; [4] and Eleanor, who espoused a French noble, Gaston, count of Foix. On the demise of the elder Blanche, the crown of Navarre rightfully belonged to her son, the prince of Viana, conformably to a stipulation in her marriage contract, that, on the event of her death, the eldest heir male, and, in default of sons, female, should inherit the kingdom, to the exclusion of her husband. [5] This provision, which had been confirmed by her father, Charles the Third, in his testament, was also recognized in her own, accompanied however with a request, that her son Carlos, then twenty-one years of age, would, before assuming the sovereignty, solicit "the good will and approbation of his father." [6] Whether this approbation was withheld, or whether it was ever solicited, does not appear. It seems probable, however, that Carlos, perceiving no disposition in his father to relinquish the rank and nominal title of king of Navarre, was willing he should retain them, so long as he himself should be allowed to exercise the actual rights of sovereignty; which indeed he did, as lieutenant-general or governor of the kingdom, at the time of his mother's decease, and for some years after. [7]

In 1447, John of Aragon contracted a second alliance with Joan Henriquez, of the blood royal of Castile, and daughter of Don Frederic Henriquez, admiral of that kingdom; [8] a woman considerably younger

than himself, of consummate address, intrepid spirit, and unprincipled ambition. Some years after this union, John sent his wife into Navarre, with authority to divide with his son Carlos the administration of the government there. This encroachment on his rights, for such Carlos reasonably deemed it, was not mitigated by the deportment of the young queen, who displayed all the insolence of sudden elevation, and who from the first seems to have regarded the prince with the malevolent eye of a step-mother.

Navarre was at that time divided by two potent factions, styled, from their ancient leaders, Beaumonts and Agramonts; whose hostility, originating in a personal feud, had continued long after its original cause had become extinct. [9]

The prince of Viana was intimately connected with some of the principal partisans of the Beaumont faction, who heightened by their suggestions the indignation to which his naturally gentle temper had been roused by the usurpation of Joan, and who even called on him to assume openly, and in defiance of his father, the sovereignty which of right belonged to him. The emissaries of Castile, too, eagerly seized this occasion of retaliating on John his interference in the domestic concerns of that monarchy, by fanning the spark of discord into a flame. The Agramonts, on the other hand, induced rather by hostility to their political adversaries than to the prince of Viana, vehemently espoused the cause of the queen. In this revival of half-buried animosities, fresh causes of disgust were multiplied, and matters soon came to the worst extremity. The queen, who had retired to Estella, was besieged there by the forces of the prince. The king, her husband, on receiving intelligence of this, instantly marched to her relief; and the father and son confronted each other at the head of their respective armies near the town of Aybar. [10] The unnatural position, in which they thus found themselves, seems to have sobered their minds, and to have opened the way to an accommodation, the terms of which were actually arranged, when the long-

smothered rancor of the ancient factions of Navarre thus brought in martial array against each other, refusing all control, precipitated them into an engagement. The royal forces were inferior in number, but superior in discipline, to those of the prince, who, after a well contested action, saw his own party entirely discomfited, and himself a prisoner. [11]

Some months before this event, Queen Joan had been delivered of a son, afterwards so famous as Ferdinand the Catholic; whose humble prospects, at the time of his birth, as a younger brother, afforded a striking contrast with the splendid destiny which eventually awaited him. This auspicious event occurred in the little town of Sos, in Aragon, on the 10th of March, 1452; and, as it was nearly contemporary with the capture of Constantinople, is regarded by Garibay to have been providentially assigned to this period, as affording, in a religious view, an ample counterpoise to the loss of the capital of Christendom. [12]

The demonstrations of satisfaction, exhibited by John and his court on this occasion, contrasted strangely with the stern severity with which he continued to visit the offences of his elder offspring. It was not till after many months of captivity that the king, in deference to public opinion rather than the movements of his own heart, was induced to release his son, on conditions, however, so illiberal (his indisputable claim to Navarre not being even touched upon) as to afford no reasonable basis of reconciliation. The young prince accordingly, on his return to Navarre, became again involved in the factions which desolated that unhappy kingdom, and, after an ineffectual struggle against his enemies, resolved to seek an asylum at the court of his uncle Alfonso the Fifth, of Naples, and to refer to him the final arbitration of his differences with his father. [13]

On his passage through France and the various courts of Italy, he was received with the attentions due to his rank, and still more to his personal

character and misfortunes. Nor was he disappointed in the sympathy and favorable reception, which he had anticipated from his uncle. Assured of protection from so high a quarter, Carlos might now reasonably flatter himself with the restitution of his legitimate rights, when these bright prospects were suddenly overcast by the death of Alfonso, who expired at Naples of a fever in the month of May, 1458, bequeathing his hereditary dominions of Spain, Sicily, and Sardinia to his brother John, and his kingdom of Naples to his illegitimate son Ferdinand. [14]

The frank and courteous manners of Carlos had won so powerfully on the affections of the Neapolitans, who distrusted the dark, ambiguous character of Ferdinand, Alfonso's heir, that a large party eagerly pressed the prince to assert his title to the vacant throne, assuring him of a general support from the people. But Carlos, from motives of prudence or magnanimity, declined engaging in this new contest, [15] and passed over to Sicily, whence he resolved to solicit a final reconciliation with his father. He was received with much kindness by the Sicilians, who, preserving a grateful recollection of the beneficent sway of his mother Blanche, when queen of that island, readily transferred to the son their ancient attachment to the parent. An assembly of the states voted a liberal supply for his present exigencies, and even urged him, if we are to credit the Catalan ambassador at the court of Castile, to assume the sovereignty of the island. [16] Carlos, however, far from entertaining so rash an ambition, seems to have been willing to seclude himself from public observation. He passed the greater portion of his time at a convent of Benedictine friars not far from Messina, where, in the society of learned men, and with the facilities of an extensive library, he endeavored to recall the happier hours of youth in the pursuit of his favorite studies of philosophy and history. [17]

In the mean while, John, now king of Aragon and its dependencies, alarmed by the reports of his son's popularity in Sicily, became as solicitous

for the security of his authority there, as he had before been for it in Navarre. He accordingly sought to soothe the mind of the prince by the fairest professions, and to allure him back to Spain by the prospect of an effectual reconciliation. Carlos, believing what he most earnestly wished, in opposition to the advice of his Sicilian counsellors, embarked for Majorca, and, after some preliminary negotiations, crossed over to the coast of Barcelona. Postponing, for fear of giving offence to his father, his entrance into that city, which, indignant at his persecution, had made the most brilliant preparations for his reception, he proceeded to Igualada, where an interview took place between him and the king and queen, in which he conducted himself with unfeigned humility and penitence, reciprocated on their part by the most consummate dissimulation. [18]

All parties now confided in the stability of a pacification so anxiously desired, and effected with such apparent cordiality. It was expected that John would hasten to acknowledge his son's title as heir apparent to the crown of Aragon, and convene an assembly of the states to tender him the customary oath of allegiance. But nothing was further from the monarch's intention. He indeed summoned the Aragonese cortes at Fraga for the purpose of receiving their homage to himself; but he expressly refused their request touching a similar ceremony to the prince of Viana; and he openly rebuked the Catalans for presuming to address him as the successor to the crown. [19]

In this unnatural procedure it was easy to discern the influence of the queen. In addition to her original causes of aversion to Carlos, she regarded him with hatred as the insuperable obstacle to her own child Ferdinand's advancement. Even the affection of John seemed to be now wholly transferred from the offspring of his first to that of his second marriage; and, as the queen's influence over him was unbounded, she found it easy by

artful suggestions to put a dark construction on every action of Carlos, and to close up every avenue of returning affection within his bosom.

Convinced at length of the hopeless alienation of his father, the prince of Viana turned his attention to other quarters, whence he might obtain support, and eagerly entered into a negotiation, which had been opened with him on the part of Henry the Fourth, of Castile, for a union with his sister the princess Isabella. This was coming in direct collision with the favorite scheme of his parents. The marriage of Isabella with the young Ferdinand, which indeed, from the parity of their ages, was a much more suitable connection than that with Carlos, had long been the darling object of their policy, and they resolved to effect it in the face of every obstacle. In conformity with this purpose, John invited the prince of Viana to attend him at Lerida, where he was then holding the cortes of Catalonia. The latter fondly, and indeed foolishly, after his manifold experience to the contrary, confiding in the relenting disposition of his father, hastened to obey the summons, in expectation of being publicly acknowledged as his heir in the assembly of the states. After a brief interview he was arrested, and his person placed in strict confinement. [20]

The intelligence of this perfidious procedure diffused general consternation among all classes. They understood too well the artifices of the queen and the vindictive temper of the king, not to feel the most serious apprehensions, not only for the liberty, but for the life of their prisoner. The cortes of Lerida, which, though dissolved on that very day, had not yet separated, sent an embassy to John, requesting to know the nature of the crimes imputed to his son. The permanent deputation of Aragon, and a delegation from the council of Barcelona, waited on him for a similar purpose, remonstrating at the same time against any violent and unconstitutional proceeding. To all these John returned a cold, evasive

answer, darkly intimating a suspicion of conspiracy by his son against his life, and reserving to himself the punishment of the offense. [21]

No sooner was the result of their mission communicated, than the whole kingdom was thrown into a ferment. The high-spirited Catalans rose in arms, almost to a man. The royal governor, after a fruitless attempt to escape, was seized and imprisoned in Barcelona. Troops were levied, and placed under the command of experienced officers of the highest rank. The heated populace, outstripping the tardy movement of military operations, marched forward to Lerida in order to get possession of the royal person. The king, who had seasonable notice of this, displayed his wonted presence of mind. He ordered supper to be prepared for him at the usual hour, but, on the approach of night, made his escape on horseback with one or two attendants only, on the road to Fraga, a town within the territory of Aragon; while the mob, traversing the streets of Lerida, and finding little resistance at the gate, burst into the palace and ransacked every corner of it, piercing, in their fury, even the curtains and beds with their swords and lances. [22]

The Catalan army, ascertaining the route of the royal fugitive, marched directly on Fraga, and arrived so promptly that John, with his wife, and the deputies of the Aragonese cortes assembled there, had barely time to make their escape on the road to Saragossa, while the insurgents poured into the city from the opposite quarter. The person of Carlos, in the mean time, was secured in the inaccessible fortress of Morella, situated in a mountainous district on the confines of Valencia. John, on halting at Saragossa, endeavored to assemble an Aragonese force capable of resisting the Catalan rebels. But the flame of insurrection had spread throughout Aragon, Valencia, and Navarre, and was speedily communicated to his transmarine possessions of Sardinia and Sicily. The king of Castile supported Carlos at the same time by an irruption into Navarre, and his partisans, the

Beaumonts, co-operated with these movements by a descent on Aragon. [23]

John, alarmed at the tempest which his precipitate conduct had roused, at length saw the necessity of releasing his prisoner; and, as the queen had incurred general odium as the chief instigator of his persecution, he affected to do this in consequence of her interposition. As Carlos with his mother-in-law traversed the country on their way to Barcelona, he was everywhere greeted, by the inhabitants of the villages thronging out to meet him, with the most touching enthusiasm. The queen, however, having been informed by the magistrates that her presence would not be permitted in the capital, deemed it prudent to remain at Villa Franca, about twenty miles distant; while the prince, entering Barcelona, was welcomed with the triumphant acclamation due to a conqueror returning from a campaign of victories. [24]

The conditions on which the Catalans proposed to resume their allegiance to their sovereign were sufficiently humiliating. They insisted not only on his public acknowledgment of Carlos as his rightful heir and successor, with the office, conferred on him for life, of lieutenant-general of Catalonia, but on an obligation on his own part, that he would never enter the province without their express permission. Such was John's extremity, that he not only accepted these unpalatable conditions, but did it with affected cheerfulness.

Fortune seemed now weary of persecution, and Carlos, happy in the attachment of a brave and powerful people, appeared at length to have reached a haven of permanent security. But at this crisis he fell ill of a fever, or, as some historians insinuate, of a disorder occasioned by poison administered during his imprisonment; a fact, which, although unsupported by positive evidence, seems, notwithstanding its atrocity, to be no wise improbable, considering the character of the parties implicated. He expired

on the 23d of September, 1461, in the forty-first year of his age, bequeathing his title to the crown of Navarre, in conformity with the original marriage contract of his parents, to his sister Blanche and her posterity. [25]

Thus in the prime of life, and at the moment when he seemed to have triumphed over the malice of his enemies, died the prince of Viana, whose character, conspicuous for many virtues, has become still more so for his misfortunes. His first act of rebellion, if such, considering his legitimate pretensions to the crown, it can be called, was severely requited by his subsequent calamities; while the vindictive and persecuting temper of his parents excited a very general commiseration in his behalf, and brought him more effectual support, than could have been derived from his own merits or the justice of his cause. The character of Don Carlos has been portrayed by Lucio Marineo, who, as he wrote an account of these transactions by the command of Ferdinand the Catholic, cannot be suspected of any undue partiality in favor of the prince of Viana. "Such," says he, "were his temperance and moderation, such the excellence of his breeding, the purity of his life, his liberality and munificence, and such the sweetness of his demeanor, that no one thing seemed to be wanting in him which belongs to a true and perfect prince." [26] He is described by another contemporary, as "in person somewhat above the middle stature, having a thin visage, with a serene and modest expression of countenance, and withal somewhat inclined to melancholy." [27] He was a considerable proficient in music, painting, and several mechanic arts. He frequently amused himself with poetical composition, and was the intimate friend of some of the most eminent bards of his time. But he was above all devoted to the study of philosophy and history. He made a version of Aristotle's Ethics into the vernacular, which was first printed nearly fifty years after his death, at Saragossa, in 1509. He compiled also a Chronicle of Navarre from the earliest period to his own times, which, although suffered to remain in

manuscript, has been liberally used and cited by the Spanish antiquaries, Garibay, Blancas, and others. [28] His natural taste and his habits fitted him much better for the quiet enjoyment of letters, than for the tumultuous scenes in which it was his misfortune to be involved, and in which he was no match for enemies grown gray in the field and in the intrigues of the cabinet. But, if his devotion to learning, so rare in his own age, and so very rare among princes in any age, was unpropitious to his success on the busy theatre on which he was engaged, it must surely elevate his character in the estimation of an enlightened posterity.

The tragedy did not terminate with the death of Carlos. His sister Blanche, notwithstanding the inoffensive gentleness of her demeanor, had long been involved, by her adhesion to her unfortunate brother, in a similar proscription with him. The succession to Navarre having now devolved on her, she became tenfold an object of jealousy both to her father, the present possessor of that kingdom, and to her sister Eleanor, countess of Foix, to whom the reversion of it had been promised by John, on his own decease. The son of this lady, Gaston de Foix, had lately married a sister of Louis the Eleventh, of France; and, in a treaty subsequently contracted between that monarch and the king of Aragon, it was stipulated that Blanche should be delivered into the custody of the countess of Foix, as surety for the succession of the latter, and of her posterity, to the crown of Navarre. [29]

Conformably to this provision, John endeavored to persuade the princess Blanche to accompany him into France, under the pretext of forming an alliance for her with Louis's brother, the duke of Berri. The unfortunate lady, comprehending too well her father's real purpose, besought him with the most piteous entreaties not to deliver her into the hands of her enemies; but, closing his heart against all natural affection, he caused her to be torn from her residence at Olit, in the heart of her own dominions, and forcibly transported across the mountains into those of the count of Foix. On

arriving at St. Jean Pied de Port, a little town on the French side of the Pyrenees, being convinced that she had nothing further to hope from human succor, she made a formal renunciation of her right to Navarre in favor of her cousin and former husband, Henry the Fourth, of Castile, who had uniformly supported the cause of her brother Carlos. Henry, though debased by sensual indulgence, was naturally of a gentle disposition, and had never treated her personally with unkindness. In a letter, which she now addressed to him, and which, says a Spanish historian, cannot be read, after the lapse of so many years, without affecting the most insensible heart, [30] she reminded him of the dawn of happiness which she had enjoyed under his protection, of his early engagements to her, and of her subsequent calamities; and, anticipating the gloomy destiny which awaited her, she settled on him her inheritance of Navarre, to the entire exclusion of her intended assassins, the count and countess of Foix. [31]

On the same day, the last of April, she was delivered over to one of their emissaries, who conducted her to the castle of Ortes in Bearne, where, after languishing in dreadful suspense for nearly two years, she was poisoned by the command of her sister. [32] The retribution of Providence not unfrequently overtakes the guilty even in this world. The countess survived her father to reign in Navarre only three short weeks; while the crown was ravished from her posterity for ever by that very Ferdinand, whose elevation had been the object to his parents of so much solicitude and so many crimes.

Within a fortnight after the decease of Carlos, the customary oaths of allegiance, so pertinaciously withheld from that unfortunate prince, were tendered by the Aragonese deputation, at Calatayud, to his brother Ferdinand, then only ten years of age, as heir apparent of the monarchy; after which he was conducted by his mother into Catalonia, in order to receive the more doubtful homage of that province. The extremities of

Catalonia at this time seemed to be in perfect repose, but the capital was still agitated by secret discontent. The ghost of Carlos was seen stalking by night through the streets of Barcelona, bewailing in piteous accents his untimely end, and invoking vengeance on his unnatural murderers. The manifold miracles wrought at his tomb soon gained him the reputation of a saint, and his image received the devotional honors reserved for such as have been duly canonized by the church. [33]

The revolutionary spirit of the Barcelonians, kept alive by the recollection of past injury, as well as by the apprehensions of future vengeance, should John succeed in reestablishing his authority over them, soon became so alarming, that the queen, whose consummate address, however, had first accomplished the object of her visit, found it advisable to withdraw from the capital; and she sought refuge, with her son and such few adherents as still remained faithful to them, in the fortified city of Gerona, about fifty miles north of Barcelona.

Hither, however, she was speedily pursued by the Catalan militia, embodied under the command of their ancient leader Roger, count of Pallas, and eager to regain the prize which they had so inadvertently lost. The city was quickly entered, but the queen, with her handful of followers, had retreated to a tower belonging to the principal church in the place, which, as was very frequent in Spain, in those wild times, was so strongly fortified as to be capable of maintaining a formidable resistance. To oppose this, a wooden fortress of the same height was constructed by the assailants, and planted with lombards and other pieces of artillery then in use, which kept up an unintermitting discharge of stone bullets on the little garrison. [34] The Catalans also succeeded in running a mine beneath the fortress, through which a considerable body of troops penetrated into it, when, their premature cries of exultation having discovered them to the besieged, they were repulsed, after a desperate struggle, with great slaughter. The queen

displayed the most intrepid spirit in the midst of these alarming scenes; unappalled by the sense of her own danger and that of her child, and by the dismal lamentations of the females by whom she was surrounded, she visited every part of the works in person, cheering her defenders by her presence and dauntless resolution. Such were the stormy and disastrous scenes in which the youthful Ferdinand commenced a career, whose subsequent prosperity was destined to be checkered by scarcely a reverse of fortune. [35]

In the mean while, John, having in vain attempted to penetrate through Catalonia to the relief of his wife, effected this by the co-operation of his French ally, Louis the Eleventh. That monarch, with his usual insidious policy, had covertly despatched an envoy to Barcelona on the death of Carlos, assuring the Catalans of his protection, should they still continue averse to a reconciliation with their own sovereign. These offers were but coldly received; and Louis found it more for his interest to accept the propositions made to him by the king of Aragon himself, which subsequently led to most important consequences. By three several treaties, of the 3d, 21st, and 23d of May, 1462, it was stipulated, that Louis should furnish his ally with seven hundred lances and a proportionate number of archers and artillery during the war with Barcelona, to be indemnified by the payment of two hundred thousand gold crowns within one year after the reduction of that city; as security for which the counties of Roussillon and Cerdagne were pledged by John, with the cession of their revenues to the French king, until such time as the original debt should be redeemed. In this transaction both monarchs manifested their usual policy; Louis believing that this temporary mortgage would become a permanent alienation, from John's inability to discharge it; while the latter anticipated, as the event showed, with more justice, that the aversion of the inhabitants to the dismemberment of their country from the Aragonese monarchy would baffle every attempt on the part of the French to occupy it permanently. [36]

In pursuance of these arrangements, seven hundred French lances with a considerable body of archers and artillery [37] crossed the mountains, and, rapidly advancing on Gerona, compelled the insurgent army to raise the siege, and to decamp with such precipitation as to leave their cannon in the hands of the royalists. The Catalans now threw aside the thin veil, with which they had hitherto covered their proceedings. The authorities of the principality, established in Barcelona, publicly renounced their allegiance to King John and his son Ferdinand, and proclaimed them enemies of the republic. Writings at the same time were circulated, denouncing from scriptural authority, as well as natural reason, the doctrine of legitimacy in the broadest terms, and insisting that the Aragonese monarchs, far from being absolute, might be lawfully deposed for an infringement of the liberties of the nation. "The good of the commonwealth," it was said, "must always be considered paramount to that of the prince." Extraordinary doctrines these for the age in which they were promulged, affording a still more extraordinary contrast with those which have been since familiar in that unhappy country! [38]

The government then enforced levies of all such as were above the age of fourteen, and, distrusting the sufficiency of its own resources, offered the sovereignty of the principality to Henry the Fourth, of Castile. The court of Aragon, however, had so successfully insinuated its influence into the council of this imbecile monarch, that he was not permitted to afford the Catalans any effectual support; and, as he abandoned their cause altogether before the expiration of the year, [39] the crown was offered to Don Pedro, constable of Portugal, a descendant of the ancient house of Barcelona. In the mean while, the old king of Aragon, attended by his youthful son, had made himself master, with his characteristic activity, of considerable acquisitions in the revolted territory, successively reducing Lerida, [40] Cervera, Amposta, [41] Tortosa, and the most important places in the south of Catalonia. Many of these places were strongly fortified, and most of

them defended with a resolution which cost the conqueror a prodigious sacrifice of time and money. John, like Philip of Macedon, made use of gold even more than arms, for the reduction of his enemies; and, though he indulged in occasional acts of resentment, his general treatment of those who submitted was as liberal as it was politic. His competitor, Don Pedro, had brought little foreign aid to the support of his enterprise; he had failed altogether in conciliating the attachment of his new subjects; and, as the operations of the war had been conducted on his part in the most languid manner, the whole of the principality seemed destined soon to relapse under the dominion of its ancient master. At this juncture the Portuguese prince fell ill of a fever, of which he died on the 29th of June, 1466. This event, which seemed likely to lead to a termination of the war, proved ultimately the cause of its protraction. [42]

It appeared, however, to present a favorable opportunity to John for opening a negotiation with the insurgents. But, so resolute were they in maintaining their independence, that the council of Barcelona condemned two of the principal citizens, suspected of defection from the cause, to be publicly executed; it refused moreover to admit an envoy from the Aragonese cortes within the city, and caused the despatches, with which he was intrusted by that body, to be torn in pieces before his face.

The Catalans then proceeded to elect René le Bon, as he was styled, of Anjou, to the vacant throne, brother of one of the original competitors for the crown of Aragon on the demise of Martin; whose cognomen of "Good" is indicative of a sway far more salutary to his subjects than the more coveted and imposing title of Great. [43] This titular sovereign of half a dozen empires, in which he did not actually possess a rood of land, was too far advanced in years to assume this perilous enterprise himself; and he accordingly intrusted it to his son John, duke of Calabria and Lorraine, who, in his romantic expeditions in southern Italy, had acquired a reputation for

courtesy and knightly prowess, inferior to none other of his time. [44] Crowds of adventurers flocked to the standard of a leader, whose ample inheritance of pretensions had made him familiar with war from his earliest boyhood; and he soon found himself at the head of eight thousand effective troops. Louis the Eleventh, although not directly aiding his enterprise with supplies of men or money, was willing so far to countenance it, as to open a passage for him through the mountain fastnesses of Roussillon, then in his keeping, and thus enable him to descend with his whole army at once on the northern borders of Catalonia. [45]

The king of Aragon could oppose no force capable of resisting this formidable army. His exchequer, always low, was completely exhausted by the extraordinary efforts, which he had made in the late campaigns; and, as the king of France, either disgusted with the long protraction of the war, or from secret good-will to the enterprise of his feudal subject, withheld from King John the stipulated subsidies, the latter monarch found himself unable, with every expedient of loan and exaction, to raise sufficient money to pay his troops, or to supply his magazines. In addition to this, he was now involved in a dispute with the count and countess of Foix, who, eager to anticipate the possession of Navarre, which had been guaranteed to them on their father's decease, threatened a similar rebellion, though on much less justifiable pretences, to that which he had just experienced from Don Carlos. To crown the whole of John's calamities, his eyesight, which had been impaired by exposure and protracted sufferings during the winter siege of Amposta, now failed him altogether. [46]

In this extremity, his intrepid wife, putting herself at the head of such forces as she could collect, passed by water to the eastern shores of Catalonia, besieging Rosas in person, and checking the operations of the enemy by the capture of several inferior places; while Prince Ferdinand, effecting a junction with her before Gerona, compelled the duke of Lorraine

to abandon the siege of that important city. Ferdinand's ardor, however, had nearly proved fatal to him; as, in an accidental encounter with a more numerous party of the enemy, his jaded horse would infallibly have betrayed him into their hands, had it not been for the devotion of his officers, several of whom, throwing themselves between him and his pursuers, enabled him to escape by the sacrifice of their own liberty.

These ineffectual struggles could not turn the tide of fortune. The duke of Lorraine succeeded in this and the two following campaigns in making himself master of all the rich district of Ampurdan, northeast of Barcelona. In the capital itself, his truly princely qualities and his popular address secured him the most unbounded influence. Such was the enthusiasm for his person, that, when he rode abroad, the people thronged around him, embracing his knees, the trappings of his steed, and even the animal himself, in their extravagance; while the ladies, it is said, pawned their rings, necklaces, and other ornaments of their attire, in order to defray the expenses of the war. [47]

King John, in the mean while, was draining the cup of bitterness to the dregs. In the winter of 1468, his queen, Joan Henriquez, fell a victim to a painful disorder, which had been secretly corroding her constitution for a number of years. In many respects, she was the most remarkable woman of her time. She took an active part in the politics of her husband, and may be even said to have given them a direction. She conducted several important diplomatic negotiations to a happy issue, and, what was more uncommon in her sex, displayed considerable capacity for military affairs. Her persecution of her step-son, Carlos, has left a deep stain on her memory. It was the cause of all her husband's subsequent misfortunes. Her invincible spirit, however, and the resources of her genius, supplied him with the best means of surmounting many of the difficulties in which she had involved

him, and her loss at this crisis seemed to leave him at once without solace or support. [48]

At this period, he was further embarrassed, as will appear in the ensuing chapter, by negotiations for Ferdinand's marriage, which was to deprive him, in a great measure, of his son's co-operation in the struggle with his subjects, and which, as he lamented, while he had scarcely three hundred *enríques* in his coffers, called on him for additional disbursements.

As the darkest hour, however, is commonly said to precede the dawning, so light now seemed to break upon the affairs of John. A physician in Lerida, of the Hebrew race, which monopolized at that time almost all the medical science in Spain, persuaded the king to submit to the then unusual operation of couching, and succeeded in restoring sight to one of his eyes. As the Jew, after the fashion of the Arabs, debased his real science with astrology, he refused to operate on the other eye, since the planets, he said, wore a malignant aspect. But John's rugged nature was insensible to the timorous superstitions of his age, and he compelled the physician to repeat his experiment, which in the end proved perfectly successful. Thus restored to his natural faculties, the octogenarian chief, for such he might now almost be called, regained his wonted elasticity, and prepared to resume offensive operations against the enemy with all his accustomed energy. [49] Heaven, too, as if taking compassion on his accumulated misfortunes, now removed the principal obstacle to his success by the death of the duke of Lorraine, who was summoned from the theatre of his short-lived triumphs on the 16th of December, 1469. The Barcelonians were thrown into the greatest consternation by his death, imputed, as usual, though without apparent foundation, to poison; and their respect for his memory was attested by the honors no less than royal, which they paid to his remains. His body, sumptuously attired, with his victorious sword by his side, was paraded in solemn procession through the illuminated streets of the city,

and, after lying nine days in state, was deposited amid the lamentations of the people in the sepulchre of the sovereigns of Catalonia. [50]

As the father of the deceased prince was too old, and his children too young, to give effectual aid to their cause, the Catalans might be now said to be again without a leader. But their spirit was unbroken, and with the same resolution in which they refused submission more than two centuries after, in 1714, when the combined forces of France and Spain were at the gates of the capital, they rejected the conciliatory advances made them anew by John. That monarch, however, having succeeded by extraordinary efforts in assembling a competent force, was proceeding with his usual alacrity in the reduction of such places in the eastern quarter of Catalonia as had revolted to the enemy, while at the same time he instituted a rigorous blockade of Barcelona by sea and land. The fortifications were strong, and the king was unwilling to expose so fair a city to the devastating horrors of a storm. The inhabitants made one vigorous effort in a sally against the royal forces; but the civic militia were soon broken, and the loss of four thousand men, killed and prisoners, admonished them of their inability to cope with the veterans of Aragon. [51]

At length, reduced to the last extremity, they consented to enter into negotiations, which were concluded by a treaty equally honorable to both parties. It was stipulated, that Barcelona should retain all its ancient privileges and rights of jurisdiction, and, with some exceptions, its large territorial possessions. A general amnesty was to be granted for offences. The foreign mercenaries were to be allowed to depart in safety; and such of the natives, as should refuse to renew their allegiance to their ancient sovereign within a year, might have the liberty of removing with their effects wherever they would. One provision may be thought somewhat singular, after what had occurred; it was agreed that the king should cause

the Barcelonians to be publicly proclaimed, throughout all his dominions, good, faithful, and loyal subjects; which was accordingly done!

The king, after the adjustment of the preliminaries, "declining," says a contemporary, "the triumphal car which had been prepared for him, made his entrance into the city by the gate of St. Anthony, mounted on a white charger; and, as he rode along the principal streets, the sight of so many pallid countenances and emaciated figures, bespeaking the extremity of famine, smote his heart with sorrow." He then proceeded to the hall of the great palace, and on the 22d of December, 1472, solemnly swore there to respect the constitution and laws of Catalonia. [52]

Thus ended this long, disastrous civil war, the fruit of parental injustice and oppression, which had nearly cost the king of Aragon the fairest portion of his dominions; which devoted to disquietude and disappointment more than ten years of life, at a period when repose is most grateful; and which opened the way to foreign wars, that continued to hang like a dark cloud over the evening of his days. It was attended, however, with one important result; that of establishing Ferdinand's succession over the whole of the domains of his ancestors.

FOOTNOTES

[1] The reader who may be curious in this matter will find the pedigree exhibiting the titles of the several competitors to the crown given by Mr. Hallam. (State of Europe during the Middle Ages, (2d ed. London, 1819,) vol. ii. p. 60, note.) The claims of Ferdinand were certainly not derived from the usual laws of descent.

[2] The reader of Spanish history often experiences embarrassment from the identity of names in the various princes of the Peninsula. Thus the John,

mentioned in the text, afterwards John II., might be easily confounded with his namesake and contemporary, John II., of Castile. The genealogical table, at the beginning of this History, will show their relationship to each other.

[3] His grandfather, Charles III., created this title in favor of Carlos, appropriating it as the designation henceforth of the heir apparent.—Aleson, *Anales del Reyno de Navarra*, contin. de Moret, (Pamplona, 1766,) tom. iv. p. 398.—Salazar de Mendoza, *Monarquia*, tom. ii. p. 331.

[4] See Part I. Chap. 3, Note 5, of this History.

[5] This fact, vaguely and variously reported by Spanish writers, is fully established by Aleson, who cites the original instrument, contained in the archives of the counts of Lerin. *Anales de Navarra*, tom. iv. pp. 354, 365.

[6] See the reference to the original document in Aleson. (Tom. iv. pp. 365, 366.) This industrious writer has established the title of Prince Carlos to Navarre, so frequently misunderstood or misrepresented by the national historians, on an incontestable basis.

[7] *Ibid.*, tom. iv. p. 467.

[8] See Part I. Chap. 3, of this work.

[9] Gaillard errs in referring the origin of these factions to this epoch. (*Histoire de la Rivalité de France et de l'Espagne*, (Paris, 1801,) tom. iii. p. 227.) Aleson quotes a proclamation of John in relation to them in the lifetime of Queen Blanche. *Annales de Navarra*, tom. iv. p. 494.

[10] Zurita, *Anales*, tom. iii. fol. 278.—Lucio Marineo Siculo, *Coronista de sus Magestades*, *Las Cosas Memorables de España*, (Alcalà de Henares, 1539,) fol. 104.—Aleson, *Anales de Navarra*, tom. iv. pp. 494-498.

[11] Abarca, Reyes de Aragon, tom. ii. fol. 223.—Aleson, Anales de Navarra, tom. iv. pp. 501-503.—L. Marineo, Cosas Memorables, fol. 105.

[12] Compendio, tom. iii. p. 419.—L. Marineo describes the heavens as uncommonly serene at the moment of Ferdinand's birth. "The sun, which had been obscured with clouds during the whole day, suddenly broke forth with unwonted splendor. A crown was also beheld in the sky, composed of various brilliant colors like those of a rainbow. All which appearances were interpreted by the spectators as an omen, that the child then born would be the most illustrious among men." (Cosas Memorables, fol. 153.) Garibay postpones the nativity of Ferdinand to the year 1453, and L. Marineo, who ascertains with curious precision even the date of his conception, fixes his birth in 1450, (fol. 153.) But Alonso de Palencia in his History, (Verdadera Corónica de Don Enrique IV., Rei de Castilla y Leon, y del Rei Don Alonso su Hermano, MS.) and Andrés Bernaldez, Cura de Los Palacios, (Historia de los Reyes Católicos, MS., c. 8,) both of them contemporaries, refer this event to the period assigned in the text; and, as the same epoch is adopted by the accurate Zurita, (Anales, tom. iv. fol. 9,) I have given it the preference.

[13] Zurita, Anales, tom. iv. fol. 3-48.—Aleson, Anales de Navarra, tom. iv. pp. 508-526.—L. Marineo, Cosas Memorables, fol. 105.

[14] Giannone, Istoria Civile del Regno di Napoli, (Milano, 1823,) lib. 26, c. 7.—Ferrerias, Histoire Générale d'Espagne, trad. par D'Hermilly, (Paris, 1751,) tom. vii. p. 60.—L'Histoire du Royaume de Navarre, par l'un des Secrétaires Interpretes de sa Majesté, (Paris, 1596,) p. 468.

[15] Compare the narrative of the Neapolitan historians, Summonte (Historia della Città e Regno di Napoli, (Napoli, 1675,) lib. 5, c. 2) and Giannone, (Istoria Civile, lib. 26, c. 7.—lib. 27. Introd.) with the opposite statements of L. Marineo, Cosas Memorables, (fol. 106,) himself a

contemporary, Aleson, (*Anales de Navarra*, tom. iv. p. 546,) and other Spanish writers.

[16] Enriquez del Castillo, *Crónica de Enrique el Quarto*, (Madrid, 1787,) cap. 43.

[17] Zurita, *Anales*, tom. iv. fol. 97.—Nic. Antonio, *Bibliotheca Vetus*, tom. ii. p. 282.—L. Marineo, *Cosas Memorables*, fol. 106.—Abarca, *Reyes de Aragon*, tom. ii. fol. 250.—Carlos bargained with Pope Pius II. for a transfer of this library, particularly rich in the ancient classics, to Spain, which was eventually defeated by his death. Zurita, who visited the monastery containing it nearly a century after this period, found its inmates possessed of many traditionary anecdotes respecting the prince during his seclusion among them.

[18] Aleson, *Anales de Navarra*, tom. iv. pp. 548-554.—Abarca, *Reyes de Aragon*, tom. ii. fol. 251.—Zurita, *Anales*, tom. iv. fol. 60-69.

[19] Abarca, *Reyes de Aragon*, ubi supra.—Zurita, *Anales*, tom. iv. fol. 70-75.—Aleson, *Anales de Navarra*, tom. iv. p. 556.

[20] L. Marineo, *Cosas Memorables*, fol. 108.—Zurita, *Anales*, lib. 17, cap. 3.—Aleson, *Anales de Navarra*, tom. iv. pp. 556, 557.—Castillo, *Crónica*, cap. 27.

[21] L. Marineo, *Cosas Memorables*, fol. 108, 109.—Abarca, *Reyes de Aragon*, tom. ii. fol. 252.—Zurita, *Anales*, lib. 17, cap. 45.—Aleson, *Anales de Navarra*, tom. ii. p. 357.

[22] Aleson, *Anales de Navarra*, tom. ii. p. 358.—Zurita, *Anales*, lib. 17, cap. 6.—Abarca, *Reyes de Aragon*, tom. ii. fol. 253.—L. Marineo, *Cosas Memorables*, fol. 111.

[23] Zurita, Anales, lib. 17, cap. 6.—L. Marineo, Cosas Memorables, fol. 111.

[24] Castillo, Crónica, cap. 28.—Abarca, Reyes de Aragon, fol. 253, 254.—L. Marineo, Cosas Memorables, fol. 111, 112.—Aleson, Anales de Navarra, tom. iv. pp. 559, 560.—The inhabitants of Tarraca closed their gates upon the queen, and rung the bells on her approach, the signal of alarm on the appearance of an enemy, or for the pursuit of a malefactor.

[25] Alonso de Palencia, Crónica, MS., part. 2, cap. 51.—L. Marineo, Cosas Memorables, fol. 114.—Aleson, Anales de Navarra, tom. iv. pp. 561-563.—Zurita, Anales, cap. 19, 24.

[26] L. Marineo, Cosas Memorables, fol. 106.—"Por quanto era la templança y medida de aquel principe; tan grande el concierto y su criança y costumbres, la limpieza de su vida, su liberalidad y magnificencia, y finalmente su dulce conversacion, que ninguna cosa en el faltava de aquellas que pertenescen a recta vivir; y que arman el verdadero y perfecto principe y señor."

[27] Gundisalvus Garsias, apud Nic. Antonio, Bibliotheca Vetus, tom. ii. p. 281.

[28] Nic. Antonio, Bibliotheca Vetus, tom. ii. pp. 281, 282.—Mariana, Hist. de España, tom. ii. p. 434.

[29] This treaty was signed at Olit in Navarre, April 12th, 1462.—Zurita, Anales, lib. 17, cap. 38, 39.—Gaillard, Rivalité, tom. iii. p. 235.—Gaillard confounds it with the subsequent one made in the month of May, near the town of Salvatierra in Bearn.

[30] Ferreras, Hist. d'Espagne, tom., vii. p. 110.

[31] Hist. du Royaume de Navarre, p. 496.—Aleson, Anales de Navarra, tom. iv. pp. 590-593.—Abarca, Reyes de Aragon, tom. ii. fol. 258, 259.—Zurita, Anales, lib. 17, cap. 38.

[32] Lebrija, De Bello Navariensi, (Granatae, 1545,) lib. 1, cap. 1, fol. 74.—Aleson, Anales de Navarra, ubi supra.—Zurita, Anales, lib. 17, cap. 38.—The Spanish historians are not agreed as to the time or even mode of Blanche's death. All concur, however, in attributing it to assassination, and most of them, with the learned Antonio Lebrija, a contemporary, (loc. cit.,) in imputing it to poison. The fact of her death, which Aleson, on I know not what authority, refers to the 2d of December, 1464, was not publicly disclosed till some months after its occurrence, when disclosure became necessary in consequence of the proposed interposition of the Navarrese cortes.

[33] Alonso de Palencia, Corónica, MS., part. 2, cap. 51.—Zurita, Anales, tom. iv. fol. 98.—Abarca, Reyes de Aragon, tom. ii. fol. 256.—Aleson, Anales de Navarra, tom. iv. pp. 563 et seq.—L. Marineo, Cosas Memorables, fol. 114.—According to Lanuza, who wrote nearly two centuries after the death of Carlos, the flesh upon his right arm, which had been amputated for the purpose of a more convenient application to the diseased members of the pilgrims who visited his shrine, remained in his day in a perfectly sound and healthful state! (Historias Ecclesiásticas y Seculares de Aragon, (Zaragoza, 1622,) tom. i. p. 553.) Aleson wonders that any should doubt the truth of miracles, attested by the monks of the very monastery in which Carlos was interred.

[34] L. Marineo, Cosas Memorables, fol. 116.—Alonso de Palencia, Corónica, MS., part. 2, cap. 51.—Zurita, Anales, tom. iv. fol. 113. The Spaniards, deriving the knowledge of artillery from the Arabs, had become familiar with it before the other nations of Christendom. The affirmation of

Zurita, however, that 5000 balls were fired from the battery of the besiegers at Gerona in one day, is perfectly absurd. So little was the science of gunnery advanced in other parts of Europe at this period, and indeed later, that it was usual for a field-piece not to be discharged more than twice in the course of an action, if we may credit Machiavelli, who, indeed, recommends dispensing with the use of artillery altogether. *Arte della Guerra*, lib. 3. (Opere, Genova, 1798.)

[35] Alonso de Palencia, *Corónica*, MS., part. 2, c. 51.—L. Marineo, *Cosas Memorables*, fol. 116.—Zurita, *Anales*, tom. iv. fol. 113.—Abarca, *Reyes de Aragon*, tom. ii. fol. 259.

[36] Zurita, *Anales*, tom. iv. fol. 111.—Another 100,000 crowns were to be paid in case further assistance should be required from the French monarch after the reduction of Barcelona. This treaty has been incorrectly reported by most of the French and all the Spanish historians whom I have consulted, save the accurate Zurita. An abstract from the original documents, compiled by the Abbé Legrand, has been given by M. Petitot in his recent edition of the *Collection des Mémoires relatifs à l'Histoire de France*, (Paris, 1836,) tom. xi. Introd. p. 245.

[37] A French lance, it may be stated, of that day, according to L. Marineo, was accompanied by two horsemen; so that the whole contingent of cavalry to be furnished on this occasion amounted to 2100. (*Cosas Memorables*, fol. 117.) Nothing could be more indeterminate than the complement of a lance in the Middle Ages. It is not unusual to find it reckoned at five or six horsemen.

[38] Zurita, *Anales*, tom. iv. fol. 113-115.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 1.

[39] In conformity with the famous verdict given by Louis XI. at Bayonne, April 23d, 1463, previously to the interview between him and Henry IV. on the shores of the Bidassoa. See Part I. Chap. 3, of this History.

[40] This was the battle-ground of Julius Caesar in his wars with Pompey. See his ingenious military manoeuvre as simply narrated in his own Commentaries, (*De Bello Civili*, tom. i. p. 54,) and by Lucan, (*Pharsalia*, lib. 4,) with his usual swell of hyperbole.

[41] The cold was so intense at the siege of Amposta, that serpents of an enormous magnitude are reported by L. Marineo to have descended from the mountains, and taken refuge in the camp of the besiegers. Portentous and supernatural voices were frequently heard during the nights. Indeed, the superstition of the soldiers appears to have been so lively as to have prepared them for seeing and hearing anything.

[42] Faria y Sousa, *Europa Portuguesa*, tom. ii. p. 390.—Alonso de Palencia, MS., part. 2, cap. 60, 61—Castillo, *Crónica*, pp. 43, 44, 46, 49, 50, 54.—Zurita, *Anales*, tom. ii. fol. 116, 124, 127, 128, 130, 137, 147.—M. La Clède states, that "Don Pedro no sooner arrived in Catalonia, than he was poisoned." (*Histoire Générale de Portugal*, (Paris, 1735,) tom. iii. p. 245.) It must have been a very slow poison. He arrived January 21st, 1464, and died June 29th, 1466.

[43] Sir Walter Scott, in his "Anne of Geierstein," has brought into full relief the ridiculous side of René's character. The good king's fondness for poetry and the arts, however, although showing itself occasionally in puerile eccentricities, may compare advantageously with the coarse appetites and mischievous activity of most of the contemporary princes. After all, the best tribute to his worth was the earnest attachment of his people. His biography has been well and diligently compiled by the viscount of Villeneuve Bargemont, (*Histoire de René d'Anjou*, Paris, 1825,) who has, however,

indulged in greater detail than was perhaps to have been desired by René, or his readers.

[44] Comines says of him, "A tous alarmes c'estoit le premier homme armé, et de toutes pièces, et son cheval tousjours bardé. Il portoit un habillement que ces conducteurs portent en Italie, et sembloit bien prince et chef de guerre; et y avoit d'obéissance autant que monseigneur de Charolois, et luy obéissoit tout l'ost de meilleur coeur, car à la vérité il estoit digne d'estre honoré." Philippe de Comines, *Mémoires*, apud Petitot; (Paris, 1826,) liv. 1, chap. 11.

[45] Villeneuve Bargemont, *Hist. de René*, tom. ii. pp. 168, 169.—*Histoire de Louys XI., autrement dicte La Chronique Scandaleuse*, par un Greffier de l'Hostel de Ville de Paris, (Paris, 1620,) p. 145.—Zurita, *Anales*, tom. iv. fol. 150, 153.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 17.—Palencia swells the numbers of the French in the service of the duke of Lorraine to 20,000.

[46] L. Marineo, *Cosas Memorables*, fol. 139.—Zurita, *Anales*, tom. iv. fol. 148, 149, 158.—Aleson, *Anales de Navarra*, tom. iv. pp. 611-613.—Duclos, *Hist. de Louis XI.*, (Amsterdam, 1746,) tom. ii. p. 114.—*Mém. de Comines*, *Introd.*, p. 258, apud Petitot.

[47] Villeneuve Bargemont, *Hist. de René*, tom. ii. pp. 182, 183.—L. Marineo, fol. 140.—Zurita, *Anales*, tom. iv. fol. 153-164.—Abarca, *Reyes de Aragon*, tom. ii. rey 29, cap. 7.

[48] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 88.—L. Marineo, *Cosas Memorables*, fol. 143.—Aleson, *Anales de Navarra*, tom. iv. p. 609.—The queen's death was said to have been caused by a cancer. According to Aleson and some other Spanish writers, Joan was heard several times, in her last illness, to exclaim, in allusion, as was supposed, to her assassination

of Carlos, "Alas! Ferdinand, how dear thou hast cost thy mother!" I find no notice of this improbable confession in any contemporary author.

[49] Mariana, *Hist. de España*, tom. ii. pp. 459, 460.—L. Marineo, *Cosas Memorables*, fol. 151.—Alonso de Palencia, *Corónica*, MS., cap. 88.

[50] Villeneuve Bargemont, *Hist. de René*, tom. ii. pp. 182, 333, 334.—L. Marineo, *Cosas Memorables*, fol. 142.—Alonso de Palencia, *Corónica*, part. 2, cap. 39.—Zurita, *Anales*, tom. iv. fol. 178.—According to M. de Villeneuve Bargemont, the princess Isabella's hand had been offered to the duke of Lorraine, and the envoy despatched to notify his acceptance of it, on arriving at the court of Castile, received from the lips of Henry IV. the first tidings of his master's death, (tom. ii. p. 184.) He must have learned too with no less surprise that Isabella had already been married at that time more than a year! See the date of the official marriage recorded in *Mem. de la Acad. de Hist.*, tom. vi. Apend. no. 4.

[51] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 29, 45.—Zurita, *Anales*, tom. iv. fol. 180-183.—Abarca, *Reyes de Aragon*, rey 29, cap. 29.

[52] L. Marineo, *Cosas Memorables*, fol. 144, 147.—Zurita, *Anales*, tom. iv. fol. 187, 188.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 1.

CHAPTER III.

REIGN OF HENRY IV., OF CASTILE—CIVIL WAR.—MARRIAGE OF FERDINAND AND ISABELLA.

1454-1469.

Henry IV. disappoints Expectations.—Oppression of the People.—League of the Nobles.—Extraordinary Scene at Avila.—Early Education of Isabella.—Death of her Brother Alfonso.—Intestine Anarchy.—The Crown offered to Isabella.—She declines it.—Her Suitors.—She accepts Ferdinand of Aragon.—Marriage Articles.—Critical Situation of Isabella.—Ferdinand enters Castile.—Their Marriage.

While these stormy events were occurring in Aragon, the Infanta Isabella, whose birth was mentioned at the close of the first chapter, was passing her youth amidst scenes scarcely less tumultuous. At the date of her birth, her prospect of succeeding to the throne of her ancestors was even more remote than Ferdinand's prospect of inheriting that of his; and it is interesting to observe through what trials, and by what a series of remarkable events, Providence was pleased to bring about this result, and through it the union, so long deferred, of the great Spanish monarchies.

The accession of her elder brother, Henry the Fourth, was welcomed with an enthusiasm, proportioned to the disgust which had been excited by the

long-protracted and imbecile reign of his predecessor. Some few, indeed, who looked back to the time when he was arrayed in arms against his father, distrusted the soundness either of his principles or of his judgment. But far the larger portion of the nation was disposed to refer this to inexperience, or the ebullition of youthful spirit, and indulged the cheering anticipations which are usually entertained of a new reign and a young monarch. [1] Henry was distinguished by a benign temper, and by a condescension, which might be called familiarity, in his intercourse with his inferiors, virtues peculiarly engaging in persons of his elevated station; and as vices, which wear the gloss of youth, are not only pardoned, but are oftentimes popular with the vulgar, the reckless extravagance in which he indulged himself was favorably contrasted with the severe parsimony of his father in his latter years, and gained him the surname of "the Liberal." His treasurer having remonstrated with him on the prodigality of his expenditure, he replied, "Kings, instead of hoarding treasure like private persons, are bound to dispense it for the happiness of their subjects. We must give to our enemies to make them friends, and to our friends to keep them so." He suited the action so well to the word, that, in a few years, there was scarcely a *mara-vedi* remaining in the royal coffers. [2]

He maintained greater state than was usual with the monarchs of Castile, keeping in pay a body-guard of thirty-six hundred lances, splendidly equipped, and officered by the sons of the nobility. He proclaimed a crusade against the Moors, a measure always popular in Castile; assuming the pomegranate branch, the device of Granada, on his escutcheon, in token of his intention to extirpate the Moslems from the Peninsula. He assembled the chivalry of the remote provinces; and, in the early part of his reign, scarce a year elapsed without one or more incursions into the hostile territory, with armies of thirty or forty thousand men. The results did not correspond with the magnificence of the apparatus; and these brilliant expeditions too often evaporated in a mere border foray, or in an empty gasconade under the

walls of Granada. Orchards were cut down, harvests plundered, villages burnt to the ground, and all the other modes of annoyance peculiar to this barbarous warfare put in practice by the invading armies as they swept over the face of the country; individual feats of prowess, too, commemorated in the romantic ballads of the time, were achieved; but no victory was gained, no important post acquired. The king in vain excused his hasty retreats and abortive enterprises by saying, "that he prized the life of one of his soldiers more than those of a thousand Mussulmans." His troops murmured at this timorous policy, and the people of the south, on whom the charges of the expeditions fell with peculiar heaviness, from their neighborhood to the scene of operations, complained that "the war was carried on against them, not against the infidel." On one occasion an attempt was made to detain the king's person, and thus prevent him from disbanding his forces. So soon had the royal authority fallen into contempt! The king of Granada himself, when summoned to pay tribute after a series of these ineffectual operations, replied "that, in the first years of Henry's reign, he would have offered anything, even his children, to preserve peace to his dominions; but now he would give nothing." [3]

The contempt, to which the king exposed himself by his public conduct, was still further heightened by his domestic. With even a greater indisposition to business, than was manifested by his father, [4] he possessed none of the cultivated tastes, which were the redeeming qualities of the latter. Having been addicted from his earliest youth to debauchery, when he had lost the powers, he retained all the relish, for the brutish pleasures of a voluptuary. He had repudiated his wife, Blanche of Aragon, after a union of twelve years, on grounds sufficiently ridiculous and humiliating. [5] In 1455, he espoused Joanna, a Portuguese princess, sister of Alfonso the Fifth, the reigning monarch. This lady, then in the bloom of youth, was possessed of personal graces, and a lively wit, which, say the historians, made her the delight of the court of Portugal. She was

accompanied by a brilliant train of maidens, and her entrance into Castile was greeted by the festivities and military pageants, which belong to an age of chivalry. The light and lively manners of the young queen, however, which seemed to defy the formal etiquette of the Castilian court, gave occasion to the grossest suspicions. The tongue of scandal indicated Beltran de la Cueva, one of the handsomest cavaliers in the kingdom, and then newly risen in the royal graces, as the person to whom she most liberally dispensed her favors. This knight defended a passage of arms, in presence of the court, near Madrid, in which he maintained the superior beauty of his mistress, against all comers. The king was so much delighted with his prowess, that he commemorated the event by the erection of a monastery dedicated to St. Jerome; a whimsical origin for a religious institution. [6]

The queen's levity might have sought some justification in the unveiled licentiousness of her husband. One of the maids of honor, whom she brought in her train, acquired an ascendancy over Henry, which he did not attempt to disguise; and the palace, after the exhibition of the most disgraceful scenes, became divided by the factions of the hostile fair ones. The archbishop of Seville did not blush to espouse the cause of the paramour, who maintained a magnificence of state, which rivalled that of royalty itself. The public were still more scandalized by Henry's sacrilegious intrusion of another of his mistresses into the post of abbess of a convent in Toledo, after the expulsion of her predecessor, a lady of noble rank and irreproachable character. [7]

The stream of corruption soon finds its way from the higher to the more humble walks of life. The middling classes, imitating their superiors, indulged in an excess of luxury equally demoralizing, and ruinous to their fortunes. The contagion of example infected even the higher ecclesiastics; and we find the archbishop of St. James hunted from his see by the indignant populace in consequence of an outrage attempted on a youthful

bride, as she was returning from church, after the performance of the nuptial ceremony. The rights of the people could be but little consulted, or cared for, in a court thus abandoned to unbounded license. Accordingly we find a repetition of most of the unconstitutional and oppressive acts which occurred under John the Second, of Castile; attempts at arbitrary taxation, interference in the freedom of elections, and in the right exercised by the cities of nominating the commanders of such contingents of troops as they might contribute to the public defence. Their territories were repeatedly alienated, and, as well as the immense sums raised by the sale of papal indulgences for the prosecution of the Moorish war, were lavished on the royal satellites. [8]

But, perhaps, the most crying evil of this period was the shameless adulteration of the coin. Instead of five royal mints, which formerly existed, there were now one hundred and fifty in the hands of authorized individuals, who debased the coin to such a deplorable extent, that the most common articles of life were enhanced in value three, four, and even six fold. Those who owed debts eagerly anticipated the season of payment; and, as the creditors refused to accept it in the depreciated currency, it became a fruitful source of litigation and tumult, until the whole nation seemed on the verge of bankruptcy. In this general license, the right of the strongest was the only one which could make itself heard. The nobles, converting their castles into dens of robbers, plundered the property of the traveller, which was afterwards sold publicly in the cities. One of these robber chieftains, who held an important command on the frontiers of Murcia, was in the habit of carrying on an infamous traffic with the Moors by selling to them as slaves the Christian prisoners of either sex whom he had captured in his marauding expeditions. When subdued by Henry, after a sturdy resistance, he was again received into favor, and reinstated in his possessions. The pusillanimous monarch knew neither when to pardon, nor when to punish. [9]

But no part of Henry's conduct gave such umbrage to his nobles, as the facility with which he resigned himself to the control of favorites, whom he had created as it were from nothing, and whom he advanced over the heads of the ancient aristocracy of the land. Among those especially disgusted by this proceeding were Juan Pacheco, marquis of Villena, and Alfonso Carillo, archbishop of Toledo. These two personages exercised so important an influence over the destinies of Henry, as to deserve more particular notice. The former was of noble Portuguese extraction, and originally a page in the service of the constable Alvaro de Luna, by whom he had been introduced into the household of Prince Henry, during the lifetime of John the Second. His polished and plausible address soon acquired him a complete ascendancy over the feeble mind of his master, who was guided by his pernicious counsels, in his frequent dissensions with his father. His invention was ever busy in devising intrigues, which he recommended by his subtle, insinuating eloquence; and he seemed to prefer the attainment of his purposes by a crooked rather than by a direct policy, even when the latter might equally well have answered. He sustained reverses with imperturbable composure; and, when his schemes were most successful, he was willing to risk all for the excitement of a new revolution. Although naturally humane, and without violent or revengeful passions, his restless spirit was perpetually involving his country in all the disasters of civil war. He was created marquis of Villena, by John the Second; and his ample domains, lying on the confines of Toledo, Murcia, and Valencia, and embracing an immense extent of populous and well-fortified territory, made him the most powerful vassal in the kingdom. [10]

His uncle, the archbishop of Toledo, was of a sterner character. He was one of those turbulent prelates, not unfrequent in a rude age, who seem intended by nature for the camp rather than the church. He was fierce, haughty, intractable; and he was supported in the execution of his ambitious enterprises, no less by his undaunted resolution, than by the extraordinary

resources, which he enjoyed as primate of Spain. He was capable of warm attachments, and of making great personal sacrifices for his friends, from whom, in return, he exacted the most implicit deference; and, as he was both easily offended and implacable in his resentments, he seems to have been almost equally formidable as a friend and as an enemy. [11]

These early adherents of Henry, little satisfied with seeing their own consequence eclipsed by the rising glories of the newly-created favorites, began secretly to stir up cabals and confederacies among the nobles, until the occurrence of other circumstances obviated the necessity, and indeed the possibility, of further dissimulation. Henry had been persuaded to take part in the internal dissensions which then agitated the kingdom of Aragon, and had supported the Catalans in their opposition to their sovereign by seasonable supplies of men and money. He had even made some considerable conquests for himself, when he was induced, by the advice of the marquis of Villena and the archbishop of Toledo, to refer the arbitration of his differences with the king of Aragon to Louis the Eleventh, of France; a monarch whose habitual policy allowed him to refuse no opportunity of interference in the concerns of his neighbors.

The conferences were conducted at Bayonne, and an interview was subsequently agreed on between the kings of France and Castile, to be held near that city, on the banks of the Bidasoa, which divides the dominions of the respective monarchs. The contrast exhibited by the two princes at this interview, in their style of dress and equipage, was sufficiently striking to deserve notice. Louis, who was even worse attired than usual, according to Comines, wore a coat of coarse woollen cloth cut short, a fashion then deemed very unsuitable to persons of rank, with a doublet of fustian, and a weather-beaten hat, surmounted by a little leaden image of the Virgin. His imitative courtiers adopted a similar costume. The Castilians, on the other hand, displayed uncommon magnificence. The barge of the royal favorite,

Beltran de la Cueva, was resplendent with sails of cloth of gold, and his apparel glittered with a profusion of costly jewels. Henry was escorted by his Moorish guard gorgeously equipped, and the cavaliers of his train vied with each other in the sumptuous decorations of dress and equipage. The two nations appear to have been mutually disgusted with the contrast exhibited by their opposite affectations. The French sneered at the ostentation of the Spaniards, and the latter, in their turn, derided the sordid parsimony of their neighbors; and thus the seeds of a national aversion were implanted, which, under the influence of more important circumstances, ripened into open hostility. [12]

The monarchs seem to have separated with as little esteem for each other as did their respective courtiers; and Comines profits by the occasion to inculcate the inexpediency of such interviews between princes, who have exchanged the careless jollity of youth for the cold and calculating policy of riper years. The award of Louis dissatisfied all parties; a tolerable proof of its impartiality. The Castilians, in particular, complained, that the marquis of Villena and the archbishop of Toledo had compromised the honor of the nation, by allowing their sovereign to cross over to the French shore of the Bidassoa, and its interests, by the cession of the conquered territory to Aragon. They loudly accused them of being pensioners of Louis, a fact which does not appear improbable, considering the usual policy of this prince, who, as is well known, maintained an espionage over the councils of most of his neighbors. Henry was so far convinced of the truth of these imputations, that he dismissed the obnoxious ministers from their employments. [13]

The disgraced nobles instantly set about the organization of one of those formidable confederacies, which had so often shaken the monarchs of Castile upon their throne, and which, although not authorized by positive law, as in Aragon, seemed to have derived somewhat of a constitutional

sanction from ancient usage. Some of the members of this coalition were doubtless influenced exclusively by personal jealousies; but many others entered into it from disgust at the imbecile and arbitrary proceedings of the crown.

In 1462, the queen had been delivered of a daughter, who was named like herself Joanna, but who, from her reputed father, Beltran de la Cueva, was better known in the progress of her unfortunate history by the cognomen of Beltraneja. Henry, however, had required the usual oath of allegiance to be tendered to her as presumptive heir to the crown. The confederates, assembled at Burgos, declared this oath of fealty a compulsory act, and that many of them had privately protested against it at the time, from a conviction of the illegitimacy of Joanna. In the bill of grievances, which they now presented to the monarch, they required that he should deliver his brother Alfonso into their hands, to be publicly acknowledged as his successor; they enumerated the manifold abuses, which pervaded every department of government, which they freely imputed to the unwholesome influence exercised by the favorite, Beltran de la Cueva, over the royal counsels, doubtless the true key to much of their patriotic sensibility; and they entered into a covenant, sanctioned by all the solemnities of religion usual on these occasions, not to re-enter the service of their sovereign, or accept any favor from him until he had redressed their wrongs. [14]

The king, who by an efficient policy might perhaps have crushed these revolutionary movements in their birth, was naturally averse to violent, or even vigorous measures. He replied to the bishop of Cuença, his ancient preceptor, who recommended these measures; "You priests, who are not called to engage in the fight, are very liberal of the blood of others." To which the prelate rejoined, with more warmth than breeding, "Since you are not true to your own honor, at a time like this, I shall live to see you the

most degraded monarch in Spain; when you will repent too late this unseasonable pusillanimity." [15]

Henry, unmoved either by the entreaties or remonstrances of his adherents, resorted to the milder method of negotiation. He consented to an interview with the confederates, in which he was induced, by the plausible arguments of the marquis of Villena, to comply with most of their demands. He delivered his brother Alfonso into their hands, to be recognized as the lawful heir to the crown, on condition of his subsequent union with Joanna; and he agreed to nominate, in conjunction with his opponents, a commission of five, who should deliberate on the state of the kingdom, and provide an effectual reform of abuses. [16] The result of this deliberation, however, proved so prejudicial to the royal authority, that the feeble monarch was easily persuaded to disavow the proceedings of the commissioners, on the ground of their secret collusion with his enemies, and even to attempt the seizure of their persons. The confederates, disgusted with this breach of faith, and in pursuance, perhaps, of their original design, instantly decided on the execution of that bold measure, which some writers denounce as a flagrant act of rebellion, and others vindicate as a just and constitutional proceeding.

In an open plain, not far from the city of Avila, they caused a scaffold to be erected, of sufficient elevation to be easily seen from the surrounding country. A chair of state was placed on it, and in this was seated an effigy of King Henry, clad in sable robes and adorned with all the insignia of royalty, a sword at its side, a sceptre in its hand, and a crown upon its head. A manifesto was then read, exhibiting in glowing colors the tyrannical conduct of the king, and the consequent determination to depose him; and vindicating the proceeding by several precedents drawn from the history of the monarchy. The archbishop of Toledo, then ascending the platform, tore the diadem from the head of the statue; the marquis of Villena removed the

sceptre, the count of Placencia the sword, the grand master of Alcantara and the counts of Benavente and Paredes the rest of the regal insignia; when the image, thus despoiled of its honors, was rolled in the dust, amid the mingled groans and clamors of the spectators. The young prince Alfonso, at that time only eleven years of age, was seated on the vacant throne, and the assembled grandees severally kissed his hand in token of their homage; the trumpets announced the completion of the ceremony, and the populace greeted with joyful acclamations the accession of their new sovereign. [17]

Such are the details of this extraordinary transaction, as recorded by the two contemporary historians of the rival factions. The tidings were borne, with the usual celerity of evil news, to the remotest parts of the kingdom. The pulpit and the forum resounded with the debates of disputants, who denied, or defended, the right of the subject to sit in judgment on the conduct of his sovereign. Every man was compelled to choose his side in this strange division of the kingdom. Henry received intelligence of the defection, successively, of the capital cities of Burgos, Toledo, Cordova, Seville, together with a large part of the southern provinces, where lay the estates of some of the most powerful partisans of the opposite faction. The unfortunate monarch, thus deserted by his subjects, abandoned himself to despair, and expressed the extremity of his anguish in the strong language of Job: "Naked came I from my mother's womb, and naked must I go down to the earth!" [18]

A large, probably the larger part of the nation, however, disapproved of the tumultuous proceedings of the confederates. However much they contemned the person of the monarch, they were not prepared to see the royal authority thus openly degraded. They indulged, too, some compassion for a prince, whose political vices, at least, were imputable to mental incapacity, and to evil counsellors, rather than to any natural turpitude of heart. Among the nobles who adhered to him, the most conspicuous were

"the good count of Haro," and the powerful family of Mendoza, the worthy scions of an illustrious stock. The estates of the marquis of Santillana, the head of this house, lay chiefly in the Asturias, and gave him a considerable influence in the northern provinces, [19] the majority of whose inhabitants remained constant in their attachment to the royal cause.

When Henry's summons, therefore, was issued for the attendance of all his loyal subjects capable of bearing arms, it was answered by a formidable array of numbers, that must have greatly exceeded that of his rival, and which is swelled by his biographer to seventy thousand foot and fourteen thousand horse; a much smaller force, under the direction of an efficient leader, would doubtless have sufficed to extinguish the rising spirit of revolt. But Henry's temper led him to adopt a more conciliatory policy, and to try what could be effected by negotiation, before resorting to arms. In the former, however, he was no match for the confederates, or rather the marquis of Villena, their representative on these occasions. This nobleman, who had so zealously co-operated with his party in conferring the title of king on Alfonso, had intended to reserve the authority to himself. He probably found more difficulty in controlling the operations of the jealous and aspiring aristocracy, with whom he was associated, than he had imagined; and he was willing to aid the opposite party in maintaining a sufficient degree of strength to form a counterpoise to that of the confederates, and thus, while he made his own services the more necessary to the latter, to provide a safe retreat for himself, in case of the shipwreck of their fortunes. [20]

In conformity with this dubious policy, he had, soon after the occurrence at Avila, opened a secret correspondence with his former master, and suggested to him the idea of terminating their differences by some amicable adjustment. In consequence of these intimations, Henry consented to enter into a negotiation with the confederates; and it was agreed, that the forces

on both sides should be disbanded, and that a suspension of hostilities for six months should take place, during which some definitive and permanent scheme of reconciliation might be devised. Henry, in compliance with this arrangement, instantly disbanded his levies; they retired overwhelmed with indignation at the conduct of their sovereign, who so readily relinquished the only means of redress that he possessed, and whom they now saw it would be unavailing to assist, since he was so ready to desert himself. [21]

It would be an unprofitable task to attempt to unravel all the fine-spun intrigues, by which the marquis of Villena contrived to defeat every attempt at an ultimate accommodation between the parties, until he was very generally execrated as the real source of the disturbances in the kingdom. In the mean while, the singular spectacle was exhibited of two monarchs presiding over one nation, surrounded by their respective courts, administering the laws, convoking cortes, and in fine assuming the state and exercising all the functions of sovereignty. It was apparent that this state of things could not last long; and that the political ferment, which now agitated the minds of men from one extremity of the kingdom to the other, and which occasionally displayed itself in tumults and acts of violence, would soon burst forth with all the horrors of a civil war.

At this juncture, a proposition was made to Henry for detaching the powerful family of Pacheco from the interests of the confederates, by the marriage of his sister Isabella with the brother of the marquis of Villena, Don Pedro Giron, grand master of the order of Calatrava, a nobleman of aspiring views, and one of the most active partisans of his faction. The archbishop of Toledo would naturally follow the fortunes of his nephew, and thus the league, deprived of its principal supports, must soon crumble to pieces. Instead of resenting this proposal as an affront upon his honor, the abject mind of Henry was content to purchase repose even by the most humiliating sacrifice. He acceded to the conditions; application was made to

Rome for a dispensation from the vows of celibacy imposed on the grand master as the companion of a religious order; and splendid preparations were instantly commenced for the approaching nuptials. [22]

Isabella was then in her sixteenth year. On her father's death, she retired with her mother to the little town of Arevalo, where, in seclusion, and far from the voice of flattery and falsehood, she had been permitted to unfold the natural graces of mind and person, which might have been blighted in the pestilent atmosphere of a court. Here, under the maternal eye, she was carefully instructed in those lessons of practical piety, and in the deep reverence for religion, which distinguished her maturer years. On the birth of the princess Joanna, she was removed, together with her brother Alfonso, by Henry to the royal palace, in order more effectually to discourage the formation of any faction adverse to the interests of his supposed daughter. In this abode of pleasure, surrounded by all the seductions most dazzling to youth, she did not forget the early lessons that she had imbibed; and the blameless purity of her conduct shone with additional lustre amid the scenes of levity and licentiousness by which she was surrounded. [23]

The near connection of Isabella with the crown, as well as her personal character, invited the application of numerous suitors. Her hand was first solicited for that very Ferdinand, who was destined to be her future husband, though not till after the intervention of many inauspicious circumstances. She was next betrothed to his elder brother, Carlos; and some years after his decease, when thirteen years of age, was promised by Henry to Alfonso, of Portugal. Isabella was present with her brother at a personal interview with that monarch in 1464, but neither threats nor entreaties could induce her to accede to a union so unsuitable from the disparity of their years; and with her characteristic discretion, even at this early age, she rested her refusal on the ground, that "the infantas of Castile

could not be disposed of in marriage, without the consent of the nobles of the realm." [25]

When Isabella understood in what manner she was now to be sacrificed to the selfish policy of her brother, in the prosecution of which, compulsory measures if necessary were to be employed, she was filled with the liveliest emotions of grief and resentment. The master of Calatrava was well known as a fierce and turbulent leader of faction, and his private life was stained with most of the licentious vices of the age. He was even accused of having invaded the privacy of the queen dowager, Isabella's mother, by proposals of the most degrading nature, an outrage which the king had either not the power, or the inclination, to resent. [26] With this person, then, so inferior to her in birth, and so much more unworthy of her in every other point of view, Isabella was now to be united. On receiving the intelligence, she confined herself to her apartment, abstaining from all nourishment and sleep for a day and night, says a contemporary writer, and imploring Heaven, in the most piteous manner, to save her from this dishonor, by her own death or that of her enemy. As she was bewailing her hard fate to her faithful friend, Beatriz de Bobadilla, "God will not permit it," exclaimed the high-spirited lady, "neither will I;" then drawing forth a dagger from her bosom, which she kept there for the purpose, she solemnly vowed to plunge it in the heart of the master of Calatrava, as soon as he appeared! [27]

Happily her loyalty was not put to so severe a test. No sooner had the grand master received the bull of dispensation from the pope, than, resigning his dignities in his military order, he set about such sumptuous preparations for his wedding, as were due to the rank of his intended bride. When these were completed, he began his journey from his residence at Almagro to Madrid, where the nuptial ceremony was to be performed, attended by a splendid retinue of friends and followers. But, on the very first evening after his departure, he was attacked by an acute disorder while

at Villarubia, a village not far from Ciudad Real, which terminated his life in four days. He died, says Palencia, with imprecations on his lips, because his life had not been spared some few weeks longer. [28] His death was attributed by many to poison, administered to him by some of the nobles, who were envious of his good fortune. But, notwithstanding the seasonableness of the event, and the familiarity of the crime in that age, no shadow of imputation was ever cast on the pure fame of Isabella. [29]

The death of the grand master dissipated, at a blow, all the fine schemes of the marquis of Villena, as well as every hope of reconciliation between the parties. The passions, which had been only smothered, now burst forth into open hostility; and it was resolved to refer the decision of the question to the issue of a battle. The two armies met on the plains of Olmedo, where, two and twenty years before, John, the father of Henry, had been in like manner confronted by his insurgent subjects. The royal army was considerably the larger; but the deficiency of numbers in the other was amply supplied by the intrepid spirit of its leaders. The archbishop of Toledo appeared at the head of its squadrons, conspicuous by a rich scarlet mantle, embroidered with a white cross, thrown over his armor. The young prince Alfonso, scarcely fourteen years of age, rode by his side, clad like him in complete mail. Before the action commenced, the archbishop sent a message to Beltran de la Cueva, then raised to the title of duke of Albuquerque, cautioning him not to venture in the field, as no less than forty cavaliers had sworn his death. The gallant nobleman, who, on this as on some other occasions, displayed a magnanimity which in some degree excused the partiality of his master, returned by the envoy a particular description of the dress he intended to wear; a chivalrous defiance, which wellnigh cost him his life. Henry did not care to expose his person in the engagement, and, on receiving erroneous intelligence of the discomfiture of his party, retreated precipitately with some thirty or forty horsemen to the shelter of a neighboring village. The action lasted three hours, until the

combatants were separated by the shades of evening, without either party having decidedly the advantage, although that of Henry retained possession of the field of battle. The archbishop of Toledo and Prince Alfonso were the last to retire; and the former was seen repeatedly to rally his broken squadrons, notwithstanding his arm had been pierced through with a lance early in the engagement. The king and the prelate may be thought to have exchanged characters in this tragedy. [30]

The battle was attended with no result, except that of inspiring appetites, which had tasted of blood, with a relish for more unlicensed carnage. The most frightful anarchy now prevailed throughout the kingdom, dismembered by factions, which the extreme youth of one monarch and the imbecility of the other made it impossible to control. In vain did the papal legate, who had received a commission to that effect from his master, interpose his mediation, and even fulminate sentence of excommunication against the confederates. The independent barons plainly told him, that "those who advised the pope that he had a right to interfere in the temporal concerns of Castile deceived him; and that they had a perfect right to depose their monarch on sufficient grounds, and should exercise it." [31]

Every city, nay, almost every family, became now divided within itself. In Seville and in Cordova, the inhabitants of one street carried on open war against those in another. The churches, which were fortified, and occupied with bodies of armed men, were many of them sacked and burnt to the ground. In Toledo no less than four thousand dwellings were consumed in one general conflagration. The ancient family feuds, as those between the great houses of Guzman and Ponce de Leon in Andalusia, being revived, carried new division into the cities, whose streets literally ran with blood. [32] In the country, the nobles and gentry, issuing from their castles, captured the defenceless traveller, who was obliged to redeem his liberty by the payment of a heavier ransom than was exacted even by the

Mahometans. All communication on the high roads was suspended, and no man, says a contemporary, dared move abroad beyond the walls of his city, unless attended by an armed escort. The organization of one of those popular confederacies, known under the name of *Hermandad*, in 1465, which continued in operation during the remainder of this gloomy period, brought some mitigation to these evils by the fearlessness with which it exercised its functions, even against offenders of the highest rank, some of whose castles were razed to the ground by its orders. But this relief was only partial; and the successful opposition, which the *Hermandad* sometimes encountered on these occasions, served to aggravate the horrors of the scene. Meanwhile, fearful omens, the usual accompaniments of such troubled times, were witnessed; the heated imagination interpreted the ordinary operations of nature as signs of celestial wrath; [33] and the minds of men were filled with dismal bodings of some inevitable evil, like that which overwhelmed the monarchy in the days of their Gothic ancestors. [34]

At this crisis, a circumstance occurred, which gave a new face to affairs, and totally disconcerted the operations of the confederates. This was the loss of their young leader, Alfonso; who was found dead in his bed, on the 5th of July, 1468, at the village of Cardeñosa, about two leagues from Avila, which had so recently been the theatre of his glory. His sudden death was imputed, in the usual suspicious temper of that corrupt age, to poison, supposed to have been conveyed to him in a trout, on which he dined the day preceding. Others attributed it to the plague, which had followed in the train of evils, that desolated this unhappy country. Thus at the age of fifteen, and after a brief reign, if reign it may be called, of three years, perished this young prince, who, under happier auspices and in maturer life, might have ruled over his country with a wisdom equal to that of any of its monarchs. Even in the disadvantageous position, in which he had been placed, he gave clear indications of future excellence. A short time before his death, he was

heard to remark, on witnessing the oppressive acts of some of the nobles, "I must endure this patiently, until I am a little older." On another occasion, being solicited by the citizens of Toledo to approve of some act of extortion which they had committed, he replied, "God forbid I should countenance such injustice!" And on being told that the city in that case would probably transfer its allegiance to Henry, he added, "Much as I love power, I am not willing to purchase it at such a price." Noble sentiments, but not at all palatable to the grandees of his party, who saw with alarm that the young lion, when he had reached his strength, would be likely to burst the bonds with which they had enthralled him. [35]

It is not easy to consider the reign of Alfonso in any other light, than that of a usurpation; although some Spanish writers, and among the rest Marina, a competent critic when not blinded by prejudice, regard him as a rightful sovereign, and as such to be enrolled among the monarchs of Castile. [36] Marina, indeed, admits the ceremony at Avila to have been originally the work of a faction, and in itself informal and unconstitutional; but he considers it to have received a legitimate sanction from its subsequent recognition by the people. But I do not find, that the deposition of Henry the Fourth was ever confirmed by an act of cortes. He still continued to reign with the consent of a large portion, probably the majority, of his subjects; and it is evident that proceedings, so irregular as those at Avila, could have no pretence to constitutional validity, without a very general expression of approbation on the part of the nation.

The leaders of the confederates were thrown into consternation by an event, which threatened to dissolve their league, and to leave them exposed to the resentment of an offended sovereign. In this conjuncture, they naturally turned their eyes on Isabella, whose dignified and commanding character might counterbalance the disadvantages arising from the unsuitableness of her sex for so perilous a situation, and justify her election

in the eyes of the people. She had continued in the family of Henry during the greater part of the civil war; until the occupation of Segovia by the insurgents, after the battle of Olmedo, enabled her to seek the protection of her younger brother Alfonso, to which she was the more inclined by her disgust with the license of a court, where the love of pleasure scorned even the veil of hypocrisy. On the death of her brother, she withdrew to a monastery at Avila, where she was visited by the archbishop of Toledo, who, in behalf of the confederates, requested her to occupy the station lately filled by Alfonso, and allow herself to be proclaimed queen of Castile. [37]

Isabella discerned too clearly, however, the path of duty and probably of interest. She unhesitatingly refused the seductive proffer, and replied, that, "while her brother Henry lived, none other had a right to the crown; that the country had been divided long enough under the rule of two contending monarchs; and that the death of Alfonso might perhaps be interpreted into an indication from Heaven of its disapprobation of their cause." She expressed herself desirous of establishing a reconciliation between the parties, and offered heartily to co-operate with her brother in the reformation of existing abuses. Neither the eloquence nor entreaties of the primate could move her from her purpose; and, when a deputation from Seville announced to her that that city, in common with the rest of Andalusia, had unfurled its standards in her name and proclaimed her sovereign of Castile, she still persisted in the same wise and temperate policy. [38]

The confederates were not prepared for this magnanimous act from one so young, and in opposition to the advice of her most venerated counsellors. No alternative remained, however, but that of negotiating an accommodation on the best terms possible with Henry, whose facility of temper and love of repose naturally disposed him to an amicable adjustment of his differences. With these dispositions, a reconciliation was effected

between the parties on the following conditions; namely, that a general amnesty should be granted by the king for all past offences; that the queen, whose dissolute conduct was admitted to be matter of notoriety, should be divorced from her husband, and sent back to Portugal; that Isabella should have the principality of the Asturias (the usual demesne of the heir apparent to the crown) settled on her, together with a specific provision suitable to her rank; that she should be immediately recognized heir to the crowns of Castile and Leon; that a cortes should be convoked within forty days for the purpose of bestowing a legal sanction on her title, as well as of reforming the various abuses of government; and finally, that Isabella should not be constrained to marry in opposition to her own wishes, nor should she do so without the consent of her brother. [39]

In pursuance of these arrangements, an interview took place between Henry and Isabella, each attended by a brilliant *cortège* of cavaliers and nobles, at a place called Toros de Guisando, in New Castile. [40] The monarch embraced his sister with the tenderest marks of affection, and then proceeded solemnly to recognize her as his future and rightful heir. An oath of allegiance was repeated by the attendant nobles, who concluded the ceremony by kissing the hand of the princess in token of their homage. In due time the representatives of the nation, convened in cortes at Ocaña, unanimously concurred in their approbation of these preliminary proceedings, and thus Isabella was announced to the world as the lawful successor to the crowns of Castile and Leon. [41]

It can hardly be believed, that Henry was sincere in subscribing conditions so humiliating; nor can his easy and lethargic temper account for his so readily relinquishing the pretensions of the Princess Joanna, whom, notwithstanding the popular imputations on her birth, he seems always to have cherished as his own offspring. He was accused, even while actually signing the treaty, of a secret collusion with the marquis of Villena for the

purpose of evading it; an accusation, which derives a plausible coloring from subsequent events.

The new and legitimate basis, on which the pretensions of Isabella to the throne now rested, drew the attention of neighboring princes, who contended with each other for the honor of her hand. Among these suitors, was a brother of Edward the Fourth, of England, not improbably Richard, duke of Gloucester, since Clarence was then engaged in his intrigues with the earl of Warwick, which led a few months later to his marriage with the daughter of that nobleman. Had she listened to his proposals, the duke would in all likelihood have exchanged his residence in England for Castile, where his ambition, satisfied with the certain reversion of a crown, might have been spared the commission of the catalogue of crimes which blacken his memory. [42]

Another suitor was the duke of Guienne, the unfortunate brother of Louis the Eleventh, and at that time the presumptive heir of the French monarchy. Although the ancient intimacy, which subsisted between the royal families of France and Castile, in some measure favored his pretensions, the disadvantages resulting from such a union were too obvious to escape attention. The two countries were too remote from each other, [43] and their inhabitants too dissimilar in character and institutions, to permit the idea of their ever cordially coalescing as one people under a common sovereign. Should the duke of Guienne fail in the inheritance of the crown, it was argued, he would be every way an unequal match for the heiress of Castile; should he succeed to it, it might be feared, that, in case of a union, the smaller kingdom would be considered only as an appendage, and sacrificed to the interests of the larger. [44]

The person on whom Isabella turned the most favorable eye was her kinsman Ferdinand of Aragon. The superior advantages of a connection,

which should be the means of uniting the people of Aragon and Castile into one nation, were indeed manifest. They were the descendants of one common stock, speaking one language, and living under the influence of similar institutions, which had moulded them into a common resemblance of character and manners. From their geographical position, too, they seemed destined by nature to be one nation; and, while separately they were condemned to the rank of petty and subordinate states, they might hope, when consolidated into one monarchy, to rise at once to the first class of European powers. While arguments of this public nature pressed on the mind of Isabella, she was not insensible to those which most powerfully affect the female heart. Ferdinand was then in the bloom of life, and distinguished for the comeliness of his person. In the busy scenes, in which he had been engaged from his boyhood, he had displayed a chivalrous valor, combined with maturity of judgment far above his years. Indeed, he was decidedly superior to his rivals in personal merit and attractions. [45] But, while private inclinations thus happily coincided with considerations of expediency for inclining her to prefer the Aragonese match, a scheme was devised in another quarter for the express purpose of defeating it.

A fraction of the royal party, with the family of Mendoza at their head, had retired in disgust with the convention of Toros de Guisando, and openly espoused the cause of the princess Joanna. They even instructed her to institute an appeal before the tribunal of the supreme pontiff, and caused a placard, exhibiting a protest against the validity of the late proceedings, to be nailed secretly in the night to the gate of Isabella's mansion. [46] Thus were sown the seeds of new dissensions, before the old were completely eradicated. With this disaffected party the marquis of Villena, who, since his reconciliation, had resumed his ancient ascendancy over Henry, now associated himself. Nothing, in the opinion of this nobleman, could be more repugnant to his interests, than the projected union between the houses of Castile and Aragon; to the latter of which, as already noticed, [47] once

belonged the ample domains of his own marquisate, which he imagined would be held by a very precarious tenure should any of this family obtain a footing in Castile.

In the hope of counteracting this project, he endeavored to revive the obsolete pretensions of Alfonso, king of Portugal; and, the more effectually to secure the co-operation of Henry, he connected with his scheme a proposition for marrying his daughter Joanna with the son and heir of the Portuguese monarch; and thus this unfortunate princess might be enabled to assume at once a station suitable to her birth, and at some future opportunity assert with success her claim to the Castilian crown. In furtherance of this complicated intrigue, Alfonso was invited to renew his addresses to Isabella in a more public manner than he had hitherto done; and a pompous embassy, with the archbishop of Lisbon at its head, appeared at Ocaña, where Isabella was then residing, bearing the proposals of their master. The princess returned, as before, a decided though temperate refusal. [48] Henry, or rather the marquis of Villena, piqued at this opposition to his wishes, resolved to intimidate her into compliance; and menaced her with imprisonment in the royal fortress at Madrid. Neither her tears nor entreaties would have availed against this tyrannical proceeding; and the marquis was only deterred from putting it in execution by his fear of the inhabitants of Ocaña, who openly espoused the cause of Isabella. Indeed, the common people of Castile very generally supported her in her preference of the Aragonese match. Boys paraded the streets, bearing banners emblazoned with the arms of Aragon, and singing verses prophetic of the glories of the auspicious union. They even assembled round the palace gates, and insulted the ears of Henry and his minister by the repetition of satirical stanzas, which contrasted Alfonso's years with the youthful graces of Ferdinand. [49] Notwithstanding this popular expression of opinion, however, the constancy of Isabella might at length have yielded to the importunity of her persecutors, had she not been encouraged by her

friend, the archbishop of Toledo, who had warmly entered into the interests of Aragon, and who promised, should matters come to extremity, to march in person to her relief at the head of a sufficient force to insure it.

Isabella, indignant at the oppressive treatment, which she experienced from her brother, as well as at his notorious infraction of almost every article in the treaty of Toros de Guisando, felt herself released from her corresponding engagements, and determined to conclude the negotiations relative to her marriage, without any further deference to his opinion. Before taking any decisive step, however, she was desirous of obtaining the concurrence of the leading nobles of her party. This was effected without difficulty, through the intervention of the archbishop of Toledo, and of Don Frederic Henriquez, admiral of Castile, and the maternal grandfather of Ferdinand; a person of high consideration, both from his rank and character, and connected by blood with the principal families in the kingdom. [50] Fortified by their approbation, Isabella dismissed the Aragonese envoy with a favorable answer to his master's suit. [51]

Her reply was received with almost as much satisfaction by the old king of Aragon, John the Second, as by his son. This monarch, who was one of the shrewdest princes of his time, had always been deeply sensible of the importance of consolidating the scattered monarchies of Spain under one head. He had solicited the hand of Isabella for his son, when she possessed only a contingent reversion of the crown. But, when her succession had been settled on a more secure basis, he lost no time in effecting this favorite object of his policy. With the consent of the states, he had transferred to his son the title of king of Sicily, and associated him with himself in the government at home, in order to give him greater consequence in the eyes of his mistress. He then despatched a confidential agent into Castile, with instructions to gain over to his interests all who exercised any influence on the mind of the princess; furnishing him for this purpose with *cartes*

blanches, signed by himself and Ferdinand, which he was empowered to fill at his discretion. [52]

Between parties thus favorably disposed, there was no unnecessary delay. The marriage articles were signed, and sworn to by Ferdinand at Cervera, on the 7th of January. He promised faithfully to respect the laws and usages of Castile; to fix his residence in that kingdom, and not to quit it without the consent of Isabella; to alienate no property belonging to the crown; to prefer no foreigners to municipal offices, and indeed to make no appointments of a civil or military nature, without her consent and approbation; and to resign to her exclusively the right of nomination to ecclesiastical benefices. All ordinances of a public nature were to be subscribed equally by both. Ferdinand engaged, moreover, to prosecute the war against the Moors; to respect King Henry; to suffer every noble to remain unmolested in the possession of his dignities, and not to demand restitution of the domains formerly owned by his father in Castile. The treaty concluded with a specification of a magnificent dower to be settled on Isabella, far more ample than that usually assigned to the queens of Aragon. [53] The circumspection of the framers of this instrument is apparent from the various provisions introduced into it solely to calm the apprehensions and to conciliate the good will of the party disaffected to the marriage; while the national partialities of the Castilians in general were gratified by the jealous restrictions imposed on Ferdinand, and the relinquishment of all the essential rights of sovereignty to his consort.

While these affairs were in progress, Isabella's situation was becoming extremely critical. She had availed herself of the absence of her brother and the marquis of Villena in the south, whither they had gone for the purpose of suppressing the still lingering spark of insurrection, to transfer her residence from Ocaña to Madrigal, where, under the protection of her mother, she intended to abide the issue of the pending negotiations with

Aragon. Far, however, from escaping the vigilant eye of the marquis of Villena by this movement, she laid herself more open to it. She found the bishop of Burgos, the nephew of the marquis, stationed at Madrigal, who now served as an effectual spy upon her actions. Her most confidential servants were corrupted, and conveyed intelligence of her proceedings to her enemy. Alarmed at the actual progress made in the negotiations for her marriage, the marquis was now convinced that he could only hope to defeat them by resorting to the coercive system, which he had before abandoned. He accordingly instructed the archbishop of Seville to march at once to Madrigal with a sufficient force to secure Isabella's person; and letters were at the same time addressed by Henry to the citizens of that place, menacing them with his resentment, if they should presume to interpose in her behalf. The timid inhabitants disclosed the purport of the mandate to Isabella, and besought her to provide for her own safety. This was perhaps the most critical period in her life. Betrayed by her own domestics, deserted even by those friends of her own sex who might have afforded her sympathy and counsel, but who fled affrighted from the scene of danger, and on the eve of falling into the snares of her enemies, she beheld the sudden extinction of those hopes, which she had so long and so fondly cherished. [54]

In this exigency, she contrived to convey a knowledge of her situation to Admiral Henriquez, and the archbishop of Toledo. The active prelate, on receiving the summons, collected a body of horse, and, reinforced by the admiral's troops, advanced with such expedition to Madrigal, that he succeeded in anticipating the arrival of the enemy. Isabella received her friends with unfeigned satisfaction; and, bidding adieu to her dismayed guardian, the bishop of Burgos, and his attendants, she was borne off by her little army in a sort of military triumph to the friendly city of Valladolid, where she was welcomed by the citizens with a general burst of enthusiasm. [55]

In the mean time Gutierre de Cardenas, one of the household of the princess, [56] and Alfonso de Palencia, the faithful chronicler of these events, were despatched into Aragon in order to quicken Ferdinand's operations, during the auspicious interval afforded by the absence of Henry in Andalusia. On arriving at the frontier town of Osma, they were dismayed to find that the bishop of that place, together with the duke of Medina Celi, on whose active co-operation they had relied for the safe introduction of Ferdinand into Castile, had been gained over to the interests of the marquis of Villena. [57] The envoys, however, adroitly concealing the real object of their mission, were permitted to pass unmolested to Saragossa, where Ferdinand was then residing. They could not have arrived at a more inopportune season. The old king of Aragon was in the very heat of the war against the insurgent Catalans, headed by the victorious John of Anjou. Although so sorely pressed, his forces were on the eve of disbanding for want of the requisite funds to maintain them. His exhausted treasury did not contain more than three hundred enriques. [58] In this exigency he was agitated by the most distressing doubts. As he could spare neither the funds nor the force necessary for covering his son's entrance into Castile, he must either send him unprotected into a hostile country, already aware of his intended enterprise and in arms to defeat it, or abandon the long-cherished object of his policy, at the moment when his plans were ripe for execution. Unable to extricate himself from this dilemma, he referred the whole matter to Ferdinand and his council. [59]

It was at length determined, that the prince should undertake the journey, accompanied by half a dozen attendants only, in the disguise of merchants, by the direct route from Saragossa; while another party, in order to divert the attention of the Castilians, should proceed in a different direction, with all the ostentation of a public embassy from the king of Aragon to Henry the Fourth. The distance was not great, which Ferdinand and his suite were to travel before reaching a place of safety; but this intervening country was

patrolled by squadrons of cavalry for the purpose of intercepting their progress; and the whole extent of the frontier, from Almazan to Guadalajara, was defended by a line of fortified castles in the hands of the family of Mendoza. [60] The greatest circumspection therefore was necessary. The party journeyed chiefly in the night; Ferdinand assumed the disguise of a servant, and, when they halted on the road, took care of the mules, and served his companions at table. In this guise, with no other disaster except that of leaving at an inn the purse which contained the funds for the expedition, they arrived, late on the second night, at a little place called the Burgo or Borough, of Osma, which the count of Treviño, one of the partisans of Isabella, had occupied with a considerable body of men-at-arms. On knocking at the gate, cold and faint with travelling, during which the prince had allowed himself to take no repose, they were saluted by a large stone discharged by a sentinel from the battlements, which, glancing near Ferdinand's head, had wellnigh brought his romantic enterprise to a tragical conclusion; when his voice was recognized by his friends within, and, the trumpets proclaiming his arrival, he was received with great joy and festivity by the count and his followers. The remainder of his journey, which he commenced before dawn, was performed under the convoy of a numerous and well-armed escort; and on the 9th of October he reached Dueñas in the kingdom of Leon, where the Castilian nobles and cavaliers of his party eagerly thronged to render him the homage due to his rank. [61]

The intelligence of Ferdinand's arrival diffused universal joy in the little court of Isabella at Valladolid. Her first step was to transmit a letter to her brother Henry, in which she informed him of the presence of the prince in his dominions, and of their intended marriage. She excused the course she had taken by the embarrassments, in which she had been involved by the malice of her enemies. She represented the political advantages of the connection, and the sanction it had received from the Castilian nobles; and she concluded with soliciting his approbation of it, giving him at the same

time affectionate assurances of the most dutiful submission both on the part of Ferdinand and of herself. [62] Arrangements were then made for an interview between the royal pair, in which some courtly parasites would fain have persuaded their mistress to require some act of homage from Ferdinand; in token of the inferiority of the crown of Aragon to that of Castile; a proposition which she rejected with her usual discretion. [63]

Agreeably to these arrangements, Ferdinand, on the evening of the 15th of October, passed privately from Dueñas, accompanied only by four attendants, to the neighboring city of Valladolid, where he was received by the archbishop of Toledo, and conducted to the apartment of his mistress. [64] Ferdinand was at this time in the eighteenth year of his age. His complexion was fair, though somewhat bronzed by constant exposure to the sun; his eye quick and cheerful; his forehead ample, and approaching to baldness. His muscular and well-proportioned frame was invigorated by the toils of war, and by the chivalrous exercises in which he delighted. He was one of the best horsemen in his court, and excelled in field sports of every kind. His voice was somewhat sharp, but he possessed a fluent eloquence; and, when he had a point to carry, his address was courteous and even insinuating. He secured his health by extreme temperance in his diet, and by such habits of activity, that it was said he seemed to find repose in business. [65] Isabella was a year older than her lover. In stature she was somewhat above the middle size. Her complexion was fair; her hair of a bright chestnut color, inclining to red; and her mild blue eye beamed with intelligence and sensibility. She was exceedingly beautiful; "the handsomest lady," says one of her household, "whom I ever beheld, and the most gracious in her manners." [66] The portrait still existing of her in the royal palace, is conspicuous for an open symmetry of features, indicative of the natural serenity of temper, and that beautiful harmony of intellectual and moral qualities, which most distinguished her. She was dignified in her demeanor, and modest even to a degree of reserve. She spoke the Castilian

language with more than usual elegance; and early imbibed a relish for letters, in which she was superior to Ferdinand, whose education in this particular seems to have been neglected. [67] It is not easy to obtain a dispassionate portrait of Isabella. The Spaniards, who revert to her glorious reign, are so smitten with her moral perfections, that even in depicting her personal, they borrow somewhat of the exaggerated coloring of romance.

The interview lasted more than two hours, when Ferdinand retired to his quarters at Dueñas, as privately as he came. The preliminaries of the marriage, however, were first adjusted; but so great was the poverty of the parties, that it was found necessary to borrow money to defray the expenses of the ceremony. [68] Such were the humiliating circumstances attending the commencement of a union destined to open the way to the highest prosperity and grandeur of the Spanish monarchy!

The marriage between Ferdinand and Isabella was publicly celebrated, on the morning of the 19th of October, in the palace of John de Vivero, the temporary residence of the princess, and subsequently appropriated to the chancery of Valladolid. The nuptials were solemnized in the presence of Ferdinand's grandfather, the admiral of Castile, of the archbishop of Toledo, and a multitude of persons of rank, as well as of inferior condition, amounting in all to no less than two thousand. [69] A papal bull of dispensation was produced by the archbishop, relieving the parties from the impediment incurred by their falling within the prohibited degrees of consanguinity. This spurious document was afterwards discovered to have been devised by the old king of Aragon, Ferdinand, and the archbishop, who were deterred from applying to the court of Rome by the zeal with which it openly espoused the interests of Henry, and who knew that Isabella would never consent to a union repugnant to the canons of the established church, and one which involved such heavy ecclesiastical censures. A genuine bull of dispensation was obtained, some years later, from Sixtus the

Fourth; but Isabella, whose honest mind abhorred everything like artifice, was filled with no little uneasiness and mortification at the discovery of the imposition. [70] The ensuing week was consumed in the usual festivities of this joyous season; at the expiration of which, the new-married pair attended publicly the celebration of mass, agreeably to the usage of the time, in the collegiate church of Sante Maria. [71]

An embassy was despatched by Ferdinand and Isabella to Henry, to acquaint him with their proceedings, and again request his approbation of them. They repeated their assurances of loyal submission, and accompanied the message with a copious extract from such of the articles of marriage, as, by their import, would be most likely to conciliate his favorable disposition. Henry coldly replied, that "he must advise with his ministers." [72]

* * * * *

Gonzalo Fernandez de Oviedo y Valdés, author of the "Quincuagenas" frequently cited in this History, was born at Madrid, in 1478. He was of noble Asturian descent. Indeed, every peasant in the Asturias claims nobility as his birthright. At the age of twelve he was introduced into the royal palace, as one of the pages of Prince John. He continued with the court several years, and was present, though a boy, in the closing campaigns of the Moorish war. In 1514, according to his own statement, he embarked for the Indies, where, although he revisited his native country several times, he continued during the remainder of his long life. The time of his death is uncertain.

Oviedo occupied several important posts under the government, and he was appointed to one of a literary nature, for which he was well qualified by his long residence abroad; that of historiographer of the Indies. It was in this capacity that he produced his principal work, "Historia General de las Indias," in fifty books. Las Casas denounces the book as a wholesale

fabrication, "as full of lies, almost, as pages." (Oeuvres, trad. de Llorente, tom. i. p. 382.) But Las Casas entertained too hearty an aversion for the man, whom he publicly accused of rapacity and cruelty, and was too decidedly opposed to his ideas on the government of the Indies, to be a fair critic. Oviedo, though somewhat loose and rambling, possessed extensive stores of information, by which those who have had occasion to follow in his track have liberally profited.

The work with which we are concerned is his *Quincuagenas*. It is entitled "Las Quincuagenas de los generosos é ilustres é no menos famosos Reyes, Príncipes, Duques, Marqueses y Condes et Caballeros, et Personas notables de España, que escribió el Capitan Gonzalo Fernandez de Oviedo y Valdez, Alcáide de sus Magestades de la Fortaleza de la Cibdad é Puerto de Sancto Domingo de la Isla Española, Coronista de las Indias," etc. At the close of the third volume is this record of the octogenarian author; "Acabé de escribir de mi mano este famoso tratado de la nobleza de España, domingo 1730; dia de Páscoa de Pentecostes XXIII. de mayo de 1556 años. Laus Deo. Y de mi edad 79 años." This very curious work is in the form of dialogues, in which the author is the chief interlocutor. It contains a very full, and, indeed, prolix notice of the principal persons in Spain, their lineage, revenues, and arms, with an inexhaustible fund of private anecdote. The author, who was well acquainted with most of the individuals of note in his time, amused himself, during his absence in the New World, with keeping alive the images of home by this minute record of early reminiscences. In this mass of gossip, there is a good deal, indeed, of very little value. It contains, however, much for the illustration of domestic manners, and copious particulars, as I have intimated, respecting the characters and habits of eminent personages, which could have been known only to one familiar with them. On all topics of descent and heraldry, he is uncommonly full; and one would think his services in this department alone might have secured him, in a land where these are so much respected, the

honors of the press. His book, however, still remains in manuscript, apparently little known, and less used, by Castilian scholars. Besides the three folio volumes in the Royal Library at Madrid, from which the transcript in my possession was obtained, Clemencin, whose commendations of this work, as illustrative of Isabella's reign, are unqualified. (Mem. de la Acad. de Hist., tom. vi. Ilust. 10,) enumerates three others, two in the king's private library, and one in that of the Academy.

FOOTNOTES

[1]

"Nil pudet assuetos sceptris: mitissima sors est
Regnorum sub rege novo." Lucan, *Pharsalia*, lib. 8.

[2] Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 8.—Rodericus Sanctius, *Historia Hispanica*, cap. 38, 39.—Pulgar, *Claros Varones*, tit. 1.—Castillo, *Crónica*, i. 20.—Guzman, *Generaciones*, cap. 33.—Although Henry's lavish expenditure, particularly on works of architecture, gained him in early life the appellation of "the Liberal," he is better known on the roll of Castilian sovereigns by the less flattering title of "the Impotent."

[3] Zuñiga, *Anales Eclesiasticos y Seculares de Sevilla*, (Madrid, 1667,) p. 344.—Castillo, *Crónica*, cap. 20.—Mariana, *Hist. de España*, tom. ii. pp. 415, 419.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 14 et seq.—The surprise of Gibraltar, the unhappy source of feud between the families of Guzman and Ponce de Leon, did not occur till a later period, 1462.

[4] Such was his apathy, says Mariana, that he would subscribe his name to public ordinances, without taking the trouble to acquaint himself with their contents. *Hist. de España*, tom. ii. p. 423.

[5] Pulgar, *Crónica de los Reyes Católicos*, (Valencia, 1780,) cap. 2.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 4.—Aleson, *Anales de Navarra*, tom. iv. pp. 519, 520.—The marriage between Blanche and Henry was publicly declared void by the bishop of Segovia, confirmed by the archbishop of Toledo, "por impotencia respectiva, owing to some malign influence"!

[6] La Clède, *Hist. de Portugal*, tom. iii. pp. 325, 345.—Florez, *Reynas Cathólicas*, tom. ii. pp. 763, 766.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 20, 21.—It does not appear, however, whom Beltran de la Cueva indicated as the lady of his love on this occasion. (See Castillo, *Crónica*, cap. 23, 24.) Two anecdotes may be mentioned as characteristic of the gallantry of the times. The archbishop of Seville concluded a superb *fête*, given in honor of the royal nuptials, by introducing on the table two vases filled with rings garnished with precious stones, to be distributed among his female guests. At a ball given on another occasion, the young queen having condescended to dance with the French ambassador, the latter made a solemn vow, in commemoration of so distinguished an honor, never to dance with any other woman.

[7] Alonso de Palencia, *Corónica*, MS., cap. 42, 47.—Castillo, *Crónica*, cap. 23.

[8] Alonso de Palencia, *Corónica*, MS., cap. 35.—Sempere, *Hist. del Luxo*, tom. i. p. 183.—Idem, *Hist. des Cortès*, ch. 19.—Marina, *Teoría*, part. 1, cap. 20.—part. 2, pp. 390, 391.—Zuñiga, *Anales de Sevilla*, pp. 346, 349.—The papal bulls of crusade issued on these occasions, says Palencia, contained among other indulgences an exemption from the pains and penalties of purgatory, assuring to the soul of the purchaser, after death, an immediate translation into a state of glory. Some of the more orthodox casuists doubted the validity of such a bull. But it was decided, after due

examination, that, as the holy father possessed plenary power of absolution of all offenses committed upon earth, and as purgatory is situated upon earth, it properly fell within his jurisdiction, (cap. 32.) Bulls of crusade were sold at the rate of 200 maravedies each; and it is computed by the same historian, that no less than 4,000,000 maravedies were amassed by this traffic in Castile, in the space of four years!

[9] Saez, *Monedas de Enrique IV.*, (Madrid, 1805,) pp. 2-5.—Alonso de Palencia, *Corónica*, MS., cap. 36, 39.—Castillo, *Crónica*, cap. 19.

[10] Pulgar, *Claros Varones*, tit. 6.—Castillo, *Crónica*, cap. 15.—Mendoza, *Monarquía de España*, tom. i. p. 328.—The ancient marquisate of Villena, having been incorporated into the crown of Castile, devolved to Prince Henry of Aragon, on his marriage with the daughter of John II. It was subsequently confiscated by that monarch, in consequence of the repeated rebellions of Prince Henry; and the title, together with a large proportion of the domains originally attached to it, was conferred on Don Juan Pacheco, by whom it was transmitted to his son, afterwards raised to the rank of duke of Escalona, in the reign of Isabella. Salazar de Mendoza, *Dignidades de Castilla y Leon*, (Madrid, 1794,) lib. 3, cap. 12, 17.

[11] Pulgar, *Claros Varones*, tit. 20.—Bernaldez, *Reyes Católicos*, MS., cap. 10, 11.

[12] At least these are the important consequences imputed to this interview by the French writers. See Gaillard, *Rivalité*, tom. iii. pp. 241-243.—Comines, *Mémoires*, liv. 3, chap. 8.—Also Castillo, *Crónica*, cap. 48, 49.—Zurita, *Anales*, lib. 17, cap. 50.

[13] Ferreras, *Hist. d'Espagne*, tom. ii. p. 122.—Zurita, *Anales*, lib. 17, cap. 56.—Castillo, *Crónica*, cap. 51, 52, 58.—The queen of Aragon, who was as skilful a diplomatist as her husband, John I., assailed the vanity of

Villena, quite as much as his interest. On one of his missions to her court, she invited him to dine with her *tête-à-tête* at her own table, while during the repast they were served by the ladies of the palace. *Ibid.*, cap. 40.

[14] See the memorial presented to the king, cited at length in Marina, *Teoría*, tom. iii. Apend. no. 7.—Castillo, *Crónica*, cap. 58, 64.—Zurita, *Anales*, lib. 17, cap. 56.—Lebrija, *Hispanarum Rerum Ferdinando Rege et Elisabe Reginâ Gestarum Decades*, (apud Granatam, 1545,) lib. 1, cap. 1, 2.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 6.—Bernaldez, *Reyes Católicos*, MS., cap. 9.

[15] Castillo, *Crónica*, cap. 65.

[16] See copies from the original instruments, which are still preserved in the archives of the house of Villena, in Marina, *Teoría*, tom. iii. part. 2, Ap. 6, 8.—Castillo, *Crónica*, cap. 66, 67.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 57.

[17] Alonso de Palencia, *Corónica*, MS., part. 1, cap. 62.—Castillo, *Crónica*, cap. 68, 69, 74.

[18] Alonso de Palencia, *Corónica*, MS., part. 1, cap. 63, 70.—Castillo, *Crónica*, cap. 75, 76.

[19] The celebrated marquis of Santillana died in 1458, at the age of sixty. (Sanchez, *Poesías Castellanas*, tom. i. p. 23.) The title descended to his eldest son, Diego Hurtado de Mendoza, who is represented by his contemporaries to have been worthy of his sire. Like him, he was imbued with a love of letters; he was conspicuous for his magnanimity and chivalrous honor, his moderation, constancy, and uniform loyalty to his sovereign, virtues of rare worth in those rapacious and turbulent times. (Pulgar, *Claros Varones*, tit. 9.) Ferdinand and Isabella created him duke del

Infantado. This domain derives its name from its having been once the patrimony of the *infantes* of Castile. See Salazar de Mendoza, *Monarquía*, tom. i. p. 219,—and *Dignidades de Castilla*, lib. 3, cap. 17.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 8.

[20] Alonso de Palencia, *Corónica*, MS., part. 1, cap. 64.—Castillo, *Crónica*, cap. 78.

[21] Castillo, *Crónica*, cap. 80, 82.

[22] Rades y Andrada, *Chrónica de Las Tres Ordenes y Cavallerías*, (Toledo, 1572,) fol. 76.—Castillo, *Crónica*, cap. 85.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 73.

[24] L. Marineo, *Cosas Memorables*, fol. 154.—Florez, *Reynas Cathólicas*, tom. ii. p. 789.—Castillo, *Crónica*, cap. 37.

[25] Aleson, *Anales de Navarra*, tom. iv. pp. 561, 562.—Zurita, *Anales*, lib. 16, cap. 46, lib. 17, cap. 3.—Castillo, *Crónica*, cap. 31, 57.—Alonso de Palencia, *Corónica*, MS., cap. 55.

[26] *Decad. de Palencia*, apud *Mem. de la Acad. de Hist.*, tom. vi. p. 65, nota.

[27] Alonso de Palencia, *Corónica*, MS., cap. 73.—Mariana, *Hist. de España*, tom. ii. p. 450.—Garibay, *Compendio*, tom. ii. p. 532.

This lady, Doña Beatriz Fernandez de Bobadilla, the most intimate personal friend of Isabella, will appear often in the course of our narrative. Gonzalo de Oviedo, who knew her well, describes her as "illustrating her generous lineage by her conduct, which was wise, virtuous, and valiant." (*Quincuagenas*, MS., dial. de Cabrera.) The last epithet, rather singular for a female character, was not unmerited.

[28] Palencia imputes his death to an attack of the quinsy. *Corónica*, MS., cap. 73.

[29] Rades y Andrada, *Las Tres Ordenes*, fol. 77.—Caro de Torres, *Historia de las Ordenes Militares de Santiago, Calatrava, y Alcantara*, (Madrid, 1629,) lib. 2, cap. 59.—Castillo, *Crónica*, cap. 85.—Alonso de Palencia, *Corónica*, MS., cap. 73.—Gaillard remarks on this event, "Chacun crut sur cette mort ce qu'il voulut." And again in a few pages after, speaking of Isabella, he says, "On remarqua que tons ceux qui pouvoient faire obstacle à la satisfaction ou à la fortune d'Isabelle, mouroient toujours à propos pour elle." (*Rivalité*, tom. iii. pp. 280, 286.) This ingenious writer is fond of seasoning his style with those piquant sarcasms, in which oftentimes more is meant than meets the ear, and which Voltaire rendered fashionable in history. I doubt, however, if, amid all the heats of controversy and faction, there is a single Spanish writer of that age, or indeed of any subsequent one, who has ventured to impute to the contrivance of Isabella any one of the fortunate coincidences, to which the author alludes.

[30] Lebrija, *Rerum Gestarum Decades*, lib. 1, cap. 2—Zurita, *Anales*, lib. 18, cap. 10—Castillo, *Cronies*, cap. 93, 97.—Alonso de Palencia, *Corónica*, MS., part. 1, cap 80.

[31] Alonso de Palencia, *Corónica* MS., cap. 82.

[32] Zuñiga, *Anales de Sevilla*, pp. 851, 352.—Carta del Levantamiento de Toledo, apud Castillo, *Crónica*, p. 109.—The historian of Seville has quoted an animated apostrophe addressed to the citizens by one of their number in this season of discord:

"Mezquina Sevilla en la sangre bañada de los tus fijos, i tus cavalleros, que fado enemigo te tiene minguada," etc.

The poem concludes with a summons to throw off the yoke of their oppressors:

"Despierta Sevilla e sacude el imperio,
que faze a tus nobles tanto vituperio."

See Anales, p. 359.

[33] "Quod in pace fore, sen natura, tune fatum et ira dei vocabatur;" says Tacitus, (*Historiae*, lib. 4, cap. 26,) adverting to a similar state of excitement.

[34] Saez quotes a MS. letter of a contemporary, exhibiting a frightful picture of these disorders. (*Monedas de Enrique IV.*, p. 1, not.—Castillo, *Crónica*, cap. 83, 87, et passim.—Mariana, *Hist. de España*, tom. ii. p. 451.—Marina, *Teoría*, tom. ii. p. 487.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 69.) The active force kept on duty by the Hermandad amounted to 3000 horse. *Ibid.*, cap. 89, 90.

[35] Alonso de Palencia, *Corónica*, MS., cap. 87, 92.—Castillo, *Crónica*, cap. 94.—Garibay, *Compendio*, lib. 17, cap. 20.

[36] Marina, *Teoría*, part. 2, cap. 88.

[37] Lebrija, *Rerum Gestarum Decad.*, lib. 1, cap. 3.—Alonso de Palencia, *Corónica*, MS., part. 1, cap. 92.—Florez, *Reynas Cathólicas*, tom. ii. p. 790.

[38] Lebrija, *Rerum Gestarum Decad.*, lib. 1, cap. 3.—Ferrerias, *Hist. d'Espagne*, tom. vii. p. 218.—Alonso de Palencia, *Corónica*, part. 1, cap. 92.—part. 2, cap. 5.

[39] See a copy of the original compact cited at length by Marina, *Teoría*, Apend. no. 11.—Pulgar, *Reyes Católicos*, part. 1, cap. 2.

[40] So called from four bulls, sculptured in stone, discovered there, with Latin inscriptions thereon, indicating it to have been the site of one of Julius Caesar's victories during the civil war. (Estrada, *Poblacion General de España*, (Madrid, 1748,) tom. i. p. 306.)—Galindez de Carbaja, a contemporary, fixes the date of this convention in August. *Apales del Rey Fernando el Católico*, MS., año 1468.

[41] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 4.—Castillo, *Crónica*, cap. 18.—Mariana, *Hist. de España*, tom. ii. pp. 461, 462.—Pulgar, *Reyes Católicos*, part. 1, cap. 2.—Castillo affirms that Henry, incensed by his sister's refusal of the king of Portugal, dissolved the cortes at Ocaña, before it had taken the oath of allegiance to her. (*Crónica*, cap. 127.) This assertion, however, is counterbalanced by the opposite one of Pulgar, a contemporary writer, like himself. (*Reyes Católicos*, cap. 5.) And as Ferdinand and Isabella, in a letter addressed, after their marriage, to Henry IV., transcribed also by Castillo, allude incidentally to such a recognition as to a well-known fact, the balance of testimony must be admitted to be in favor of it. See Castillo, *Crónica*, cap. 114.

[42] Isabella, who in a letter to Henry IV., dated Oct. 12th, 1469, adverts to these proposals of the English prince, as being under consideration at the time of the convention of Toros de Guisando, does not specify which of the brothers of Edward IV. was intended. (Castillo, *Crónica*, cap. 136.)

Mr. Turner, in his *History of England during the Middle Ages*, (London, 1825,) quotes part of the address delivered by the Spanish envoy to Richard III., in 1483, in which the orator speaks of "the unkindness, which his queen Isabella had conceived for Edward IV., for his refusal of her, and his taking instead to wife a widow of England." (Vol. iii. p. 274.) The old chronicler

Hall, on the other hand, mentions, that it was currently reported, although he does not appear to credit it, that the earl of Warwick had been despatched into Spain in order to request the hand of the princess Isabella for his master Edward IV., in 1463. (See his *Chronicle of England*, (London, 1809,) pp. 263, 264.)—I find nothing in the Spanish accounts of that period, which throws any light on these obvious contradictions.

[43] The territories of France and Castile touched, indeed, on one point (Guipuscoa), but were separated along the whole remaining line of frontier by the kingdoms of Aragon and Navarre.

[44] Pulgar, *Reyes Católicos*, cap. 8.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 10.

[45] Isabella, in order to acquaint herself more intimately with the personal qualities of her respective suitors, had privately despatched her confidential chaplain, Alonso de Coca, to the courts of France and of Aragon, and his report on his return was altogether favorable to Ferdinand. The duke of Guienne he represented as "a feeble, effeminate prince, with limbs so emaciated as to be almost deformed, and with eyes so weak and watery as to incapacitate him for the ordinary exercises of chivalry. While Ferdinand, on the other hand, was possessed of a comely, symmetrical figure, a graceful demeanor, and a spirit that was up to anything;" *mui dispuesto para toda cosa que hacer quisiere*. It is not improbable that the queen of Aragon condescended to practise some of those agreeable arts on the worthy chaplain, which made so sensible an impression on the marquis of Villena.

[46] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 5.

[47] See ante, note 10.

[48] Faria y Sousa, *Europa Portuguesa*, tom. ii. p. 391.—Castillo, *Crónica*, cap. 121, 127.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 7.—Lebrija, *Rerum Gestarum Decad.*, lib. 1, cap. 7.

[49] Bernaldez, *Reyes Católicos*, MS., cap. 7.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 7.

[50] Pulgar, *Claros Varones*, tit. 2.

[51] L. Marineo, *Cosas Memorables*, fol. 154.—Zurita, *Anales*, tom. iv. fol. 162.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 7.—Pulgar, *Reyes Católicos*, cap. 9.

[52] Zurita, *Anales*, tom. iv. fol. 157, 163.

[53] See the copy of the original marriage contract, as it exists in the archives of Simancas, extracted in tom. vi. of *Memorias de la Acad. de Hist.*, Apend. no. 1.—Zurita, *Anales*, lib. 18, cap. 21.—Ferrerias, *Hist. d'Espagne*, tom. vii. p. 236.

[54] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 12.—Castillo, *Crónica*, cap. 128, 131, 136.—Zurita, *Anales*, tom. iv. fol. 162.—Beatrice de Bobadilla and Mencia de la Torre, the two ladies most in her confidence, had escaped to the neighboring town of Coca.

[55] Castillo, *Crónica*, cap. 136.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 12.—Carbajal, *Anales*, MS., año 69.

[56] This cavalier, who was of an ancient and honorable family in Castile, was introduced to the princess's service by the archbishop of Toledo. He is represented by Gonzalo de Oviedo as a man of much sagacity and knowledge of the world, qualities with which he united a steady

devotion to the interests of his mistress. Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 2, dial. 1.

[57] Alonso de Palencia, *Corónica*, MS., cap. 14.—The bishop told Palencia, that "if his own servants deserted him, he would oppose the entrance of Ferdinand into the kingdom."

[58] Zurita, *Anales*, lib. 18, cap. 26.—The *enrique* was a gold coin, so denominated from Henry II.

[59] Zurita, *Anales*, lib. 18, cap. 26.—Abarca, *Reyes de Aragon*, tom. ii. p. 273.

[60] *Mem. de la Acad. de Hist.*, tom. vi. p. 78, Ilust. 2.

[61] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 14.—Zurita, *Anales*, loc. cit.

[62] This letter, dated October 12th, is cited at length by Castillo, *Crónica*, cap. 136.

[63] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 15.

[64] Gutierre de Cardenas was the first who pointed him out to the princess, exclaiming at the same time, "*Ese es, ese es*," "This is he;" in commemoration of which he was permitted to place on his escutcheon the letters SS, whose pronunciation in Spanish resembles that of the exclamation which he had uttered. *Ibid.*, part. 2, cap. 15.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 2, dial. 1.

[65] L. Marineo, *Cosas Memorables*, fol. 182.—Garibay, *Compendio*, lib. 18, cap. 1.—"Tan amigo de los negocios," says Mariana, "que parecia con el trabajo descansaba." *Hist. de España*, lib. 25, cap. 18.

[66] "En hermosura, puestas delante S. A. todas las mugeres que yo he visto, ninguna vi tan graciosa, ni tanto de ver corao su persona, ni de tal manera e sanctidad honestísima." Oviedo, *Quincuagenas*, MS.

[67] Bernaldez, *Reyes Católicos*, MS., cap. 201.—Abarca, *Reyes de Aragon*, tom. ii. p. 362.—Garibay, *Compendio*, lib. 18, cap. 1.

[68] Mariana, *Hist. de España*, tom. ii. p. 465.

[69] Carbajal, *Anales*, MS., año 1469.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 16.—Zurita, *Anales*, lib. 18, cap. 26.—See a copy of the official record of the marriage, *Mem. de la Acad.*, tom. vi. Apend. 4. See also the *Ilust.* 2.

[70] The intricacies of this affair, at once the scandal and the stumbling-block of the Spanish historians, have been unravelled by Señor Clemencin, with his usual perspicuity. See *Mem. de la Acad.*, tom. vi. pp. 105-116, *Ilust.* 2.

[71] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 16.—A lively narrative of the adventures of Prince Ferdinand, detailed in this chapter, may be found in Cushing's *Reminiscences of Spain*, (Boston, 1833,) vol. i. pp. 225-255.

[72] Castillo, *Crónica*, cap. 137.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 16.

CHAPTER IV.

FACTIONS IN CASTILE.—WAR BETWEEN FRANCE AND ARAGON.—DEATH OF HENRY IV., OF CASTILE.

1469-1474.

Factions in Castile.—Ferdinand and Isabella.—Gallant Defence of Perpignan against the French.—Ferdinand Raises the Siege.—Isabella's Party gains Strength.—Interview between King Henry IV. and Isabella.—The French Invade Roussillon.—Ferdinand's Summary Justice.—Death of Henry IV., of Castile.—Influence of his Reign.

The marriage of Ferdinand and Isabella disconcerted the operations of the marquis of Villena, or, as he should be styled, the grand master of St. James, since he had resigned his marquisate to his elder son, on his appointment to the command of the military order above mentioned, a dignity inferior only to the primacy in importance. It was determined, however, in the councils of Henry to oppose at once the pretensions of the princess Joanna to those of Isabella; and an embassy was gladly received from the king of France, offering to the former lady the hand of his brother the duke of Guienne, the rejected suitor of Isabella. Louis the Eleventh was

willing to engage his relative in the unsettled politics of a distant state, in order to relieve himself from his pretensions at home. [1]

An interview took place between Henry the Fourth and the French ambassadors in a little village in the vale of Lozoya, in October, 1470. A proclamation was read, in which Henry declared his sister to have forfeited whatever claims she had derived from the treaty of Toros de Guisando, by marrying contrary to his approbation. He then with his queen swore to the legitimacy of the princess Joanna, and announced her as his true and lawful successor. The attendant nobles took the usual oaths of allegiance, and the ceremony was concluded by affiancing the princess, then in the ninth year of her age, with the formalities ordinarily practised on such occasions, to the count of Boulogne, the representative of the duke of Guienne. [2]

This farce, in which many of the actors were the same persons who performed the principal parts at the convention of Toros de Guisando, had on the whole an unfavorable influence on Isabella's cause. It exhibited her rival to the world as one whose claims were to be supported by the whole authority of the court of Castile, with the probable co-operation of France. Many of the most considerable families in the kingdom, as the Pachecos, [3] the Mendozas in all their extensive ramifications, [4] the Zuñigas, the Velascos, [5] the Pimentels, [6] unmindful of the homage so recently rendered to Isabella, now openly testified their adhesion to her niece.

Ferdinand and his consort, who held their little court at Dueñas, [8] were so poor as to be scarcely capable of defraying the ordinary charges of their table. The northern provinces of Biscay and Guipuscoa had, however, loudly declared against the French match; and the populous province of Andalusia, with the house of Medina Sidonia at its head, still maintained its loyalty to Isabella unshaken. But her principal reliance was on the archbishop of Toledo, whose elevated station in the church and ample

revenues gave him perhaps less real influence, than his commanding and resolute character, which had enabled him to triumph over every obstacle devised by his more crafty adversary, the grand master of St. James. The prelate, however, with all his generous self-devotion, was far from being a comfortable ally. He would willingly have raised Isabella to the throne, but he would have her indebted for her elevation exclusively to himself. He looked with a jealous eye on her most intimate friends, and complained that neither she nor her husband deferred sufficiently to his counsel. The princess could not always conceal her disgust at these humors, and Ferdinand, on one occasion, plainly told him that "he was not to be put in leading-strings, like so many of the sovereigns of Castile." The old king of Aragon, alarmed at the consequences of a rupture with so indispensable an ally, wrote in the most earnest manner to his son, representing the necessity of propitiating the offended prelate. But Ferdinand, although educated in the school of dissimulation, had not yet acquired that self-command, which enabled him in after-life to sacrifice his passions, and sometimes indeed his principles, to his interests. [9]

The most frightful anarchy at this period prevailed throughout Castile. While the court was abandoned to corrupt or frivolous pleasure, the administration of justice was neglected, until crimes were committed with a frequency and on a scale, which menaced the very foundations of society. The nobles conducted their personal feuds with an array of numbers which might compete with those of powerful princes. The duke of Infantado, the head of the house of Mendoza, [10] could bring into the field, at four and twenty hours' notice one thousand lances and ten thousand foot. The battles, far from assuming the character of those waged by the Italian *condottieri* at this period, were of the most sanguinary and destructive kind. Andalusia was in particular the theatre of this savage warfare. The whole of that extensive district was divided by the factions of the Guzmans and Ponces de Leon. The chiefs of these ancient houses having recently died, the

inheritance descended to young men, whose hot blood soon revived the feuds, which had been permitted to cool under the temperate sway of their fathers. One of these fiery cavaliers was Rodrigo Ponce de Leon, so deservedly celebrated afterwards in the wars of Granada as the marquis of Cadiz. He was an illegitimate and younger son of the count of Arcos, but was preferred by his father to his other children in consequence of the extraordinary qualities which he evinced at a very early period. He served his apprenticeship to the art of war in the campaigns against the Moors, displaying on several occasions an uncommon degree of enterprise and personal heroism. On succeeding to his paternal honors, his haughty spirit, impatient of a rival, led him to revive the old feud with the duke of Medina Sidonia, the head of the Guzmans, who, though the most powerful nobleman in Andalusia, was far his inferior in capacity and military science. [11]

On one occasion the duke of Medina Sidonia mustered an army of twenty thousand men against his antagonist; on another, no less than fifteen hundred houses of the Ponce faction were burnt to the ground in Seville. Such were the potent engines employed by these petty sovereigns in their conflicts with one another, and such the havoc which they brought on the fairest portion of the Peninsula. The husbandman, stripped of his harvest and driven from his fields, abandoned himself to idleness, or sought subsistence by plunder. A scarcity ensued in the years 1472 and 1473, in which the prices of the most necessary commodities rose to such an exorbitant height, as put them beyond the reach of any but the affluent. But it would be wearisome to go into all the loathsome details of wretchedness and crime brought on this unhappy country by an imbecile government and a disputed succession, and which are portrayed with lively fidelity in the chronicles, the letters, and the satires of the time. [12]

While Ferdinand's presence was more than ever necessary to support the drooping spirits of his party in Castile, he was unexpectedly summoned into Aragon to the assistance of his father. No sooner had Barcelona submitted to King John, as mentioned in a preceding chapter, [13] than the inhabitants of Roussillon and Cerdagne, which provinces, it will be remembered, were placed in the custody of France, as a guaranty for the king of Aragon's engagements, oppressed by the grievous exactions of their new rulers, determined to break the yoke, and to put themselves again under the protection of their ancient master, provided they could obtain his support. The opportunity was favorable. A large part of the garrisons in the principal cities had been withdrawn by Louis the Eleventh, to cover the frontier on the side of Burgundy and Brittany. John, therefore, gladly embraced the proposal, and on a concerted day a simultaneous insurrection took place throughout the provinces, when such of the French, in the principal towns, as had not the good fortune to escape into the citadels, were indiscriminately massacred. Of all the country, Salces, Collioure, and the castle of Perpignan alone remained in the hands of the French. John then threw himself into the last-named city with a small body of forces, and instantly set about the construction of works to protect the inhabitants against the fire of the French garrison in the castle, as well as from the army which might soon be expected to besiege them from without. [14]

Louis the Eleventh, deeply incensed at the defection of his new subjects, ordered the most formidable preparations for the siege of their capital. John's officers, alarmed at these preparations, besought him not to expose his person at his advanced age to the perils of a siege and of captivity. But the lion-hearted monarch saw the necessity of animating the spirits of the besieged by his own presence; and, assembling the inhabitants in one of the churches of the city, he exhorted them resolutely to stand to their defence, and made a solemn oath to abide the issue with them to the last.

Louis, in the mean while, had convoked the *ban* and *arrière-ban* of the contiguous French provinces, and mustered an array of chivalry and feudal militia amounting, according to the Spanish historians, to thirty thousand men. With these ample forces, his lieutenant-general, the duke of Savoy, closely invested Perpignan; and, as he was provided with a numerous train of battering artillery, instantly opened a heavy fire on the inhabitants. John, thus exposed to the double fire of the fortress and the besiegers, was in a very critical situation. Far from being disheartened, however, he was seen, armed cap-a-pie, on horseback from dawn till evening, rallying the spirits of his troops, and always present at the point of danger. He succeeded perfectly in communicating his own enthusiasm to the soldiers. The French garrison were defeated in several sorties, and their governor taken prisoner; while supplies were introduced into the city in the very face of the blockading army. [15]

Ferdinand, on receiving intelligence of his father's perilous situation, instantly resolved, by Isabella's advice, to march to his relief. Putting himself at the head of a body of Castilian horse, generously furnished him by the archbishop of Toledo and his friends, he passed into Aragon, where he was speedily joined by the principal nobility of the kingdom, and an army amounting in all to thirteen hundred lances and seven thousand infantry. With this corps he rapidly descended the Pyrenees, by the way of Mançanara, in the face of a driving tempest, which concealed him for some time from the view of the enemy. The latter, during their protracted operations, for nearly three months, had sustained a serious diminution of numbers in their repeated skirmishes with the besieged, and still more from an epidemic which broke out in their camp. They also began to suffer not a little from want of provisions. At this crisis, the apparition of this new army, thus unexpectedly descending on their rear, filled them with such consternation, that they raised the siege at once, setting fire to their tents, and retreating with such precipitation as to leave most of the sick and

wounded a prey to the devouring element. John marched out, with colors flying and music playing, at the head of his little band, to greet his deliverers; and, after an affecting interview in the presence of the two armies, the father and son returned in triumph into Perpignan. [16]

The French army, reinforced by command of Louis, made a second ineffectual attempt (their own writers call it only a feint) upon the city; and the campaign was finally concluded by a treaty between the two monarchs, in which it was arranged, that the king of Aragon should disburse within the year the sum originally stipulated for the services rendered him by Louis in his late war with his Catalan subjects; and that, in case of failure, the provinces of Roussillon and Cerdagne should be permanently ceded to the French crown. The commanders of the fortified places in the contested territory, selected by one monarch from the nominations of the other, were excused during the interim from obedience to the mandates of either; at least so far as they might contravene their reciprocal engagements. [17]

There is little reason to believe that this singular compact was subscribed in good faith by either party. John, notwithstanding the temporary succor which he had received from Louis at the commencement of his difficulties with the Catalans, might justly complain of the infraction of his engagements, at a subsequent period of the war; when he not only withheld the stipulated aid, but indirectly gave every facility in his power to the invasion of the duke of Lorraine. Neither was the king of Aragon in a situation, had he been disposed, to make the requisite disbursements. Louis, on the other hand, as the event soon proved, had no other object in view but to gain time to reorganize his army, and to lull his adversary into security, while he took effectual measures for recovering the prize which had so unexpectedly eluded him.

During these occurrences Isabella's prospects were daily brightening in Castile. The duke of Guienne, the destined spouse of her rival Joanna, had died in France; but not until he had testified his contempt of his engagements with the Castilian princess by openly soliciting the hand of the heiress of Burgundy. [18] Subsequent negotiations for her marriage with two other princes had entirely failed. The doubts which hung over her birth, and which the public protestations of Henry and his queen, far from dispelling, served only to augment, by the necessity which they implied for such an extraordinary proceeding, were sufficient to deter any one from a connection which must involve the party in all the disasters of a civil war. [19]

Isabella's own character, moreover, contributed essentially to strengthen her cause. Her sedate conduct, and the decorum maintained in her court, formed a strong contrast with the frivolity and license which disgraced that of Henry and his consort. Thinking men were led to conclude that the sagacious administration of Isabella must eventually secure to her the ascendancy over her rival; while all, who sincerely loved their country, could not but prognosticate for it, under her beneficent sway, a degree of prosperity, which it could never reach under the rapacious and profligate ministers who directed the councils of Henry, and most probably would continue to direct those of his daughter.

Among the persons whose opinions experienced a decided revolution from these considerations was Pedro Gonzalez de Mendoza, archbishop of Seville and cardinal of Spain; a prelate, whose lofty station in the church was supported by talents of the highest order; and whose restless ambition led him, like many of the churchmen of the time, to take an active interest in politics, for which he was admirably adapted by his knowledge of affairs and discernment of character. Without deserting his former master, he privately entered into a correspondence with Isabella; and a service, which

Ferdinand, on his return from Aragon, had an opportunity of rendering the duke of Infantado, the head of the Mendozas, [20] secured the attachment of the other members of this powerful family. [21]

A circumstance occurred at this time, which seemed to promise an accommodation between the adverse factions, or at least between Henry and his sister. The government of Segovia, whose impregnable citadel had been made the depository of the royal treasure, was intrusted to Andres de Cabrera, an officer of the king's household. This cavalier, influenced in part by personal pique to the grand master of St. James, and still more perhaps by the importunities of his wife, Beatriz de Bobadilla, the early friend and companion of Isabella, entered into a correspondence with the princess, and sought to open the way for her permanent reconciliation with her brother. He accordingly invited her to Segovia, where Henry occasionally resided, and, to dispel any suspicions which she might entertain of his sincerity, despatched his wife secretly by night, disguised in the garb of a peasant, to Aranda, where Isabella then held her court. The latter, confirmed by the assurances of her friend, did not hesitate to comply with the invitation, and, accompanied by the archbishop of Toledo, proceeded to Segovia, where an interview took place between her and Henry the Fourth, in which she vindicated her past conduct, and endeavored to obtain her brother's sanction to her union with Ferdinand. Henry, who was naturally of a placable temper, received her communication with complacency, and, in order to give public demonstration of the good understanding now subsisting between him and his sister, condescended to walk by her side, holding the bridle of her palfrey, as she rode along the streets of the city. Ferdinand, on his return into Castile, hastened to Segovia, where he was welcomed by the monarch with every appearance of satisfaction. A succession of and splendid entertainments, at which both parties assisted, seemed to announce an entire oblivion of all past animosities, and the nation welcomed with satisfaction

these symptoms of repose after the vexatious struggle by which it had been so long agitated. [22]

The repose, however, was of no great duration. The slavish mind of Henry gradually relapsed under its ancient bondage; and the grand master of St. James succeeded, in consequence of an illness with which the monarch was suddenly seized after an entertainment given by Cabrera, in infusing into his mind suspicions of an attempt at assassination. Henry was so far incensed or alarmed by the suggestion, that he concerted a scheme for privately seizing the person of his sister, which was defeated by her own prudence and the vigilance of her friends. [23]—But, if the visit to Segovia failed in its destined purpose of a reconciliation with Henry, it was attended with the important consequence of securing to Isabella a faithful partisan in Cabrera, who, from the control which his situation gave him over the royal coffers, proved a most seasonable ally in her subsequent struggle with Joanna.

Not long after this event, Ferdinand received another summons from his father to attend him in Aragon, where the storm of war, which had been for some time gathering in the distance, now burst with pitiless fury. In the beginning of February, 1474, an embassy consisting of two of his principal nobles, accompanied by a brilliant train of cavaliers and attendants, had been deputed by John to the court of Louis XI., for the ostensible purpose of settling the preliminaries of the marriage, previously agreed on, between the dauphin and the infanta Isabella, daughter of Ferdinand and Isabella, then little more than three years of age. [24] The real object of the mission was to effect some definitive adjustment or compromise of the differences relating to the contested territories of Roussillon and Cerdagne. The king of France, who, notwithstanding his late convention with John, was making active preparations for the forcible occupation of these provinces, determined to gain time by amusing the ambassadors with a show of

negotiation, and interposing every obstacle which his ingenuity could devise to their progress through his dominions. He succeeded so well in this latter part of his scheme, that the embassy did not reach Paris until the close of Lent. Louis, who seldom resided in his capital, took good care to be absent at this season. The ambassadors in the interim were entertained with balls, military reviews, and whatever else might divert them from the real objects of their mission. All communication was cut off with their own government, as their couriers were stopped and their despatches intercepted, so that John knew as little of his envoys or their proceedings, as if they had been in Siberia or Japan. In the mean time, formidable preparations were making in the south of France for a descent on Roussillon; and when the ambassadors, after a fruitless attempt at negotiation, which evaporated in mutual crimination and recrimination, set out on their return to Aragon, they were twice detained, at Lyons and Montpellier, from an extreme solicitude, as the French government expressed it, to ascertain the safest route through a country intersected by hostile armies; and all this, notwithstanding their repeated protestations against this obliging disposition, which held them prisoners, in opposition to their own will and the law of nations. The prince who descended to such petty trickery passed for the wisest of his time. [25]

In the mean while, the Seigneur du Lude had invaded Roussillon at the head of nine hundred French lances and ten thousand infantry, supported by a powerful train of artillery, while a fleet of Genoese transports, laden with supplies, accompanied the army along the coast. Elna surrendered after a sturdy resistance; the governor and some of the principal prisoners were shamefully beheaded as traitors; and the French then proceeded to invest Perpignan. The king of Aragon was so much impoverished by the incessant wars in which he had been engaged, that he was not only unable to recruit his army, but was even obliged to pawn the robe of costly fur, which he wore to defend his person against the inclemencies of the season, in order to defray the expense of transporting his baggage. In this extremity, finding

himself disappointed in the cooperation, on which he had reckoned, of his ancient allies the dukes of Burgundy and Brittany, he again summoned Ferdinand to his assistance, who, after a brief interview with his father in Barcelona, proceeded to Saragossa, to solicit aid from the estates of Aragon.

An incident occurred on this visit of the prince worth noticing, as strongly characteristic of the lawless habits of the age. A citizen of Saragossa, named Ximenes Gordo, of noble family, but who had relinquished the privileges of his rank in order to qualify himself for municipal office, had acquired such ascendancy over his townsmen, as to engross the most considerable posts in the city for himself and his creatures. This authority he abused in a shameless manner, making use of it not only for the perversion of justice, but for the perpetration of the most flagrant crimes. Although these facts were notorious, yet such were his power and popularity with the lower classes, that Ferdinand, despairing of bringing him to justice in the ordinary way, determined on a more summary process. As Gordo occasionally visited the palace to pay his respects to the prince, the latter affected to regard him with more than usual favor, showing him such courtesy as might dissipate any distrust he had conceived of him. Gordo, thus assured, was invited at one of those interviews to withdraw into a retired apartment, where the prince wished to confer with him on business of moment. On entering the chamber he was surprised by the sight of the public executioner, the hangman of the city, whose presence, together with that of a priest, and the apparatus of death with which the apartment was garnished, revealed at once the dreadful nature of his destiny.

He was then charged with the manifold crimes of which he had been guilty, and sentence of death was pronounced on him. In vain did he appeal to Ferdinand, pleading the services which he had rendered on more than one occasion to his father. Ferdinand assured him that these should be gratefully remembered in the protection of his children, and then, bidding him

unburden his conscience to his confessor, consigned him to the hand of the executioner. His body was exposed that very day in the market-place of the city, to the dismay of his friends and adherents, most of whom paid the penalty of their crimes in the ordinary course of justice. This extraordinary proceeding is highly characteristic of the unsettled times in which it occurred; when acts of violence often superseded the regular operation of the law, even in those countries, whose forms of government approached the nearest to a determinate constitution. It will doubtless remind the reader of the similar proceeding imputed to Louis the Eleventh, in the admirable sketch given us of that monarch in "Quentin Durward." [26]

The supplies furnished by the Aragonese cortes were inadequate to King John's necessities, and he was compelled, while hovering with his little force on the confines of Roussillon, to witness the gradual reduction of its capital, without being able to strike a blow in its defence. The inhabitants, indeed, who fought with a resolution worthy of ancient Numantia or Saguntum, were reduced to the last extremity of famine, supporting life by feeding on the most loathsome offal, on cats, dogs, the corpses of their enemies, and even on such of their own dead as had fallen in battle! And when at length an honorable capitulation was granted them on the 14th of March, 1475, the garrison who evacuated the city, reduced to the number of four hundred, were obliged to march on foot to Barcelona, as they had consumed their horses during the siege. [27]

The terms of capitulation, which permitted every inhabitant to evacuate, or reside unmolested in the city, at his option, were too liberal to satisfy the vindictive temper of the king of France. He instantly wrote to his generals, instructing them to depart from their engagements, to keep the city so short of supplies as to compel an emigration of its original inhabitants, and to confiscate for their own use the estates of the principal nobility; and after delineating in detail the perfidious policy which they were to pursue, he

concluded with the assurance, "that, by the blessing of God and our Lady, and Monsieur St. Martin, he would be with them before the winter, in order to aid them in its execution." [28] Such was the miserable medley of hypocrisy and superstition, which characterized the politics of the European courts in this corrupt age, and which dimmed the lustre of names, most conspicuous on the page of history.

The occupation of Roussillon was followed by a truce of six months between the belligerent parties. The regular course of the narrative has been somewhat anticipated, in order to conclude that portion of it relating to the war with France, before again reverting to the affairs of Castile, where Henry the Fourth, pining under an incurable malady, was gradually approaching the termination of his disastrous reign.

This event, which, from the momentous consequences it involved, was contemplated with the deepest solicitude, not only by those who had an immediate and personal interest at stake, but by the whole nation, took place on the night of the 11th of December, 1474. [29] It was precipitated by the death of the grand master of St. James, on whom the feeble mind of Henry had been long accustomed to rest for its support, and who was cut off by an acute disorder but a few months previous, in the full prime of his ambitious schemes. The king, notwithstanding the lingering nature of his disease gave him ample time for preparation, expired without a will, or even, as generally asserted, the designation of a successor. This was the more remarkable, not only as being contrary to established usage, but as occurring at a period when the succession had been so long and hotly debated. [30] The testaments of the Castilian sovereigns, though never esteemed positively binding, and occasionally, indeed, set aside, when deemed unconstitutional or even inexpedient by the legislature, [31] were always allowed to have great weight with the nation.

With Henry the Fourth terminated the male line of the house of Trastamara, who had kept possession of the throne for more than a century, and in the course of only four generations had exhibited every gradation of character from the bold and chivalrous enterprise of the first Henry of that name, down to the drivelling imbecility of the last.

The character of Henry the Fourth has been sufficiently delineated in that of his reign. He was not without certain amiable qualities, and may be considered as a weak, rather than a wicked prince. In persons, however, intrusted with the degree of power exercised by sovereigns of even the most limited monarchies of this period, a weak man may be deemed more mischievous to the state over which he presides than a wicked one. The latter, feeling himself responsible in the eyes of the nation for his actions, is more likely to consult appearances, and, where his own passions or interests are not immediately involved, to legislate with reference to the general interests of his subjects. The former, on the contrary, is too often a mere tool in the hands of favorites, who, finding themselves screened by the interposition of royal authority from the consequences of measures for which they should be justly responsible, sacrifice without remorse the public weal to the advancement of their private fortunes. Thus the state, made to minister to the voracious appetites of many tyrants, suffers incalculably more than it would from one. So fared it with Castile under Henry the Fourth; dismembered by faction, her revenues squandered on worthless parasites, the grossest violations of justice unredressed, public faith become a jest, the treasury bankrupt, the court a brothel, and private morals too loose and audacious to seek even the veil of hypocrisy! Never had the fortunes of the kingdom reached so low an ebb since the great Saracen invasion.

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The historian cannot complain of a want of authentic materials for the reign of Henry IV. Two of the chroniclers of that period, Alonso de Palencia and Enriquez del Castillo, were eye-witnesses and conspicuous actors in the scenes which they recorded, and connected with opposite factions. The former of these writers, Alonso de Palencia, was born, as appears from his work, "*De Synonymis*," cited by Pellicer, (*Bibliotheca de Traductores*, p. 7,) in 1423. Nic. Antonio has fallen into the error of dating his birth nine years later. (*Bibliotheca Vetus*, tom. ii. p. 331.) At the age of seventeen, he became page to Alfonso of Carthagená, bishop of Burgos, and, in the family of that estimable prelate, acquired a taste for letters, which never deserted him during a busy political career. He afterwards visited Italy, where he became acquainted with Cardinal Bessarion, and through him with the learned George of Trebizond, whose lectures on philosophy and rhetoric he attended. On his return to his native country, he was raised to the dignity of royal historiographer by Alfonso, younger brother of Henry IV., and competitor with him for the crown. He attached himself to the fortunes of Isabella after Alfonso's death, and was employed by the archbishop of Toledo in many delicate negotiations, particularly in arranging the marriage of the princess with Ferdinand, for which purpose he made a secret journey into Aragon. On the accession of Isabella, he was confirmed in the office of national chronicler, and passed the remainder of his life in the composition of philological and historical works and translations from the ancient classics. The time of his death is uncertain. He lived to a good old age, however, since it appears from his own statement, (see Mendez, *Typographia Española*, (Madrid, 1796,) p. 190,) that his version of Josephus was not completed till the year 1492.

The most popular of Palencia's writings are his "*Chronicle of Henry IV.*," and his Latin "*Decades*," continuing the reign of Isabella down to the capture of Baza, in 1489. His historical style, far from scholastic pedantry, exhibits the business-like manner of a man of the world. His *Chronicle*,

which, being composed in the Castilian, was probably intended for popular use, is conducted with little artifice, and indeed with a prolixity and minuteness of detail, arising no doubt from the deep interest which as an actor he took in the scenes he describes. His sentiments are expressed with boldness, and sometimes with the acerbity of party feeling. He has been much commended by the best Spanish writers, such as Zurita, Zuñiga, Marina, Clemencin, for his veracity. The internal evidence of this is sufficiently strong in his delineation of those scenes in which he was personally engaged; in his account of others, it will not be difficult to find examples of negligence and inaccuracy. His Latin "Decades" were probably composed with more care, as addressed to a learned class of readers; and they are lauded by Nic. Antonio as an elegant commentary, worthy to be assiduously studied by all who would acquaint themselves with the history of their country. The art of printing has done less perhaps for Spain than for any other country in Europe; and these two valuable histories are still permitted to swell the rich treasure of manuscripts with which her libraries are overloaded.

Enriquez del Castillo, a native of Segovia, was the chaplain and historiographer of King Henry IV., and a member of his privy council. His situation not only made him acquainted with the policy and intrigues of the court, but with the personal feelings of the monarch, who reposed entire confidence in him, which Castillo repaid with uniform loyalty. He appears very early to have commenced his Chronicle of Henry's reign. On the occupation of Segovia by the young Alfonso, after the battle of Olmedo, in 1467, the chronicler, together with the portion of his history then compiled, was unfortunate enough to fall into the enemy's hands. The author was soon summoned to the presence of Alfonso and his counsellors, to hear and justify, as he could, certain passages of what they termed his "false and frivolous narrative." Castillo, hoping little from a defence before such a prejudiced tribunal, resolutely kept his peace; and it might have gone hard

with him, had it not been for his ecclesiastical profession. He subsequently escaped, but never recovered his manuscripts, which were probably destroyed; and, in the introduction to his Chronicle, he laments, that he has been obliged to rewrite the first half of his master's reign.

Notwithstanding Castillo's familiarity with public affairs, his work is not written in the business-like style of Palencia's. The sentiments exhibit a moral sensibility scarcely to have been expected, even from a minister of religion, in the corrupt court of Henry IV.; and the honest indignation of the writer, at the abuses which he witnessed, sometimes breaks forth in a strain of considerable eloquence. The spirit of his work, notwithstanding its abundant loyalty, may be also commended for its candor in relation to the partisans of Isabella; which has led some critics to suppose that it underwent a *rifacimento* after the accession of that princess to the throne.

Castillo's Chronicle, more fortunate than that of his rival, has been published in a handsome form under the care of Don Jose Miguel de Flores, Secretary of the Spanish Academy of History, to whose learned labors in this way Castilian literature is so much indebted.

FOOTNOTES

[1] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 21.—Gaillard, *Rivalité*, tom. iii. p. 284.—Rades y Andrada, *Las Tres Ordenes*, fol. 65.—Caro de Torres, *Ordenes Militares*, fol. 43.

[2] Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 23.—Castillo, *Crónica*, p. 298.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 24.—Henry, well knowing how little all this would avail without the constitutional sanction of the cortes, twice issued his summons in 1470 for the convocation of the deputies, to obtain a recognition of the title of Joanna. But without effect. In the letters of convocation issued for a third assembly of the states, in 1471, this purpose was prudently omitted, and thus the claims of Joanna failed to receive the countenance of the only body which could give them validity. See the copies of the original writs,

addressed to the cities of Toledo and Segovia, cited by Marina, *Teoría*, tom. ii. pp. 87-89.

[3] The grand master of St. James, and his son, the marquis of Villena, afterwards duke of Escalona. The rents of the former nobleman, whose avarice was as insatiable as his influence over the feeble mind of Henry IV. was unlimited, exceeded those of any other grandee in the kingdom. See Pulgar, *Claros Varones*, tit. 6.

[4] The marquis of Santillana, first duke of Infantado, and his brothers, the counts of Coruña, and of Tendilla, and above all Pedro Gonzalez de Mendoza, afterwards cardinal of Spain, and archbishop of Toledo, who was indebted for the highest dignities in the church less to his birth than his abilities. See *Claros Varones*, tit. 4, 9.—Salazar de Mendoza, *Dignidades*, lib. 3, cap. 17.

[5] Alvaro de Zuñiga, count of Palencia, and created by Henry IV., duke of Arevalo.—Pedro Fernandez de Velasco, count of Haro, was raised to the post of constable of Castile in 1473, and the office continued to be hereditary in the family from that period. Pulgar, *Claros Varones*, tit. 3.—Salazar de Mendoza, *Dignidades*, lib. 3, cap. 21.

[6] The Pimentels, counts of Benavente, had estates which gave them 60,000 ducats a year; a very large income for that period, and far exceeding that of any other grandee of similar rank in the kingdom. L. Marineo, *Cosas Memorables*, fol. 25.

[8] Carbajal, *Anales*, MS., año 70.

[9] Zurita, *Anales*, tom. iv. fol. 170.—Alonso de Palencia, *Corónica*, MS., cap. 45.

[10] This nobleman, Diego Hurtado, "muy gentil caballero y gran señor," as Oviedo calls him, was at this time only marquis of Santillana, and was not raised to the title of duke of Infantado till the reign of Isabella, (Quincuagenas, MS., bat. 1, quinc. 1, dial. 8.) To avoid confusion, however, I have given him the title by which he is usually recognized by Castilian writers.

[11] Bernaldez, Reyes Católicos, MS., cap. 3.—Salazar de Mendoza, Crónica de el Gran Cardenal de España, Don Pedro Gonzalez de Mendoza, (Toledo, 1625,) pp. 138, 150.—Zuñiga, Anales de Sevilla, p. 362.

[12] Bernaldez, Reyes Católicos, MS., cap. 4, 5, 7.—Zuñiga, Anales de Sevilla, pp. 363, 364.—Alonso de Palencia, Corónica, MS., part. 2, cap. 35, 38, 39, 42.—Saez, Monedas de Enrique IV., pp. 1-5.—Pulgar, in an epistle addressed, in the autumn of 1473, to the bishop of Coria, adverts to several circumstances which set in a strong light the anarchical state of the kingdom and the total deficiency of police. The celebrated satirical eclogue, also, entitled "Mingo Revulgo," exposes, with coarse but cutting sarcasm, the license of the court, the corruption of the clergy, and the prevalent depravity of the people. In one of its stanzas it boldly ventures to promise another and a better sovereign to the country. This performance, even more interesting to the antiquarian than to the historian, has been attributed by some to Pulgar, (see Mariana, Hist. de España, tom. ii. p. 475,) and by others to Rodrigo Cota, (see Nic. Antonio, Bibliotheca Veins, tom. ii p. 264,) but without satisfactory evidence in favor of either. Bouterwek is much mistaken in asserting it to have been aimed at the government of John II. The gloss of Pulgar, whose authority as a contemporary must be considered decisive, plainly proves it to have been directed against Henry IV.

[13] See Chap. II.

[14] Alonso de Palencia, *Corónica*, MS., cap. 56.—Mariana, *Hist. de España*, tom. ii. p. 481.—Zurita, *Anales*, tom. iv. fol. 191.—Barante, *Histoire des Ducs de Bourgogne*, (Paris, 1825,) tom. ix. pp. 101-106.

[15] Alonso de Palencia, *Corónica*, MS., cap. 70.—Mariana, *Hist. de España*, tom. ii. p. 482.—L. Marineo, *Cosas Memorables*, fol. 148.—Zurita, *Anales*, tom. iv. fol. 195.—Anquetil, *Histoire de France*, (Paris, 1805,) tom. v. pp. 60, 61.

[16] Zurita, *Anales*, tom. iv. fol. 196.—Barante, *Hist. des Ducs de Bourgogne*, tom. x. pp. 105, 106.—L. Marineo, *Cosas Memorables*, fol. 149. —Alonso de Palencia, *Corónica*, MS., cap. 70, 71, 72.

[17] Zurita, *Anales*, tom. iv. fol. 200.—Gaillard, *Rivalité*, tom. iii. p. 266.—See the articles of the treaty cited by Duclos, *Hist. de Louis XI.*, tom. ii. pp. 99, 101.—Alonso de Palencia, *Corónica*, MS., cap. 73.

[18] Louis XI. is supposed with much probability to have assassinated this brother. M. de Barante sums up his examination of the evidence with this remark: "Le roi Louis XI. ne fit peut-être pas mourir son frère, mais personne ne pensa qu'il en fut incapable." *Hist. des Ducs de Bourgogne*, tom. ix. p. 433.

[19] The two princes alluded to were the duke of Segorbe, a cousin of Ferdinand, and the king of Portugal. The former, on his entrance into Castile, assumed such sovereign state, (giving his hand, for instance, to the grandees to kiss,) as disgusted these haughty nobles, and was eventually the occasion of breaking off his match. Alonso de Palencia, *Corónica*, MS., part. 2, cap. 62.—Faria y Sousa, *Europa Portuguesa*, tom. ii. p. 392.

[20] Oviedo assigns another reason for this change; the disgust occasioned by Henry IV.'s transferring the custody of his daughter from the

family of Mendoza to the Pachecos. *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 8.

[21] Salazar de Mendoza, *Crón. del Gran Cardenal*, p. 133.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 46, 92.—Castillo, *Crónica*, cap. 163.—The influence of these new allies, especially of the cardinal, over Isabella's councils, was an additional ground of umbrage to the archbishop of Toledo, who, in a communication with the king of Aragon, declared himself, though friendly to their cause, to be released from all further obligations to serve it. See Zurita, *Anales*, tom. iv. lib. 46, cap. 19.

[22] Carbajal, *Anales*, MS., años 73, 74.—Pulgar, *Reyes Católicos*, p. 27.—Castillo, *Crónica*, cap. 164.—Alonso de Palencia, *Corónica*, MS., part. 2, cap. 75.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 23.

[23] Mendoza, *Crón. del Gran Cardenal*, pp. 141, 142.—Castillo, *Crónica*, cap. 164.—Oviedo has given a full account of this cavalier, who was allied to an ancient Catalan family, but who raised himself to such pre-eminence by his own deserts, says that writer, that he may well be considered the founder of his house. *Loc. cit.*

[24] Carbajal, *Anales*, MS., año 70.—This was the eldest child of Ferdinand and Isabella, born Oct. 1st, 1470; afterwards queen of Portugal.

[25] Gaillard, *Rivalité*, tom. iii. pp. 267-276.—Duclos, *Hist. de Louis XI.*, tom. ii. pp. 113, 115.—*Chronique Scandaleuse*, ed. Petitot, tom. xiii. pp. 443, 444.

[26] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 83.—Ferreras, *Hist. d'Espagne*, tom. vii. p. 400.—Zurita, *Anales*, tom. iv. lib. 19, cap. 12.

[27] L. Marineo, *Cosas Memorables*, fol. 150.—Zurita, *Anales*, tom. iv. lib. 19, cap. 13.—*Chronique Scandaleuse*, ed. Petitot, tom. xiii. p. 456. —Alonso de Palencia, *Corónica*, MS., part. 2, cap. 91.

[28] Of the original letters, as given by M. Barante, in his *History of the Dukes of Burgundy*, in which the author has so happily seized the tone and picturesque coloring of the ancient chronicle; tom. x. pp. 289, 298.

[29] Bernaldez, *Reyes Católicos*, MS., cap. 10.—Carbajal, *Anales*, MS., año 74.—Castillo, *Crónica*, cap. 148.

[30] This topic is involved in no little obscurity, and has been reported with much discrepancy as well as inaccuracy by the modern Spanish historians. Among the ancient, Castillo, the historiographer of Henry IV., mentions certain "testamentary executors," without, however, noticing in any more direct way the existence of a will. (*Crón.* c. 168.) The Curate of Los Palacios refers to a clause reported, he says, to have existed in the testament of Henry IV., in which he declares Joanna his daughter and heir; (*Reyes Católicos*, MS., cap. 10.) Alonso de Palencia states positively that there was no such instrument, and that Henry, on being asked who was to succeed him, referred to his secretary Juan Gonzalez for a knowledge of his intention. (*Crón.* c. 92.) L. Marineo also states that the king, "with his usual improvidence," left no will. (*Cosas Memorables*, fol. 155.) Pulgar, another contemporary, expressly declares that he executed no will, and quotes the words dictated by him to his secretary, in which he simply designates two of the grandees as "executors of his soul," (*albuceas de su anima*,) and four others in conjunction with them as the guardians of his daughter Joanna. (*Reyes Cat.* p. 31.) It seems not improbable that the existence of this document has been confounded with that of a testament, and that with reference to it, the phrase above quoted of Castillo, as well as the passage of Bernaldez, is to be interpreted. Carbajal's wild story of the existence of a

will, of its secretion for more than thirty years, and its final suppression by Ferdinand, is too naked of testimony to deserve the least weight with the historian. (See his *Anales*, MS., año 74.) It should be remembered, however, that most of the above-mentioned writers compiled their works after the accession of Isabella, and that none, save Castillo, were the partisans of her rival. It should also be added that in the letters addressed by the princess Joanna to the different cities of the kingdom, on her assuming the title of queen of Castile, (bearing date May, 1475,) it is expressly stated that Henry IV., on his deathbed, solemnly affirmed her to be his only daughter and lawful heir. These letters were drafted by John de Oviedo, (Juan Gonzalez,) the confidential secretary of Henry IV. See Zurita, *Anales*, tom. iv. fol. 235-239.

[31] As was the case with the testaments of Alfonso of Leon and Alfonso the Wise, in the thirteenth century, and with that of Peter the Cruel, in the fourteenth.

CHAPTER V.

**ACCESSION OF FERDINAND AND ISABELLA.—WAR OF THE SUCCESSION.—
BATTLE OF TORO.**

1474-1476.

Isabella proclaimed Queen.—Settlement of the Crown.—Alfonso of Portugal supports Joanna.—Invades Castile.—Retreat of the Castilians.—Appropriation of the Church Plate.—Reorganization of the Army.—Battle of Toro.—Submission of the whole Kingdom.—Peace with France and Portugal.—Joanna takes the Veil.—Death of John II., of Aragon.

Most of the contemporary writers are content to derive Isabella's title to the crown of Castile from the illegitimacy of her rival Joanna. But, as this fact, whatever probability it may receive from the avowed licentiousness of the queen, and some other collateral circumstances, was never established by legal evidence, or even made the subject of legal inquiry, it cannot reasonably be adduced as affording in itself a satisfactory basis for the pretensions of Isabella. [1]

These are to be derived from the will of the nation as expressed by its representatives in cortes. The power of this body to interpret the laws regulating the succession, and to determine the succession itself, in the most absolute manner, is incontrovertible, having been established by repeated precedents from a very ancient period. [2] In the present instance, the legislature, soon after the birth of Joanna, tendered the usual oaths of allegiance to her as heir apparent to the monarchy. On a subsequent occasion, however, the cortes, for reasons deemed sufficient by itself, and under a conviction that its consent to the preceding measure had been obtained through an undue influence on the part of the crown, reversed its former acts, and did homage to Isabella as the only true and lawful successor. [3] In this disposition the legislature continued so resolute, that, notwithstanding Henry twice convoked the states for the express purpose of renewing their allegiance to Joanna, they refused to comply with the summons; [4] and thus Isabella, at the time of her brother's death, possessed a title to the crown unimpaired, and derived from the sole authority which could give it a constitutional validity. It may be added that the princess was so well aware of the real basis of her pretensions, that in her several manifestoes, although she adverts to the popular notion of her rival's illegitimacy, she rests the strength of her cause on the sanction of the cortes.

On learning Henry's death, Isabella signified to the inhabitants of Segovia, where she then resided, her desire of being proclaimed queen in that city, with the solemnities usual on such occasions. [5] Accordingly, on the following morning, being the 13th of December, 1474, a numerous assembly, consisting of the nobles, clergy, and public magistrates in their robes of office, waited on her at the alcazar or castle, and, receiving her under a canopy of rich brocade, escorted her in solemn procession to the principal square of the city, where a broad platform or scaffold had been erected for the performance of the ceremony. Isabella, royally attired, rode on a Spanish jennet whose bridle was held by two of the civic functionaries,

while an officer of her court preceded her on horseback, bearing aloft a naked sword, the symbol of sovereignty. On arriving at the square she alighted from her palfrey, and, ascending the platform, seated herself on a throne which had been prepared for her. A herald with a loud voice proclaimed, "Castile, Castile for the king Don Ferdinand and his consort Doña Isabella, queen proprietor (*reina propietaria*) of these kingdoms!" The royal standards were then unfurled, while the peal of bells and the discharge of ordnance from the castle publicly announced the accession of the new sovereign. Isabella, after receiving the homage of her subjects, and swearing to maintain inviolate the liberties of the realm, descended from the platform, and, attended by the same *cortège*, moved slowly towards the cathedral church; where, after Te Deum had been chanted, she prostrated herself before the principal altar, and, returning thanks to the Almighty for the protection hitherto vouchsafed her, implored him to enlighten her future counsels, so that she might discharge the high trust reposed in her, with equity and wisdom. Such were the simple forms, that attended the coronation of the monarchs of Castile, previously to the sixteenth century. [6]

The cities favorable to Isabella's cause, comprehending far the most populous and wealthy throughout the kingdom, followed the example of Segovia, and raised the royal standard for their new sovereign. The principal grandees, as well as most of the inferior nobility, soon presented themselves from all quarters, in order to tender the customary oaths of allegiance; and an assembly of the estates, convened for the ensuing month of February at Segovia, imparted, by a similar ceremony, a constitutional sanction to these proceedings. [7]

On Ferdinand's arrival from Aragon, where he was staying at the time of Henry's death, occupied with the war of Roussillon, a disagreeable discussion took place in regard to the respective authority to be enjoyed by

the husband and wife in the administration of the government. Ferdinand's relatives, with the admiral Henriquez at their head, contended that the crown of Castile, and of course the exclusive sovereignty, was limited to him as the nearest male representative of the house of Trastamara. Isabella's friends, on the other hand, insisted that these rights devolved solely on her, as the lawful heir and proprietor of the kingdom. The affair was finally referred to the arbitration of the cardinal of Spain and the archbishop of Toledo, who, after careful examination, established by undoubted precedent, that the exclusion of females from the succession did not obtain in Castile and Leon, as was the case in Aragon; [8] that Isabella was consequently sole heir of these dominions; and that whatever authority Ferdinand might possess, could only be derived through her. A settlement was then made on the basis of the original marriage contract. [9] All municipal appointments, and collation to ecclesiastical benefices, were to be made in the name of both with the advice and consent of the queen. All fiscal nominations, and issues from the treasury, were to be subject to her order. The commanders of the fortified places were to render homage to her alone. Justice was to be administered by both conjointly, when residing in the same place, and by each independently, when separate. Proclamations and letters patent were to be subscribed with the signatures of both; their images were to be stamped on the public coin, and the united arms of Castile and Aragon emblazoned on a common seal. [10]

Ferdinand, it is said, was so much dissatisfied with an arrangement which vested the essential rights of sovereignty in his consort, that he threatened to return to Aragon; but Isabella reminded him, that this distribution of power was rather nominal than real; that their interests were indivisible; that his will would be hers; and that the principle of the exclusion of females from the succession, if now established, would operate to the disqualification of their only child, who was a daughter. By these and similar arguments the

queen succeeded in soothing her offended husband, without compromising the prerogatives of her crown.

Although the principal body of the nobility, as has been stated, supported Isabella's cause, there were a few families, and some of them the most potent in Castile, who seemed determined to abide the fortunes of her rival. Among these was the marquis of Villena, who, inferior to his father in talent for intrigue, was of an intrepid spirit, and is commended by one of the Spanish historians as "the best lance in the kingdom." His immense estates, stretching from Toledo to Murcia, gave him an extensive influence over the southern regions of New Castile. The duke of Arevalo possessed a similar interest in the frontier province of Estremadura. With these were combined the grand master of Calatrava and his brother, together with the young marquis of Cadiz, and, as it soon appeared, the archbishop of Toledo. This latter dignitary, whose heart had long swelled with secret jealousy at the rising fortunes of the cardinal Mendoza, could no longer brook the ascendancy which that prelate's consummate sagacity and insinuating address had given him over the counsels of his young sovereigns. After some awkward excuses, he abruptly withdrew to his own estates; nor could the most conciliatory advances on the part of the queen, nor the deprecatory letters of the old king of Aragon, soften his inflexible temper, or induce him to resume his station at the court; until it soon became apparent from his correspondence with Isabella's enemies, that he was busy in undermining the fortunes of the very individual, whom he had so zealously labored to elevate. [11]

Under the auspices of this coalition, propositions were made to Alfonso the Fifth, king of Portugal, to vindicate the title of his niece Joanna to the throne of Castile, and, by espousing her, to secure to himself the same rich inheritance. An exaggerated estimate was, at the same time, exhibited of the resources of the confederates, which, when combined with those of

Portugal, would readily enable them to crush the usurpers, unsupported, as the latter must be, by the co-operation of Aragon, whose arms already found sufficient occupation with the French.

Alfonso, whose victories over the Barbary Moors had given him the cognomen of "the African," was precisely of a character to be dazzled by the nature of this enterprise. The protection of an injured princess, his near relative, was congenial with the spirit of chivalry; while the conquest of an opulent territory, adjacent to his own, would not only satisfy his dreams of glory, but the more solid cravings of avarice. In this disposition he was confirmed by his son, Prince John, whose hot and enterprising temper found a nobler scope for ambition in such a war, than in the conquest of a horde of African savages. [12]

Still, there were a few among Alfonso's counsellors possessed of sufficient coolness to discern the difficulties of the undertaking. They reminded him that the Castilian nobles on whom he principally relied were the very persons who had formerly been most instrumental in defeating the claims of Joanna, and securing the succession to her rival; that Ferdinand was connected by blood with the most powerful families of Castile; that the great body of the people, the middle as well as the lower classes, were fully penetrated not only with a conviction of the legality of Isabella's title, but with a deep attachment to her person; while, on the other hand, their proverbial hatred of Portugal would make them too impatient of interference from that quarter, to admit the prospect of permanent success. [13]

These objections, sound as they were, were overruled by John's impetuosity, and the ambition or avarice of his father. War was accordingly resolved on; and Alfonso, after a vaunting, and, as may be supposed, ineffectual summons to the Castilian sovereigns to resign their crown in

favor of Joanna, prepared for the immediate invasion of the kingdom at the head of an army amounting, according to the Portuguese historians, to five thousand six hundred horse and fourteen thousand foot. This force, though numerically not so formidable as might have been expected, comprised the flower of the Portuguese chivalry, burning with the hope of reaping similar laurels to those won of old by their fathers on the plains of Aljubarrotta; while its deficiency in numbers was to be amply compensated by recruits from the disaffected party in Castile, who would eagerly flock to its banners, on its advance across the borders. At the same time negotiations were entered into with the king of France, who was invited to make a descent upon Biscay, by a promise, somewhat premature, of a cession of the conquered territory.

Early in May, the king of Portugal put his army in motion, and, entering Castile by the way of Estremadura, held a northerly course towards Placencia, where he was met by the duke of Arevalo and the marquis of Villena, and by the latter nobleman presented to the princess Joanna, his destined bride. On the 12th of the month he was affianced with all becoming pomp to this lady, then scarcely thirteen years of age; and a messenger was despatched to the court of Rome, to solicit a dispensation for their marriage, rendered necessary by the consanguinity of the parties. The royal pair were then proclaimed, with the usual solemnities, sovereigns of Castile; and circulars were transmitted to the different cities, setting forth Joanna's title and requiring their allegiance. [14]

After some days given to festivity, the army resumed its march, still in a northerly direction, upon Arevalo, where Alfonso determined to await the arrival of the reinforcements which he expected from his Castilian allies. Had he struck at once into the southern districts of Castile, where most of those friendly to his cause were to be found, and immediately commenced active operations with the aid of the marquis of Cadiz, who it was

understood was prepared to support him in that quarter, it is difficult to say what might have been the result. Ferdinand and Isabella were so wholly unprepared at the time of Alfonso's invasion, that it is said they could scarcely bring five hundred horse to oppose it. By this opportune delay at Arevalo, they obtained space for preparation. Both of them were indefatigable in their efforts. Isabella, we are told, was frequently engaged through the whole night in dictating despatches to her secretaries. She visited in person such of the garrisoned towns as required to be confirmed in their allegiance, performing long and painful journeys on horseback with surprising celerity, and enduring fatigues, which, as she was at that time in delicate health, wellnigh proved fatal to her constitution. [15] On an excursion to Toledo, she determined to make one effort more to regain the confidence of her ancient minister the archbishop. She accordingly sent an envoy to inform him of her intention to wait on him in person at his residence in Alcalá de Henares. But as the surly prelate, far from being moved by this condescension, returned for answer, that, "if the queen entered by one door, he would go out at the other," she did not choose to compromise her dignity by any further advances.

By Isabella's extraordinary exertions, as well as those of her husband, the latter found himself, in the beginning of July, at the head of a force amounting in all to four thousand men-at-arms, eight thousand light horse, and thirty thousand foot, an ill-disciplined militia, chiefly drawn from the mountainous districts of the north, which manifested peculiar devotion to his cause; his partisans in the south being preoccupied with suppressing domestic revolt, and with incursions on the frontiers of Portugal. [16]

Meanwhile Alfonso, after an unprofitable detention of nearly two months at Arevalo, marched on Toro, which, by a preconcerted agreement, was delivered into his hands by the governor of the city, although the fortress, under the conduct of a woman, continued to maintain a gallant defence.

While occupied with its reduction, Alfonso was invited to receive the submission of the adjacent city and castle of Zamora. The defection of these places, two of the most considerable in the province of Leon, and peculiarly important to the king of Portugal from their vicinity to his dominions, was severely felt by Ferdinand, who determined to advance at once against his rival, and bring their quarrel to the issue of a battle; in this, acting in opposition to the more cautious counsel of his father, who recommended the policy, usually judged most prudent for an invaded country, of acting on the defensive, instead of risking all on the chances of a single action.

Ferdinand arrived before Toro on the 19th of July, and immediately drew up his army, before its walls, in order of battle. As the king of Portugal, however, still kept within his defences, Ferdinand sent a herald into his camp, to defy him to a fair field of fight with his whole army, or, if he declined this, to invite him to decide their differences by personal combat. Alfonso accepted the latter alternative; but, a dispute arising respecting the guaranty for the performance of the engagements on either side, the whole affair evaporated, as usual, in an empty vaunt of chivalry.

The Castilian army, from the haste with which it had been mustered, was wholly deficient in battering artillery, and in other means for annoying a fortified city; and, as its communications were cut off, in consequence of the neighboring fortresses being in possession of the enemy, it soon became straitened for provisions. It was accordingly decided in a council of war to retreat without further delay. No sooner was this determination known, than it excited general dissatisfaction throughout the camp. The soldiers loudly complained that the king was betrayed by his nobles; and a party of over-loyal Biscayans, inflamed by the suspicions of a conspiracy against his person, actually broke into the church where Ferdinand was conferring with his officers, and bore him off in their arms from the midst of them to his own tent, notwithstanding his reiterated explanations and remonstrances.

The ensuing retreat was conducted in so disorderly a manner by the mutinous soldiery, that Alfonso, says a contemporary, had he but sallied with two thousand horse, might have routed and perhaps annihilated the whole army. Some of the troops were detached to reinforce the garrisons of the loyal cities, but most of them dispersed again among their native mountains. The citadel of Toro soon afterwards capitulated. The archbishop of Toledo, considering these events as decisive of the fortunes of the war, now openly joined the king of Portugal at the head of five hundred lances, boasting at the same time, that "he had raised Isabella from the distaff, and would soon send her back to it again." [17]

So disastrous an introduction to the campaign might indeed well fill Isabella's bosom with anxiety. The revolutionary movements, which had so long agitated Castile, had so far unsettled every man's political principles, and the allegiance of even the most loyal hung so loosely about them, that it was difficult to estimate how far it might be shaken by such a blow occurring at this crisis. [18] Fortunately, Alfonso was in no condition to profit by his success. His Castilian allies had experienced the greatest difficulty in enlisting their vassals in the Portuguese cause; and, far from furnishing him with the contingents which he had expected, found sufficient occupation in the defence of their own territories against the loyal partisans of Isabella. At the same time, numerous squadrons of light cavalry from Estremadura and Andalusia, penetrating into Portugal, carried the most terrible desolation over the whole extent of its unprotected borders. The Portuguese knights loudly murmured at being cooped up in Toro, while their own country was made the theatre of war; and Alfonso saw himself under the necessity of detaching so considerable a portion of his army for the defence of his frontier, as entirely to cripple his future operations. So deeply, indeed, was he impressed, by these circumstances, with the difficulty of his enterprise, that, in a negotiation with the Castilian sovereigns at this time, he expressed a willingness to resign his claims to

their crown in consideration of the cession of Galicia, together with the cities of Toro and Zamora, and a considerable sum of money. Ferdinand and his ministers, it is reported, would have accepted the proposal; but Isabella, although acquiescing in the stipulated money payment, would not consent to the dismemberment of a single inch of the Castilian territory.

In the mean time both the queen and her husband, undismayed by past reverses, were making every exertion for the reorganization of an army on a more efficient footing. To accomplish this object, an additional supply of funds became necessary, since the treasure of King Henry, delivered into their hands by Andres de Cabrera, at Segovia, had been exhausted by the preceding operations. [19] The old king of Aragon advised them to imitate their ancestor Henry the Second, of glorious memory, by making liberal grants and alienations in favor of their subjects, which they might, when more firmly seated on the throne, resume at pleasure. Isabella, however, chose rather to trust to the patriotism of her people, than have recourse to so unworthy a stratagem. She accordingly convened an assembly of the states, in the month of August, at Medina del Campo. As the nation had been too far impoverished under the late reign to admit of fresh exactions, a most extraordinary expedient was devised for meeting the stipulated requisitions. It was proposed to deliver into the royal treasury half the amount of plate belonging to the churches throughout the kingdom, to be redeemed in the term of three years, for the sum of thirty *cuentos*, or millions, of maravedies. The clergy, who were very generally attached to Isabella's interests, far from discouraging this startling proposal, endeavored to vanquish the queen's repugnance to it by arguments and pertinent illustrations drawn from Scripture. This transaction certainly exhibits a degree of disinterestedness, on the part of this body, most unusual in that age and country, as well as a generous confidence in the good faith of Isabella, of which she proved herself worthy by the punctuality with which she redeemed it. [20]

Thus provided with the necessary funds, the sovereigns set about enforcing new levies and bringing them under better discipline, as well as providing for their equipment in a manner more suitable to the exigencies of the service, than was done for the preceding army. The remainder of the summer and the ensuing autumn were consumed in these preparations, as well as in placing their fortified towns in a proper posture of defence, and in the reduction of such places as held out against them. The king of Portugal, all this while, lay with his diminished forces in Toro, making a sally on one occasion only, for the relief of his friends, which was frustrated by the sleepless vigilance of Isabella.

Early in December, Ferdinand passed from the siege of Burgos, in Old Castile, to Zamora, whose inhabitants expressed a desire to return to their ancient allegiance; and, with the co-operation of the citizens, supported by a large detachment from his main army, he prepared to invest its citadel. As the possession of this post would effectually intercept Alfonso's communications with his own country, he determined to relieve it at every hazard, and for this purpose despatched a messenger into Portugal requiring his son, Prince John, to reinforce him with such levies as he could speedily raise. All parties now looked forward with eagerness to a general battle, as to a termination of the evils of this long-protracted war.

The Portuguese prince, having with difficulty assembled a corps amounting to two thousand lances and eight thousand infantry, took a northerly circuit round Galicia, and effected a junction with his father in Toro, on the 14th of February, 1476. Alfonso, thus reinforced, transmitted a pompous circular to the pope, the king of France, his own dominions, and those well affected to him in Castile, proclaiming his immediate intention of taking the usurper, or of driving him from the kingdom. On the night of the 17th, having first provided for the security of the city by leaving in it a powerful reserve, Alfonso drew off the residue of his army, probably not

much exceeding three thousand five hundred horse and five thousand foot, well provided with artillery and with arquebuses, which latter engine was still of so clumsy and unwieldy construction, as not to have entirely superseded the ancient weapons of European warfare. The Portuguese army, traversing the bridge of Toro, pursued their march along the southern side of the Douro, and reached Zamora, distant only a few leagues, before the dawn. [21]

At break of day, the Castilians were surprised by the array of floating banners, and martial panoply glittering in the sun, from the opposite side of the river, while the discharges of artillery still more unequivocally announced the presence of the enemy. Ferdinand could scarcely believe that the Portuguese monarch, whose avowed object had been the relief of the castle of Zamora, should have selected a position so obviously unsuitable for this purpose. The intervention of the river, between him and the fortress situated at the northern extremity of the town, prevented him from relieving it, either by throwing succors into it, or by annoying the Castilian troops, who, intrenched in comparative security within the walls and houses of the city, were enabled by means of certain elevated positions, well garnished with artillery, to inflict much heavier injury on their opponents, than they could possibly receive from them. Still, Ferdinand's men, exposed to the double fire of the fortress and the besiegers, would willingly have come to an engagement with the latter; but the river, swollen by winter torrents, was not fordable, and the bridge, the only direct avenue to the city, was enfiladed by the enemy's cannon, so as to render a sally in that direction altogether impracticable. During this time, Isabella's squadrons of light cavalry, hovering on the skirts of the Portuguese camp, effectually cut off its supplies, and soon reduced it to great straits for subsistence. This circumstance, together with the tidings of the rapid advance of additional forces to the support of Ferdinand, determined Alfonso, contrary to all expectation, on an immediate retreat; and accordingly on the morning of the

1st of March, being little less than a fortnight from the time in which he commenced this empty gasconade, the Portuguese army quitted its position before Zamora, with the same silence and celerity with which it had occupied it.

Ferdinand's troops would instantly have pushed after the fugitives, but the latter had demolished the southern extremity of the bridge before their departure; so that, although some few effected an immediate passage in boats, the great body of the army was necessarily detained until the repairs were completed, which occupied more than three hours. With all the expedition they could use, therefore, and leaving their artillery behind them, they did not succeed in coming up with the enemy until nearly four o'clock in the afternoon, as the latter was defiling through a narrow pass formed by a crest of precipitous hills on the one side, and the Douro on the other, at the distance of about five miles from the city of Toro. [22]

A council of war was then called, to decide on the expediency of an immediate assault. It was objected, that the strong position of Toro would effectually cover the retreat of the Portuguese in case of their discomfiture; that they would speedily be reinforced by fresh recruits from that city, which would make them more than a match for Ferdinand's army, exhausted by a toilsome march, as well as by its long fast, which it had not broken since the morning; and that the celerity, with which it had moved, had compelled it, not only to abandon its artillery, but to leave a considerable portion of the heavy-armed infantry in the rear. Notwithstanding the weight of these objections, such were the high spirit of the troops and their eagerness to come to action, sharpened by the view of the quarry, which after a wearisome chase seemed ready to fall into their hands, that they were thought more than sufficient to counterbalance every physical disadvantage; and the question of battle was decided in the affirmative.

As the Castilian army emerged from the defile into a wide and open plain, they found that the enemy had halted, and was already forming in order of battle. The king of Portugal led the centre, with the archbishop of Toledo on his right wing, its extremity resting on the Douro; while the left, comprehending the arquebusiers and the strength of the cavalry, was placed under the command of his son, Prince John. The numerical force of the two armies, although in favor of the Portuguese, was nearly equal, amounting probably in each to less than ten thousand men, about one-third being cavalry. Ferdinand took his station in the centre, opposite his rival, having the admiral and the duke of Alva on his left; while his right wing, distributed into six battles or divisions, under their several commanders, was supported by a detachment of men-at-arms from the provinces of Leon and Galicia.

The action commenced in this quarter. The Castilians, raising the war-cry of "St. James and St. Lazarus," advanced on the enemy's left under Prince John, but were saluted with such a brisk and well-directed fire from his arquebusiers, that their ranks were disconcerted. The Portuguese men-at-arms, charging them at the same time, augmented their confusion, and compelled them to fall back precipitately on the narrow pass in their rear, where, being supported by some fresh detachments from the reserve, they were with difficulty rallied by their officers, and again brought into the field. In the mean while, Ferdinand closed with the enemy's centre, and the action soon became general along the whole line. The battle raged with redoubled fierceness in the quarter where the presence of the two monarchs infused new ardor into their soldiers, who fought as if conscious that this struggle was to decide the fate of their masters. The lances were shattered at the first encounter, and, as the ranks of the two armies mingled with each other, the men fought hand to hand with their swords, with a fury sharpened by the ancient rivalry of the two nations, making the whole a contest of physical strength rather than skill. [23]

The royal standard of Portugal was torn to shreds in the attempt to seize it on the one side and to preserve it on the other, while its gallant bearer, Edward de Almeyda, after losing first his right arm, and then his left, in its defence, held it firmly with his teeth until he was cut down by the assailants. The armor of this knight was to be seen as late as Mariana's time, in the cathedral church of Toledo, where it was preserved as a trophy of this desperate act of heroism, which brings to mind a similar feat recorded in Grecian story.

The old archbishop of Toledo, and the cardinal Mendoza, who, like his reverend rival, had exchanged the crosier for the corslet, were to be seen on that day in the thickest of the *mêlée*. The holy wars with the infidel perpetuated the unbecoming spectacle of militant ecclesiastics among the Spaniards, to a still later period, and long after it had disappeared from the rest of civilized Europe.

At length, after an obstinate struggle of more than three hours, the valor of the Castilian troops prevailed, and the Portuguese were seen to give way in all directions. The duke of Alva, by succeeding in turning their flank, while they were thus vigorously pressed in front, completed their disorder, and soon converted their retreat into a rout. Some, attempting to cross the Douro, were drowned, and many, who endeavored to effect an entrance into Toro, were entangled in the narrow defile of the bridge, and fell by the sword of their pursuers, or miserably perished in the river, which, bearing along their mutilated corpses, brought tidings of the fatal victory to Zamora. Such were the heat and fury of the pursuit, that the intervening night, rendered darker than usual by a driving rain storm, alone saved the scattered remains of the army from destruction. Several Portuguese companies, under favor of this obscurity, contrived to elude their foes by shouting the Castilian battle-cry. Prince John, retiring with a fragment of his broken squadrons to a neighboring eminence, succeeded, by lighting fires and

sounding his trumpets, in rallying round him a number of fugitives; and, as the position he occupied was too strong to be readily forced, and the Castilian troops were too weary, and well satisfied with their victory, to attempt it, he retained possession of it till morning, when he made good his retreat into Toro. The king of Portugal, who was missing, was supposed to have perished in the battle, until, by advices received from him late on the following day, it was ascertained that he had escaped without personal injury, and with three or four attendants only, to the fortified castle of Castro Nuño, some leagues distant from the field of action. Numbers of his troops, attempting to escape across the neighboring frontiers into their own country, were maimed or massacred by the Spanish peasants, in retaliation of the excesses wantonly committed by them in their invasion of Castile. Ferdinand, shocked at this barbarity, issued orders for the protection of their persons, and freely gave safe-conducts to such as desired to return into Portugal. He even, with a degree of humanity more honorable, as well as more rare, than military success, distributed clothes and money to several prisoners brought into Zamora in a state of utter destitution, and enabled them to return in safety to their own country. [24]

The Castilian monarch remained on the field of battle till after midnight, when he returned to Zamora, being followed in the morning by the cardinal of Spain and the admiral Henriquez, at the head of the victorious legions. Eight standards with the greater part of the baggage were taken in the engagement, and more than two thousand of the enemy slain or made prisoners. Queen Isabella, on receiving tidings of the event at Tordesillas, where she then was, ordered a procession to the church of St. Paul in the suburbs, in which she herself joined, walking barefoot with all humility, and offered up a devout thanksgiving to the God of battles for the victory with which he had crowned her arms. [25]

It was indeed a most auspicious victory, not so much from the immediate loss inflicted on the enemy, as from its moral influence on the Castilian nation. Such as had before vacillated in their faith,—who, in the expressive language of Bernaldez, "estaban aviva quien vence,"—who were prepared to take sides with the strongest, now openly proclaimed their allegiance to Ferdinand and Isabella; while most of those, who had been arrayed in arms or had manifested by any other overt act their hostility to the government, vied with each other in demonstrations of the most loyal submission, and sought to make the best terms for themselves which they could. Among these latter, the duke of Arevalo, who indeed had made overtures to this effect some time previous through the agency of his son, together with the grand master of Calatrava, and the count of Urueña, his brother, experienced the lenity of government, and were confirmed in the entire possession of their estates. The two principal delinquents, the marquis of Villena and the archbishop of Toledo, made a show of resistance for some time longer; but, after witnessing the demolition of their castles, the capture of their towns, the desertion of their vassals, and the sequestration of their revenues, were fain to purchase a pardon at the price of the most humble concessions, and the forfeiture of an ample portion of domain.

The castle of Zamora, expecting no further succors from Portugal, speedily surrendered, and this event was soon followed by the reduction of Madrid, Baeza, Toro, and other principal cities; so that, in little more than six months from the date of the battle, the whole kingdom, with the exception of a few insignificant posts still garrisoned by the enemy, had acknowledged the supremacy of Ferdinand and Isabella. [26]

Soon after the victory of Toro, Ferdinand was enabled to concentrate a force amounting to fifty thousand men, for the purpose of repelling the French from Guipuscoa, from which they had already twice been driven by

the intrepid natives, and whence they again retired with precipitation on receiving news of the king's approach. [27]

Alfonso, finding his authority in Castile thus rapidly melting away before the rising influence of Ferdinand and Isabella, withdrew with his virgin bride into Portugal, where he formed the resolution of visiting France in person, and soliciting succor from his ancient ally, Louis the Eleventh. In spite of every remonstrance, he put this extraordinary scheme into execution. He reached France, with a retinue of two hundred followers, in the month of September. He experienced everywhere the honors due to his exalted rank, and to the signal mark of confidence, which he thus exhibited towards the French king. The keys of the cities were delivered into his hands, the prisoners were released from their dungeons, and his progress was attended by a general jubilee. His brother monarch, however, excused himself from affording more substantial proofs of his regard, until he should have closed the war then pending between him and Burgundy, and until Alfonso should have fortified his title to the Castilian crown, by obtaining from the pope a dispensation for his marriage with Joanna.

The defeat and death of the duke of Burgundy, whose camp, before Nanci, Alfonso visited in the depth of winter, with the chimerical purpose of effecting a reconciliation between him and Louis, removed the former of these impediments; as, in good time, the compliance of the pope did the latter. But the king of Portugal found himself no nearer the object of his negotiations; and, after waiting a whole year a needy suppliant at the court of Louis, he at length ascertained that his insidious host was concerting an arrangement with his mortal foes, Ferdinand and Isabella. Alfonso, whose character always had a spice of Quixotism in it, seems to have completely lost his wits at this last reverse of fortune. Overwhelmed with shame at his own credulity, he felt himself unable to encounter the ridicule which awaited his return to Portugal, and secretly withdrew, with two or three

domestics only, to an obscure village in Normandy, whence he transmitted an epistle to Prince John, his son, declaring, "that, as all earthly vanities were dead within his bosom, he resolved to lay up an imperishable crown by performing a pilgrimage to the Holy Land, and devoting himself to the service of God, in some retired monastery;" and he concluded with requesting his son "to assume the sovereignty, at once, in the same manner as if he had heard of his father's death." [28]

Fortunately Alfonso's retreat was detected before he had time to put his extravagant project in execution, and his trusty followers succeeded, though with considerable difficulty, in diverting him from it; while the king of France, willing to be rid of his importunate guest, and unwilling perhaps to incur the odium of having driven him to so desperate an extremity as that of his projected pilgrimage, provided a fleet of ships to transport him back to his own dominions, where, to complete the farce, he arrived just five days after the ceremony of his son's coronation as king of Portugal. Nor was it destined that the luckless monarch should solace himself, as he had hoped, in the arms of his youthful bride; since the pliant pontiff, Sixtus the Fourth, was ultimately persuaded by the court of Castile to issue a new bull overruling the dispensation formerly conceded, on the ground that it had been obtained by a misrepresentation of facts.

Prince John, whether influenced by filial piety, or prudence, resigned the crown of Portugal to his father, soon after his return; [29] and the old monarch was no sooner reinstated in his authority, than, burning with a thirst for vengeance, which made him insensible to every remonstrance, he again prepared to throw his country into combustion by reviving his enterprise against Castile. [30]

While these hostile movements were in progress, Ferdinand, leaving his consort in possession of a sufficient force for the protection of the frontiers,

made a journey into Biscay for the purpose of an interview with his father, the king of Aragon, to concert measures for the pacification of Navarre, which still continued to be rent with those sanguinary feuds, that were bequeathed like a precious legacy from one generation to another. [31] In the autumn of the same year a treaty of peace was definitively adjusted between the plenipotentiaries of Castile and France, at St. Jean de Luz, in which it was stipulated as a principle article, that Louis the Eleventh should disconnect himself from his alliance with Portugal, and give no further support to the pretensions of Joanna. [32]

Thus released from apprehension in this quarter, the sovereigns were enabled to give their undivided attention to the defence of the western borders. Isabella, accordingly, early in the ensuing winter, passed into Estremadura for the purpose of repelling the Portuguese, and still more of suppressing the insurrectionary movements of certain of her own subjects, who, encouraged by the vicinity of Portugal, carried on from their private fortresses a most desolating and predatory warfare over the circumjacent territory. Private mansions and farm-houses were pillaged and burnt to the ground, the cattle and crops swept away in their forays, the highways beset, so that all travelling was at an end, all communication cut off, and a rich and populous district converted at once into a desert. Isabella, supported by a body of regular troops and a detachment of the Holy Brotherhood, took her station at Truxillo, as a central position, whence she might operate on the various points with greatest facility. Her counsellors remonstrated against this exposure of her person in the very heart of the disaffected country; but she replied that "it was not for her to calculate perils or fatigues in her own cause, nor by an unseasonable timidity to dishearten her friends, with whom she was now resolved to remain until she had brought the war to a conclusion." She then gave immediate orders for laying siege at the same time to the fortified towns of Medellin, Merida, and Deleytosa.

At this juncture the infanta Doña Beatriz of Portugal, sister-in-law of King Alfonso, and maternal aunt of Isabella, touched with grief at the calamities, in which she saw her country involved by the chimerical ambition of her brother, offered herself as the mediator of peace between the belligerent nations. Agreeably to her proposal, an interview took place between her and Queen Isabella at the frontier town of Alcantara. As the conferences of the fair negotiators experienced none of the embarrassments usually incident to such deliberations, growing out of jealousy, distrust, and a mutual design to overreach, but were conducted in perfect good faith, and a sincere desire, on both sides, of establishing a cordial reconciliation, they resulted, after eight days' discussion, in a treaty of peace, with which the Portuguese infanta returned into her own country, in order to obtain the sanction of her royal brother. The articles contained in it, however, were too unpalatable to receive an immediate assent; and it was not until the expiration of six months, during which Isabella, far from relaxing, persevered with increased energy in her original plan of operations, that the treaty was formally ratified by the court of Lisbon. [33]

It was stipulated in this compact, that Alfonso should relinquish the title and armorial bearings, which he had assumed as king of Castile; that he should resign his claims to the hand of Joanna, and no longer maintain her pretensions to the Castilian throne; that that lady should make the election within six months, either to quit Portugal for ever, or to remain there on the condition of wedding Don John, the infant son of Ferdinand and Isabella, [34] so soon as he should attain a marriageable age, or to retire into a convent, and take the veil; that a general amnesty should be granted to all such Castilians as had supported Joanna's cause; and, finally, that the concord between the two nations should be cemented by the union of Alonso, son of the prince of Portugal, with the infanta Isabella, of Castile. [35]

Thus terminated, after a duration of four years and a half, the War of the Succession. It had fallen with peculiar fury on the border provinces of Leon and Estremadura, which, from their local position, had necessarily been kept in constant collision with the enemy. Its baneful effects were long visible there, not only in the general devastation and distress of the country, but in the moral disorganization, which the licentious and predatory habits of soldiers necessarily introduced among a simple peasantry. In a personal view, however, the war had terminated most triumphantly for Isabella, whose wise and vigorous administration, seconded by her husband's vigilance, had dispelled the storm, which threatened to overwhelm her from abroad, and established her in undisturbed possession of the throne of her ancestors.

Joanna's interests were alone compromised, or rather sacrificed, by the treaty. She readily discerned in the provision for her marriage with an infant still in the cradle, only a flimsy veil intended to disguise the king of Portugal's desertion of her cause. Disgusted with a world, in which she had hitherto experienced nothing but misfortune herself, and been the innocent cause of so much to others, she determined to renounce it for ever, and seek a shelter in the peaceful shades of the cloister. She accordingly entered the convent of Santa Clara at Coimbra, where, in the following year, she pronounced the irrevocable vows, which divorce the unhappy subject of them for ever from her species. Two envoys from Castile, Ferdinand de Talavera, Isabella's confessor, and Dr. Diaz de Madrigal, one of her council, assisted at this affecting ceremony; and the reverend father, in a copious exhortation addressed to the youthful novice, assured her "that she had chosen the better part approved in the Evangelists; that, as spouse of the church, her chastity would be prolific of all spiritual delights; her subjection, liberty,—the only true liberty, partaking more of Heaven than of earth. No kinsman," continued the disinterested preacher, "no true friend, or faithful counsellor, would divert you from so holy a purpose." [36]

Not long after this event, King Alfonso, penetrated with grief at the loss of his destined bride,—the "excellent lady," as the Portuguese continue to call her,—resolved to imitate her example, and exchange his royal robes for the humble habit of a Franciscan friar. He consequently made preparation for resigning his crown anew, and retiring to the monastery of Varatojo, on a bleak eminence near the Atlantic Ocean, when he suddenly fell ill, at Cintra, of a disorder which terminated his existence, on the 28th of August, 1481. Alfonso's fiery character, in which all the elements of love, chivalry, and religion were blended together, resembled that of some paladin of romance; as the chimerical enterprises, in which he was perpetually engaged, seem rather to belong to the age of knight-errantry, than to the fifteenth century. [37]

In the beginning of the same year in which the pacification with Portugal secured to the sovereigns the undisputed possession of Castile, another crown devolved on Ferdinand by the death of his father, the king of Aragon, who expired at Barcelona, on the 20th of January, 1479, in the eighty-third year of his age. [38] Such was his admirable constitution that he retained not only his intellectual, but his bodily vigor, unimpaired to the last. His long life was consumed in civil faction or foreign wars; and his restless spirit seemed to take delight in these tumultuous scenes, as best fitted to develop its various energies. He combined, however, with this intrepid and even ferocious temper, an address in the management of affairs, which led him to rely, for the accomplishment of his purposes, much more on negotiation than on positive force. He may be said to have been one of the first monarchs who brought into vogue that refined science of the cabinet, which was so profoundly studied by statesmen at the close of the fifteenth century, and on which his own son Ferdinand furnished the most practical commentary.

The crown of Navarre, which he had so shamelessly usurped, devolved, on his decease, on his guilty daughter Leonora, countess of Foix, who, as we have before noticed, survived to enjoy it only three short weeks. Aragon, with its extensive dependencies, descended to Ferdinand. Thus the two crowns of Aragon and Castile, after a separation of more than four centuries, became indissolubly united, and the foundations were laid of the magnificent empire which was destined to overshadow every other European monarchy.

FOOTNOTES

[1] The popular belief of Joanna's illegitimacy was founded on the following circumstances. 1. King Henry's first marriage with Blanche of Navarre was dissolved, after it had subsisted twelve years, on the publicly alleged ground of "impotence in the parties." 2. The princess Joanna, the only child of his second queen, Joanna of Portugal, was not born until the eighth year of her marriage, and long after she had become notorious for her gallantries. 3. Although Henry kept several mistresses, whom he maintained in so ostentatious a manner as to excite general scandal, he was never known to have had issue by any one of them.—To counterbalance the presumption afforded by these facts, it should be stated, that Henry appears, to the day of his death, to have cherished the princess Joanna as his own offspring, and that Beltran de la Cueva, duke of Albuquerque, her reputed father, instead of supporting her claims to the crown on the demise of Henry, as would have been natural had he been entitled to the honors of paternity, attached himself to the adverse faction of Isabella.

Queen Joanna survived her husband about six months only. Father Florez (*Reynas Cathólicas*, tom. ii. pp. 760-786) has made a flimsy attempt to whitewash her character; but, to say nothing of almost every contemporary

historian, as well as of the official documents of that day (see Marina, Teoría, tom. iii. part. 2, num. 11), the stain has been too deeply fixed by the repeated testimony of Castillo, the loyal adherent of her own party, to be thus easily effaced.

It is said, however, that the queen died in the odor of sanctity; and Ferdinand and Isabella caused her to be deposited in a rich mausoleum, erected by the ambassador to the court of the Great Tamerlane for himself, but from which his remains were somewhat unceremoniously ejected, in order to make room for those of his royal mistress.

[2] See this subject discussed *in extenso*, by Marina, Teoría, part. 2, cap. 1-10.—See, also, Introd. Sect. I. of this History.

[3] See Part I. Chap. 3.

[4] See Part I. Chap. 4, Note 2.

[5] Fortunately, this strong place, in which the royal treasure was deposited, was in the keeping of Andres de Cabrera, the husband of Isabella's friend, Beatriz de Bobadilla. His co-operation at this juncture was so important, that Oviedo does not hesitate to declare, "It lay with him to make Isabella or her rival queen, as he listed." Quincuagenas, MS., bat. 1, quinc. 1, dial. 23.

[6] Bernaldez, Reyes Católicos, MS., cap. 10.—Carbajal, Anales, MS., año 75.—Alonso de Palencia, Corónica, MS., part. 2, cap. 93.—L. Marineo, Cosas Memorables, fol. 155.—Oviedo, Quincuagenas, MS., bat. 1, quinc. 2, dial. 3.

[7] Marina, whose peculiar researches and opportunities make him the best, is my only authority for this convention of the cortes. (Teoría, tom. ii.

pp. 63, 89.) The extracts he makes from the writ of summons, however, seem to imply, that the object was not the recognition of Ferdinand and Isabella, but of their daughter, as successor to the crown. Among the nobles, who openly testified their adhesion to Isabella, were no less than four of the six individuals, to whom the late king had intrusted the guardianship of his daughter Joanna; viz. the grand cardinal of Spain, the constable of Castile, the duke of Infantado, and the count of Benavente.

[8] A precedent for female inheritance, in the latter kingdom, was subsequently furnished by the undisputed succession and long reign of Joanna, daughter of Ferdinand and Isabella, and mother of Charles V. The introduction of the Salic law, under the Bourbon dynasty, opposed a new barrier, indeed; but this has been since swept away by the decree of the late monarch, Ferdinand VII., and the paramount authority of the cortes; and we may hope that the successful assertion of her lawful rights by Isabella II. will put this much vexed question at rest for ever.

[9] See Part I. Chap. 3.—Ferdinand's powers are not so narrowly limited, at least not so carefully defined, in this settlement, as in the marriage articles. Indeed, the instrument is much more concise and general in its whole import.

[10] Salazar de Mendoza, Crón. del Gran Cardenal, lib. 1, cap. 40.—L. Marineo, Cosas Memorables, fol. 155, 156.—Zurita, Anales, tom. iv. fol. 222-224.—Pulgar, Reyes Católicos, pp. 35, 36.—See the original instrument signed by Ferdinand and Isabella, cited at length in Dormer's Discursos Varios de Historia, (Zaragoza, 1683,) pp. 295-313.—It does not appear that the settlement was ever confirmed by, or indeed presented to, the cortes. Marina speaks of it, however, as emanating from that body. (Teoría, tom. ii. pp. 63, 64.) From Pulgar's statement, as well as from the instrument itself, it seems to have been made under no other auspices or

sanction, than that of the great nobility and cavaliers. Marina's eagerness to find a precedent for the interference of the popular branch in all the great concerns of government, has usually quickened, but sometimes clouded, his optics. In the present instance he has undoubtedly confounded the irregular proceedings of the aristocracy exclusively, with the deliberate acts of the legislature.

[11] Alonso de Palencia, *Corónica*, MS., part. 2, cap. 94.—Garibay, *Compendio*, lib. 18, cap. 3.—Bernaldez, *Reyes Católicos*, MS., cap. 10, 11.—Pulgar, *Letras*, (Madrid, 1775,) let. 3, al Arzobispo de Toledo.—The archbishop's jealousy of cardinal Mendoza is uniformly reported by the Spanish writers as the true cause of his defection from the queen.

[12] Ruy de Pina, *Chrónica d'el Rey Alfonso V.*, cap. 173, apud *Collecção de Livros Inéditos de Historia Portuguesa*, (Lisboa, 1790-93,) tom. i.

[13] The ancient rivalry between the two nations was exasperated into the most deadly rancor, by the fatal defeat at Aljubarrota, in 1235, in which fell the flower of the Castilian nobility. King John I. wore mourning, it is said, to the day of his death, in commemoration of this disaster. (Faria y Sousa, *Europa Portuguesa*, tom. ii. pp. 394-396.—La Clède, *Hist. de Portugal*, tom. iii. pp. 357-359.) Pulgar, the secretary of Ferdinand and Isabella, addressed, by their order, a letter of remonstrance to the king of Portugal, in which he endeavors, by numerous arguments founded on expediency and justice, to dissuade him from his meditated enterprise. Pulgar, *Letras*, No. 7.

[14] Ruy de Pina, *Chrónica d'el Rey Alfonso V.*, cap. 174-178.—Bernaldez, *Reyes Católicos*, MS., cap. 16, 17, 18.—Bernaldez states, that Alfonso, previously to his invasion, caused largesses of plate and money to be distributed among the Castilian nobles, whom he imagined to be well affected towards him. Some of them, the duke of Alva in particular,

received his presents and used them in the cause of Isabella.—Faria y Sousa, *Europa Portuguesa*, tom. ii. pp. 396-398.—Zurita, *Anales*, tom. iv. fol. 230-240.—La Clède, *Hist. de Portugal*, tom. iii. pp. 360-362.—Pulgar, *Crónica*, p. 51.—L. Marineo, *Cosas Memorables*, fol. 156.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 2, dial. 3.

[15] The queen, who was, at that time, in a state of pregnancy, brought on a miscarriage by her incessant personal exposure. Zurita, *Anales*, tom. iv. fol. 234.

[16] Carbajal, *Anales*, MS., año 75.—Pulgar, *Reyes Católicos*, pp. 45-55.—Ferrerías, *Hist. d'Espagne*, tom. vii. p. 411.—Bernaldez, *Reyes Católicos*, MS., cap. 23.

[17] Bernaldez, *Reyes Católicos*, MS., cap. 18.—Faria y Sousa, *Europa Portuguesa*, tom. ii. pp. 398-400.—Pulgar, *Crónica*, pp. 55-60.—Ruy de Pina, *Chrón. d'el Rey Alfonso V.*, cap. 179.—La Clède, *Hist. de Portugal*, tom. iii. p. 366.—Zurita, *Anales*, tom. iv. fol. 240-243.

[18] "Pues no os maravilleis de eso," says Oviedo, in relation to these troubles, "que nó solo entre hermanos suele haber esas diferencias, mas entre padre é hijo lo vimos ayer, como suelen decir." *Quincuagenas*, MS., bat. 1, quinc. 2, dial. 3.

[19] The royal coffers were found to contain about 10,000 marks of silver. (Pulgar, *Reyes Catól.* p. 54.) Isabella presented Cabrera with a golden goblet from her table, engaging that a similar present should be regularly made to him and his successors on the anniversary of his surrender of Segovia. She subsequently gave a more solid testimony of her gratitude, by raising him to the rank of marquis of Moya, with the grant of an estate suitable to his new dignity.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 23.

[20] The indignation of Dr. Salazar de Mendoza is roused by this misapplication of the church's money, which he avers "no necessity whatever could justify." This worthy canon flourished in the seventeenth century. Crón. del Gran Cardenal, p. 147.—Pulgar, Reyes Catól. pp. 60- 62.—Faria y Sousa, Europa Portuguesa, tom. ii. p. 400.—Rades y Andrada, Las Tres Ordenes, part. 1, fol. 67.—Zurita, Anales, tom. iv. fol. 243.—Bernaldez, Reyes Católicos, MS., cap. 18, 20. Zuñiga gives some additional particulars respecting the grant of the cortes, which I do not find verified by any contemporary author. Annales de Sevilla, p. 372.

[21] Carbajal, Anales, MS., años 75, 76.—Ruy de Pina, Chrón. del Rey Alfonso V., cap. 187, 189.—Bernaldez, Reyes Católicos, MS., cap. 20, 22.—Pulgar, Reyes Católicos, pp. 63-78.—L. Marineo, Cosas Memorables, fol. 156.—Faria y Sousa, Europa Portuguesa, tom. ii. pp. 401, 404.—Several of the contemporary Castilian historians compute the Portuguese army at double the amount given in the text.

[22] Pulgar, Reyes Católicos, pp. 82-85.—Zurita, Anales, tom. iv. fol. 252, 253.—Faria y Sousa, Europa Portuguesa, tom. ii. pp. 404, 405.—Bernaldez, Reyes Católicos. MS., cap. 23.—Ruy de Pina, Chrón. d'el Rey Alfonso V., cap. 190.

[23] Carbajal, Anales, MS., año 76.—L. Marineo, Cosas Memorables, fol. 158.—Pulgar, Reyes Católicos, pp. 85-89.—Faria y Sousa, Europa Portuguesa, tom. ii. pp. 404, 405.—Bernaldez, Reyes Católicos, MS., cap. 23.—La Clède, Hist. de Portugal, tom. iii. pp. 378-383.—Zurita, Anales, tom. iv. fol. 252-255.

[24] Faria y Sousa claims the honors of the victory for the Portuguese, because Prince John kept the field till morning. Even M. La Clède, with all his deference to the Portuguese historian, cannot swallow this. Faria y Sousa, Europa Portuguesa, tom. ii. pp. 405-410.—Oviedo, Quincuagenas,

MS., bat. 1, quinc. 1, dial. 8.—Salazar de Mendoza, Crón. del Gran Cardenal, lib. 1, cap. 46—Pulgar, Reyes Católicos, pp. 85-90.—L. Marineo, Cosas Memorables, fol. 158.—Carbajal, Anales, MS., año 76.—Bernaldez, Reyes Católicos, MS., cap. 23.—Ruy de Pina, Chrón. d'el Rey Alfonso V., cap. 191.—Ferdinand, in allusion to Prince John, wrote to his wife, that "if it had not been for the chicken, the old cock would have been taken." Garibay, Compendio, lib. 18, cap. 8.

[25] Pulgar, Reyes Católicos, p. 90.—The sovereigns, in compliance with a previous vow, caused a superb monastery, dedicated to St. Francis, to be erected in Toledo, with the title of San Juan de los Reyes, in commemoration of their victory over the Portuguese. This edifice was still to be seen in Mariana's time.

[26] Rades y Andrada, Las Tres Ordenes, tom. ii. fol. 79, 80.—Pulgar, Reyes Católicos, cap. 48-50, 55, 60.—Zurita, Anales, lib. 19, cap. 46, 48, 54, 58.—Ferrerias, Hist. d'Espagne, tom. vii. pp. 476-478, 517-519, 546.—Bernaldez, Reyes Católicos, MS., cap. 10.—Oviedo, Quincuagenas, MS., bat. 1, quinc. 1, dial. 8.

[27] Gaillard, Rivalité, tom. iii. pp. 290, 292.—Carbajal, Anales, MS., año 76.

[28] Bernaldez, Reyes Católicos, MS., cap. 27.—Pulgar, Reyes Católicos, cap. 56, 57.—Gaillard, Rivalité, tom. iii. pp. 290-292.—Zurita, Anales, lib. 19, cap. 56, lib. 20, cap. 10.—Ruy de Pina, Chrón. d'el Rey Alfonso V., cap. 194-202.—Faria y Sousa, Europa Portuguesa, tom. ii. pp. 412- 415.—Comines, Mémoires, liv. 5, chap. 7.

[29] According to Faria y Sousa, John was walking along the shores of the Tagus, with the duke of Braganza, and the cardinal archbishop of Lisbon, when he received the unexpected tidings of his father's return to

Portugal. On his inquiring of his attendants how he should receive him, "How but as your king and father!" was the reply; at which John, knitting his brows together, skimmed a stone, which he held in his hand, with much violence across the water. The cardinal, observing this, whispered to the duke of Braganza, "I will take good care that that stone does not rebound on me." Soon after, he left Portugal for Rome, where he fixed his residence. The duke lost his life on the scaffold for imputed treason soon after John's accession.—*Europa Portuguesa*, tom. ii. p. 416.

[30] Comines, *Mémoires*, liv. 5, chap. 7.—Faria y Sousa, *Europa Portuguesa*, tom. ii. p. 116.—Zurita, *Anales*, lib. 20, cap. 25.—Bernaldez, *Reyes Católicos*, MS., cap. 27.

[31] This was the first meeting between father and son since the elevation of the latter to the Castilian throne. King John would not allow Ferdinand to kiss his hand; he chose to walk on his left; he attended him to his quarters, and, in short, during the whole twenty days of their conference manifested towards his son all the deference, which, as a parent, he was entitled to receive from him. This he did on the ground that Ferdinand, as king of Castile, represented the elder branch of Trastámara, while he represented only the younger. It will not be easy to meet with an instance of more punctilious etiquette, even in Spanish history.—Pulgar, *Reyes Católicos*, cap. 75.

[32] Salazar de Mendoza, *Crón. del Gran Cardenal*, p. 162.—Zurita, *Anales*, lib. 20, cap. 25.—Carbajal, *Anales*, MS., año 79.

[33] Ruy de Pina, *Chrón. d'el Rey Alfonso V.*, cap. 206.—L. Marineo, *Cosas Memorables*, fol. 166, 167.—Pulgar, *Reyes Católicos*, cap. 85, 89, 90.—Faria y Sousa, *Europa Portuguesa*, tom. ii. pp. 420, 421.—Ferrerías, *Hist. d'Espagne*, tom. vii. p. 538.—Carbajal, *Anales*, MS., año 79.—Bernaldez, *Reyes Católicos*, MS., cap. 28, 36, 37.

[34] Born the preceding year, June 28th, 1478. Carbajal, Anales, MS., anno eodem.

[35] L. Marineo, Cosas Memorables, fol. 168.—Pulgar, Reyes Católicos, cap. 91.—Faria y Sousa, Europa Portuguesa, tom. ii. pp. 420, 421.—Ruy de Pina, Chrón. d'el Rey Alfonso V., cap. 206.

[36] Ruy de Pina, Chrón. d'el Rey Alfonso V., cap. 20.—Faria y Sousa, Europa Portuguesa, tom. ii. p. 421.—Pulgar, Reyes Católicos, cap. 92.—L. Marineo speaks of the *Señora muy excelente*, as an inmate of the cloister at the period in which he was writing, 1522, (fol. 168.) Notwithstanding her "irrevocable vows," however, Joanna several times quitted the monastery, and maintained a royal state under the protection of the Portuguese monarchs, who occasionally threatened to revive her dormant claims to the prejudice of the Castilian sovereigns. She may be said, consequently, to have formed the pivot, on which turned, during her whole life, the diplomatic relations between the courts of Castile and Portugal, and to have been a principal cause of those frequent intermarriages between the royal families of the two countries, by which Ferdinand and Isabella hoped to detach the Portuguese crown from her interests. Joanna affected a royal style and magnificence, and subscribed herself "I the Queen," to the last. She died in the palace at Lisbon, in 1530, in the 69th year of her age, having survived most of her ancient friends, suitors, and competitors.—Joanna's history, subsequent to her taking the veil, has been collected, with his usual precision, by Señor Clemencin, Mem. de la Acad. de Hist., tom. vi. Ilust. 19.

[37] Faria y Sousa, Europa Portuguesa, tom. ii. p. 423.—Ruy de Pina, Chrón. d'el Rey Alfonso V., cap. 212.

[38] Carbajal, Anales, MS., año 79.—Bernaldez, Reyes Católicos, MS., cap. 42.—Mariana, Hist. de España, (ed Valencia,) tom. viii. p. 204, not.—

Abarca, Reyes de Aragon, tom. ii. fol. 295.

CHAPTER VI.

INTERNAL ADMINISTRATION OF CASTILE.

1475-1482.

Schemes of Reform.—Holy Brotherhood.—Tumult at Segovia.—The Queen's Presence of Mind.—Severe Execution of Justice.—Royal Progress through Andalusia.—Reorganization of the Tribunals.—Castilian Jurisprudence.—Plans for Reducing the Nobles.—Revocation of Grants.—Military Orders of Castile.—Masterships annexed to the Crown.—Ecclesiastical Usurpations Resisted.—Restoration of Trade.—Prosperity of the Kingdom.

I have deferred to the present chapter a consideration of the important changes introduced into the interior administration of Castile after the accession of Isabella, in order to present a connected and comprehensive view of them to the reader, without interrupting the progress of the military narrative. The subject may afford an agreeable relief to the dreary details of blood and battle, with which we have been so long occupied, and which were rapidly converting the garden of Europe into a wilderness. Such details indeed seem to have the deepest interest for contemporary writers; but the eye of posterity, unclouded by personal interest or passion, turns

with satisfaction from them to those cultivated arts, which can make the wilderness to blossom as the rose.

If there be any being on earth, that may be permitted to remind us of the Deity himself, it is the ruler of a mighty empire, who employs the high powers intrusted to him exclusively for the benefit of his people; who, endowed with intellectual gifts corresponding with his station, in an age of comparative barbarism, endeavors to impart to his land the light of civilization which illumines his own bosom, and to create from the elements of discord the beautiful fabric of social order. Such was Isabella; and such the age in which she lived. And fortunate was it for Spain that her sceptre, at this crisis, was swayed by a sovereign possessed of sufficient wisdom to devise, and energy to execute, the most salutary schemes of reform, and thus to infuse a new principle of vitality into a government fast sinking into premature decrepitude.

The whole plan of reform introduced into the government by Ferdinand and Isabella, or more properly by the latter, to whom the internal administration of Castile was principally referred, was not fully unfolded until the completion of her reign. But the most important modifications were adopted previously to the war of Granada in 1482. These may be embraced under the following heads. I. The efficient administration of justice. II. The codification of the laws. III. The depression of the nobles. IV. The vindication of ecclesiastical rights belonging to the crown from the usurpation of the papal see. V. The regulation of trade. VI. The pre-eminence of royal authority,

I. The administration of justice. In the dismal anarchy, which prevailed in Henry the Fourth's reign, the authority of the monarch and of the royal judges had fallen into such contempt, that the law was entirely without force. The cities afforded no better protection than the open country. Every

man's hand seemed to be lifted against his neighbor. Property was plundered; persons were violated; the most holy sanctuaries profaned; and the numerous fortresses scattered throughout the country, instead of sheltering the weak, converted into dens of robbers. [1] Isabella saw no better way of checking this unbounded license, than to direct against it that popular engine, the *Santa Hermandad*, or Holy Brotherhood, which had more than once shaken the Castilian monarchs on their throne.

The project for the reorganization of this institution was introduced into the cortes held, the year after Isabella's accession at Madrigal, in 1476. It was carried into effect by the *junta* of deputies from the different cities of the kingdom, convened at Dueñas in the same year. The new institution differed essentially from the ancient *hermandades*, since, instead of being partial in its extent, it was designed to embrace the whole kingdom; and, instead of being directed, as had often been the case, against the crown itself, it was set in motion at the suggestion of the latter, and limited in its operation to the maintenance of public order. The crimes, reserved for its jurisdiction, were all violence or theft committed on the highways or in the open country, and in cities by such offenders as escaped into the country; house-breaking; rape; and resistance of justice. The specification of these crimes shows their frequency; and the reason for designating the open country, as the particular theatre for the operations of the hermandad, was the facility which criminals possessed there for eluding the pursuit of justice, especially under shelter of the strong-holds or fortresses, with which it was plentifully studded.

An annual contribution of eighteen thousand maravedies was assessed on every hundred *vecinos* or householders, for the equipment and maintenance of a horseman, whose duty it was to arrest offenders, and enforce the sentence of the law. On the flight of a criminal, the tocsins of the villages, through which he was supposed to have passed, were sounded, and the

quadrilleros or officers of the brotherhood, stationed on the different points, took up the pursuit with such promptness as left little chance of escape. A court of two *alcaldes* was established in every town containing thirty families, for the trial of all crimes within the jurisdiction of the *hermandad*; and an appeal lay from them in specified cases to a supreme council. A general junta, composed of deputies from the cities throughout the kingdom, was annually convened for the regulation of affairs, and their instructions were transmitted to provincial juntas, who superintended the execution of them. The laws, enacted at different times in these assemblies, were compiled into a code under the sanction of the junta general at Tordelaguna, in 1485. [2] The penalties for theft, which are literally written in blood, are specified in this code with singular precision. The most petty larceny was punished with stripes, the loss of a member, or of life itself; and the law was administered with an unsparing rigor, which nothing but the extreme necessity of the case could justify. Capital executions were conducted by shooting the criminal with arrows. The enactment, relating to this, provides, that "the convict shall receive the sacrament like a Catholic Christian, and after that be executed as speedily as possible, in order that his soul may pass the more securely." [3]

Notwithstanding the popular constitution of the *hermandad*, and the obvious advantages attending its introduction at this juncture, it experienced so decided an opposition from the nobility, who discerned the check it was likely to impose on their authority, that it required all the queen's address and perseverance to effect its general adoption. The constable de Haro, however, a nobleman of great weight from his personal character, and the most extensive landed proprietor in the north, was at length prevailed on to introduce it among his vassals. His example was gradually followed by others of the same rank; and, when the city of Seville, and the great lords of Andalusia, had consented to receive it, it speedily became established throughout the kingdom. Thus a standing body of troops, two thousand in

number, thoroughly equipped and mounted, was placed at the disposal of the crown, to enforce the law, and suppress domestic insurrection. The supreme junta, which regulated the counsels of the hermandad, constituted moreover a sort of inferior cortes, relieving the exigencies of government, as we shall see hereafter, on more than one occasion, by important supplies of men and money. By the activity of this new military police, the country was, in the course of a few years, cleared of its swarms of banditti, as well as of the robber chieftains, whose strength had enabled them to defy the law. The ministers of justice found a sure protection in the independent discharge of their duties; and the blessings of personal security and social order, so long estranged from the nation, were again restored to it.

The important benefits, resulting from the institution of the hermandad, secured its confirmation by successive cortes, for the period of twenty- two years, in spite of the repeated opposition of the aristocracy. At length, in 1498, the objects for which it was established having been completely obtained, it was deemed advisable to relieve the nation from the heavy charges which its maintenance imposed. The great salaried officers were dismissed; a few subordinate functionaries were retained for the administration of justice, over whom the regular courts of criminal law possessed appellate jurisdiction; and the magnificent apparatus of the *Santa Hermandad*, stripped of all but the terrors of its name, dwindled into an ordinary police, such as it has existed, with various modifications of form, down to the present century. [4]

Isabella was so intent on the prosecution of her schemes of reform, that, even in the minuter details, she frequently superintended the execution of them herself. For this she was admirably fitted by her personal address, and presence of mind in danger, and by the influence which a conviction of her integrity gave her over the minds of the people. A remarkable exemplification of this occurred, the year but one after her coronation, at

Segovia. The inhabitants, secretly instigated by the bishop of that place, and some of the principal citizens, rose against Cabrera, marquis of Moya, to whom the government of the city had been intrusted, and who had made himself generally unpopular by his strict discipline. They even proceeded so far as to obtain possession of the outworks of the citadel, and to compel the deputy of the *alcayde*, who was himself absent, to take shelter, together with the princess Isabella, then the only daughter of the sovereigns, in the interior defences, where they were rigorously blockaded.

The queen, on receiving tidings of the event at Tordesillas, mounted her horse and proceeded with all possible despatch towards Segovia, attended by Cardinal Mendoza, the count of Benavente, and a few others of her court. At some distance from the city, she was met by a deputation of the inhabitants, requesting her to leave behind the count of Benavente and the marchioness of Moya, (the former of whom as the intimate friend, and the latter as the wife of the *alcayde*, were peculiarly obnoxious to the citizens,) or they could not answer for the consequences. Isabella haughtily replied, that "she was queen of Castile; that the city was hers, moreover, by right of inheritance; and that she was not used to receive conditions from rebellious subjects." Then pressing forward with her little retinue, through one of the gates, which remained in the hands of her friends, she effected her entrance into the citadel.

The populace, in the mean while, assembling in greater numbers than before, continued to show the most hostile dispositions, calling out, "Death to the *alcayde*! Attack the castle!" Isabella's attendants, terrified at the tumult, and at the preparations which the people were making to put their menaces into execution, besought their mistress to cause the gates to be secured more strongly, as the only mode of defence against the infuriated mob. But, instead of listening to their counsel, she bade them remain quietly in the apartment, and descended herself into the courtyard, where she

ordered the portals to be thrown open for the admission of the people. She stationed herself at the further extremity of the area, and, as the populace poured in, calmly demanded the cause of the insurrection. "Tell me," said she, "what are your grievances, and I will do all in my power to redress them; for I am sure that what is for your interest, must be also for mine, and for that of the whole city." The insurgents, abashed by the unexpected presence of their sovereign, as well as by her cool and dignified demeanor, replied, that all they desired was the removal of Cabrera from the government of the city. "He is deposed already," answered the queen, "and you have my authority to turn out such of his officers as are still in the castle, which I shall intrust to one of my own servants, on whom I can rely." The people, pacified by these assurances, shouted, "Long live the queen!" and eagerly hastened to obey her mandates.

After thus turning aside the edge of popular fury, Isabella proceeded with her retinue to the royal residence in the city, attended by the fickle multitude, whom she again addressed on arriving there, admonishing them to return to their vocations, as this was no time for calm inquiry; and promising, that, if they would send three or four of their number to her on the morrow to report the extent of their grievances, she would examine into the affair, and render justice to all parties. The mob accordingly dispersed, and the queen, after a candid examination, having ascertained the groundlessness or gross exaggeration of the misdemeanors imputed to Cabrera, and traced the source of the conspiracy to the jealousy of the bishop of Segovia and his associates, reinstated the deposed alcaide in the full possession of his dignities, which his enemies, either convinced of the altered dispositions of the people, or believing that the favorable moment for resistance had escaped, made no further attempts to disturb. Thus by a happy presence of mind, an affair, which threatened, at its outset, disastrous consequences, was settled without bloodshed, or compromise of the royal dignity. [5]

In the summer of the following year, 1477, Isabella resolved to pay a visit to Estremadura and Andalusia, for the purpose of composing the dissensions, and introducing a more efficient police, in these unhappy provinces; which, from their proximity to the stormy frontier of Portugal, as well as from the feuds between the great houses of Guzman and Ponce de Leon, were plunged in the most frightful anarchy. Cardinal Mendoza and her other ministers remonstrated against this imprudent exposure of her person, where it was so little likely to be respected. But she replied, "it was true there were dangers and inconveniences to be encountered; but her fate was in God's hands, and she felt a confidence that he would guide to a prosperous issue such designs as were righteous in themselves and resolutely conducted."

Isabella experienced the most loyal and magnificent reception from the inhabitants of Seville, where she established her head-quarters. The first days of her residence there were consumed in *fêtes*, tourneys, tilts of reeds, and other exercises of the Castilian chivalry. After this she devoted her whole time to the great purpose of her visit, the reformation of abuses. She held her court in the saloon of the alcazar, or royal castle, where she revived the ancient practice of the Castilian sovereigns, of presiding in person over the administration of justice. Every Friday, she took her seat in her chair of state, on an elevated platform covered with cloth of gold, and surrounded by her council, together with the subordinate functionaries, and the insignia of a court of justice. The members of her privy council, and of the high court of criminal law, sat in their official capacity every day in the week; and the queen herself received such suits as were referred to her adjudication, saving the parties the usual expense and procrastination of justice.

By the extraordinary despatch of the queen and her ministers, during the two months that she resided in the city, a vast number of civil and criminal

causes were disposed of, a large amount of plundered property was restored to its lawful owners, and so many offenders were brought to condign punishment, that no less than four thousand suspected persons, it is computed, terrified by the prospect of speedy retribution for their crimes, escaped into the neighboring kingdoms of Portugal and Granada. The worthy burghers of Seville, alarmed at this rapid depopulation of the city, sent a deputation to the queen, to deprecate her anger, and to represent that faction had been so busy of late years in their unhappy town, that there was scarcely a family to be found in it, some of whose members were not more or less involved in the guilt. Isabella, who was naturally of a benign disposition, considering that enough had probably been done to strike a salutary terror into the remaining delinquents, was willing to temper justice with mercy, and accordingly granted an amnesty for all past offences, save heresy, on the condition, however, of a general restitution of such property as had been unlawfully seized and retained during the period of anarchy. [6]

But Isabella became convinced that all arrangements for establishing permanent tranquillity in Seville would be ineffectual, so long as the feud continued between the great families of Guzman and Ponce de Leon. The duke of Medina Sidonia and the marquis of Cadiz, the heads of these houses, had possessed themselves of the royal towns and fortresses, as well as of those which, belonging to the city, were scattered over its circumjacent territory, where, as has been previously stated, they carried on war against each other, like independent potentates. The former of these grandees had been the loyal supporter of Isabella in the War of the Succession. The marquis of Cadiz, on the other hand, connected by marriage with the house of Pacheco, had cautiously withheld his allegiance, although he had not testified his hostility by any overt act. While the queen was hesitating as to the course she should pursue in reference to the marquis, who still kept himself aloof in his fortified castle of Xerez, he suddenly presented himself by night at her residence in Seville,

accompanied only by two or three attendants. He took this step, doubtless, from the conviction that the Portuguese faction had nothing further to hope in a kingdom where Isabella reigned not only by the fortune of war, but by the affections of the people; and he now eagerly proffered his allegiance to her, excusing his previous conduct as he best could. The queen was too well satisfied with the submission, however tardy, of this formidable vassal, to call him to severe account for past delinquencies. She exacted from him, however, the full restitution of such domains and fortresses as he had filched from the crown and from the city of Seville, on condition of similar concessions by his rival, the duke of Medina Sidonia. She next attempted to establish a reconciliation between these belligerent grandees; but, aware that, however pacific might be their demonstrations for the present, there could be little hope of permanently allaying the inherited feuds of a century, whilst the neighborhood of the parties to each other must necessarily multiply fresh causes of disgust, she caused them to withdraw from Seville to their estates in the country, and by this expedient succeeded in extinguishing the flame of discord. [7]

In the following year, 1478, Isabella accompanied her husband in a tour through Andalusia, for the immediate purpose of reconnoitring the coast. In the course of this progress, they were splendidly entertained by the duke and marquis at their patrimonial estates. They afterwards proceeded to Cordova, where they adopted a similar policy with that pursued at Seville, compelling the count de Cabra, connected with the blood royal, and Alonso de Aguilar, lord of Montilla, whose factions had long desolated this fair city, to withdraw into the country, and restore the immense possessions, which they had usurped both from the municipality and the crown. [8]

One example among others may be mentioned, of the rectitude and severe impartiality, with which Isabella administered justice, that occurred in the case of a wealthy Galician knight, named Alvaro Yañez de Lugo. This

person, being convicted of a capital offence, attended with the most aggravating circumstances, sought to obtain a commutation of his punishment, by the payment of forty thousand *doblas* of gold to the queen, a sum exceeding at that time the annual rents of the crown. Some of Isabella's counsellors would have persuaded her to accept the donative, and appropriate it to the pious purposes of the Moorish war. But, far from being blinded by their sophistry, she suffered the law to take its course, and, in order to place her conduct above every suspicion of a mercenary motive, allowed his estates, which might legally have been confiscated to the crown, to descend to his natural heirs. Nothing contributed more to re-establish the supremacy of law in this reign, than the certainty of its execution, without respect to wealth or rank; for the insubordination, prevalent throughout Castile, was chiefly imputable to persons of this description, who, if they failed to defeat justice by force, were sure of doing so by the corruption of its ministers. [9]

Ferdinand and Isabella employed the same vigorous measures in the other parts of their dominions, which had proved so successful in Andalusia, for the extirpation of the hordes of banditti, and of the robber-knights, who differed in no respect from the former, but in their superior power. In Galicia alone, fifty fortresses, the strongholds of tyranny, were razed to the ground, and fifteen hundred malefactors, it was computed, were compelled to fly the kingdom. "The wretched inhabitants of the mountains," says a writer of that age, "who had long since despaired of justice, blessed God for their deliverance, as it were, from a deplorable captivity." [10]

While the sovereigns were thus personally occupied with the suppression of domestic discord, and the establishment of an efficient police, they were not inattentive to the higher tribunals, to whose keeping, chiefly, were intrusted the personal rights and property of the subject. They reorganized the royal or privy council, whose powers, although, as has been noticed in

the Introduction, principally of an administrative nature, had been gradually encroaching on those of the superior courts of law. During the last century, this body had consisted of prelates, knights, and lawyers, whose numbers and relative proportions had varied in different times. The right of the great ecclesiastics and nobles to a seat in it was, indeed, recognized, but the transaction of business was reserved for the counsellors specially appointed. [11] Much the larger proportion of these, by the new arrangement, was made up of jurists, whose professional education and experience eminently qualified them for the station. The specific duties and interior management of the council were prescribed with sufficient accuracy. Its authority as a court of justice was carefully limited; but, as it was charged with the principal executive duties of government, it was consulted in all important transactions by the sovereigns, who paid great deference to its opinions, and very frequently assisted at its deliberations. [12]

No change was made in the high criminal court of *alcaldes de corte*, except in its forms of proceeding. But the royal audience, or chancery, the supreme and final court of appeal in civil causes, was entirely remodelled. The place of its sittings, before indeterminate, and consequently occasioning much trouble and cost to the litigants, was fixed at Valladolid. Laws were passed to protect the tribunal from the interference of the crown, and the queen was careful to fill the bench with magistrates whose wisdom and integrity would afford the best guaranty for a faithful interpretation of the law. [13]

In the cortes of Madrigal (1476), and still more in the celebrated one of Toledo (1480), many excellent provisions were made for the equitable administration of justice, as well as for regulating the tribunals. The judges were to ascertain every week, either by personal inspection, or report, the condition of the prisons, the number of the prisoners, and the nature of the offences for which they were confined. They were required to bring them to

a speedy trial, and afford every facility for their defence. An attorney was provided at the public expense, under the title of "advocate for the poor," whose duty it was to defend the suits of such as were unable to maintain them at their own cost. Severe penalties were enacted against venality in the judges, a gross evil under the preceding reigns, as well as against such counsel as took exorbitant fees, or even maintained actions that were manifestly unjust. Finally, commissioners were appointed to inspect and make report of the proceedings of municipal and other inferior courts throughout the kingdom. [14]

The sovereigns testified their respect for the law by reviving the ancient, but obsolete practice of presiding personally in the tribunals, at least once a week. "I well remember," says one of their court, "to have seen the queen, together with the Catholic king, her husband, sitting in judgment in the alcazar of Madrid, every Friday, dispensing justice to all such, great and small, as came to demand it. This was indeed the golden age of justice," continues the enthusiastic writer, "and since our sainted mistress has been taken from us, it has been more difficult, and far more costly, to transact business with a stripling of a secretary, than it was with the queen and all her ministers." [15]

By the modifications then introduced, the basis was laid of the judiciary system, such as it has been perpetuated to the present age. The law acquired an authority, which, in the language of a Spanish writer, "caused a decree, signed by two or three judges, to be more respected since that time, than an army before." [16] But perhaps the results of this improved administration cannot be better conveyed than in the words of an eye-witness. "Whereas," says Pulgar, "the kingdom was previously filled with banditti and malefactors of every description, who committed the most diabolical excesses, in open contempt of law, there was now such terror impressed on the hearts of all, that no one dared to lift his arm against another, or even to

assail him with contumelious or discourteous language. The knight and the squire, who had before oppressed the laborer, were intimidated by the fear of that justice, which was sure to be executed on them; the roads were swept of the banditti; the fortresses, the strong-holds of violence, were thrown open, and the whole nation, restored to tranquillity and order, sought no other redress, than that afforded by the operation of the law." [17]

II. Codification of the laws. Whatever reforms might have been introduced into the Castilian judicatures, they would have been of little avail, without a corresponding improvement in the system of jurisprudence by which their decisions were to be regulated. This was made up of the Visigothic code, as the basis, the *fueros* of the Castilian princes, as far back as the eleventh century, and the "Siete Partidas," the famous compilation of Alfonso the Tenth, digested chiefly from maxims of the civil law. [18] The deficiencies of these ancient codes had been gradually supplied by such an accumulation of statutes and ordinances, as rendered the legislation of Castile in the highest degree complex, and often contradictory. The embarrassment resulting from this, occasioned, as may be imagined, much tardiness, as well as uncertainty, in the decisions of the courts, who, despairing of reconciling the discrepancies in their own law, governed themselves almost exclusively by the Roman, so much less accommodated, as it was, than their own, to the genius of the national institutions, as well as to the principles of freedom. [19]

The nation had long felt the pressure of these evils, and made attempts to redress them in repeated cortes. But every effort proved unavailing, during the stormy or imbecile reigns of the princes of Trastamara. At length, the subject having been resumed in the cortes of Toledo, in 1480, Dr. Alfonso Diaz de Montalvo, whose professional science had been matured under the reigns of three successive sovereigns, was charged with the commission of

revising the laws of Castile, and of compiling a code, which should be of general application throughout the kingdom.

This laborious undertaking was accomplished in little more than four years; and his work, which subsequently bore the title of *Ordenanças Reales*, was published, or, as the privilege expresses it, "written with types," *excrito de letra de molde*, at Huete, in the beginning of 1485. It was one of the first works, therefore, which received the honors of the press in Spain; and surely none could have been found, at that period, more deserving of them. It went through repeated editions in the course of that, and the commencement of the following century. [20] It was admitted as paramount authority throughout Castile; and, although the many innovations, which were introduced in that age of reform, required the addition of two subsidiary codes in the latter years of Isabella, the "Ordenanças" of Montalvo continued to be the guide of the tribunals down to the time of Philip the Second; and may be said to have suggested the idea, as indeed it was the basis of the comprehensive compilation, "Nueva Recopilacion," which has since formed the law of the Spanish monarchy. [21]

III. Depression of the nobles. In the course of the preceding chapters, we have seen the extent of the privileges constitutionally enjoyed by the aristocracy, as well as the enormous height to which they had swollen under the profuse reigns of John the Second, and Henry the Fourth. This was such, at the accession of Ferdinand and Isabella, as to disturb the balance of the constitution, and to give serious cause of apprehension both to the monarch and the people. They had introduced themselves into every great post of profit or authority. They had ravished from the crown the estates, on which it depended for its maintenance, as well as dignity. They coined money in their own mints, like sovereign princes; and they covered the country with their fortified castles, whence they defied the law, and desolated the unhappy land with interminable feuds. It was obviously necessary for the

new sovereigns to proceed with the greatest caution against this powerful and jealous body, and, above all, to attempt no measure of importance, in which they would not be supported by the hearty co-operation of the nation.

The first measure, which may be said to have clearly developed their policy, was the organization of the hermandad, which, although ostensibly directed against offenders of a more humble description, was made to bear indirectly upon the nobility, whom it kept in awe by the number and discipline of its forces, and the promptness with which it could assemble them on the most remote points of the kingdom; while its rights of jurisdiction tended materially to abridge those of the seignorial tribunals. It was accordingly resisted with the greatest pertinacity by the aristocracy; although, as we have seen, the resolution of the queen, supported by the constancy of the commons, enabled her to triumph over all opposition, until the great objects of the institution were accomplished.

Another measure, which insensibly operated to the depression of the nobility, was making official preferment depend less exclusively on rank, and much more on personal merit, than before. "Since the hope of guerdon," says one of the statutes enacted at Toledo, "is the spur to just and honorable actions, when men perceive that offices of trust are not to descend by inheritance, but to be conferred on merit, they will strive to excel in virtue, that they may attain its reward." [22] The sovereigns, instead of confining themselves to the grandees, frequently advanced persons of humble origin, and especially those learned in the law, to the most responsible stations, consulting them, and paying great deference to their opinions, on all matters of importance. The nobles, finding that rank was no longer the sole, or indeed the necessary avenue to promotion, sought to secure it by attention to more liberal studies, in which they were greatly encouraged by Isabella, who admitted their children into her palace, where they were reared under her own eye. [23]

But the boldest assaults on the power of the aristocracy were made in the famous cortes of Toledo, in 1480, which Carbajal enthusiastically styles "cosa divina para reformation y remedio de las desórdenes pasadas." [24] The first object of its attention was the condition of the exchequer, which Henry the Fourth had so exhausted by his reckless prodigality, that the clear annual revenue amounted to no more than thirty thousand ducats, a sum much inferior to that enjoyed by many private individuals; so that, stripped of his patrimony, it at last came to be said, he was "king only of the highways." Such had been the royal necessities, that blank certificates of annuities assigned on the public rents were hawked about the market, and sold at such a depreciated rate, that the price of an annuity did not exceed the amount of one year's income. The commons saw with alarm the weight of the burdens which must devolve on them for the maintenance of the crown thus impoverished in its resources; and they resolved to meet the difficulty by advising at once a resumption of the grants unconstitutionally made during the latter half of Henry the Fourth's reign, and the commencement of the present. [25] This measure, however violent, and repugnant to good faith, it may appear at the present time, seems then to have admitted of justification, as far as the nation was concerned; since such alienation of the public revenue was in itself illegal, and contrary to the coronation oath of the sovereign; and those who accepted his obligations, held them subject to the liability of their revocation, which had frequently occurred under the preceding reigns.

As the intended measure involved the interests of most of the considerable proprietors in the kingdom, who had thriven on the necessities of the crown, it was deemed proper to require the attendance of the nobility and great ecclesiastics in cortes by a special summons, which it seems had been previously omitted. Thus convened, the legislature appears, with great unanimity, and much to the credit of those most deeply affected by it, to have acquiesced in the proposed resumption of the grants, as a measure of

absolute necessity. The only difficulty was to settle the principles on which the retrenchment might be most equitably made, with reference to creditors, whose claims rested on a great variety of grounds. The plan suggested by Cardinal Mendoza seems to have been partially adopted. It was decided, that all, whose pensions had been conferred without any corresponding services on their part, should forfeit them entirely; that those, who had purchased annuities, should return their certificates on a reimbursement of the price paid for them; and that the remaining creditors, who composed the largest class, should retain such a proportion only of their pensions, as might be judged commensurate with their services to the state. [26]

By this important reduction, the final adjustment and execution of which were intrusted to Fernando de Talavera, the queen's confessor, a man of austere probity, the gross amount of thirty millions of maravedies, a sum equal to three-fourths of the whole revenue on Isabella's accession, was annually saved to the crown. The retrenchment was conducted with such strict impartiality, that the most confidential servants of the queen, and the relatives of her husband, were among those who suffered the most severely. [27] It is worthy of remark that no diminution whatever was made of the stipends settled on literary and charitable establishments. It may be also added, that Isabella appropriated the first fruits of this measure, by distributing the sum of twenty millions of maravedies among the widows and orphans of those loyalists who had fallen in the War of the Succession. [28] This resumption of the grants may be considered as the basis of those economical reforms, which, without oppression to the subject, augmented the public revenue more than twelve fold during this auspicious reign. [29]

Several other acts were passed by the same cortes, which had a more exclusive bearing on the nobility. They were prohibited from quartering the royal arms on their escutcheons, from being attended by a mace-bearer and a bodyguard, from imitating the regal style of address in their written

correspondence, and other insignia of royalty which they had arrogantly assumed. They were forbidden to erect new fortresses, and we have already seen the activity of the queen in procuring the demolition or restitution of the old. They were expressly restrained from duels, an inveterate source of mischief, for engaging in which the parties, both principals and seconds, were subjected to the penalties of treason. Isabella evinced her determination of enforcing this law on the highest offenders, by imprisoning, soon after its enactment, the counts of Luna and Valencia for exchanging a cartel of defiance, until the point at issue should be settled by the regular course of justice. [30]

It is true the haughty nobility of Castile winced more than once at finding themselves so tightly curbed by their new masters. On one occasion, a number of the principal grandees, with the duke of Infantado at their head, addressed a letter of remonstrance to the king and queen, requiring them to abolish the hermandad, as an institution burdensome on the nation, deprecating the slight degree of confidence which their highnesses reposed in their order, and requesting that four of their number might be selected to form a council for the general direction of affairs of state, by whose advice the king and queen should be governed in all matters of importance, as in the time of Henry the Fourth.

Ferdinand and Isabella received this unseasonable remonstrance with great indignation, and returned an answer couched in the haughtiest terms. "The hermandad," they said, "is an institution most salutary to the nation, and is approved by it as such. It is our province to determine who are best entitled to preferment, and to make merit the standard of it. You may follow the court, or retire to your estates, as you think best; but, so long as Heaven permits us to retain the rank with which we have been intrusted, we shall take care not to imitate the example of Henry the Fourth, in becoming a tool in the hands of our nobility." The discontented lords, who had carried so

high a hand under the preceding imbecile reign, feeling the weight of an authority which rested on the affections of the people, were so disconcerted by the rebuke, that they made no attempt to rally, but condescended to make their peace separately as they could, by the most ample acknowledgments. [31]

An example of the impartiality as well as spirit, with which Isabella asserted the dignity of the crown, is worth recording. During her husband's absence in Aragon in the spring of 1481, a quarrel occurred, in the ante-chamber of the palace at Valladolid, between two young noblemen, Ramiro Nuñez de Guzman, lord of Toral, and Frederic Henriquez, son of the admiral of Castile, king Ferdinand's uncle. The queen, on receiving intelligence of it, granted a safe-conduct to the lord of Toral, as the weaker party, until the affair should be adjusted between them. Don Frederic, however, disregarding this protection, caused his enemy to be waylaid by three of his followers, armed with bludgeons, and sorely beaten one evening in the streets of Valladolid.

Isabella was no sooner informed of this outrage on one whom she had taken under the royal protection, than, burning with indignation, she immediately mounted her horse, though in the midst of a heavy storm of rain, and proceeded alone towards the castle of Simancas, then in possession of the admiral, the father of the offender, where she supposed him to have taken refuge, travelling all the while with such rapidity, that she was not overtaken by the officers of her guard, until she had gained the fortress. She instantly summoned the admiral to deliver up his son to justice; and, on his replying that "Don Frederic was not there, and that he was ignorant where He was," she commanded him to surrender the keys of the castle, and, after a fruitless search, again returned to Valladolid. The next day Isabella was confined to her bed by an illness occasioned as much by chagrin, as by the excessive fatigue which she had undergone. "My body

is lame," said she, "with the blows given by Don Frederic in contempt of my safe-conduct."

The admiral, perceiving how deeply he and his family had incurred the displeasure of the queen, took counsel with his friends, who were led by their knowledge of Isabella's character to believe that he would have more to hope from the surrender of his son, than from further attempts at concealment. The young man was accordingly conducted to the palace by his uncle, the constable de Haro, who deprecated the queen's resentment by representing the age of his nephew, scarcely amounting to twenty years. Isabella, however, thought proper to punish the youthful delinquent, by ordering him to be publicly conducted as a prisoner, by one of the alcaides of her court, through the great square of Valladolid to the fortress of Arevalo, where he was detained in strict confinement, all privilege of access being denied to him; and when, at length, moved by the consideration of his consanguinity with the king, she consented to his release, she banished him to Sicily, until he should receive the royal permission to return to his own country. [32]

Notwithstanding the strict impartiality as well as vigor of the administration, it could never have maintained itself by its own resources alone, in its offensive operations against the high-spirited aristocracy of Castile. Its most direct approaches, however, were made, as we have seen, under cover of the cortes. The sovereigns showed great deference, especially in this early period of their reign, to the popular branch of this body; and, so far from pursuing the odious policy of preceding princes in diminishing the amount of represented cities, they never failed to direct their writs to all those which, at their accession, retained the right of representation, and subsequently enlarged the number by the conquest of Granada; while they exercised the anomalous privilege, noticed in the Introduction to this History, of omitting altogether, or issuing only a partial

summons to the nobility. [33] By making merit the standard of preferment, they opened the path of honor to every class of the community. They uniformly manifested the greatest tenderness for the rights of the commons in reference to taxation; and, as their patriotic policy was obviously directed to secure the personal rights and general prosperity of the people, it insured the co-operation of an ally, whose weight, combined with that of the crown, enabled them eventually to restore the equilibrium which had been disturbed by the undue preponderance of the aristocracy.

It may be well to state here the policy pursued by Ferdinand and Isabella in reference to the Military Orders of Castile, since, although not fully developed until a much later period, it was first conceived, and indeed partly executed, in that now under discussion.

The uninterrupted warfare, which the Spaniards were compelled to maintain for the recovery of their native land from the infidel, nourished in their bosoms a flame of enthusiasm, similar to that kindled by the crusades for the recovery of Palestine, partaking in an almost equal degree of a religious and a military character. This similarity of sentiment gave birth also to similar institutions of chivalry. Whether the military orders of Castile were suggested by those of Palestine, or whether they go back to a remoter period, as is contended by their chroniclers, or whether, in fine, as Conde intimates, they were imitated from corresponding associations, known to have existed among the Spanish Arabs, [34] there can be no doubt that the forms under which they were permanently organized, were derived, in the latter part of the twelfth century, from the monastic orders established for the protection of the Holy Land. The Hospitallers, and especially the Templars, obtained more extensive acquisitions in Spain, than in any, perhaps every other country in Christendom; and it was partly from the ruins of their empire, that were constructed the magnificent fortunes of the Spanish orders. [35]

The most eminent of these was the order of St. Jago, or St. James, of Compostella. The miraculous revelation of the body of the Apostle, after the lapse of eight centuries from the date of his interment, and his frequent apparition in the ranks of the Christian armies, in their desperate struggles with the infidel, had given so wide a celebrity to the obscure town of Compostella in Galicia, which contained the sainted relics, [36] that it became the resort of pilgrims from every part of Christendom, during the Middle Ages; and the escalop shell, the device of St. James, was adopted as the universal badge of the palmer. Inns for the refreshment and security of the pious itinerants were scattered along the whole line of the route from France; but, as they were exposed to perpetual annoyance from the predatory incursions of the Arabs, a number of knights and gentlemen associated themselves, for their protection, with the monks of St. Lojo, or Eloy, adopting the rule of St. Augustine, and thus laid the foundation of the chivalric order of St. James, about the middle of the twelfth century. The cavaliers of the fraternity, which received its papal bull of approbation five years later, in 1175, were distinguished by a white mantle embroidered with a red cross, in fashion of a sword, with the escallop shell below the guard, in imitation of the device which glittered on the banner of their tutelar saint, when, he condescended to take part in their engagements with the Moors. The red color denoted, according to an ancient commentator, "that it was stained with the blood of the infidel." The rules of the new order imposed on its members the usual obligations of obedience, community of property, and of conjugal chastity, instead of celibacy. They were, moreover, required to relieve the poor, defend the traveler, and maintain perpetual war upon the Mussulman. [37]

The institution of the knights of Calatrava was somewhat more romantic in its origin. That town, from its situation on the frontiers of the Moorish territory of Andalusia, where it commanded the passes into Castile, became of vital importance to the latter kingdom. Its defense had accordingly been

entrusted to the valiant order of the Templars, who, unable to keep their ground against the pertinacious assaults of the Moslems, abandoned it, at the expiration of eight years, as untenable. This occurred about the middle of the twelfth century; and the Castilian monarch, Sancho the Beloved, as the last resort, offered it to whatever good knights would undertake its defense.

The emprise was eagerly sought by a monk of a distant convent in Navarre, who had once been a soldier, and whose military ardor seems to have been exalted, instead of being extinguished, in the solitude of the cloister. The monk, supported by his conventual brethren, and a throng of cavaliers and more humble followers, who sought redemption under the banner of the church, was enabled to make good his word. From the confederation of these knights and ecclesiastics sprung the military fraternity of Calatrava, which received the confirmation of the pontiff, Alexander the Third, in 1164. The rules which it adopted were those of St. Benedict, and its discipline was in the highest degree austere.

The cavaliers were sworn to perpetual celibacy, from which they were not released till so late as the sixteenth century. Their diet was of the plainest kind. They were allowed meat only thrice a week, and then only one dish. They were to maintain unbroken silence at the table, in the chapel, and the dormitory; and they were enjoined both to sleep and to worship with the sword girt on their side, in token of readiness for action. In the earlier days of the institution, the spiritual, as well as the military brethren, were allowed to make part of the martial array against the infidel, until this was prohibited, as indecorous, by the Holy See. From this order branched off that of Montesa, in Valencia, which was instituted at the commencement of the fourteenth century, and continued dependent on the parent stock. [38]

The third great order of religious chivalry in Castile was that of Alcantara, which also received its confirmation from Pope Alexander the Third, in 1177. It was long held in nominal subordination to the knights of Calatrava, from which it was relieved by Julius the Second, and eventually rose to an importance little inferior to that of its rival. [39]

The internal economy of these three fraternities was regulated by the same general principles. The direction of affairs was entrusted to a council, consisting of the grand master and a number of the commanders (*comendadores*), among whom the extensive territories of the order were distributed. This council, conjointly with the grand master, or the latter exclusively, as in the fraternity of Calatrava, supplied the vacancies. The master himself was elected by a general chapter of these military functionaries alone, or combined with the conventual clergy, as in the order of Calatrava, which seems to have recognized the supremacy of the military over the spiritual division of the community, more unreservedly than that of St. James.

These institutions appear to have completely answered the objects of their creation. In the earlier history of the Peninsula, we find the Christian chivalry always ready to bear the brunt of battle against the Moors. Set apart for this peculiar duty, their services in the sanctuary only tended to prepare them for their sterner duties in the field of battle, where the zeal of the Christian soldier may be supposed to have been somewhat sharpened by the prospect of the rich temporal acquisitions, which the success of his arms was sure to secure to his fraternity. For the superstitious princes of those times, in addition to the wealth lavished so liberally on all monastic institutions, granted the military orders almost unlimited rights over the conquests achieved by their own valor. In the sixteenth century, we find the order of St. James, which had shot up to a pre-eminence above the rest, possessed of eighty-four commanderies, and two hundred inferior

benefices. This same order could bring into the field, according to Garibay, four hundred belted knights, and one thousand lances, which, with the usual complement of a lance in that day, formed a very considerable force. The rents of the mastership of St. James amounted, in the time of Ferdinand and Isabella, to sixty thousand ducats, those of Alcantara to forty-five thousand, and those of Calatrava to forty thousand. There was scarcely a district of the Peninsula which was not covered with their castles, towns, and convents. Their rich commanderies gradually became objects of cupidity to men of the highest rank, and more especially the grand-masterships, which, from their extensive patronage, and the authority they conferred over an organized militia pledged to implicit obedience, and knit together by the strong tie of common interest, raised their possessors almost to the level of royalty itself. Hence the elections to these important dignities came to be a fruitful source of intrigue, and frequently of violent collision. The monarchs, who had anciently reserved the right of testifying their approbation of an election by presenting the standard of the order to the new dignitary, began personally to interfere in the deliberations of the chapter. While the pope, to whom a contested point was not unfrequently referred, assumed at length the prerogative of granting the masterships in administration on a vacancy, and even that of nomination itself, which, if disputed, he enforced by his spiritual thunders. [40]

Owing to these circumstances, there was probably no one cause, among the many which occurred in Castile during the fifteenth century, more prolific of intestine discord, than the election to these posts, far too important to be intrusted to any subject, and the succession to which was sure to be contested by a host of competitors. Isabella seems to have settled in her mind the course of policy to be adopted in this matter, at a very early period of her reign. On occasion of a vacancy in the grand-mastership of St. James, by the death of the incumbent, in 1476, she made a rapid journey on horseback, her usual mode of travelling, from Valladolid to the town of

Ucles, where a chapter of the order was deliberating on the election of a new principal. The queen, presenting herself before this body, represented with so much energy the inconvenience of devolving powers of such magnitude on any private individual, and its utter incompatibility with public order, that she prevailed on them, smarting, as they were, under the evils of a disputed succession, to solicit the administration for the king, her husband. That monarch, indeed, consented to waive this privilege in favor of Alonso de Cardenas, one of the competitors for the office, and a loyal servant of the crown; but, at his decease in 1499, the sovereigns retained the possession of the vacant mastership, conformably to a papal decree, which granted them its administration for life, in the same manner as had been done with that of Calatrava in 1487, and of Alcantara in 1494. [41]

The sovereigns were no sooner vested with the control of the military orders, than they began with their characteristic promptness to reform the various corruptions, which had impaired their ancient discipline. They erected a council for the general superintendence of affairs relating to the orders, and invested it with extensive powers both of civil and criminal jurisdiction. They supplied the vacant benefices with persons of acknowledged worth, exercising an impartiality, which could never be maintained by any private individual, necessarily exposed to the influence of personal interests and affections. By this harmonious distribution, the honors, which had before been held up to the highest bidder, or made the subject of a furious canvass, became the incentive and sure recompense of desert. [42]

In the following reign, the grand-masterships of these fraternities were annexed in perpetuity to the crown of Castile by a bull of Pope Adrian the Sixth; while their subordinate dignities, having survived the object of their original creation, the subjugation of the Moors, degenerated into the empty decorations, the stars and garters, of an order of nobility. [43]

IV. Vindication of ecclesiastical rights belonging to the crown from papal usurpation. In the earlier stages of the Castilian monarchy, the sovereigns appear to have held a supremacy in spiritual, very similar to that exercised by them in temporal matters. It was comparatively late that the nation submitted its neck to the papal yoke, so closely riveted at a subsequent period; and even the Romish ritual was not admitted into its churches till long after it had been adopted in the rest of Europe. [44] But, when the code of the Partidas was promulgated in the thirteenth century, the maxims of the canon law came to be permanently established. The ecclesiastical encroached on the lay tribunals. Appeals were perpetually carried up to the Roman court; and the popes, pretending to regulate the minutest details of church economy, not only disposed of inferior benefices, but gradually converted the right of confirming elections to the episcopal and higher ecclesiastical dignities, into that of appointment. [45]

These usurpations of the church had been repeatedly the subject of grave remonstrance in cortes. Several remedial enactments had passed that body, during the present reign, especially in relation to the papal provision of foreigners to benefices; an evil of much greater magnitude in Spain than in other countries of Europe, since the episcopal demesnes, frequently covering the Moorish frontier, became an important line of national defence, obviously improper to be intrusted to the keeping of foreigners and absentees. Notwithstanding the efforts of cortes, no effectual remedy was devised for this latter grievance, until it became the subject of actual collision between the crown and the pontiff, in reference to the see of Tاراçona, and afterwards of Cuenca. [46]

Sixtus the Fourth had conferred the latter benefice, on its becoming vacant in 1482, on his nephew, Cardinal San Giorgio, a Genoese, in direct opposition to the wishes of the queen, who would have bestowed it on her chaplain, Alfonso de Burgos, in exchange for the bishopric of Cordova. An

ambassador was accordingly despatched by the Castilian sovereigns to Rome, to remonstrate on the papal appointment; but without effect, as Sixtus replied, with a degree of presumption, which might better have become his predecessors of the twelfth century, that "he was head of the church, and, as such, possessed of unlimited power in the distribution of benefices, and that he was not bound to consult the inclination of any potentate on earth, any farther than might subserve the interests of religion."

The sovereigns, highly dissatisfied with this response, ordered their subjects, ecclesiastical as well as lay, to quit the papal dominions; an injunction, which the former, fearful of the sequestration of their temporalities in Castile, obeyed with as much promptness as the latter. At the same time, Ferdinand and Isabella proclaimed their intention of inviting the princes of Christendom to unite with them in convoking a general council for the reformation of the manifold abuses, which dishonored the church. No sound could have grated more unpleasantly on the pontifical ear, than the menace of a general council, particularly at this period, when ecclesiastical corruptions had reached a height which could but ill endure its scrutiny. The pope became convinced that he had ventured too far, and that Henry the Fourth was no longer monarch of Castile. He accordingly despatched a legate to Spain, fully empowered to arrange the matter on an amicable basis.

The legate, who was a layman, by name Domingo Centurion, no sooner arrived in Castile, than he caused the sovereigns to be informed of his presence there, and the purpose of his mission; but he received orders instantly to quit the kingdom, without attempting so much as to disclose the nature of his instructions, since they could not but be derogatory to the dignity of the crown. A safe-conduct was granted for himself and his suite; but, at the same time, great surprise was expressed that any one should

venture to appear, as envoy from his Holiness, at the court of Castile, after it had been treated by him with such unmerited indignity.

Far from resenting this ungracious reception, the legate affected the deepest humility; professing himself willing to waive whatever immunities he might claim as papal ambassador, and to submit to the jurisdiction of the sovereigns as one of their own subjects, so that he might obtain an audience. Cardinal Mendoza, whose influence in the cabinet had gained him the title of "third king of Spain," apprehensive of the consequences of a protracted rupture with the church, interposed in behalf of the envoy, whose conciliatory deportment at length so far mitigated the resentment of the sovereigns, that they consented to open negotiations with the court of Rome. The result was the publication of a bull by Sixtus the Fourth, in which his Holiness engaged to provide such natives to the higher dignities of the church in Castile, as should be nominated by the monarchs of that kingdom; and Alfonso de Burgos was accordingly translated to the see of Cuenca. [47] Isabella, on whom the duties of ecclesiastical preferment devolved, by the act of settlement, availed herself of the rights, thus wrested from the grasp of Rome, to exalt to the vacant sees persons of exemplary piety and learning, holding light, in comparison with the faithful discharge of this duty, every minor consideration of interest, and even the solicitations of her husband, as we shall see hereafter. [48] And the chronicler of her reign dwells with complacency on those good old times, when churchmen were to be found of such singular modesty, as to require to be urged to accept the dignities to which their merits entitled them. [49]

V. The regulation of trade. It will be readily conceived that trade, agriculture, and every branch of industry must have languished under the misrule of preceding reigns. For what purpose, indeed, strive to accumulate wealth, when it would only serve to sharpen the appetite of the spoiler? For what purpose cultivate the earth, when the fruits were sure to be swept

away, even before harvest time, in some ruthless foray? The frequent famines and pestilences, which occurred in the latter part of Henry's reign and the commencement of his successor's, show too plainly the squalid condition of the people, and their utter destitution of all useful arts. We are assured by the Curate of Los Palacios, that the plague broke out in the southern districts of the kingdom, carrying off eight, or nine, or even fifteen thousand inhabitants from the various cities; while the prices of the ordinary aliments of life rose to a height, which put them above the reach of the poorer classes of the community. In addition to these physical evils, a fatal shock was given to commercial credit by the adulteration of the coin. Under Henry the Fourth, it is computed that there were no less than one hundred and fifty mints openly licensed by the crown, in addition to many others erected by individuals without any legal authority. The abuse came to such a height, that people at length refused to receive in payment of their debts the debased coin, whose value depreciated more and more every day; and the little trade, which remained in Castile, was carried on by barter, as in the primitive stages of society. [50]

The magnitude of the evil was such as to claim the earliest attention of the cortes under the new monarchs. Acts were passed fixing the standard and legal value of the different denominations of coin. A new coinage was subsequently made. Five royal mints were alone authorized, afterwards augmented to seven, and severe penalties denounced against the fabrication of money elsewhere. The reform of the currency gradually infused new life into commerce, as the return of the circulations, which have been interrupted for a while, quickens the animal body. This was furthered by salutary laws for the encouragement of domestic industry. Internal communication was facilitated by the construction of roads and bridges. Absurd restrictions on change of residence, as well as the onerous duties which had been imposed on commercial intercourse between Castile and Aragon, were repealed. Several judicious laws were enacted for the

protection of foreign trade; and the flourishing condition of the mercantile marine may be inferred from that of the military, which enabled the sovereigns to fit out an armament of seventy sail in 1482, from the ports of Biscay and Andalusia, for the defence of Naples against the Turks. Some of their regulations, indeed, as those prohibiting the exportation of the precious metals, savor too strongly of the ignorance of the true principles of commercial legislation, which has distinguished the Spaniards to the present day. But others, again, as that for relieving the importation of foreign books from all duties, "because," says the statute, "they bring both honor and profit to the kingdom, by the facilities which they afford for making men learned," are not only in advance of that age, but may sustain an advantageous comparison with provisions on corresponding subjects in Spain at the present time. Public credit was re-established by the punctuality with which the government redeemed the debt contracted during the Portuguese war; and, notwithstanding the repeal of various arbitrary imposts, which enriched the exchequer under Henry the Fourth, such was the advance of the country under the wise economy of the present reign, that the revenue was augmented nearly six fold between the years 1477 and 1482. [51]

Thus released from the heavy burdens imposed on it, the spring of enterprise recovered its former elasticity. The productive capital of the country was made to flow through the various channels of domestic industry. The hills and the valleys again rejoiced in the labor of the husbandman; and the cities were embellished with stately edifices, both public and private, which attracted the gaze and commendation of foreigners. [52] The writers of that day are unbounded in their plaudits of Isabella, to whom they principally ascribe this auspicious revolution in the condition of the country and its inhabitants, [53] which seems almost as magical as one of those transformations in romance wrought by the hands of some benevolent fairy. [54]

VI. The pre-eminence of the royal authority. This, which, as we have seen, appears to have been the natural result of the policy of Ferdinand and Isabella, was derived quite as much from the influence of their private characters, as from their public measures. Their acknowledged talents were supported by a dignified demeanor, which formed a striking contrast with the meanness in mind and manners that had distinguished their predecessor. They both exhibited a practical wisdom in their own personal relations, which always commands respect, and which, however it may have savored of worldly policy in Ferdinand, was, in his consort, founded on the purest and most exalted principle. Under such a sovereign, the court, which had been little better than a brothel under the preceding reign, became the nursery of virtue and generous ambition. Isabella watched assiduously over the nurture of the high-born damsels of her court, whom she received into the royal palace, causing them to be educated under her own eye, and endowing them with liberal portions on their marriage. [55] By these and similar acts of affectionate solicitude, she endeared herself to the higher classes of her subjects, while the patriotic tendency of her public conduct established her in the hearts of the people. She possessed, in combination with the feminine qualities which beget love, a masculine energy of character, which struck terror into the guilty. She enforced the execution of her own plans, oftentimes even at great personal hazard, with a resolution surpassing that of her husband. Both were singularly temperate, indeed, frugal, in their dress, equipage, and general style of living; seeking to affect others less by external pomp, than by the silent though more potent influence of personal qualities. On all such occasions as demanded it, however, they displayed a princely magnificence, which dazzled the multitude, and is blazoned with great solemnity in the garrulous chronicles of the day. [56]

The tendencies of the present administration were undoubtedly to strengthen the power of the crown. This was the point to which most of the

feudal governments of Europe at this epoch were tending. But Isabella was far from being actuated by the selfish aim or unscrupulous policy of many contemporary princes, who, like Louis the Eleventh, sought to govern by the arts of dissimulation, and to establish their own authority by fomenting the divisions of their powerful vassals. On the contrary, she endeavored to bind together the disjointed fragments of the state, to assign to each of its great divisions its constitutional limits, and, by depressing the aristocracy to its proper level and elevating the commons, to consolidate the whole under the lawful supremacy of the crown. At least, such was the tendency of her administration up to the present period of our history. These laudable objects were gradually achieved without fraud or violence, by a course of measures equally laudable; and the various orders of the monarchy, brought into harmonious action with each other, were enabled to turn the forces, which had before been wasted in civil conflict, to the glorious career of discovery and conquest, which it was destined to run during the remainder of the century.

* * * * *

The sixth volume of the Memoirs of the Royal Spanish Academy of History, published in 1821, is devoted altogether to the reign of Isabella, It is distributed into Illustrations, as they are termed, of the various branches of the administrative policy of the queen, of her personal character, and of the condition of science under her government. These essays exhibit much curious research, being derived from unquestionable contemporary documents, printed and manuscript, and from the public archives. They are compiled with much discernment; and, as they throw light on some of the most recondite transactions of this reign, are of inestimable service to the historian. The author of the volume is the late lamented secretary of the Academy, Don Diego Clemencin; one of the few who survived the wreck of scholarship in Spain, and who with the erudition, which has frequently

distinguished his countrymen, combined the liberal and enlarged opinions, which would do honor to any country.

FOOTNOTES

[1] Among other examples, Pulgar mentions that of the alcaide of Castro-Nuño, Pedro de Mendana, who, from the strong-holds in his possession, committed such grievous devastations throughout the country, that the cities of Burgos, Avila, Salamanca, Segovia, Valladolid, Medina, and others in that quarter, were fain to pay him a tribute, (black mail,) to protect their territories from his rapacity. His successful example was imitated by many other knightly freebooters of the period. (Reyes Católicos, part. 2, cap. 66.)—See also extracts cited by Saez from manuscript notices by contemporaries of Henry IV. *Monedas de Enrique IV.*, pp. 1, 2.

[2] The *quaderno* of the laws of the Hermandad has now become very rare. That in my possession was printed at Burgos, in 1527. It has since been incorporated with considerable extension into the Recopilacion of Philip II.

[3] *Quaderno de las Leyes Nuevas de la Hermandad*, (Burgos, 1527,) leyes 1, 2, 3, 4, 5, 6, 8, 16, 20, 36, 37.—Pulgar, *Reyes Católicos*, part. 2, cap. 51.—L. Marineo, *Cosas Memorables*, fol. 160, ed. 1539.—*Mem. de la Acad. de Hist.*, tom. vi. Ilust. 4.—Carbajal, *Anales*, MS., año 76.—Lebrija, *Rerum Gestarum Decades*, fol. 36.—By one of the laws, the inhabitants of such seignorial towns as refused to pay the contributions of the Hermandad were excluded from its benefits, as well as from traffic with, and even the power of recovering their debts, from other natives of the kingdom. Ley 33.

[4] *Recopilacion de las Leyes*, (Madrid, 1640,) lib. 8, tit. 13, ley 44.—Zuñiga, *Annales de Sevilla*, p. 379.—Pulgar, *Reyes Católicos*, part. 2, cap.

51.—Mem. de la Acad. de Hist., tom. vi. Ilust. 6.—Lebrija, *Rerum Gestarum Decad.*, fol. 37, 38.—Las Pragmáticas del Reyno, (Sevilla, 1520,) fol. 85.—L. Marineo, *Cosas Memorables*, fol. 160.

[5] Carbajal, *Anales*, MS., año 76.—Pulgar, *Reyes Católicos*, part. 2, cap. 59.—Ferrerías, *Hist. d'Espagne*, tom. viii. p. 477.—Lebrija, *Rerum Gestarum Decad.*, fol. 41, 42.—Gonzalo de Oviedo lavishes many encomiums on Cabrera, for "his generous qualities, his singular prudence in government, and his solicitude for his vassals, whom he inspired with the deepest attachment." (*Quincuagenas*, MS., bat. 1, quinc. 1, dial. 23.) The best panegyric on his character, is the unshaken confidence, which his royal mistress reposed in him, to the day of her death.

[6] Zuñiga, *Annales de Sevilla*, p. 381.—Pulgar, *Reyes Católicos*, part. 2, cap. 65, 70, 71.—Bernaldez, *Reyes Católicos*, MS., cap. 29.—Carbajal, *Anales*, MS., año 77.—L. Marineo, *Cosas Memorables*, fol. 162; who says, no less than 8,000 guilty fled from Seville and Cordova.

[7] Bernaldez, *Reyes Católicos*, MS., cap. 29.—Zurita, *Anales*, tom. iv. fol. 283.—Zuñiga, *Annales de Sevilla*, p. 382.—Lebrija, *Rerum Gestarum Decades*, lib. 7.—L. Marineo, *Cosas Memorables*, ubi supra.—Garibay, *Compendio*, lib. 18, cap. 11.

[8] Bernaldez, *Reyes Católicos*, MS., cap. 30.—Pulgar, *Reyes Católicos*, part. 2, cap. 78.

[9] "Era muy inclinada," says Pulgar, "á facer justicia, tanto que le era imputado seguir mas la via de rigor que de la piedad; y esto facia por remediar á la gran corrupcion de crímines que falló en el Reyno quando subcedió en él." *Reyes Católicos*, p. 37.

[10] Pulgar, *Reyes Católicos*, part. 2, cap. 97, 98.—L. Marineo, *Cosas Memorables*, fol. 162.

[11] *Ordenanças Reales de Castilla*, (Burgos, 1528,) lib. 2, tit. 3, ley 31.

This constitutional, though, as it would seem, impotent right of the nobility, is noticed by Sempere. (*Hist. des Cortès*, pp. 123, 129.) It should not have escaped Marina.

[12] Lib. 2, tit. 3, of the *Ordenanças Reales* is devoted to the royal council. The number of the members was limited to one prelate, as president, three knights, and eight or nine jurists. (Prólogo.) The sessions were to be held every day, in the palace. (Leyes 1, 2.) They were instructed to refer to the other tribunals all matters not strictly coming within their own jurisdiction. (Ley 4.) Their acts, in all cases except those specially reserved, were to have the force of law without the royal signature. (Leyes 23, 24.) See also *Los Doctores Asso y Manuel*, *Instituciones del Derecho Civil de Castilla*, (Madrid, 1792,) Introd. p. 111; and Santiago Agustin Riol, *Informe*, apud *Semanario Erudito*, (Madrid, 1788,) tom. iii. p. 114, who is mistaken in stating the number of jurists in the council, at this time, at sixteen; a change, which did not take place till Philip II.'s reign. (*Recop. de las Leyes*, lib. 2, tit. 4, ley 1.)

Marina denies that the council could constitutionally exercise any judicial authority, at least, in suits between private parties, and quotes a passage from Pulgar, showing that its usurpations in this way were restrained by Ferdinand and Isabella. (*Teoría*, part. 2, cap. 29.) Powers of this nature, however, to a considerable extent, appear to have been conceded to it by more than one statute under this reign. See *Recop. de las Leyes*, (lib. 2, tit. 4, leyes 20, 22, and tit. 5, ley 12,) and the unqualified testimony of Riol, *Informe*, apud *Semanario Erudito*, *ubi supra*.

[13] Ordenanças Reales, lib. 2, tit. 4.—Marina, Teoría de las Cortes, part. 2, cap. 25.

By one of the statutes, (ley 4,) the commission of the judges, which, before extended to life, or a long period, was abridged to one year. This important innovation was made at the earnest and repeated remonstrance of cortes, who traced the remissness and corruption, too frequent of late in the court, to the circumstance that its decisions were not liable to be reviewed during life. (Teoría, ubi supra.) The legislature probably mistook the true cause of the evil. Few will doubt, at any rate, that the remedy proposed must have been fraught with far greater.

[14] Ordenanças Reales, lib. 2, tit. 1, 3, 4, 15, 16, 17, 19; lib. 3, tit. 2.—Recop. de las Leyes, lib. 2, tit. 4, 5, 16.—Pulgar, Reyes Católicos, part. 2, cap. 94.

[15] Oviedo, Quincuagenas, MS.—By one of the statutes of the cortes of Toledo, in 1480, the king was required to take his seat in the council every Friday. (Ordenanças Reales, lib. 2, tit. 3, ley 32.) It was not so new for the Castilians to have good laws, as for their monarchs to observe them.

[16] Sempere, Hist. des Cortès, p. 263.

[17] Pulgar, Reyes Católicos, p. 167.—See the strong language, also, of Peter Martyr, another contemporary witness of the beneficial changes in the government. *Opus Epistolarum*, (Amstelodami, 1670,) ep. 31.

[18] Prieto y Sotelo, Historia del Derecho Real de España, (Madrid, 1738,) lib. 3, cap. 16-21.—Marina has made an elaborate commentary on Alfonso's celebrated code, in his *Ensayo Histórico-Crítico sobre la Antigua Legislacion de Castilla*, (Madrid, 1808,) pp. 269 et seq. The English reader will find a more succinct analysis in Dr. Dunham's History of Spain and

Portugal, (London, 1832,) in Lardner's Cyclopaedia, vol. iv. pp. 121- 150.—The latter has given a more exact, and, at the same time, extended view of the early Castilian legislation, probably, than is to be found, in the same compass, in any of the Peninsular writers.

[19] Marina (in his *Ensayo Histórico-Crítico*, p. 388) quotes a popular satire of the fifteenth century, directed, with considerable humor, against these abuses, which lead the writer in the last stanza to envy even the summary style of Mahometan justice.

"En tierra de Moros un solo alcalde
Libra lo cevil e lo criminal,
E todo el dia se esta de valde
For la justicia andar muy igual:
Alli non es Azo, nin es Decretal,
Nin es Roberto, nin la Clementina,
Salvo discrecion e buena doctrina,
La qual muestra a todos vevir communal." p. 389.

[20] Mendez enumerates no less than five editions of this code, by 1500; a sufficient evidence of its authority, and general reception throughout Castile. *Typographia Española*, pp. 203, 261, 270.

[21] *Ordenanças Reales*, Prólogo.—*Mem. de la Acad. de Hist.*, tom. vi. Ilust. 9.—Marina, *Ensayo Histórico-Crítico*, pp. 390 et seq.—Mendez, *Typographia Española*, p. 261.—The authors of the three last-mentioned works abundantly disprove Asso y Manuel's insinuation, that Montalvo's code was the fruit of his private study, without any commission for it, and that it gradually usurped an authority which it had not in its origin. (*Discurso Preliminar al Ord. de Alcalá*.) The injustice of the last remark, indeed, is apparent from the positive declaration of Bernaldez. "Los Reyes mandaron tener en todas las ciudades, villas é lugares el libro de Montalvo,

é por él determinar todas las cosas de justícia para cortar los pléitos."
Reyes Católicos, MS., cap. 42.

[22] Ordenanças Reales, lib. 7, tit. 2, ley 13.

[23] Oviedo, Quincuagenas, MS., bat. 1, quinc. 1, dial. 44.—Sempere notices this feature of the royal policy. Hist. des Cortès, chap. 24.

[24] Carbajal, Anales, MS., año 80.

[25] See the emphatic language, on this and other grievances, of the Castilian commons, in their memorial to the sovereigns, Apendice, No. 10, of Clemencin's valuable compilation. The commons had pressed the measure, as one of the last necessity to the crown, as early as the cortes of Madrigal, in 1476. The reader will find the whole petition extracted by Marina, Teoría, tom. ii. cap. 5.

[26] Salazar de Mendoza, Crón. del Gran Cardenal, cap. 51.—Mem. de la Acad. de Hist., tom. vi. Ilust. 5.—Pulgar, Reyes Católicos, part. 2, cap. 95.—Ordenanças Reales, lib. 6, tit. 4, ley 26;—incorporated also into the Recopilacion of Philip II., lib. 5, tit. 10, cap. 17. See also leyes 3 and 15.

[27] Admiral Enriquez, for instance, resigned 240,000 maravedies of his annual income;—the Duke of Alva, 575,000;—the Duke of Medina Sidonia, 180,000.—The loyal family of the Mendozas were also great losers, but none forfeited so much as the overgrown favorite of Henry IV., Beltran de la Cueva, duke of Albuquerque, who had uniformly supported the royal cause, and whose retrenchment amounted to 1,400,000 maravedies of yearly rent. See the scale of reduction given at length by Señor Clemencin, in Mem. de la Acad., tom. vi. loc. cit.

[28] "No monarch," said the high-minded queen, "should consent to alienate his demesnes; since the loss of revenue necessarily deprives him of the best means of rewarding the attachment of his friends, and of making himself feared by his enemies." Pulgar, *Reyes Católicos*, part. 1, cap. 4.

[29] Pulgar, *Reyes Católicos*, *ubi supra*.—*Mem. de la Acad. de Hist.*, tom. vi. loc. cit.

[30] *Ordenanças Reales*, lib. 2, tit. 1, ley 2; lib. 4, tit. 9, ley 11.—Pulgar, *Reyes Católicos*, part. 2, cap. 96, 101.—*Recop. de las Leyes*, lib. 8, tit. 8, ley 10 et al.—These affairs were conducted in the true spirit of knight-errantry. Oviedo mentions one, in which two young men of the noble houses of Velasco and Ponce de Leon agreed to fight on horseback, with sharp spears (*puntas de diamantes*), in doublet and hose, without defensive armor of any kind. The place appointed for the combat was a narrow bridge across the Xarama, three leagues from Madrid. *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 23.

[31] Ferreras, *Hist. d'Espagne*, tom. vii. pp. 487, 488.

[32] Carbajal, *Anales*, MS., año 80.—Pulgar, *Reyes Católicos*, part. 2, cap. 100.

[33] For example, at the great cortes of Toledo, in 1480, it does not appear that any of the nobility were summoned, except those in immediate attendance on the court, until the measure for the resumption of the grants, which so nearly affected that body, was brought before the legislature.

[34] Conde gives the following account of these chivalric associations among the Spanish Arabs, which, as far as I know, have hitherto escaped the notice of European historians. "The Moslem *fronteros* professed great austerity in their lives, which they consecrated to perpetual war, and bound

themselves by a solemn vow to defend the frontier against the incursions of the Christians. They were choice cavaliers, possessed of consummate patience, and enduring fatigue, and always prepared to die rather than desert their posts. It appears highly probable that the Moorish fraternities suggested the idea of those military orders so renowned for their valor in Spain and in Palestine, which rendered such essential services to Christendom; for both the institutions were established on similar principles." Conde, *Historia de la Dominacion de los Arabes en España*, (Madrid, 1820,) tom. i. p. 619, not.

[35] See the details, given by Mariana, of the overgrown possessions of the Templars in Castile at the period of their extinction, in the beginning of the fourteenth century. (*Hist. de España*, lib. 15, cap. 10.) The knights of the Temple and the Hospitallers seem to have acquired still greater power in Aragon, where one of the monarchs was so infatuated as to bequeath them his whole dominions,—a bequest which, it may well be believed, was set aside by his high-spirited subjects. Zurita, *Anales*, lib. 1, cap. 52.

[36] The apparition of certain preternatural lights in a forest, discovered to a Galician peasant, in the beginning of the ninth century, the spot, in which was deposited a marble sepulchre containing the ashes of St. James. The miracle is reported with sufficient circumstantiality by Florez, (*Historia Compostellana*, lib. 1, cap. 2, apud *España Sagrada*, tom. xx.) and Ambrosio de Morales, (*Corónica General de España*, (Obras, Madrid, 1791-3,) lib. 9, cap. 7,) who establishes, to his own satisfaction, the advent of St. James into Spain. Mariana, with more skepticism than his brethren, doubts the genuineness of the body, as well as the visit of the Apostle, but like a good Jesuit concludes, "It is not expedient to disturb with such disputes the devotion of the people, so firmly settled as it is." (Lib. 7, cap. 10.) The tutelar saint of Spain continued to support his people by taking part with them in battle against the infidel down to a very late period. Caro de Torres

mentions two engagements in which he cheered on the squadrons of Cortes and Pizarro, "with his sword flashing lightning in the eyes of the Indians." *Ordenes Militares*, fol. 5.

[37] Rades y Andrada, *Las Tres Ordenes*, fol. 3-15.—Caro de Torres, *Ordenes Militares*, fol. 2-8.—Garibay, *Compendio*, tom. ii. pp. 116-118.

[38] Rades y Andrada, *Las Tres Ordenes*, part. 2, fol. 3-9, 49.—Caro de Torres, *Ordenes Militares*, fol. 49, 50.—Garibay, *Compendio*, tom. ii. pp. 100-104.

[39] Rades y Andrada, *Las Tres Ordenes*, part. 3, fol. 1-6.—The knights of Alcantara wore a white mantle, embroidered with a green cross.

[40] Rades y Andrada, *Las Tres Ordenes*, part. 1, fol. 12-15, 43, 54, 61, 64, 66, 67; part. 2, fol. 11, 51; part. 3, fol. 42, 49, 50.—Caro de Torres, *Ordenes Militares*, *passim*.—L. Marineo, *Cosas Memorables*, fol. 33.—Garibay, *Compendio*, lib. 11, cap. 13.—Zurita, *Anales*, tom. v. lib. 1, cap. 19.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 2, dial. 1.

[41] Caro de Torres, *Ordenes Militares*, fol. 46, 74, 83.—Pulgar, *Reyes Católicos*, part. 2, cap. 64.—Rades y Andrada, *Las Tres Ordenes*, part. 1, fol. 69, 70; part. 2, fol. 82, 83; part. 3, fol. 54.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 2, dial. 1.—The sovereigns gave great offence to the jealous *grandees* who were competitors for the mastership of St. James, by conferring that dignity on Alonso de Cardenas, with their usual policy of making merit rather than birth the standard of preferment.

[42] Caro de Torres, *Ordenes Militares*, fol. 84.—Riol has given a full account of the constitution of this council, *Informe*, apud *Semanario Erudito*, tom. iii. pp. 164 et seq.

[43] The reader will find a view of the condition and general resources of the military orders as existing in the present century in Spain, in Laborde, *Itinéraire Descriptif de l'Espagne*, (2d edition, Paris, 1827-30,) tom. v. pp. 102-117.

[44] Most readers are acquainted with the curious story, related by Robertson, of the ordeal to which the Romish and Muzarabic rituals were subjected, in the reign of Alfonso VI., and the ascendancy which the combination of king-craft and priest-craft succeeded in securing to the former in opposition to the will of the nation. Cardinal Ximenes afterwards established a magnificent chapel in the cathedral church of Toledo for the performance of the Muzarabic services, which have continued to be retained there to the present time. Fléchier, *Histoire du Cardinal Ximinès*, (Paris, 1693,) p. 142.—Bourgoanne, *Travels in Spain*, Eng. trans., vol. iii. chap. 1.

[45] Marina, *Ensayo Histórico-Crítico*, nos. 322, 334, 341.—Riol, *Informe*, apud *Semanario Erudito*, pp. 92 et seq.

[46] Marina, *Ensayo Histórico-Crítico*, nos. 335-337.—*Ordenanças Reales*, lib. 1, tit. 3, leyes 19, 20; lib. 2, tit. 7, ley 2; lib. 3, tit. 1, ley 6.—Riol, *Informe*, apud *Semanario Erudito*, loc. cit.—In the latter part of Henry IV.'s reign, a papal bull had been granted against the provision of foreigners to benefices. Mariana, *Hist. de España*, tom. vii. p. 196, ed Valencia.

[47] Riol, in his account of this celebrated concordat, refers to the original instrument, as existing in his time in the archives of Simancas, *Semanario Erudito*, tom. iii. p. 95.

[48] "Lo que es público hoy en España é notorio," says Gonzalo de Oviedo, "nunca los Reyes Cathólicos desearon ni procuraron sino que proveer é presentar para las dignidades de la Iglesia hombres capaces é

idoneos para la buena administracion del servicio del culto divino, é á la buena enseñanza é utilidad de los Christianos sus vasallos; y entre todos los varones de sus Reynos así por largo conoscimiento como per larga é secreta informacion acordaron encojer é elegir," etc. Quincuagenas, MS., dial. de Talavera.

[49] Salazar de Mendoza, Crón. del Gran Cardenal, lib. 1, cap. 52.—Idem, Dignidades de Castilla, p. 374.—Pulgar, Reyes Católicos, part. 2, cap. 104.—See also the similar independent conduct pursued by Ferdinand, three years previous, with reference to the see of Taraçona, related by Zurita, Anales, tom. iv. fol. 304.

[50] Bernaldez, Reyes Católicos, MS., cap. 44.—See a letter from one of Henry's subjects, cited by Saez, Monedas de Enrique IV., p. 3.—Also the coarse satire (composed in Henry's reign) of Mingo Revulgo, especially coplas 24-27.

[51] Pragmáticas del Reyno, fol. 64.—Ordenanças Reales, lib. 4, tit. 4, ley 22; lib. 5, tit. 8, ley 2; lib. 6, tit. 9, ley 49; lib. 6, tit. 10, ley 13.—See also other wholesome laws for the encouragement of commerce and general security of property, as that respecting contracts, (lib. 5, tit. 8, ley 5,)—fraudulent tradesmen, (lib. 5, tit. 8, ley 5,)—purveyance, (lib. 6, tit. 11, ley 2 et al.—Recopilacion de las Leyes, lib. 5, tit. 20, 21, 22; lib. 6, tit. 18, ley 1.—Pulgar, Reyes Católicos, part. 2, cap. 99.—Zurita, Anales, tom. iv. fol. 312.—Mem. de la Acad. de Hist., tom. vi. Ilust. 11.)—The revenue, it appears, in 1477, amounted to 27,415,228 maravedies; and in the year 1482, we find it increased to 150,695,288 maravedies. (Ibid., Ilust. 5.)—A survey of the kingdom was made between the years 1477 and 1479, for the purpose of ascertaining the value of the royal rents, which formed the basis of the economical regulations adopted by the cortes of Toledo. Although this survey was conducted on no uniform plan, yet, according to Señor

Clemencin, it exhibits such a variety of important details respecting the resources and population of the country, that it must materially contribute towards an exact history of this period. The compilation, which consists of twelve folio volumes in manuscript, is deposited in the archives of Simancas.

[52] One of the statutes passed at Toledo expressly provides for the erection of spacious and handsome edifices (*casas grandes y bien fechas*) for the transaction of municipal affairs, in all the principal towns and cities in the kingdom. Ordenanças Reales, lib. 7, tit. 1, ley 1.—See also L. Marineo, Cosas Memorables, passim,—et al. auct.

[53] "Cosa fue por cierto maravillosa," exclaims Pulgar, in his Glosa on the Mingo Revulgo, "que lo que muchos hombres, y grandes senores no se acordaron á hacer en muchos años, *sola una muger*, con su trabajo, y gobernacion lo hizo en poco tiempo." Copla 21.

[54] The beautiful lines of Virgil, so often misapplied,

"Jam redit et Virgo; redeunt Saturnia regna;
Jam nova progenies," etc.

seem to admit here of a pertinent application.

[55] Carro de las Doñas, apud Mem. de la Acad. de Hist., tom. vi. Ilust. 21.—As one example of the moral discipline introduced by Isabella in her court, we may cite the enactments against gaming, which had been carried to great excess under the preceding reigns. (See Ordenanças Reales, lib. 2, tit. 14, ley 31; lib. 8, tit. 10, ley 7.) L. Marineo, according to whom "hell is full of gamblers," highly commends the sovereigns for their efforts to discountenance this vice. Cosas Memorables, fol. 165.

[56] See, for example, the splendid ceremony of Prince John's baptism, to which the gossiping Curate of Los Palacios devotes the 32d and 33d chapters of his History.

CHAPTER VII.

ESTABLISHMENT OF THE MODERN INQUISITION.

Origin of the Ancient Inquisition.—Retrospective View of the Jews in Spain.—Their Wealth and Civilization.—Bigotry of the Age.—Its Influence on Isabella.—Her Confessor, Torquemada.—Bull authorizing the Inquisition.—Tribunal at Seville.—Forms of Trial.—Torture.—Autos da Fe.—Number of Convictions.—Perfidious Policy of Rome.

It is painful, after having dwelt so long on the important benefits resulting to Castile from the comprehensive policy of Isabella, to be compelled to turn to the darker side of the picture, and to exhibit her as accommodating herself to the illiberal spirit of the age in which she lived so far as to sanction one of the grossest abuses that ever disgraced humanity. The present chapter will be devoted to the establishment and early progress of the modern Inquisition; an institution, which has probably contributed more than any other cause to depress the lofty character of the ancient Spaniard, and which has thrown the gloom of fanaticism over those lovely regions which seem to be the natural abode of festivity and pleasure.

In the present liberal state of knowledge, we look with disgust at the pretensions of any human being, however exalted, to invade the sacred rights of conscience, inalienably possessed by every man. We feel that the

spiritual concerns of an individual may be safely left to himself as most interested in them, except so far as they can be affected by argument or friendly monition; that the idea of compelling belief in particular doctrines is a solecism, as absurd as wicked; and, so far from condemning to the stake, or the gibbet, men who pertinaciously adhere to their conscientious opinions in contempt of personal interests and in the face of danger, we should rather feel disposed to imitate the spirit of antiquity in raising altars and statues to their memory, as having displayed the highest efforts of human virtue. But, although these truths are now so obvious as rather to deserve the name of truisms, the world has been slow, very slow, in arriving at them, after many centuries of unspeakable oppression and misery.

Acts of intolerance are to be discerned from the earliest period in which Christianity became the established religion of the Roman empire. But they do not seem to have flowed from any systematized plan of persecution, until the papal authority had swollen to a considerable height. The popes, who claimed the spiritual allegiance of all Christendom, regarded heresy as treason against themselves, and, as such, deserving all the penalties, which sovereigns have uniformly visited on this, in their eyes, unpardonable offence. The crusades, which, in the early part of the thirteenth century, swept so fiercely over the southern provinces of France, exterminating their inhabitants, and blasting the fair buds of civilization which had put forth after the long feudal winter, opened the way to the Inquisition; and it was on the ruins of this once happy land, that were first erected the bloody altars of that tribunal. [1]

After various modifications, the province of detecting and punishing heresy was exclusively committed to the hands of the Dominican friars; and in 1233, in the reign of St. Louis, and under the pontificate of Gregory the Ninth, a code for the regulation of their proceedings was finally digested. The tribunal, after having been successively adopted in Italy and Germany,

was introduced into Aragon, where, in 1242, additional provisions were framed by the council of Tarragona, on the basis of those of 1233, which may properly be considered as the primitive instructions of the Holy Office in Spain. [2]

This ancient Inquisition, as it is termed, bore the same odious peculiarities in its leading features as the Modern; the same impenetrable secrecy in its proceedings, the same insidious modes of accusation, a similar use of torture, and similar penalties for the offender. A sort of manual, drawn up by Eymerich, an Aragonese inquisitor of the fourteenth century, for the instruction of the judges of the Holy Office, prescribes all those ambiguous forms of interrogation, by which the unwary, and perhaps innocent victim might be circumvented. [3] The principles, on which the ancient Inquisition was established, are no less repugnant to justice, than those which regulated the modern; although the former, it is true, was much less extensive in its operation. The arm of persecution, however, fell with sufficient heaviness, especially during the thirteenth and fourteenth centuries, on the unfortunate Albigenses, who from the proximity and political relations of Aragon and Provence, had become numerous in the former kingdom. The persecution appears, however, to have been chiefly confined to this unfortunate sect, and there is no evidence that the Holy Office, notwithstanding papal briefs to that effect, was fully organized in Castile, before the reign of Isabella. This is perhaps imputable to the paucity of heretics in that kingdom. It cannot, at any rate, be charged to any lukewarmness in its sovereigns; since they, from the time of St. Ferdinand, who heaped the fagots on the blazing pile with his own hands, down to that of John the Second, Isabella's father, who hunted the unhappy heretics of Biscay, like so many wild beasts, among the mountains, had ever evinced a lively zeal for the orthodox faith. [4]

By the middle of the fifteenth century, the Albigensian heresy had become nearly extirpated by the Inquisition of Aragon; so that this infernal engine might have been suffered to sleep undisturbed from want of sufficient fuel to keep it in motion, when new and ample materials were discovered in the unfortunate race of Israel, on whom the sins of their fathers have been so unsparingly visited by every nation in Christendom, among whom they have sojourned, almost to the present century. As this remarkable people, who seem to have preserved their unity of character unbroken, amid the thousand fragments into which they have been scattered, attained perhaps to greater consideration in Spain than in any other part of Europe, and as the efforts of the Inquisition were directed principally against them during the present reign, it may be well to take a brief review of their preceding history in the Peninsula.

Under the Visigothic empire the Jews multiplied exceedingly in the country, and were permitted to acquire considerable power and wealth. But no sooner had their Arian masters embraced the orthodox faith, than they began to testify their zeal by pouring on the Jews the most pitiless storm of persecution. One of their laws alone condemned the whole race to slavery; and Montesquieu remarks, without much exaggeration, that to the Gothic code may be traced all the maxims of the modern Inquisition, the monks of the fifteenth century only copying, in reference to the Israelites, the bishops of the seventh. [5]

After the Saracenic invasion, which the Jews, perhaps with reason, are accused of having facilitated, they resided in the conquered cities, and were permitted to mingle with the Arabs on nearly equal terms. Their common Oriental origin produced a similarity of tastes, to a certain extent, not unfavorable to such a coalition. At any rate, the early Spanish Arabs were characterized by a spirit of toleration towards both Jews and Christians, "the people of the book," as they were called, which has scarcely been found

among later Moslems. [6] The Jews, accordingly, under these favorable auspices, not only accumulated wealth with their usual diligence, but gradually rose to the highest civil dignities, and made great advances in various departments of letters. The schools of Cordova, Toledo, Barcelona, and Granada were crowded with numerous disciples, who emulated the Arabians in keeping alive the flame of learning, during the deep darkness of the Middle Ages. [7] Whatever may be thought of their success in speculative philosophy, [8] they cannot reasonably be denied to have contributed largely to practical and experimental science. They were diligent travellers in all parts of the known world, compiling itineraries which have proved of extensive use in later times, and bringing home hoards of foreign specimens and Oriental drugs, that furnished important contributions to the domestic pharmacopoeias. [9] In the practice of medicine, indeed, they became so expert, as in a manner to monopolize that profession. They made great proficiency in mathematics, and particularly in astronomy; while, in the cultivation of elegant letters, they revived the ancient glories of the Hebrew muse. [10] This was indeed the golden age of modern Jewish literature, which, under the Spanish caliphs, experienced a protection so benign, although occasionally checkered by the caprices of despotism, that it was enabled to attain higher beauty and a more perfect development in the tenth, eleventh, twelfth, and thirteenth centuries, than it has reached in any other part of Christendom. [11]

The ancient Castilians of the same period, very different from their Gothic ancestors, seem to have conceded to the Israelites somewhat of the feelings of respect, which were extorted from them by the superior civilization of the Spanish Arabs. We find eminent Jews residing in the courts of the Christian princes, directing their studies, attending them as physicians, or more frequently administering their finances. For this last vocation they seem to have had a natural aptitude; and, indeed, the correspondence which they maintained with the different countries of

Europe by means of their own countrymen, who acted as the brokers of almost every people among whom they were scattered during the Middle Ages, afforded them peculiar facilities both in politics and commerce. We meet with Jewish scholars and statesmen attached to the courts of Alfonso the Tenth, Alfonso the Eleventh, Peter the Cruel, Henry the Second, and other princes. Their astronomical science recommended them in a special manner to Alfonso the Wise, who employed them in the construction of his celebrated Tables. James the First of Aragon condescended to receive instruction from them in ethics; and, in the fifteenth century, we notice John the Second, of Castile, employing a Jewish secretary in the compilation of a national Cancionero. [12]

But all this royal patronage proved incompetent to protect the Jews, when their flourishing fortunes had risen to a sufficient height to excite popular envy, augmented, as it was, by that profuse ostentation of equipage and apparel, for which this singular people, notwithstanding their avarice, have usually shown a predilection. [13] Stories were circulated of their contempt for the Catholic worship, their desecration of its most holy symbols, and of their crucifixion, or other sacrifice, of Christian children, at the celebration of their own passover. [14] With these foolish calumnies, the more probable charge of usury and extortion was industriously preferred against them, till at length, towards the close of the fourteenth century, the fanatical populace, stimulated in many instances by the no less fanatical clergy, and perhaps encouraged by the numerous class of debtors to the Jews, who found this a convenient mode of settling their accounts, made a fierce assault on this unfortunate people in Castile and Aragon, breaking into their houses, violating their most private sanctuaries, scattering their costly collections and furniture, and consigning the wretched proprietors to indiscriminate massacre, without regard to sex or age. [15]

In this crisis, the only remedy left to the Jews was a real or feigned conversion to Christianity. St. Vincent Ferrier, a Dominican of Valencia, performed such a quantity of miracles, in furtherance of this purpose, as might have excited the envy of any saint in the Calendar; and these, aided by his eloquence, are said to have changed the hearts of no less than thirty-five thousand of the race of Israel, which doubtless must be reckoned the greatest miracle of all. [16]

The legislative enactments of this period, and still more under John the Second, during the first half of the fifteenth century, were uncommonly severe upon the Jews. While they were prohibited from mingling freely with the Christians, and from exercising the professions for which they were best qualified, [17] their residence was restricted within certain prescribed limits of the cities which they inhabited; and they were not only debarred from their usual luxury of ornament in dress, but were held up to public scorn, as it were, by some peculiar badge or emblem embroidered on their garments. [18] Such was the condition of the Spanish Jews at the accession of Ferdinand and Isabella. The *new Christians*, or *converts*, as those who had renounced the faith of their fathers were denominated, were occasionally preferred to high ecclesiastical dignities, which they illustrated by their integrity and learning. They were intrusted with municipal offices in the various cities of Castile; and, as their wealth furnished an obvious resource for repairing, by way of marriage, the decayed fortunes of the nobility, there was scarcely a family of rank in the land, whose blood had not been contaminated, at some period or other, by mixture with the *mala sangre*, as it came afterwards to be termed, of the house of Judah; an ignominious stain, which no time has been deemed sufficient wholly to purge away. [19]

Notwithstanding the show of prosperity enjoyed by the converted Jews, their situation was far from secure. Their proselytism had been too sudden

to be generally sincere; and, as the task of dissimulation was too irksome to be permanently endured, they gradually became less circumspect, and exhibited the scandalous spectacle of apostates returning to wallow in the ancient mire of Judaism. The clergy, especially the Dominicans, who seem to have inherited the quick scent for heresy which distinguished their frantic founder, were not slow in sounding the alarm; and the superstitious populace, easily roused to acts of violence in the name of religion, began to exhibit the most tumultuous movements, and actually massacred the constable of Castile in an attempt to suppress them at Jaen, the year preceding the accession of Isabella. After this period, the complaints against the Jewish heresy became still more clamorous, and the throne was repeatedly beset with petitions to devise some effectual means for its extirpation. [20]

A chapter of the Chronicle of the Curate of Los Palacios, who lived at this time in Andalusia, where the Jews seem to have most abounded, throws considerable light on the real, as well as pretended motives of the subsequent persecution. "This accursed race," he says, speaking of the Israelites, "were either unwilling to bring their children to be baptized, or, if they did, they washed away the stain on returning home. They dressed their stews and other dishes with oil, instead of lard; abstained from pork; kept the passover; ate meat in lent; and sent oil to replenish the lamps of their synagogues; with many other abominable ceremonies of their religion. They entertained no respect for monastic life, and frequently profaned the sanctity of religious houses by the violation or seduction of their inmates. They were an exceedingly politic and ambitious people, engrossing the most lucrative municipal offices; and preferred to gain their livelihood by traffic, in which they made exorbitant gains, rather than by manual labor or mechanical arts. They considered themselves in the hands of the Egyptians, whom it was a merit to deceive and plunder. By their wicked contrivances

they amassed great wealth, and thus were often able to ally themselves by marriage with noble Christian families." [21]

It is easy to discern, in this medley of credulity and superstition, the secret envy, entertained by the Castilians, of the superior skill and industry of their Hebrew brethren, and of the superior riches which these qualities secured to them; and it is impossible not to suspect, that the zeal of the most orthodox was considerably sharpened by worldly motives.

Be that as it may, the cry against the Jewish abominations now became general. Among those most active in raising it, were Alfonso de Ojeda, a Dominican, prior of the monastery of St. Paul in Seville, and Diego de Merlo, assistant of that city, who should not be defrauded of the meed of glory to which they are justly entitled by their exertions for the establishment of the modern Inquisition. These persons, after urging on the sovereigns the alarming extent to which the Jewish leprosy prevailed in Andalusia, loudly called for the introduction of the Holy Office, as the only effectual means of healing it. In this they were vigorously supported by Niccoló Franco, the papal nuncio then residing at the court of Castile. Ferdinand listened with complacency to a scheme, which promised an ample source of revenue in the confiscations it involved. But it was not so easy to vanquish Isabella's aversion to measures so repugnant to the natural benevolence and magnanimity of her character. Her scruples, indeed, were rather founded on sentiment than reason, the exercise of which was little countenanced in matters of faith, in that day, when the dangerous maxim, that the end justifies the means, was universally received, and learned theologians seriously disputed whether it were permitted to make peace with the infidel, and even whether promises made to them were obligatory on Christians. [22]

The policy of the Roman church, at that time, was not only shown in its perversion of some of the most obvious principles of morality, but in the discouragement of all free inquiry in its disciples, whom it instructed to rely implicitly in matters of conscience on their spiritual advisers. The artful institution of the tribunal of confession, established with this view, brought, as it were, the whole Christian world at the feet of the clergy, who, far from being always animated by the meek spirit of the Gospel, almost justified the reproach of Voltaire, that confessors have been the source of most of the violent measures pursued by princes of the Catholic faith. [23] Isabella's serious temper, as well as early education, naturally disposed her to religious influences. Notwithstanding the independence exhibited by her in all secular affairs, in her own spiritual concerns she uniformly testified the deepest humility, and deferred too implicitly to what she deemed the superior sagacity, or sanctity, of her ghostly counsellors. An instance of this humility may be worth recording. When Fray Fernando de Talavera, afterwards archbishop of Granada, who had been appointed confessor to the queen, attended her for the first time in that capacity, he continued seated, after she had knelt down to make her confession, which drew from her the remark, "that it was usual for both parties to kneel." "No," replied the priest, "this is God's tribunal; I act here as his minister, and it is fitting that I should keep my seat, while your Highness kneels before me." Isabella, far from taking umbrage at the ecclesiastic's arrogant demeanor, complied with all humility, and was afterwards heard to say, "This is the confessor that I wanted." [24]

Well had it been for the land, if the queen's conscience had always been intrusted to the keeping of persons of such exemplary piety as Talavera. Unfortunately, in her early days, during the lifetime of her brother Henry, that charge was committed to a Dominican monk, Thomas de Torquemada, a native of old Castile, subsequently raised to the rank of prior of Santa Cruz in Segovia, and condemned to infamous immortality by the signal part

which he performed in the tragedy of the Inquisition. This man, who concealed more pride under his monastic weeds than might have furnished forth a convent of his order, was one of that class, with whom zeal passes for religion, and who testify their zeal by a fiery persecution of those whose creed differs from their own; who compensate for their abstinence from sensual indulgence, by giving scope to those deadlier vices of the heart, pride, bigotry, and intolerance, which are no less opposed to virtue, and are far more extensively mischievous to society. This personage had earnestly labored to infuse into Isabella's young mind, to which his situation as her confessor gave him such ready access, the same spirit of fanaticism that glowed in his own. Fortunately, this was greatly counteracted by her sound understanding, and natural kindness of heart. Torquemada urged her, or, indeed, as is stated by some, extorted a promise, that, "should she ever come to the throne, she would devote herself to the extirpation of heresy, for the glory of God, and the exaltation of the Catholic faith." [25] The time was now arrived when this fatal promise was to be discharged.

It is due to Isabella's fame to state thus much in palliation of the unfortunate error into which she was led by her misguided zeal; an error so grave, that, like a vein in some noble piece of statuary, it gives a sinister expression to her otherwise unblemished character. [26] It was not until the queen had endured the repeated importunities of the clergy, particularly of those reverend persons in whom she most confided, seconded by the arguments of Ferdinand, that she consented to solicit from the pope a bull for the introduction of the Holy Office into Castile. Sixtus the Fourth, who at that time filled the pontifical chair, easily discerning the sources of wealth and influence, which this measure opened to the court of Rome, readily complied with the petition of the sovereigns, and expedited a bull bearing date November 1st, 1478, authorizing them to appoint two or three ecclesiastics, inquisitors for the detection and suppression of heresy throughout their dominions. [27]

The queen, however, still averse to violent measures, suspended the operation of the ordinance, until a more lenient policy had been first tried. By her command, accordingly, the archbishop of Seville, Cardinal Mendoza, drew up a catechism exhibiting the different points of the Catholic faith, and instructed the clergy throughout his diocese to spare no pains in illuminating the benighted Israelites, by means of friendly exhortation and a candid exposition of the true principles of Christianity. [28] How far the spirit of these injunctions was complied with, amid the excitement then prevailing, may be reasonably doubted. There could be little doubt, however, that a report, made two years later, by a commission of ecclesiastics with Alfonso de Ojeda at its head, respecting the progress of the reformation, would be necessarily unfavorable to the Jews. [29] In consequence of this report the papal provisions were enforced by the nomination, on the 17th of September, 1480, of two Dominican monks as inquisitors, with two other ecclesiastics, the one as assessor, and the other as procurator fiscal, with instructions to proceed at once to Seville, and enter on the duties of their office. Orders were also issued to the authorities of the city to support the inquisitors by all the aid in their power. But the new institution, which has since become the miserable boast of the Castilians, proved so distasteful to them in its origin, that they refused any co-operation with its ministers, and indeed opposed such delays and embarrassments, that, during the first years, it can scarcely be said to have obtained a footing in any other places in Andalusia, than those belonging to the crown. [30]

On the 2d of January, 1481, the court commenced operations by the publication of an edict, followed by several others, requiring all persons to aid in apprehending and accusing all such as they might know or suspect to be guilty of heresy, [31] and holding out the illusory promise of absolution to such as should confess their errors within a limited period. As every mode of accusation, even anonymous, was invited, the number of victims

multiplied so fast, that the tribunal found it convenient to remove its sittings from the convent of St. Paul, within the city, to the spacious fortress of Triana, in the suburbs. [32]

The presumptive proofs by which the charge of Judaism was established against the accused are so curious, that a few of them may deserve notice. It was considered good evidence of the fact, if the prisoner wore better clothes or cleaner linen on the Jewish sabbath than on other days of the week; if he had no fire in his house the preceding evening; if he sat at table with Jews, or ate the meat of animals slaughtered by their hands, or drank a certain beverage held in much estimation by them; if he washed a corpse in warm water, or when dying turned his face to the wall; or, finally, if he gave Hebrew names to his children; a provision most whimsically cruel, since, by a law of Henry the Second, he was prohibited under severe penalties from giving them Christian names. He must have found it difficult to extricate himself from the horns of this dilemma. [33] Such are a few of the circumstances, some of them purely accidental in their nature, others the result of early habit, which might well have continued after a sincere conversion to Christianity, and all of them trivial, on which capital accusations were to be alleged, and even satisfactorily established. [34]

The inquisitors, adopting the wily and tortuous policy of the ancient tribunal, proceeded with a despatch, which shows that they could have paid little deference even to this affectation of legal form. On the sixth day of January, six convicts suffered at the stake. Seventeen more were executed in March, and a still greater number in the month following; and by the 4th of November in the same year, no less than two hundred and ninety-eight individuals had been sacrificed in the *autos da fe* of Seville. Besides these, the mouldering remains of many, who had been tried and convicted after their death, were torn up from their graves, with a hyena-like ferocity, which has disgraced no other court, Christian or Pagan, and condemned to

the common funeral pile. This was prepared on a spacious stone scaffold, erected in the suburbs of the city, with the statues of four prophets attached to the corners, to which the unhappy sufferers were bound for the sacrifice, and which the worthy Curate of Los Palacios celebrates with much complacency as the spot "where heretics were burnt, and ought to burn as long as any can be found." [35]

Many of the convicts were persons estimable for learning and probity; and, among these, three clergymen are named, together with other individuals filling judicial or high municipal stations. The sword of justice was observed, in particular, to strike at the wealthy, the least pardonable offenders in times of proscription.

The plague which desolated Seville this year, sweeping off fifteen thousand inhabitants, as if in token of the wrath of Heaven at these enormities, did not palsy for a moment the arm of the Inquisition, which, adjourning to Aracena, continued as indefatigable as before. A similar persecution went forward in other parts of the province of Andalusia; so that within the same year, 1481, the number of the sufferers was computed at two thousand burnt alive, a still greater number in effigy, and seventeen thousand *reconciled*; a term which must not be understood by the reader to signify anything like a pardon or amnesty, but only the commutation of a capital sentence for inferior penalties, as fines, civil incapacity, very generally total confiscation of property, and not unfrequently imprisonment for life. [36]

The Jews were astounded by the bolt, which had fallen so unexpectedly upon them. Some succeeded in making their escape to Granada, others to France, Germany, or Italy, where they appealed from the decisions of the Holy Office to the sovereign pontiff. [37] Sixtus the Fourth appears for a moment to have been touched with something like compunction; for he

rebuked the intemperate zeal of the inquisitors, and even menaced them with deprivation. But these feelings, it would seem, were but transient; for, in 1483, we find the same pontiff quieting the scruples of Isabella respecting the appropriation of the confiscated property, and encouraging both sovereigns to proceed in the great work of purification, by an audacious reference to the example of Jesus Christ, who, says he, consolidated his kingdom on earth by the destruction of idolatry; and he concludes with imputing their successes in the Moorish war, upon which they had then entered, to their zeal for the faith, and promising them the like in future. In the course of the same year, he expedited two briefs, appointing Thomas de Torquemada inquisitor-general of Castile and Aragon, and clothing him with full powers to frame a new constitution for the Holy Office. This was the origin of that terrible tribunal, the Spanish or modern Inquisition, familiar to most readers, whether of history or romance; which, for three centuries, has extended its iron sway over the dominions of Spain and Portugal. [38] Without going into details respecting the organization of its various courts, which gradually swelled to thirteen during the present reign, I shall endeavor to exhibit the principles which regulated their proceedings, as deduced in part from the code digested under Torquemada, and partly from the practice which obtained during his supremacy. [39]

Edicts were ordered to be published annually, on the first two Sundays in lent, throughout the churches, enjoining it as a sacred duty on all, who knew or suspected another to be guilty of heresy, to lodge information against him before the Holy Office; and the ministers of religion were instructed to refuse absolution to such as hesitated to comply with this, although the suspected person might stand in the relation of parent, child, husband, or wife. All accusations, anonymous as well as signed, were admitted; it being only necessary to specify the names of the witnesses, whose testimony was taken down in writing by a secretary, and afterwards read to them, which,

unless the inaccuracies were so gross as to force themselves upon their attention, they seldom failed to confirm. [40]

The accused, in the mean time, whose mysterious disappearance was perhaps the only public evidence of his arrest, was conveyed to the secret chambers of the Inquisition, where he was jealously excluded from intercourse with all, save a priest of the Romish church and his jailer, both of whom might be regarded as the spies of the tribunal. In this desolate condition, the unfortunate man, cut off from external communication and all cheering sympathy or support, was kept for some time in ignorance even of the nature of the charges preferred against him, and at length, instead of the original process, was favored only with extracts from the depositions of the witnesses, so garbled as to conceal every possible clue to their name and quality. With still greater unfairness, no mention whatever was made of such testimony, as had arisen in the course of the examination, in his own favor. Counsel was indeed allowed from a list presented by his judges. But this privilege availed little, since the parties were not permitted to confer together, and the advocate was furnished with no other sources of information than what had been granted to his client. To add to the injustice of these proceedings, every discrepancy in the statements of the witnesses was converted into a separate charge against the prisoner, who thus, instead of one crime, stood accused of several. This, taken in connection with the concealment of time, place, and circumstance in the accusations, created such embarrassment, that, unless the accused was possessed of unusual acuteness and presence of mind, it was sure to involve him, in his attempts to explain, in inextricable contradiction. [41]

If the prisoner refused to confess his guilt, or, as was usual, was suspected of evasion, or an attempt to conceal the truth, he was subjected to the torture. This, which was administered in the deepest vaults of the Inquisition, where the cries of the victim could fall on no ear save that of

his tormentors, is admitted by the secretary of the Holy Office, who has furnished the most authentic report of its transactions, not to have been exaggerated in any of the numerous narratives which have dragged these subterranean horrors into light. If the intensity of pain extorted a confession from the sufferer, he was expected, if he survived, which did not always happen, to confirm it on the next day. Should he refuse to do this, his mutilated members were condemned to a repetition of the same sufferings, until his obstinacy (it should rather have been termed his heroism) might be vanquished. [42] Should the rack, however, prove ineffectual to force a confession of his guilt, he was so far from being considered as having established his innocence, that, with a barbarity unknown to any tribunal where the torture has been admitted, and which of itself proves its utter incompetency to the ends it proposes, he was not unfrequently convicted on the depositions of the witnesses. At the conclusion of his mock trial, the prisoner was again returned to his dungeon, where, without the blaze of a single fagot to dispel the cold, or illuminate the darkness of the long winter night, he was left in unbroken silence to await the doom which was to consign him to an ignominious death, or a life scarcely less ignominious. [43]

The proceedings of the tribunal, as I have stated them, were plainly characterized throughout by the most flagrant injustice and inhumanity to the accused. Instead of presuming his innocence, until his guilt had been established, it acted on exactly the opposite principle. Instead of affording him the protection accorded by every other judicature, and especially demanded in his forlorn situation, it used the most insidious arts to circumvent and to crush him. He had no remedy against malice or misapprehension on the part of his accusers, or the witnesses against him, who might be his bitterest enemies; since they were never revealed to nor confronted with the prisoner, nor subjected to a cross-examination, which can best expose error or wilful collusion in the evidence. [44] Even the poor

forms of justice, recognized in this court, might be readily dispensed with; as its proceedings were impenetrably shrouded from the public eye, by the appalling oath of secrecy imposed on all, whether functionaries, witnesses, or prisoners, who entered within its precincts. The last, and not the least odious feature of the whole, was the connection established between the condemnation of the accused and the interests of his judges; since the confiscations, which were the uniform penalties, of heresy, [45] were not permitted to flow into the royal exchequer, until they had first discharged the expenses, whether in the shape of salaries or otherwise, incident to the Holy Office. [46]

The last scene in this dismal tragedy was the *act of faith*, (auto da fe,) the most imposing spectacle, probably, which, has been witnessed since the ancient Roman triumph, and which, as intimated by a Spanish writer, was intended, somewhat profanely, to represent the terrors of the Day of Judgment. [47] The proudest grandees of the land, on this occasion, putting on the sable livery of familiars of the Holy Office and bearing aloft its banners, condescended to act as the escort of its ministers; while the ceremony was not unfrequently countenanced by the royal presence. It should be stated, however, that neither of these acts of condescension, or, more properly, humiliation, were witnessed until a period posterior to the present reign. The effect was further heightened by the concourse of ecclesiastics in their sacerdotal robes, and the pompous ceremonial, which the church of Rome knows so well how to display on fitting occasions; and which was intended to consecrate, as it were, this bloody sacrifice by the authority of a religion, which has expressly declared that it desires mercy, and not sacrifice. [48]

The most important actors in the scene were the unfortunate convicts, who were now disgorged for the first time from the dungeons of the tribunal. They were clad in coarse woollen garments, styled *san benitos*,

brought close round the neck, and descending like a frock down to the knees. [49] These were of a yellow color, embroidered with a scarlet cross, and well garnished with figures of devils and flames of fire, which, typical of the heretic's destiny hereafter, served to make him more odious in the eyes of the superstitious multitude. [50] The greater part of the sufferers were condemned to be *reconciled*, the manifold meanings of which soft phrase have been already explained. Those who were to be *relaxed*, as it was called, were delivered over, as impenitent heretics, to the secular arm, in order to expiate their offence by the most painful of deaths, with the consciousness, still more painful, that they were to leave behind them names branded with infamy, and families involved in irretrievable ruin. [51]

It is remarkable, that a scheme so monstrous as that of the Inquisition, presenting the most effectual barrier, probably, that was ever opposed to the progress of knowledge, should have been revived at the close of the fifteenth century, when the light of civilization was rapidly advancing over every part of Europe. It is more remarkable, that it should have occurred in Spain, at this time under a government which had displayed great religious independence on more than one occasion, and which had paid uniform regard to the rights of its subjects, and pursued a generous policy in reference to their intellectual culture. Where, we are tempted to ask, when we behold the persecution of an innocent, industrious people for the crime of adhesion to the faith of their ancestors, where was the charity, which led the old Castilian to reverence valor and virtue in an infidel, though an enemy? Where the chivalrous self-devotion, which led an Aragonese monarch, three centuries before, to give away his life, in defence of the persecuted sectaries of Provence? Where the independent spirit, which prompted the Castilian nobles, during the very last reign, to reject with scorn the proposed interference of the pope himself in their concerns, that they were now reduced to bow their necks to a few frantic priests, the members of an order, which, in Spain at least, was quite as conspicuous for

ignorance as intolerance? True indeed the Castilians, and the Aragonese subsequently still more, gave such evidence of their aversion to the institution, that it can hardly be believed the clergy would have succeeded in fastening it upon them, had they not availed themselves of the popular prejudices against the Jews. [52] Providence, however, permitted that the sufferings, thus heaped on the heads of this unfortunate people, should be requited in full measure to the nation that inflicted them. The fires of the Inquisition, which were lighted exclusively for the Jews, were destined eventually to consume their oppressors. They were still more deeply avenged in the moral influence of this tribunal, which, eating like a pestilent canker into the heart of the monarchy, at the very time when it was exhibiting a most goodly promise, left it at length a bare and sapless trunk.

Notwithstanding the persecutions under Torquemada were confined almost wholly to the Jews, his activity was such as to furnish abundant precedent, in regard to forms of proceeding, for his successors; if, indeed, the word forms may be applied to the conduct of trials so summary, that the tribunal of Toledo alone, under the superintendence of two inquisitors, disposed of three thousand three hundred and twenty-seven processes in little more than a year. [53] The number of convicts was greatly swelled by the blunders of the Dominican monks, who acted as qualificators, or interpreters of what constituted heresy, and whose ignorance led them frequently to condemn as heterodox propositions actually derived from the fathers of the church. The prisoners for life, alone, became so numerous, that it was necessary to assign them their own houses as the places of their incarceration.

The data for an accurate calculation of the number of victims sacrificed by the Inquisition during this reign are not very satisfactory. From such as exist, however, Llorente has been led to the most frightful results. He computes, that, during the eighteen years of Torquemada's ministry, there

were no less than 10,220 burnt, 6860 condemned, and burnt in effigy as absent or dead, and 97,321 reconciled by various other penances; affording an average of more than 6000 convicted persons annually. [54] In this enormous sum of human misery is not included the multitude of orphans, who, from the confiscation of their paternal inheritance, were turned over to indigence and vice. [55] Many of the reconciled were afterwards sentenced as relapsed; and the Curate of Los Palacios expresses the charitable wish, that "the whole accursed race of Jews, male and female, of twenty years of age and upwards, might be purified with fire and fagot!" [56]

The vast apparatus of the Inquisition involved so heavy an expenditure, that a very small sum, comparatively, found its way into the exchequer, to counterbalance the great detriment resulting to the state from the sacrifice of the most active and skilful part of its population. All temporal interests, however, were held light in comparison with the purgation of the land from heresy; and such augmentations as the revenue did receive, we are assured, were conscientiously devoted to pious purposes, and the Moorish war! [57]

The Roman see, during all this time, conducting itself with its usual duplicity, contrived to make a gainful traffic by the sale of dispensations from the penalties incurred by such as fell under the ban of the Inquisition, provided they were rich enough to pay for them, and afterwards revoking them, at the instance of the Castilian court. Meanwhile, the odium, excited by the unsparing rigor of Torquemada, raised up so many accusations against him, that he was thrice compelled to send an agent to Rome to defend his cause before the pontiff; until, at length, Alexander the Sixth, in 1494, moved by these reiterated complaints, appointed four coadjutors, out of a pretended regard to the infirmities of his age, to share with him the burdens of his office. [58]

This personage, who is entitled to so high a rank among those who have been the authors of unmixed evil to their species, was permitted to reach a very old age, and to die quietly in his bed. Yet he lived in such constant apprehension of assassination, that he is said to have kept a reputed unicorn's horn always on his table, which was imagined to have the power of detecting and neutralizing poisons; while, for the more complete protection of his person, he was allowed an escort of fifty horse and two hundred foot in his progresses through the kingdom. [59]

This man's zeal was of such an extravagant character, that it may almost shelter itself under the name of insanity. His history may be thought to prove, that, of all human infirmities, or rather vices, there is none productive of more extensive mischief to society than fanaticism. The opposite principle of atheism, which refuses to recognize the most important sanctions to virtue, does not necessarily imply any destitution of just moral perceptions, that is, of a power of discriminating between right and wrong, in its disciples. But fanaticism is so far subversive of the most established principles of morality, that, under the dangerous maxim, "For the advancement of the faith, all means are lawful," which Tasso has rightly, though perhaps undesignedly, derived from the spirits of hell, [60] it not only excuses, but enjoins the commission of the most revolting crimes, as a sacred duty. The more repugnant, indeed, such crimes may be to natural feeling, or public sentiment, the greater their merit, from the sacrifice which the commission of them involves. Many a bloody page of history attests the fact, that fanaticism, armed with power, is the sorest evil which can befall a nation.

* * * * *

Don Juan Antonio Llorente is the only writer who has succeeded in completely lifting the veil from the dread mysteries of the Inquisition. It is

obvious how very few could be competent to this task, since the proceedings of the Holy Office were shrouded in such impenetrable secrecy, that even the prisoners who were arraigned before it, as has been already stated, were kept in ignorance of their own processes. Even such of its functionaries, as have at different times pretended to give its transactions to the world, have confined themselves to an historical outline, with meagre notices of such parts of its internal discipline as might be safely disclosed to the public.

Llorente was secretary to the tribunal of Madrid from 1790 to 1792. His official station consequently afforded him every facility for an acquaintance with the most recondite affairs of the Inquisition; and, on its suppression at the close of 1808, he devoted several years to a careful investigation of the registers of the tribunals, both of the capital and the provinces, as well as of such other original documents contained within their archives, as had not hitherto been opened to the light of day. In the progress of his work he has anatomized the most odious features of the institution with unsparing severity; and his reflections are warmed with a generous and enlightened spirit, certainly not to have been expected in an ex-inquisitor. The arrangement of his immense mass of materials is indeed somewhat faulty, and the work might be recast in a more popular form, especially by means of a copious retrenchment. With all its subordinate defects, however, it is entitled to the credit of being the most, indeed the only, authentic history of the modern Inquisition; exhibiting its minutest forms of practice, and the insidious policy by which they were directed, from the origin of the institution down to its temporary abolition. It well deserves to be studied, as the record of the most humiliating triumph, which fanaticism has ever been able to obtain over human reason, and that, too, during the most civilized periods, and in the most civilized portion of the world. The persecutions, endured by the unfortunate author of the work, prove that the embers of this fanaticism may be rekindled too easily, even in the present century.

FOOTNOTES

[1] Mosheim, Ecclesiastical History, translated by Maclaine, (Charlestown, 1810,) cent. 13, p. 2, chap. 5.—Sismondi, Histoire des Français, (Paris, 1821,) tom. vi. chap. 24-28; tom; vii. chap. 2, 3.—Idem, De la Littérature du Midi de l'Europe, (Paris, 1813,) tom. i. chap. 6.—In the former of these works M. Sismondi has described the physical ravages of the crusades in southern France, with the same spirit and eloquence, with which he has exhibited their desolating moral influence in the latter.

Some Catholic writers would fain excuse St. Dominic from the imputation of having founded the Inquisition. It is true he died some years before the perfect organization of that tribunal; but, as he established the principles on which, and the monkish militia by whom, it was administered, it is doing him no injustice to regard him as its real author.—The Sicilian Paramo, indeed, in his heavy quarto, (De Origine et Progressu Officii Sanctae Inquisitionis, Matriti, 1598,) traces it up to a much more remote antiquity, which, to a Protestant ear at least, savors not a little of blasphemy. According to him, God was the first inquisitor, and his condemnation of Adam and Eve furnished the model of the judicial forms observed in the trials of the Holy Office. The sentence of Adam was the type of the inquisitorial *reconciliation*; his subsequent raiment of the skins of animals was the model of the *san-benito*, and his expulsion from Paradise the precedent for the confiscation of the goods of heretics. This learned personage deduces a succession of inquisitors through the patriarchs, Moses, Nebuchadnezzar, and King David, down to John the Baptist, and even our Saviour, in whose precepts and conduct he finds abundant authority for the tribunal! Paramo, De Origine Inquisitionis, lib. 1, tit. 1, 2, 3.

[2] Sismondi, *Hist. des Français*, tom. vii. chap. 3.—Limborch, *History of the Inquisition*, translated by Chandler, (London, 1731,) book 1, chap. 24.—Llorente, *Histoire Critique de l'Inquisition d'Espagne*, (Paris, 1818,) tom. i. p. 110.—Before this time we find a constitution of Peter I. of Aragon against heretics, prescribing in certain cases the burning of heretics and the confiscation of their estates, in 1197. *Marca, Marca Hispanica, sive Limes Hispanicus*, (Parisiis, 1688,) p. 1384.

[3] Nic. Antonio, *Bibliotheca Vetus*, tom. ii, p. 186.—Llorente, *Hist. de l'Inquisition*, tom. i. pp. 110-124.—Puigblanch cites some of the instructions from Eymerich's work, whose authority in the courts of the Inquisition he compares to that of Gratian's *Decretals* in other ecclesiastical judicatures. One of these may suffice to show the spirit of the whole. "When the inquisitor has an opportunity, he shall manage so as to introduce to the conversation of the prisoner some one of his accomplices, or any other converted heretic, who shall feign that he still persists in his heresy, telling him that he had abjured for the sole purpose of escaping punishment, by deceiving the inquisitors. Having thus gained his confidence, he shall go into his cell some day after dinner, and, keeping up the conversation till night, shall remain with him under pretext of its being too late for him to return home. He shall then urge the prisoner to tell him all the particulars of his past life, having first told him the whole of his own; and in the mean time spies shall be kept in hearing at the door, as well as a notary, in order to certify what may be said within." Puigblanch, *Inquisition Unmasked*, translated by Walton, (London, 1816,) vol. i. pp. 238, 239.

[4] Mariana, *Hist. de España*, lib. 12, cap. 11; lib. 21, cap. 17.—Llorente, *Hist. de l'Inquisition*, tom. i. chap. 3.—The nature of the penance imposed on reconciled heretics by the ancient Inquisition was much more severe than that of later times. Llorente cites an act of St. Dominic respecting a person of this description, named Ponce Roger. The penitent was

commanded to be "*stripped of his clothes and beaten with rods by a priest, three Sundays in succession, from the gate of the city to the door of the church*; not to eat any kind of animal food during his whole life; to keep three Lents a year, without even eating fish; to abstain from fish, oil, and wine three days in the week during life, except in case of sickness or excessive labor; to wear a religious dress with a small cross embroidered on each side of the breast; to attend mass every day, if he had the means of doing so, and vespers on Sundays and festivals; to recite the service for the day and the night, and to repeat the *pater noster* seven times in the day, ten times in the evening, and *twenty times at midnight*"! (Ibid., chap. 4.) If the said Roger failed in any of the above requisitions, he was to be burnt as a relapsed heretic! This was the encouragement held out by St. Dominic to penitence.

[5] Montesquieu, *Esprit des Loix*, liv. 28, chap. 1.—See the canon of the 17th council of Toledo, condemning the Israelitish race to bondage, in Florez, *España Sagrada*, (Madrid, 1747-75,) tom. vi. p. 229.—*Fuero Juzgo* (ed. de la Acad. (Madrid, 1815,) lib. 12, tit. 2 and 3,) is composed of the most inhuman ordinances against this unfortunate people.

[6] The Koran grants protection to the Jews on payment of tribute. See the Koran, translated by Sale, (London, 1825,) chap. 9.

[7] The first academy founded by the learned Jews in Spain was that of Cordova, A. D. 948. Castro, *Biblioteca Española*, tom. i. p. 2.—Basnage, *History of the Jews*, translated by Taylor, (London, 1708,) book 7, chap. 5.

[8] In addition to their Talmudic lore and Cabalistic mysteries, the Spanish Jews were well read in the philosophy of Aristotle. They pretended that the Stagirite was a convert to Judaism and had borrowed his science from the writings of Solomon. (Brucker, *Historia Critica Philosophiae*, (Lipsiae, 1766,) tom. ii. p. 853.) M. Degerando, adopting similar

conclusions with Brucker, in regard to the value of the philosophical speculations of the Jews, passes the following severe sentence upon the intellectual, and indeed moral character of the nation. "Ce peuple, par son caractère, ses mœurs, ses institutions, semblait être destiné à rester stationnaire. Un attachement excessif à leurs propres traditions dominait chez les Juifs tous les penchans de l'esprit: ils restaient presque étrangers aux progrès de la civilisation, au mouvement général de la société; ils étaient en quelque sorte moralement isolés, alors même qu'ils communiquaient avec tous les peuples, et parcouraient toutes les contrées. Aussi nous cherchons en vain, dans ceux de leurs écrits qui nous sont connus, non seulement de vraies découvertes, mais même des idées réellement originales." *Histoire Comparée des Systèmes de Philosophie*, (Paris, 1822,) tom. iv. p. 299.

[9] Castro, *Biblioteca Española*, tom. i. pp. 21, 33, et alibi.—Benjamin of Tudela's celebrated Itinerary, having been translated into the various languages of Europe, passed into sixteen editions before the middle of the last century. *Ibid.*, tom. i. pp. 79, 80.

[10] The beautiful lament, which the royal psalmist has put into the mouths of his countrymen, when commanded to sing the songs of Sion in a strange land, cannot be applied to the Spanish Jews, who, far from hanging their harps upon the willows, poured forth their lays with a freedom and vivacity which may be thought to savor more of the modern troubadour than of the ancient Hebrew minstrel. Castro has collected, under Siglo XV., a few gleanings of such as, by their incorporation into a Christian Cancionero, escaped the fury of the Inquisition. *Biblioteca Española*, tom. i. pp. 265-364.

[11] Castro has done for the Hebrew what Casiri a few years before did for the Arabic literature of Spain, by giving notices of such works as have

survived the ravages of time and superstition. The first volume of his *Biblioteca Española* contains an analysis accompanied with extracts from more than seven hundred different works, with biographical sketches of their authors; the whole bearing most honorable testimony to the talent and various erudition of the Spanish Jews.

[12] Basnage, *History of the Jews*, book 7, chap. 5, 15, 16.—Castro, *Biblioteca Española*, tom. i. pp. 116, 265, 267.—Mariana, *Hist. de España*, tom. i. p. 906;—tom. ii. pp. 63, 147, 459.—Samuel Levi, treasurer of Peter the Cruel, who was sacrificed to the cupidity of his master, is reported by Mariana to have left behind him the incredible sum of 400,000 ducats to swell the royal coffers. Tom. ii. p. 82.

[13] Sir Walter Scott, with his usual discernment, has availed himself of these opposite traits in his portraits of Rebecca and Isaac in *Ivanhoe*, in which he seems to have contrasted the lights and shadows of the Jewish character. The humiliating state of the Jews, however, exhibited in this romance, affords no analogy to their social condition in Spain; as is evinced not merely by their wealth, which was also conspicuous in the English Jews, but by the high degree of civilization, and even political consequence, which, notwithstanding the occasional ebullitions of popular prejudice, they were permitted to reach there.

[14] Calumnies of this kind were current all over Europe. The English reader will call to mind the monkish fiction of the little Christian,

"Slain with cursed Jewes, as it is notable,"

singing most devoutly after his throat was cut from ear to ear, in Chaucer's *Prioress's Tale*. See another instance in the old Scottish ballad of the "Jew's Daughter" in Percy's *Reliques of Ancient Poetry*."

[15] Bernaldez, Reyes Católicos, MS., cap. 43.—Mariana, Hist. de España, tom. ii. pp. 186, 187.—In 1391, 5000 Jews were sacrificed to the popular fury, and, according to Mariana, no less than 10,000 perished from the same cause in Navarre about sixty years before. See tom. i. p. 912.

[16] According to Mariana, the restoration of sight to the blind, feet to the lame, even life to the dead, were miracles of ordinary occurrence with St. Vincent. (Hist. de España, tom. ii. pp. 229, 230.) The age of miracles had probably ceased by Isabella's time, or the Inquisition might have been spared. Nic. Antonio, in his notice of the life and labors of this Dominican, (Bibliotheca Vetus, tom. ii. pp. 205, 207,) states that he preached his inspired sermons in his vernacular Valencian dialect to audiences of French, English, and Italians, indiscriminately, who all understood him perfectly well; "a circumstance," says Dr. McCrie, in his valuable "History of the Progress and Suppression of the Reformation in Spain," (Edinburgh, 1829.) "which, if it prove anything, proves that the hearers of St. Vincent possessed more miraculous powers than himself, and that they should have been canonized, rather than the preacher." P. 87, note.

[17] They were interdicted from the callings of vintners, grocers, taverners, especially of apothecaries, and of physicians, and nurses. Ordenanças Reales, lib. 8, tit. 3, leyes 11, 15, 18.

[18] No law was more frequently reiterated than that prohibiting the Jews from acting as stewards of the nobility, or farmers and collectors of the public rents. The repetition of this law shows to what extent that people had engrossed what little was known of financial science in that day. For the multiplied enactments in Castile against them, see Ordenanças Reales, (lib. 8, tit. 3.) For the regulations respecting the Jews in Aragon, many of them oppressive, particularly at the commencement of the fifteenth century, see Fueros y Observancias del Reyno de Aragon, (Zaragoza, 1667,) tom. i. fol.

6.—Marca Hispanica, pp. 1416, 1433.—Zurita, Anales, tom. iii. lib. 12, cap. 45.

[19] Bernaldez, Reyes Católicos, MS., cap. 43.—Llorente, Hist. de l'Inquisition, préf. p. 26.—A manuscript entitled *Tizon de España*, (Brand of Spain,) tracing up many a noble pedigree to a Jewish or Mahometan root, obtained a circulation, to the great scandal of the country, which the efforts of the government, combined with those of the Inquisition, have not been wholly able to suppress. Copies of it, however, are now rarely to be met with. (Doblado, Letters from Spain, (London, 1822,) let. 2.) Clemencin notices two works with this title, one as ancient as Ferdinand and Isabella's time, and both written by bishops. Mem. de la Acad. de Hist., tom. vi. p. 125.

[20] Mariana, Hist. de España, tom. ii. p. 479.—Pulgar, Reyes Católicos, part. 2, cap. 77.

[21] Reyes Católicos, MS., cap, 43. Vol. I.21.

[22] Bernaldez, Reyes Católicos, ubi supra.—Pulgar, Reyes Católicos, part. 2, cap. 77.—Zuñiga, Annales de Sevilla, p. 386.—Mem. de la Acad. de Hist., tom. vi. p. 44.—Llorente, tom. i. pp. 143, 145.

Some writers are inclined to view the Spanish Inquisition, in its origin, as little else than a political engine. Guizot remarks of the tribunal, in one of his lectures, "Elle contenait en germe ce qu'elle est devenue; mais elle ne l'était pas en commençant: elle fut d'abord plus politique que religieuse, et destinée à maintenir l'ordre plutôt qu'à défendre la foi." (Cours d'Histoire Moderne, (Paris, 1828-30,) tom. v. lec. 11.) This statement is inaccurate in reference to Castile, where the facts do not warrant us in imputing any other motive for its adoption than religious zeal. The general character of Ferdinand, as well as the circumstances under which it was introduced into Aragon, may justify the inference of a more worldly policy in its establishment there.

[23] *Essai sur les Moeurs et l'Esprit des Nations*, chap. 176.

[24] Sigüenza, *Historia de la Orden de San Gerónimo*, apud *Mem. de la Acad. de Hist.*, tom. vi. Ilust. 13.—This anecdote is more characteristic of the order than the individual. Oviedo has given a brief notice of this prelate, whose virtues raised him from the humblest condition to the highest posts in the church, and gained him, to quote that writer's words, the appellation of "El sancto, ó el buen arzobispo en toda España." *Quincuagenas*, MS., dial. de Talavera.

[25] Zurita, *Anales*, tom. iv. fol. 323.

[26] The uniform tenderness with which the most liberal Spanish writers of the present comparatively enlightened age, as Marina, Llorente, Clemencin, etc., regard the memory of Isabella, affords an honorable testimony to the unsuspected integrity of her motives. Even in relation to the Inquisition, her countrymen would seem willing to draw a veil over her errors, or to excuse her by charging them on the age in which she lived.

[27] Pulgar, *Reyes Católicos*, part. 2. cap. 77.—Bernaldez, *Reyes Católicos*, MS., cap. 43.—Llorente, *Hist. de l'Inquisition*, tom. i. pp. 143-145.—Much discrepancy exists in the narratives of Pulgar, Bernaldez, and other contemporary writers, in reference to the era of the establishment of the modern Inquisition. I have followed Llorente, whose chronological accuracy, here and elsewhere, rests on the most authentic documents.

[28] Bernaldez, *Reyes Católicos*, MS., *ubi supra*.—Pulgar, *Reyes Católicos*, part. 2, cap. 77.—I find no contemporary authority for imputing to Cardinal Mendoza an active agency in the establishment of the Inquisition, as is claimed for him by later writers, and especially his kinsman and biographer, the canon Salazar de Mendoza. (*Crón. del Gran Cardenal*, lib. 1, cap. 49.—*Monarquía*, tom. i. p. 336.) The conduct of this

eminent minister in this affair seems, on the contrary, to have been equally politic and humane. The imputation of bigotry was not cast upon it, until the age when bigotry was esteemed a virtue.

[29] In the interim, a caustic publication by a Jew appeared, containing strictures on the conduct of the administration, and even on the Christian religion, which was controverted at length by Talavera, afterwards archbishop of Granada. The scandal occasioned by this ill-timed production undoubtedly contributed to exacerbate the popular odium against the Israelites.

[30] It is worthy of remark, that the famous cortes of Toledo, assembled but a short time previous to the above-mentioned ordinances, and which enacted several oppressive laws in relation to the Jews, made no allusion whatever to the proposed establishment of a tribunal, which was to be armed with such terrific powers.

[31] This ordinance, in which Llorente discerns the first regular encroachment of the new tribunal on the civil jurisdiction, was aimed partly at the Andalusian nobility, who afforded a shelter to the Jewish fugitives. Llorente has fallen into the error, more than once, of speaking of the count of Arcos, and marquis of Cadiz, as separate persons. The possessor of both titles was Rodrigo Ponce de Leon, who inherited the former of them from his father. The latter (which he afterwards made so illustrious in the Moorish wars) was conferred on him by Henry IV., being derived from the city of that name, which had been usurped from the crown.

[32] The historian of Seville quotes the Latin inscription on the portal of the edifice in which the sittings of the dread tribunal were held. Its concluding apostrophe to the Deity is one that the persecuted might join in, as heartily as their oppressors. "Exurge Domine; judica causam tuam; capite nobis vulpes." Zuñiga, *Annales de Sevilla*, p. 389.

[33] Ordenanças Reales, lib. 8, tit. 3, ley 26.

[34] Llorente, Hist. de l'Inquisition, tom. i. pp. 153-159.

[35] Bernaldez, Reyes Católicos, MS., cap. 44.—Llorente, Hist. de l'Inquisition, tom. 1, p. 160.—L. Marineo, Cosas Memorables, fol. 164.—The language of Bernaldez as applied to the four statues of the *quemadero*, "*en que los quemavan*," is so equivocal, that it has led to some doubts whether he meant to assert that the persons to be burnt were enclosed in the statues, or fastened to them. Llorente's subsequent examination has led him to discard the first horrible supposition, which realized the fabled cruelty of Phalaris.—This monument of fanaticism continued to disgrace Seville till 1810, when it was removed in order to make room for the construction of a battery against the French.

[36] L. Marineo, Cosas Memorables, fol. 164.—Bernaldez, Reyes Católicos, MS., cap. 44.—Mariana, lib. 24, cap. 17.—Llorente, Hist. de l'Inquisition, ubi supra.—L. Marineo diffuses the 2000 capital executions over several years. He sums up the various severities of the Holy Office in the following gentle terms. "The church, who is the mother of mercy and the fountain of charity, content with the imposition of penances, generously accords life to many who do not deserve it. While those who persist obstinately in their errors, after being imprisoned on the testimony of trustworthy witnesses, she causes to be put to the torture, and condemned to the flames; some miserably perish, bewailing their errors, and invoking the name of Christ, while others call upon that of Moses. Many again, who sincerely repent, she, notwithstanding the heinousness of their transgressions, *merely sentences to perpetual imprisonment*!" Such were the tender mercies of the Spanish Inquisition.

[37] Bernaldez states, that guards were posted at the gates of the city of Seville in order to prevent the emigration of the Jewish inhabitants, which

indeed was forbidden under pain of death. The tribunal, however, had greater terrors for them, and many succeeded in effecting their escape. Reyes Católicos, MS., cap. 44.

[38] L. Marineo, *Cosas Memorables*, fol. 164.—Zuñiga, *Annales de Sevilla*, p. 396.—Pulgar, *Reyes Católicos*, part. 2, cap. 77.—Garibay, *Compendio*, tom. ii. lib. 18, cap. 17.—Paramo, *De Origine Inquisitionis*, lib. 2, tit. 2, cap. 2.—Llorente, *Hist. de l'Inquisition*, tom. i. pp. 163-173.

[39] Over these subordinate tribunals Ferdinand erected a court of supervision, with appellate jurisdiction, under the name of Council of the Supreme, consisting of the grand inquisitor, as president, and three other ecclesiastics, two of them doctors of law. The principal purpose of this new creation was to secure the interest of the crown in the confiscated property, and to guard against the encroachment of the Inquisition on secular jurisdiction. The expedient, however, wholly failed, because most of the questions brought before this court were determined by the principles of the canon law, of which the grand inquisitor was to be sole interpreter, the others having only, as it was termed, a "consultative voice." Llorente, tom. i. pp. 173, 174.—Zurita, *Anales*, tom. iv. fol. 324.—Riol, *Informe*, apud *Semanario Erudito*, tom. iii. pp. 156 et seq.

[40] Puigblanch, *Inquisition Unmasked*, vol. i. chap. 4.—Llorente, *Hist. de l'Inquisition*, tom. i. chap. 6, art. 1; chap. 9, art. 1, 2.—The witnesses were questioned in such general terms, that they were even kept in ignorance of the particular matter respecting which they were expected to testify. Thus, they were asked "if they knew anything which had been said or done contrary to the Catholic faith, and the interests of the tribunal." Their answers often opened a new scent to the judges, and thus, in the language of Montanus, "brought more fishes into the inquisitors' holy angle." See Montanus, *Discovery and Playne Declaration of sundry subtil*

Practises of the Holy Inquisition of Spayne, Eng. trans. (London, 1569,) fol. 14.

[41] Limborch, Inquisition, book 4, chap. 20.—Montanus, Inquisition of Spayne, fol. 6-15.—Llorente, Hist. de l'Inquisition, tom. i. chap. 6. art. 1; chap. 9, art. 4-9.—Puigblanch, Inquisition Unmasked, vol. i. chap. 4.

[42] Llorente, Hist. de l'Inquisition, tom. i. chap. 9, art. 7.—By a subsequent regulation of Philip II., the repetition of torture in the same process was strictly prohibited to the inquisitors. But they, making use of a sophism worthy of the arch-fiend himself, contrived to evade this law, by pretending after each new infliction, of punishment that they had only suspended, and not terminated, the torture!

[43] Montanus, Inquisition of Spayne, fol. 24 et seq.—Limborch, Inquisition, vol. ii. chap. 29.—Puigblanch, Inquisition Unmasked, vol. i. chap. 4.—Llorente, Hist. de l'Inquisition, ubi supra.—I shall spare the reader the description of the various modes of torture, the rack, fire, and pulley, practised by the inquisitors, which have been so often detailed in the doleful narratives of such as have had the fortune to escape with life from the fangs of the tribunal. If we are to believe Llorente, these barbarities have not been decreed for a long time. Yet some recent statements are at variance with this assertion. See, among others, the celebrated adventurer Van Halen's "Narrative of his Imprisonment in the Dungeons of the Inquisition at Madrid, and his Escape in 1817-18."

[44] The prisoner had indeed the right of challenging any witness on the ground of personal enmity. (Llorente, Hist. de l'Inquisition, tom. i. chap. 9, art. 10.) But as he was kept in ignorance of the names of the witnesses employed against him, and as even, if he conjectured right, the degree of enmity, competent to set aside testimony, was to be determined by his judges, it is evident that his privilege of challenge was wholly nugatory.

[45] Confiscation had long been decreed as the punishment of convicted heretics by the statutes of Castile. (Ordenanças Reales, lib. 8, tit. 4.) The avarice of the present system, however, is exemplified by the fact, that those who confessed and sought absolution within the brief term of grace allowed by the inquisitors from the publication of their edict, were liable to arbitrary fines; and those who confessed after that period, escaped with nothing short of confiscation. Llorente, *Hist. de l'Inquisition*, tom. i. pp. 176, 177.

[46] *Ibid.*, tom. i. p. 216.—Zurita, *Anales*, tom. iv. fol. 324.—Salazar de Mendoza, *Monarquía*, tom. i. fol. 337.—It is easy to discern in every part of the odious scheme of the Inquisition the contrivance of the monks, a class of men, cut off by their profession from the usual sympathies of social life, and who, accustomed to the tyranny of the confessional, aimed at establishing the same jurisdiction over thoughts, which secular tribunals have wisely confined to actions. Time, instead of softening, gave increased harshness to the features of the new system. The most humane provisions were constantly evaded in practice; and the toils for ensnaring the victim were so ingeniously multiplied, that few, very few, were permitted to escape without some censure. Not more than one person, says Llorente, in one or perhaps two thousand processes, previous to the time of Philip III., received entire absolution. So that it came to be proverbial that all who were not roasted, were at least singed.

"Devant l'Inquisition, quand on vient à jubé,
Si l'on ne sort rôti, l'on sort au moins flambé."

[47] Montanus, *Inquisition of Spayne*, fol. 46.—Puigblanch, *Inquisition Unmasked*, vol. i. chap. 4.—Every reader of Tacitus and Juvenal will remember how early the Christians were condemned to endure the penalty of fire. Perhaps the earliest instance of burning to death for heresy in modern times occurred under the reign of Robert of France, in the early part

of the eleventh century. (Sismondi, Hist. des Français, tom. iv. chap. 4.) Paramo, as usual, finds authority for inquisitorial autos da fe, where one would least expect it, in the New Testament. Among other examples, he quotes the remark of James and John, who, when the village of Samaria refused to admit Christ within its walls, would have called down fire from heaven to consume its inhabitants. "Lo," says Paramo, "fire, the punishment of heretics; for the Samaritans were the heretics of those times." (De Origine Inquisitionis, lib. 1, tit. 3, cap. 5.) The worthy father omits to add the impressive rebuke of our Saviour to his over-zealous disciples. "Ye know not what manner of spirit ye are of. The son of man is not come to destroy men's lives, but to save them."

[48] Puigblanch, vol. i. chap. 4.—The inquisitors, after the celebration of an auto da fe at Guadaloupe, in 1485, wishing probably to justify these bloody executions in the eyes of the people, who had not yet become familiar with them, solicited a sign from the Virgin (whose shrine in that place is noted all over Spain) in testimony of her approbation of the Holy Office. Their petition was answered by such a profusion of miracles, that Dr. Francis Sanctius de la Fuente, who acted as scribe on the occasion, became out of breath, and, after recording sixty, gave up in despair, unable to keep pace with their marvellous rapidity. Paramo, De Origine Inquisitionis, lib. 2, tit. 2, cap. 3.

[49] *San benito*, according to Llorente, (tom. i. p. 127,) is a corruption of *saco bendito*, being the name given to the dresses worn by penitents previously to the thirteenth century.

[50] Llorente, Hist. de l'Inquisition, tom. i. chap. 9, art. 16.—Puigblanch, Inquisition Unmasked, vol. i. chap. 4.—Voltaire remarks (Essai sur les Moeurs, chap. 140) that, "An Asiatic, arriving at Madrid on the day of an auto da fe, would doubt whether it were a festival, religious celebration,

sacrifice, or massacre;—it is all of them. They reproach Montezuma with sacrificing human captives to the gods.—What would he have said, had he witnessed an auto da fe?"

[51] The government, at least, cannot be charged with remissness in promoting this. I find two ordinances in the royal collection of *pragmáticas*, dated in September, 1501, (there must be some error in the date of one of them,) inhibiting, under pain of confiscation of property, such as had been *reconciled*, and their children by the mother's side, and grandchildren by the father's, from holding any office in the privy council, courts of justice, or in the municipalities, or any other place of trust or honor. They were also excluded from the vocations of notaries, surgeons, and apothecaries. (Pragmáticas del Reyno, fol. 5, 6.) This was visiting the sins of the fathers, to an extent unparalleled in modern legislation. The sovereigns might find a precedent in a law of Sylla, excluding the children of the proscribed Romans from political honors; thus indignantly noticed by Sallust. "Quin solus omnium, post memoriam hominum, supplicia in post futuros composuit; *quís prius injuria quàm vita certa esset.*" Hist. Fragments, lib. 1.

[52] The Aragonese, as we shall see hereafter, made a manly though ineffectual resistance, from the first, to the introduction of the Inquisition among them by Ferdinand. In Castile, its enormous abuses provoked the spirited interposition of the legislature at the commencement of the following reign. But it was then too late.

[53] 1485-6. (Llorente, Hist. de l'Inquisition, tom. i. p. 239.)—In Seville, with probably no greater apparatus, in 1482, 21,000 processes were disposed of. These were the first fruits of the Jewish heresy, when Torquemada, although an inquisitor, had not the supreme control of the tribunal.

[54] Llorente afterwards reduces this estimate to 8800 burnt, 96,504 otherwise punished; the diocese of Cuença being comprehended in that of Murcia. (Tom. iv. p. 252.) Zurita says, that, by 1520, the Inquisition of Seville had sentenced more than 4000 persons to be burnt, and 30,000 to other punishments. Another author whom he quotes, carries up the estimate of the total condemned by this single tribunal, within the same term of time, to 100,000. *Anales*, tom. iv. fol. 324.

[55] By an article of the primitive instructions, the inquisitors were required to set apart a small portion of the confiscated estates for the education and Christian nurture of minors, children of the condemned. Llorente says, that, in the immense number of processes, which he had occasion to consult, he met with no instance of their attention to the fate of these unfortunate orphans! *Hist. de l'Inquisition*, tom. i. chap. 8.

[56] *Reyes Católicos*, MS., cap. 44.—Torquemada waged war upon freedom of thought, in every form. In 1490, he caused several Hebrew Bibles to be publicly burnt, and some time after, more than 6000 volumes of Oriental learning, on the imputation of Judaism, sorcery, or heresy, at the autos da fe of Salamanca, the very nursery of science. (Llorente, *Hist. de l'Inquisition*, tom. i. chap. 8, art. 5.) This may remind one of the similar sentence passed by Lope de Barrientos, another Dominican, about fifty years before, upon the books of the marquis of Villena. Fortunately for the dawning literature of Spain, Isabella did not, as was done by her successors, commit the censorship of the press to the judges of the Holy Office, notwithstanding such occasional assumption of power by the grand inquisitor.

[57] *Pulgar*, *Reyes Católicos*, part. 2, cap. 77.—L. Marineo, *Cosas Memorables*, fol. 164.—The prodigious desolation of the land may be inferred from the estimates, although somewhat discordant, of deserted

houses in Andalusia. Garibay (*Compendio*, lib. 18, cap. 17,) puts these at three, Pulgar (*Reyes Católicos*, part. 2, cap. 77,) at four, L. Marineo (*Cosas Memorables*, fol. 164,) as high as five thousand.

[58] Llorente, *Hist. de l'Inquisition*, tom. i. chap. 7, art. 8; chap. 8, art. 6.

[59] Nic. Antonio, *Bibliotheca Vetus*, tom. ii. p. 340.—Llorente, *Hist. de l'Inquisition*, tom. i. chap. 8, art. 6.

[60] "Per la fè—il tutto lice." *Gerusalemme Liberata*, cant. 4, stanza 26.

CHAPTER VIII.

REVIEW OF THE POLITICAL AND INTELLECTUAL CONDITION OF THE SPANISH ARABS PREVIOUS TO THE WAR OF GRANADA.

Conquest of Spain by the Arabs.—Cordovan Empire.—High Civilization and Prosperity.—Its Dismemberment.—Kingdom of Granada.—Luxurious and Chivalrous Character.—Literature of the Spanish Arabs.—Progress in Science.—Historical Merits.—Useful Discoveries.—Poetry and Romance. —
Influence on the Spaniards.

We have now arrived at the commencement of the famous war of Granada, which terminated in the subversion of the Arabian empire in Spain, after it had subsisted for nearly eight centuries, and with the consequent restoration to the Castilian crown of the fairest portion of its ancient domain. In order to a better understanding of the character of the Spanish Arabs, or Moors, who exercised an important influence on that of their Christian neighbors, the present chapter will be devoted to a consideration of their previous history in the Peninsula, where they probably reached a higher degree of civilization than in any other part of the world. [1]

It is not necessary to dwell upon the causes of the brilliant successes of Mahometanism at its outset,—the dexterity with which, unlike all other religions, it was raised upon, not against, the principles and prejudices of preceding sects; the military spirit and discipline, which it established among all classes, so that the multifarious nations who embraced it, assumed the appearance of one vast, well-ordered camp; [2] the union of ecclesiastical with civil authority intrusted to the caliphs, which enabled them to control opinions, as absolutely as the Roman pontiffs in their most despotic hour; [3] or lastly, the peculiar adaptation of the doctrines of Mahomet to the character of the wild tribes among whom they were preached. [4] It is sufficient to say, that these latter, within a century after the coming of their apostle, having succeeded in establishing their religion over vast regions in Asia, and on the northern shores of Africa, arrived before the Straits of Gibraltar, which, though a temporary, were destined to prove an ineffectual bulwark for Christendom.

The causes which have been currently assigned for the invasion and conquest of Spain, even by the most credible modern historians, have scarcely any foundation in contemporary records. The true causes are to be found in the rich spoils offered by the Gothic monarchy, and in the thirst of enterprise in the Saracens, which their long uninterrupted career of victory seems to have sharpened, rather than satisfied. [5] The fatal battle, which terminated with the slaughter of King Roderic and the flower of his nobility, was fought in the summer of 711, on a plain washed by the Guadalete near Xerez, about two leagues distant from Cadiz. [6] The Goths appear never to have afterwards rallied under one head, but their broken detachments made many a gallant stand in such strong positions as were afforded throughout the kingdom; so that nearly three years elapsed before the final achievement of the conquest. The policy of the conquerors, after making the requisite allowance for the evils necessarily attending such an invasion, [7] may be considered liberal. Such of the Christians, as chose, were permitted to

remain in the conquered territory in undisturbed possession of their property. They were allowed to worship in their own way; to be governed, within prescribed limits, by their own laws; to fill certain civil offices, and serve in the army; their women were invited to intermarry with the conquerors; [8] and, in short, they were condemned to no other legal badge of servitude than the payment of somewhat heavier imposts than those exacted from their Mahometan brethren. It is true the Christians were occasionally exposed to suffering from the caprices of despotism, and, it may be added, of popular fanaticism. [9] But, on the whole, their condition may sustain an advantageous comparison with that of any Christian people under the Mussulman dominion of later times, and affords a striking contrast with that of our Saxon ancestors after the Norman conquest, which suggests an obvious parallel in many of its circumstances to the Saracen. [10]

After the further progress of the Arabs in Europe had been checked by the memorable defeat at Tours, their energies, no longer allowed to expand in the career of conquest, recoiled on themselves, and speedily produced the dismemberment of their overgrown empire. Spain was the first of the provinces which fell off. The family of Omeya, under whom this revolution was effected, continued to occupy her throne as independent princes, from the middle of the eighth to the close of the eleventh century, a period which forms the most honorable portion of her Arabian annals.

The new government was modelled on the eastern caliphate. Freedom shows itself under a variety of forms; while despotism, at least in the institutions founded on the Koran, seems to wear but one. The sovereign was the depository of all power, the fountain of honor, the sole arbiter of life and fortune. He styled himself "Commander of the Faithful," and, like the caliphs of the east, assumed an entire spiritual as well as temporal supremacy. The country was distributed into six *capitanías*, or provinces,

each under the administration of a *wali*, or governor, with subordinate officers, to whom was intrusted a more immediate jurisdiction over the principal cities. The immense authority and pretensions of these petty satraps became a fruitful source of rebellion in later times. The caliph administered the government with the advice of his *mexuar*, or council of state, composed of his principal *cadis* and *hagibs*, or secretaries. The office of prime minister, or chief hagib, corresponded, in the nature and variety of its functions, with that of a Turkish grand vizier. The caliph reserved to himself the right of selecting his successor from among his numerous progeny; and this adoption was immediately ratified by an oath of allegiance to the heir apparent from the principal officers of state. [11]

The princes of the blood, instead of being condemned, as in Turkey, to waste their youth in the seclusion of the harem, were intrusted to the care of learned men, to be instructed in the duties befitting their station. They were encouraged to visit the academies, which were particularly celebrated in Cordova, where they mingled in disputation, and frequently carried away the prizes of poetry and eloquence. Their riper years exhibited such fruits as were to be expected from their early education. The race of the Omeiades need not shrink from a comparison with any other dynasty of equal length in modern Europe. Many of them amused their leisure with poetical composition, of which numerous examples are preserved in Conde's History; and some left elaborate works of learning, which have maintained a permanent reputation with Arabian scholars. Their long reigns, the first ten of which embrace a period of two centuries and a half, their peaceful deaths, and unbroken line of succession in the same family for so many years, show that their authority must have been founded in the affections of their subjects. Indeed, they seem, with one or two exceptions, to have ruled over them with a truly patriarchal sway; and, on the event of their deaths, the people, bathed in tears, are described as accompanying their relics to the tomb, where the ceremony was concluded with a public eulogy on the

virtues of the deceased, by his son and successor. This pleasing moral picture affords a strong contrast to the sanguinary scenes which so often attend the transmission of the sceptre from one generation to another, among the nations of the east. [12]

The Spanish caliphs supported a large military force, frequently keeping two or three armies in the field at the same time. The flower of these forces was a body-guard, gradually raised to twelve thousand men, one-third of them Christians, superbly equipped, and officered by members of the royal family. Their feuds with the eastern caliphs and the Barbary pirates required them also to maintain a respectable navy, which was fitted out from the numerous dock-yards that lined the coast from Cadiz to Tarragona.

The munificence of the Omeiyades was most ostentatiously displayed in their public edifices, palaces, mosques, hospitals, and in the construction of commodious quays, fountains, bridges, and aqueducts, which, penetrating the sides of the mountains, or sweeping on lofty arches across the valleys, rivalled in their proportions the monuments of ancient Rome. These works, which were scattered more or less over all the provinces, contributed especially to the embellishment of Cordova, the capital of the empire. The delightful situation of this city, in the midst of a cultivated plain washed by the waters of the Guadalquivir, made it very early the favorite residence of the Arabs, who loved to surround their houses, even in the cities, with groves and refreshing fountains, so delightful to the imagination of a wanderer of the desert. [13] The public squares and private court-yards sparkled with *jets d'eau*, fed by copious streams from the Sierra Morena, which, besides supplying nine hundred public baths, were conducted into the interior of the edifices, where they diffused a grateful coolness over the sleeping-apartments of their luxurious inhabitants. [14]

Without adverting to that magnificent freak of the caliphs, the construction of the palace of Azahra, of which not a vestige now exists, we may form a sufficient notion of the taste and magnificence of this era from the remains of the far-famed mosque, now the cathedral of Cordova. This building, which still covers more ground than any other church in Christendom, was esteemed the third in sanctity by the Mahometan world, being inferior only to the Alaksa of Jerusalem and the temple of Mecca. Most of its ancient glories have indeed long since departed. The rich bronze which embossed its gates, the myriads of lamps which illuminated its aisles, have disappeared; and its interior roof of odoriferous and curiously carved wood has been cut up into guitars and snuff-boxes. But its thousand columns of variegated marble still remain; and its general dimensions, notwithstanding some loose assertions to the contrary, seem to be much the same as they were in the time of the Saracens. European critics, however, condemn its most elaborate beauties as "heavy and barbarous." Its celebrated portals are pronounced "diminutive, and in very bad taste." Its throng of pillars gives it the air of "a park rather than a temple," and the whole is made still more incongruous by the unequal length of their shafts, being grotesquely compensated by a proportionate variation of size in their bases and capitals, rudely fashioned after the Corinthian order. [15]

But if all this gives us a contemptible idea of the taste of the Saracens at this period, which indeed, in architecture, seems to have been far inferior to that of the later princes of Granada, we cannot but be astonished at the adequacy of their resources to carry such magnificent designs into execution. Their revenue, we are told in explanation, amounted to eight millions of *mitcales* of gold, or nearly six millions sterling; a sum fifteen-fold greater than that which William the Conqueror, in the subsequent century, was able to extort from his subjects, with all the ingenuity of feudal exaction. The tone of exaggeration, which distinguishes the Asiatic writers, entitles them perhaps to little confidence in their numerical estimates. This

immense wealth, however, is predicated of other Mahometan princes of that age; and their vast superiority over the Christian states of the north, in arts and effective industry, may well account for a corresponding superiority in their resources.

The revenue of the Cordovan sovereigns was derived from the fifth of the spoil taken in battle, an important item in an age of unintermitting war and rapine; from the enormous exaction of one-tenth of the produce of commerce, husbandry, flocks, and mines; from a capitation tax on Jews and Christians; and from certain tolls on the transportation of goods. They engaged in commerce on their own account, and drew from mines, which belonged to the crown, a conspicuous part of their income. [16]

Before the discovery of America, Spain was to the rest of Europe what her colonies have since become, the great source of mineral wealth. The Carthaginians, and the Romans afterwards, regularly drew from her large masses of the precious metals. Pliny, who resided some time in the country, relates that three of her provinces were said to have annually yielded the incredible quantity of sixty thousand pounds of gold. [17] The Arabs with their usual activity penetrated into these arcana of wealth. Abundant traces of their labors are still to be met with along the barren ridge of mountains that covers the north of Andalusia; and the diligent Bowles has enumerated no less than five thousand of their excavations in the kingdom or district of Jaen. [18]

But the best mine of the caliphs was in the industry and sobriety of their subjects. The Arabian colonies have been properly classed among the agricultural. Their acquaintance with the science of husbandry is shown in their voluminous treatises on the subject, and in the monuments which they have everywhere left of their peculiar culture. The system of irrigation, which has so long fertilized the south of Spain, was derived from them.

They introduced into the Peninsula various tropical plants and vegetables, whose cultivation has departed with them. Sugar, which the modern Spaniards have been obliged to import from foreign nations in large quantities annually for their domestic consumption, until within the last half century that they have been supplied by their island of Cuba, constituted one of the principal exports of the Spanish Arabs. The silk manufacture was carried on by them extensively. The Nubian geographer, in the beginning of the twelfth century, enumerates six hundred villages in Jaen as engaged in it, at a time when it was known to the Europeans only from their circuitous traffic with the Greek empire. This, together with fine fabrics of cotton and woollen, formed the staple of an active commerce with the Levant, and especially with Constantinople, whence they were again diffused, by means of the caravans of the north, over the comparatively barbarous countries of Christendom.

The population kept pace with this general prosperity of the country. It would appear from a census instituted at Cordova, at the close of the tenth century, that there were at that time in it six hundred temples and two hundred thousand dwelling-houses; many of these latter being, probably, mere huts or cabins, and occupied by separate families. Without placing too much reliance on any numerical statements, however, we may give due weight to the inference of an intelligent writer, who remarks that their minute cultivation of the soil, the cheapness of their labor, their particular attention to the most nutritious esculents, many of them such as would be rejected by Europeans at this day, are indicative of a crowded population, like that, perhaps, which swarms over Japan or China, where the same economy is necessarily resorted to for the mere sustenance of life. [19]

Whatever consequence a nation may derive, in its own age, from physical resources, its intellectual development will form the subject of deepest interest to posterity. The most flourishing periods of both not unfrequently

coincide. Thus the reigns of Abderrahman the Third, Alhakem the Second, and the regency of Almanzor, embracing the latter half of the tenth century, during which the Spanish Arabs reached their highest political importance, may be regarded as the period of their highest civilization under the Omeiyades; although the impulse then given carried them forward to still further advances, in the turbulent times which followed. This beneficent impulse is, above all, imputable to Alhakem. He was one of those rare beings, who have employed the awful engine of despotism in promoting the happiness and intelligence of his species. In his elegant tastes, appetite for knowledge, and munificent patronage he may be compared with the best of the Medici. He assembled the eminent scholars of his time, both natives and foreigners, at his court, where he employed them in the most confidential offices. He converted his palace into an academy, making it the familiar resort of men of letters, at whose conferences he personally assisted in his intervals of leisure from public duty. He selected the most suitable persons for the composition of works on civil and natural history, requiring the prefects of his provinces and cities to furnish, as far as possible, the necessary intelligence. He was a diligent student, and left many of the volumes which he read enriched with his commentaries. Above all, he was intent upon the acquisition of an extensive library. He invited illustrious foreigners to send him their works, and munificently recompensed them. No donative was so grateful to him as a book. He employed agents in Egypt, Syria, Irak, and Persia, for collecting and transcribing the rarest manuscripts; and his vessels returned freighted with cargoes more precious than the spices of the east. In this way he amassed a magnificent collection, which was distributed, according to the subjects, in various apartments of his palace; and which, if we may credit the Arabian historians, amounted to six hundred thousand volumes. [20]

If all this be thought to savor too much of eastern hyperbole, still it cannot be doubted that an amazing number of writers swarmed over the

Peninsula at this period. Casiri's multifarious catalogue bears ample testimony to the emulation, with which not only men, but even women of the highest rank, devoted themselves to letters; the latter contending publicly for the prizes, not merely in eloquence and poetry, but in those recondite studies which have usually been reserved for the other sex. The prefects of the provinces, emulating their master, converted their courts into academies, and dispensed premiums to poets and philosophers. The stream of royal bounty awakened life in the remotest districts. But its effects were especially visible in the capital. Eighty free schools were opened in Cordova. The circle of letters and science was publicly expounded by professors, whose reputation for wisdom attracted not only the scholars of Christian Spain, but of Prance, Italy, Germany, and the British Isles. For this period of brilliant illumination with the Saracens corresponds precisely with that of the deepest barbarism of Europe; when a library of three or four hundred volumes was a magnificent endowment for the richest monastery; when scarcely a "priest south of the Thames," in the words of Alfred, "could translate Latin into his mother tongue;" when not a single philosopher, according to Tiraboschi, was to be met with in Italy, save only the French pope Sylvester the Second, who drew his knowledge from the schools of the Spanish Arabs, and was esteemed a necromancer for his pains. [21]

Such is the glowing picture presented to us of Arabian scholarship, in the tenth and succeeding centuries, under a despotic government and a sensual religion; and, whatever judgment may be passed on the real value of all their boasted literature, it cannot be denied, that the nation exhibited a wonderful activity of intellect, and an apparatus for learning (if we are to admit their own statements) unrivalled in the best ages of antiquity.

The Mahometan governments of that period rested on so unsound a basis, that the season of their greatest prosperity was often followed by precipitate decay. This had been the case with the eastern caliphate, and was now so

with the western. During the life of Alhakem's successor, the empire of the Omeiyades was broken up into a hundred petty principalities; and their magnificent capital of Cordova, dwindling into a second-rate city, retained no other distinction than that of being the Mecca of Spain. These little states soon became a prey to all the evils arising out of a vicious constitution of government and religion. Almost every accession to the throne was contested by numerous competitors of the same family; and a succession of sovereigns, wearing on their brows but the semblance of a crown, came and departed, like the shadows of Macbeth. The motley tribes of Asiatics, of whom the Spanish Arabian population was composed, regarded each other with ill-disguised jealousy. The lawless predatory habits, which no discipline could effectually control in an Arab, made them ever ready for revolt. The Moslem states, thus reduced in size and crippled by faction, were unable to resist the Christian forces, which were pressing on them from the north. By the middle of the ninth century, the Spaniards had reached the Douro and the Ebro. By the close of the eleventh, they had advanced their line of conquest, under the victorious banner of the Cid, to the Tagus. The swarms of Africans who invaded the Peninsula, during the two following centuries, gave substantial support to their Mahometan brethren; and the cause of Christian Spain trembled in the balance for a moment on the memorable day of Navas de Tolosa. But the fortunate issue of that battle, in which, according to the lying letter of Alfonso the Ninth, "one hundred and eighty-five thousand infidels perished, and only five and twenty Spaniards," gave a permanent ascendancy to the Christian arms. The vigorous campaigns of James the First, of Aragon, and of St. Ferdinand, of Castile, gradually stripped away the remaining territories of Valencia, Murcia, and Andalusia; so that, by the middle of the thirteenth century, the constantly contracting circle of the Moorish dominion had shrunk into the narrow limits of the province of Granada. Yet on this comparatively small point of their ancient domain, the Saracens erected a new kingdom of

sufficient strength to resist, for more than two centuries, the united forces of the Spanish monarchies.

The Moorish territory of Granada contained, within a circuit of about one hundred and eighty leagues, all the physical resources of a great empire. Its broad valleys were intersected by mountains rich in mineral wealth, whose hardy population supplied the state with husbandmen and soldiers. Its pastures were fed by abundant fountains, and its coasts studded with commodious ports, the principal marts in the Mediterranean. In the midst, and crowning the whole, as with a diadem, rose the beautiful city of Granada. In the days of the Moors it was encompassed by a wall, flanked by a thousand and thirty towers, with seven portals. [22] Its population, according to a contemporary, at the beginning of the fourteenth century, amounted to two hundred thousand souls; [23] and various authors agree in attesting, that, at a later period, it could send forth fifty thousand warriors from its gates. This statement will not appear exaggerated, if we consider that the native population of the city was greatly swelled by the influx of the ancient inhabitants of the districts lately conquered by the Spaniards. On the summit of one of the hills of the city was erected the royal fortress or palace of the Alhambra, which was capable of containing within its circuit forty thousand men. [24] The light and elegant architecture of this edifice, whose magnificent ruins still form the most interesting monument in Spain for the contemplation of the traveller, shows the great advancement of the art since the construction of the celebrated mosque of Cordova. Its graceful porticoes and colonnades, its domes and ceilings, glowing with tints, which, in that transparent atmosphere, have lost nothing of their original brilliancy, its airy halls, so constructed as to admit the perfume of surrounding gardens and agreeable ventilations of the air, and its fountains, which still shed their coolness over its deserted courts, manifest at once the taste, opulence, and Sybarite luxury of its proprietors. The streets are represented to have been narrow, many of the houses lofty, with turrets of curiously wrought larch or

marble, and with cornices of shining metal, "that glittered like stars through the dark foliage of the orange groves;" and the whole is compared to "an enamelled vase, sparkling with hyacinths and emeralds." [25] Such are the florid strains in which the Arabic writers fondly descant on the glories of Granada.

At the foot of this fabric of the genii lay the cultivated *vega*, or plain, so celebrated as the arena, for more than two centuries, of Moorish and Christian chivalry, every inch of whose soil may be said to have been fertilized with human blood. The Arabs exhausted on it all their powers of elaborate cultivation. They distributed the waters of the Xenil, which flowed through it, into a thousand channels for its more perfect irrigation. A constant succession of fruits and crops was obtained throughout the year. The products of the most opposite latitudes were transplanted there with success; and the hemp of the north grew luxuriant under the shadow of the vine and the olive. Silk furnished the principal staple of a traffic that was carried on through the ports of Almeria and Malaga. The Italian cities, then rising into opulence, derived their principal skill in this elegant manufacture from the Spanish Arabs. Florence, in particular, imported large quantities of the raw material from them as late as the fifteenth century. The Genoese are mentioned as having mercantile establishments in Granada; and treaties of commerce were entered into with this nation, as well as with the crown of Aragon. Their ports swarmed with a motley contribution from "Europe, Africa, and the Levant," so that "Granada," in the words of the historian, "became the common city of all nations." "The reputation of the citizens for trust- worthiness," says a Spanish writer, "was such, that their bare word was more relied on, than a written contract is now among us;" and he quotes the saying of a Catholic bishop, that "Moorish works and Spanish faith were all that were necessary to make a good Christian." [26]

The revenue, which was computed at twelve hundred thousand ducats, was derived from similar, but, in some respects, heavier impositions than those of the caliphs of Cordova. The crown, besides being possessed of valuable plantations in the vega, imposed the onerous tax of one-seventh on all the agricultural produce of the kingdom. The precious metals were also obtained in considerable quantities, and the royal mint was noted for the purity and elegance of its coin. [27]

The sovereigns of Granada were for the most part distinguished by liberal tastes. They freely dispensed their revenues in the protection of letters, the construction of sumptuous public works, and, above all, in the display of a courtly pomp, unrivalled by any of the princes of that period. Each day presented a succession of *fêtes* and tourneys, in which the knight seemed less ambitious of the hardy prowess of Christian chivalry, than of displaying his inimitable horsemanship, and his dexterity in the elegant pastimes peculiar to his nation. The people of Granada, like those of ancient Rome, seem to have demanded a perpetual spectacle. Life was with them one long carnival, and the season of revelry was prolonged until the enemy was at the gate.

During the interval which had elapsed since the decay of the Omeiyades, the Spaniards had been gradually rising in civilization to the level of their Saracen enemies; and, while their increased consequence secured them from the contempt with which they had formerly been regarded by the Mussulmans, the latter, in their turn, had not so far sunk in the scale, as to have become the objects of the bigoted aversion, which was, in after days, so heartily visited on them by the Spaniards. At this period, therefore, the two nations viewed each other with more liberality, probably, than at any previous or succeeding time. Their respective monarchs conducted their mutual negotiations on a footing of perfect equality. We find several examples of Arabian sovereigns visiting in person the court of Castile.

These civilities were reciprocated by the Christian princes. As late as 1463, Henry the Fourth had a personal interview with the king of Granada, in the dominions of the latter. The two monarchs held their conference under a splendid pavilion erected in the vega, before the gates of the city; and, after an exchange of presents, the Spanish sovereign was escorted to the frontiers by a body of Moorish cavaliers. These acts of courtesy relieve in some measure the ruder features of an almost uninterrupted warfare, that was necessarily kept up between the rival nations. [28]

The Moorish and Christian knights were also in the habit of exchanging visits at the courts of their respective masters. The latter were wont to repair to Granada to settle their affairs of honor, by personal rencounter, in the presence of its sovereign. The disaffected nobles of Castile, among whom Mariana especially notices the Velas and the Castros, often sought an asylum there, and served under the Moslem banner. With this interchange of social courtesy between the two nations, it could not but happen that each should contract somewhat of the peculiarities natural to the other. The Spaniard acquired something of the gravity and magnificence of demeanor proper to the Arabian; and the latter relaxed his habitual reserve, and, above all, the jealousy and gross sensuality, which characterize the nations of the east. [29]

Indeed, if we were to rely on the pictures presented to us in the Spanish ballads or *romances*, we should admit as unreserved an intercourse between the sexes to have existed among the Spanish Arabs, as with any other people of Europe. The Moorish lady is represented there as an undisguised spectator of the public festivals; while her knight, bearing an embroidered mantle or scarf, or some other token of her favor, contends openly in her presence for the prize of valor, mingles with her in the graceful dance of the Zambra, or sighs away his soul in moonlight serenades under her balcony. [30]

Other circumstances, especially the frescoes still extant on the walls of the Alhambra, may be cited as corroborative of the conclusions afforded by the *romances*, implying a latitude in the privileges accorded to the sex, similar to that in Christian countries, and altogether alien from the genius of Mahometanism. [31] The chivalrous character ascribed to the Spanish Moslems appears, moreover, in perfect conformity to this. Thus some of their sovereigns, we are told, after the fatigues of the tournament, were wont to recreate their spirits with "elegant poetry, and florid discourses of amorous and knightly history." The ten qualities, enumerated as essential to a true knight, were "piety, valor, courtesy, prowess, the gifts of poetry and eloquence, and dexterity in the management of the horse, the sword, lance, and bow." [32] The history of the Spanish Arabs, especially in the latter wars of Granada, furnishes repeated examples not merely of the heroism, which distinguished the European chivalry of the thirteenth and fourteenth centuries, but occasionally of a polished courtesy, that might have graced a Bayard or a Sidney. This combination of Oriental magnificence and knightly prowess shed a ray of glory over the closing days of the Arabian empire in Spain, and served to conceal, though it could not correct, the vices which it possessed in common with all Mahometan institutions.

The government of Granada was not administered with the same tranquillity as that of Cordova. Revolutions were perpetually occurring, which may be traced sometimes to the tyranny of the prince, but more frequently to the factions of the seraglio, the soldiery, or the licentious populace of the capital. The latter, indeed, more volatile than the sands of the deserts from which they originally sprung, were driven by every gust of passion into the most frightful excesses, deposing and even assassinating their monarchs, violating their palaces, and scattering abroad their beautiful collections and libraries; while the kingdom, unlike that of Cordova, was so contracted in its extent, that every convulsion of the capital was felt to its farthest extremities. Still, however, it held out, almost miraculously, against

the Christian arms, and the storms that beat upon it incessantly, for more than two centuries, scarcely wore away anything from its original limits.

Several circumstances may be pointed out as enabling Granada to maintain this protracted resistance. Its concentrated population furnished such abundant supplies of soldiers, that its sovereigns could bring into the field an army of a hundred thousand men. [33] Many of these were drawn from the regions of the Alpuxarras, whose rugged inhabitants had not been corrupted by the soft effeminacy of the plains. The ranks were occasionally recruited, moreover, from the warlike tribes of Africa. The Moors of Granada are praised by their enemies for their skill with the cross-bow, to the use of which they were trained from childhood. [34] But their strength lay chiefly in their cavalry. Their spacious vegas afforded an ample field for the display of their matchless horsemanship; while the face of the country, intersected by mountains and intricate defiles, gave a manifest advantage to the Arabian light-horse over the steel-clad cavalry of the Christians, and was particularly suited to the wild *guerilla* warfare, in which the Moors so much excelled. During the long hostilities of the country, almost every city had been converted into a fortress. The number of these fortified places in the territory of Granada was ten times as great as is now to be found throughout the whole Peninsula. [35] Lastly, in addition to these means of defence, may be mentioned their early acquaintance with gunpowder, which, like the Greek fire of Constantinople, contributed perhaps in some degree to prolong their precarious existence beyond its natural term.

But, after all, the strength of Granada, like that of Constantinople, lay less in its own resources than in the weakness of its enemies, who, distracted by the feuds of a turbulent aristocracy, especially during the long minorities with which Castile was afflicted, perhaps, more than any other nation in Europe, seemed to be more remote from the conquest of Granada at the death of Henry the Fourth, than at that of St. Ferdinand in the

thirteenth century. Before entering on the achievement of this conquest by Ferdinand and Isabella, it may not be amiss to notice the probable influence exerted by the Spanish Arabs on European civilization.

Notwithstanding the high advances made by the Arabians in almost every branch of learning, and the liberal import of certain sayings ascribed to Mahomet, the spirit of his religion was eminently unfavorable to letters. The Koran, whatever be the merit of its literary execution, does not, we believe, contain a single precept in favor of general science. [36] Indeed, during the first century after its promulgation, almost as little attention was bestowed upon this by the Saracens, as in their "days of ignorance," as the period is stigmatized which preceded the advent of their apostle. [37] But, after the nation had reposed from its tumultuous military career, the taste for elegant pleasures, which naturally results from opulence and leisure, began to flow in upon it. It entered upon this new field with all its characteristic enthusiasm, and seemed ambitious of attaining the same pre-eminence in science, that it had already reached in arms.

It was at the commencement of this period of intellectual fermentation, that the last of the Omeiyades, escaping into Spain, established there the kingdom of Cordova, and imported along with him the fondness for luxury and letters that had begun to display itself in the capitals of the east. His munificent spirit descended upon his successors; and, on the breaking up of the empire, the various capitals, Seville, Murcia, Malaga, Granada, and others, which rose upon its ruins, became the centres of so many intellectual systems, that continued to emit a steady lustre through the clouds and darkness of succeeding centuries. The period of this literary civilization reached far into the fourteenth century, and thus, embracing an interval of six hundred years, may be said to have exceeded in duration that of any other literature, ancient or modern.

There were several auspicious circumstances in the condition of the Spanish Arabs, which distinguished them from their Mahometan brethren. The temperate climate of Spain was far more propitious to robustness and elasticity of intellect than the sultry regions of Arabia and Africa. Its long line of coast and convenient havens opened to it an enlarged commerce. Its number of rival states encouraged a generous emulation, like that which glowed in ancient Greece and modern Italy; and was infinitely more favorable to the development of the mental powers than the far-extended and sluggish empires of Asia. Lastly, a familiar intercourse with the Europeans served to mitigate in the Spanish Arabs some of the more degrading superstitions incident to their religion, and to impart to them nobler ideas of the independence and moral dignity of man, than are to be found in the slaves of eastern despotism.

Under these favorable circumstances, provisions for education were liberally multiplied, colleges, academies, and gymnasiums springing up spontaneously, as it were, not merely in the principal cities, but in the most obscure villages of the country. No less than fifty of these colleges or schools could be discerned scattered over the suburbs and populous plain of Granada. Seventy public libraries, if we may credit the report, were counted within the narrow limits of the Moslem territory. Every place of note seems to have furnished materials for a literary history. The copious catalogues of writers, still extant in the Escorial, show how extensively the cultivation of science was pursued, even through its minutest subdivisions; while a biographical notice of blind men, eminent for their scholarship in Spain, proves how far the general avidity for knowledge triumphed over the most discouraging obstacles of nature. [38]

The Spanish Arabs emulated their countrymen of the east in their devotion to natural and mathematical science. They penetrated into the remotest regions of Africa and Asia, transmitting an exact account of their

proceedings to the national academies. They contributed to astronomical knowledge by the number and accuracy of their observations, and by the improvement of instruments and the erection of observatories, of which the noble tower of Seville is one of the earliest examples. They furnished their full proportion in the department of history, which, according to an Arabian author cited by D'Herbelot, could boast of thirteen hundred writers. The treatises on logic and metaphysics amount to one-ninth of the surviving treasures of the Escorial; and, to conclude this summary of naked details, some of their scholars appear to have entered upon as various a field of philosophical inquiry, as would be crowded into a modern encyclopaedia. [39]

The results, it must be confessed, do not appear to have corresponded with this magnificent apparatus and unrivalled activity of research. The mind of the Arabians was distinguished by the most opposite characteristics, which sometimes, indeed, served to neutralize each other. An acute and subtle perception was often clouded by mysticism and abstraction. They combined a habit of classification and generalization, with a marvellous fondness for detail; a vivacious fancy with a patience of application, that a German of our day might envy; and, while in fiction they launched boldly into originality, indeed extravagance, they were content in philosophy to tread servilely in the track of their ancient masters. They derived their science from versions of the Greek philosophers; but, as their previous discipline had not prepared them for its reception, they were oppressed rather than stimulated by the weight of the inheritance. They possessed an indefinite power of accumulation, but they rarely ascended to general principles, or struck out new and important truths; at least, this is certain in regard to their metaphysical labors.

Hence Aristotle, who taught them to arrange what they had already acquired, rather than to advance to new discoveries, became the god of their

idolatry. They piled commentary on commentary, and, in their blind admiration of his system, may be almost said to have been more of Peripatetics than the Stagirite himself. The Cordovan Averroes was the most eminent of his Arabian commentators, and undoubtedly contributed more than any other individual to establish the authority of Aristotle over the reason of mankind for so many ages. Yet his various illustrations have served, in the opinion of European critics, to darken rather than dissipate the ambiguities of his original, and have even led to the confident assertion that he was wholly unacquainted with the Greek language. [40]

The Saracens gave an entirely new face to pharmacy and chemistry. They introduced a great variety of salutary medicaments into Europe. The Spanish Arabs, in particular, are commended by Sprengel above their brethren for their observations on the practice of medicine. [41] But whatever real knowledge they possessed was corrupted by their inveterate propensity for mystical and occult science. They too often exhausted both health and fortune in fruitless researches after the elixir of life and the philosopher's stone. Their medical prescriptions were regulated by the aspect of the stars. Their physics were debased by magic, their chemistry degenerated into alchemy, their astronomy into astrology.

In the fruitful field of history, their success was even more equivocal. They seem to have been wholly destitute of the philosophical spirit, which gives life to this kind of composition. They were the disciples of fatalism and the subjects of a despotic government. Man appeared to them only in the contrasted aspects of slave and master. What could they know of the finer moral relations, or of the higher energies of the soul, which are developed only under free and beneficent institutions? Even could they have formed conceptions of these, how would they have dared to express them? Hence their histories are too often mere barren chronological details,

or fulsome panegyrics on their princes, unenlivened by a single spark of philosophy or criticism.

Although the Spanish Arabs are not entitled to the credit of having wrought any important revolution in intellectual or moral science, they are commended by a severe critic, as exhibiting in their writings "the germs of many theories, which have been reproduced as discoveries in later ages," [42] and they silently perfected several of those useful arts, which have had a sensible influence on the happiness and improvement of mankind. Algebra and the higher mathematics were taught in their schools, and thence diffused over Europe. The manufacture of paper, which, since the invention of printing, has contributed so essentially to the rapid circulation of knowledge, was derived through them. Casiri has discovered several manuscripts of cotton paper in the Escorial as early as 1009, and of linen paper of the date of 1106; [43] the origin of which latter fabric Tiraboschi has ascribed to an Italian of Trevigi, in the middle of the fourteenth century. [44] Lastly, the application of gunpowder to military science, which has wrought an equally important revolution, though of a more doubtful complexion, in the condition of society, was derived through the same channel. [45]

The influence of the Spanish Arabs, however, is discernible not so much in the amount of knowledge, as in the impulse, which they communicated to the long-dormant energies of Europe. Their invasion was coeval with the commencement of that night of darkness, which divides the modern from the ancient world. The soil had been impoverished by long, assiduous cultivation. The Arabians came like a torrent, sweeping down and obliterating even the land-marks of former civilization, but bringing with it a fertilizing principle, which, as the waters receded, gave new life and loveliness to the landscape. The writings of the Saracens were translated and diffused throughout Europe. Their schools were visited by disciples,

who, roused from their lethargy, caught somewhat of the generous enthusiasm of their masters; and a healthful action was given to the European intellect, which, however ill-directed at first, was thus prepared for the more judicious and successful efforts of later times.

It is comparatively easy to determine the value of the scientific labors of a people, for truth is the same in all languages; but the laws of taste differ so widely in different nations, that it requires a nicer discrimination to pronounce fairly upon such works as are regulated by them. Nothing is more common than to see the poetry of the east condemned as tumid, over-refined, infected with meretricious ornament and conceits, and, in short, as every way contravening the principles of good taste. Few of the critics, who thus peremptorily condemn, are capable of reading a line of the original. The merit of poetry, however, consists so much in its literary execution, that a person, to pronounce upon it, should be intimately acquainted with the whole import of the idiom in which it is written. The style of poetry, indeed of all ornamental writing, whether prose or verse, in order to produce a proper effect, must be raised or relieved, as it were, upon the prevailing style of social intercourse. Even where this is highly figurative and impassioned, as with the Arabians, whose ordinary language is made up of metaphor, that of the poet must be still more so. Hence the tone of elegant literature varies so widely in different countries, even in those of Europe, which approach the nearest to each other in their principles of taste, that it would be found extremely difficult to effect a close translation of the most admired specimens of eloquence from the language of one nation into that of any other. A page of Boccaccio or Bembo, for instance, done into literal English, would have an air of intolerable artifice and verbiage. The choicest morsels of Massillon, Bossuet, or the rhetorical Thomas, would savor marvellously of bombast; and how could we in any degree keep pace with the magnificent march of the Castilian! Yet surely we are not to impugn the taste of all these nations, who attach much more importance, and have paid

(at least this is true of the French and Italian) much greater attention to the mere beauties of literary finish, than English writers.

Whatever may be the sins of the Arabians on this head, they are certainly not those of negligence. The Spanish Arabs, in particular, were noted for the purity and elegance of their idiom; insomuch that Casiri affects to determine the locality of an author by the superior refinement of his style. Their copious philological and rhetorical treatises, their arts of poetry, grammars, and rhyming dictionaries, show to what an excessive refinement they elaborated the art of composition. Academies, far more numerous than those of Italy, to which they subsequently served for a model, invited by their premiums frequent competitions in poetry and eloquence. To poetry, indeed, especially of the tender kind, the Spanish Arabs seem to have been as indiscriminately addicted as the Italians in the time of Petrarch; and there was scarcely a doctor in church or state, but at some time or other offered up his amorous incense on the altar of the muse. [46]

With all this poetic feeling, however, the Arabs never availed themselves of the treasures of Grecian eloquence, which lay open before them. Not a poet or orator of any eminence in that language seems to have been translated by them. [47] The temperate tone of Attic composition appeared tame to the fervid conceptions of the east. Neither did they venture upon what in Europe are considered the higher walks of the art, the drama and the epic. [48] None of their writers in prose or verse show much attention to the development or dissection of character. Their inspiration exhaled in lyrical effusions, in elegies, epigrams, and idyls. They sometimes, moreover, like the Italians, employed verse as the vehicle of instruction in the grave and recondite sciences. The general character of their poetry is bold, florid, impassioned, richly colored with imagery, sparkling with conceits and metaphors, and occasionally breathing a deep tone of moral sensibility, as in some of the plaintive effusions ascribed by Conde to the royal poets of

Cordova. The compositions of the golden age of the Abassides, and of the preceding period, do not seem to have been infected with the taint of exaggeration, so offensive to a European, which distinguishes the later productions in the decay of the empire.

Whatever be thought of the influence of the Arabic on European literature in general, there can be no reasonable doubt that it has been considerable on the Provençal and the Castilian. In the latter especially, so far from being confined to the vocabulary, or to external forms of composition, it seems to have penetrated deep into its spirit, and is plainly discernible in that affectation of stateliness and Oriental hyperbole, which characterizes Spanish writers even at the present day; in the subtleties and conceits with which the ancient Castilian verse is so liberally bespangled; and in the relish for proverbs and prudential maxims, which is so general that it may be considered national. [49]

A decided effect has been produced on the romantic literature of Europe by those tales of fairy enchantment, so characteristic of Oriental genius, and in which it seems to have revelled with uncontrolled delight. These tales, which furnished the principal diversion of the East, were imported by the Saracens into Spain; and we find the monarchs of Cordova solacing their leisure hours with listening to their *rawis*, or novelists, who sang to them.

"Of ladye-love and war, romance, and knightly worth." [50]

The same spirit, penetrating into France, stimulated the more sluggish inventions of the *trouvère*, and, at a later and more polished period, called forth the imperishable creations of the Italian muse. [51]

It is unfortunate for the Arabians, that their literature should be locked up in a character and idiom so difficult of access to European scholars. Their wild, imaginative poetry, scarcely capable of transfusion into a foreign

tongue, is made known to us only through the medium of bald prose translation, while their scientific treatises have been done into Latin with an inaccuracy, which, to make use of a pun of Casiri's, merits the name of perversions rather than versions of the originals. [52] How obviously inadequate, then, are our means of forming any just estimate of their literary merits! It is unfortunate for them, moreover, that the Turks, the only nation, which, from an identity of religion and government with the Arabs, as well as from its political consequence, would seem to represent them on the theatre of modern Europe, should be a race so degraded; one which, during the five centuries that it has been in possession of the finest climate and monuments of antiquity, has so seldom been quickened into a display of genius, or added so little of positive value to the literary treasures descended from its ancient masters. Yet this people, so sensual and sluggish, we are apt to confound in imagination with the sprightly, intellectual Arab. Both indeed have been subjected to the influence of the same degrading political and religious institutions, which on the Turks have produced the results naturally to have been expected; while the Arabians, on the other hand, exhibit the extraordinary phenomenon of a nation, under all these embarrassments, rising to a high degree of elegance and intellectual culture.

The empire, which once embraced more than half of the ancient world, has now shrunk within its original limits; and the Bedouin wanders over his native desert as free, and almost as uncivilized, as before the coming of his apostle. The language, which was once spoken along the southern shores of the Mediterranean and the whole extent of the Indian Ocean, is broken up into a variety of discordant dialects. Darkness has again settled over those regions of Africa, which were illumined by the light of learning. The elegant dialect of the Koran is studied as a dead language, even in the birth-place of the prophet. Not a printing-press at this day is to be found throughout the whole Arabian Peninsula. Even in Spain, in Christian Spain, alas! the contrast is scarcely less degrading. A death-like torpor has

succeeded to her former intellectual activity. Her cities are emptied of the population with which they teemed in the days of the Saracens. Her climate is as fair, but her fields no longer bloom with the same rich and variegated husbandry. Her most interesting monuments are those constructed by the Arabs; and the traveller, as he wanders amid their desolate, but beautiful ruins, ponders on the destinies of a people, whose very existence seems now to have been almost as fanciful as the magical creations in one of their own fairy tales.

* * * *

Notwithstanding the history of the Arabs is so intimately connected with that of the Spaniards, that it may be justly said to form the reverse side of it, and notwithstanding the amplitude of authentic documents in the Arabic tongue to be found in the public libraries, the Castilian writers, even the most eminent, until the latter half of the last century, with an insensibility which can be imputed to nothing else but a spirit of religious bigotry, have been content to derive their narratives exclusively from national authorities. A fire, which, occurred in the Escorial in 1671, having consumed more than three-quarters of the magnificent collection of eastern manuscripts which it contained, the Spanish government, taking some shame to itself, as it would appear, for its past supineness, caused a copious catalogue of the surviving volumes, to the number of 1850, to be compiled by the learned Casiri; and the result was his celebrated work, "*Bibliotheca Arabico-Hispana Escorialensis*," which appeared in the years 1760-70, and which would reflect credit from the splendor of its typographical execution on any press of the present day. This work, although censured by some later Orientalists as hasty and superficial, must ever be highly valued as affording the only complete index to the rich repertory of Arabian manuscripts in the Escorial, and for the ample evidence which it exhibits of the science and mental culture of the Spanish Arabs. Several other native scholars, among whom

Andres and Masdeu may be particularly noticed, have made extensive researches into the literary history of this people. Still, their political history, so essential to a correct knowledge of the Spanish, was comparatively neglected, until Senor Conde, the late learned librarian of the Academy, who had given ample evidence of his Oriental learning in his version and illustrations of the Nubian Geographer, and a Dissertation on Arabic Coins published in the fifth volume of the Memoirs of the Royal Academy of History, compiled his work entitled "Historia de la Dominacion de los Arabes en España." The first volume appeared in 1820. But unhappily the death of its author, occurring in the autumn of the same year, prevented the completion of his design. The two remaining volumes, however, were printed in the course of that and the following year from his own manuscripts; and although their comparative meagreness and confused chronology betray the want of the same paternal hand, they contain much interesting information. The relation of the conquest of Granada, especially, with which the work concludes, exhibits some important particulars in a totally different point of view from that in which they had been presented by the principal Spanish historians.

The first volume, which may be considered as having received the last touches of its author, embraces a circumstantial narrative of the great Saracen invasion, of the subsequent condition of Spain under the viceroys, and of the empire of the Omeiyades; undoubtedly the most splendid portion of Arabian annals, but the one, unluckily, which has been most copiously illustrated in the popular work compiled by Cardonne from the Oriental manuscripts in the Royal Library at Paris. But as this author has followed the Spanish and the Oriental authorities, indiscriminately, no part of his book can be cited as a genuine Arabic version, except indeed the last sixty pages, comprising the conquest of Granada, which Cardonne professes in his Preface to have drawn exclusively from an Arabian manuscript. Conde, on the other hand, professes to have adhered to his originals with such

scrupulous fidelity, that "the European reader may feel that he is perusing an Arabian author;" and certainly very strong internal evidence is afforded of the truth of this assertion, in the peculiar national and religious spirit which pervades the work, and in a certain florid gasconade of style, common with the Oriental writers. It is this fidelity that constitutes the peculiar value of Conde's narrative. It is the first time that the Arabians, at least those of Spain, the part of the nation which reached the highest degree of refinement, have been allowed to speak for themselves. The history, or rather tissue of histories, embodied in the translation, is certainly conceived in no very philosophical spirit, and contains, as might be expected from an Asiatic pen, little for the edification of a European reader on subjects of policy and government. The narrative is, moreover, encumbered with frivolous details and a barren muster-roll of names and titles, which would better become a genealogical table than a history. But, with every deduction, it must be allowed to exhibit a sufficiently clear view of the intricate conflicting relations of the petty principalities, which swarmed over the Peninsula; and to furnish abundant evidence of a wide-spread intellectual improvement amid all the horrors of anarchy and a ferocious despotism. The work has already been translated, or rather paraphrased, into French. The necessity of an English version will doubtless be in a great degree superseded by the History of the Spanish Arabs, preparing for the Cabinet Cyclopaedia, by Mr. Southey,—a writer, with whom few Castilian scholars will be willing to compete, even on their own ground; and who is, happily, not exposed to the national or religious prejudices, which can interfere with his rendering perfect justice to his subject.

FOOTNOTES

[1] See Introduction, Section I. Note 2, of this History.

[2] The Koran, in addition to the repeated assurances of Paradise to the martyr who falls in battle, contains the regulations of a precise military code. Military service in some shape or other is exacted from all. The terms to be prescribed to the enemy and the vanquished, the division of the spoil, the seasons of lawful truce, the conditions on which the comparatively small number of exempts are permitted to remain at home, are accurately defined. (Sale's Koran, chap. 2, 8, 9, et alibi.) When the *algihed*, or Mahometan crusade, which, in its general design and immunities, bore a close resemblance to the Christian, was preached in the mosque, every true believer was bound to repair to the standard of his chief. "The holy war," says one of the early Saracen generals, "is the ladder of Paradise. The Apostle of God styled himself the son of the sword. He loved to repose in the shadow of banners and on the field of battle."

[3] The successors, caliphs or vicars, as they were styled, of Mahomet, represented both his spiritual and temporal authority. Their office involved almost equally ecclesiastical and military functions. It was their duty to lead the army in battle, and on the pilgrimage to Mecca. They were to preach a sermon, and offer up public prayers in the mosques every Friday. Many of their prerogatives resemble those assumed anciently by the popes. They conferred investitures on the Moslem princes by the symbol of a ring, a sword, or a standard. They complimented them with the titles of "defender of the faith," "column of religion," and the like. The proudest potentate held the bridle of their mules, and paid his homage by touching their threshold with his forehead. The authority of the caliphs was in this manner founded on opinion no less than on power; and their ordinances, however frivolous or iniquitous in themselves, being enforced, as it were, by a divine sanction, became laws which it was sacrilege to disobey. See D'Herbelot, *Bibliothèque Orientale*, (La Haye, 1777-9,) voce *Khalifah*.

[4] The character of the Arabs before the introduction of Islam, like that of most rude nations, is to be gathered from their national songs and romances. The poems suspended at Mecca, familiar to us in the elegant version of Sir William Jones, and still more, the recent translation of "Antar," a composition indeed of the age of Al Raschid, but wholly devoted to the primitive Bedouins, present us with a lively picture of their peculiar habits, which, notwithstanding the influence of a temporary civilization, may be thought to bear great resemblance to those of their descendants at the present day.

[5] Startling as it may be, there is scarcely a vestige of any of the particulars, circumstantially narrated by the national historians (Mariana, Zurita, Abarca, Moret, etc.) as the immediate causes of the subversion of Spain, to be found in the chronicles of the period. No intimation of the persecution, or of the treason, of the two sons of Witiza is to be met with in any Spanish writer, as far as I know, until nearly two centuries after the conquest; none earlier than this, of the defection of Archbishop Oppas, during the fatal conflict near Xerez; and none of the tragical amours of Roderic and the revenge of count Julian, before the writers of the thirteenth century. Nothing indeed can be more jejune than the original narratives of the invasion. The continuation of the *Chronicon del Biclarense*, and the *Chronicon de Isidoro Pacense* or *de Beja*, which are contained in the voluminous collection of Florez, (*España Sagrada*, tom. vi. and viii.) afford the only histories contemporary with the event. Conde is mistaken in his assertion (*Dominacion de los Arabes*, Pról. p. vii.), that the work of Isidoro de Beja was the only narrative written during that period. Spain had not the pen of a Bede or an Eginhart to describe the memorable catastrophe. But the few and meagre touches of the contemporary chroniclers have left ample scope for conjectural history, which has been most industriously improved.

The reports, according to Conde, (*Dominacion de los Arabes*, tom. i. p. 36,) greedily circulated among the Saracens, of the magnificence and general prosperity of the Gothic monarchy, may sufficiently account for its invasion by an enemy flushed with uninterrupted conquests, and whose fanatical ambition was well illustrated by one of their own generals, who, on reaching the western extremity of Africa, plunged his horse into the Atlantic, and sighed for other shores on which to plant the banners of Islam. See Cardonne, *Histoire de l'Afrique et de l'Espagne sous la Domination des Arabes*, (Paris, 1765,) tom. i. p. 37.

[6] The laborious diligence of Masdeu may be thought to have settled the epoch, about which so much learned dust has been raised. The fourteenth volume of his *Historia Crítica de España y de la Cultura Española* (Madrid, 1783-1805) contains an accurate table, by which the minutest dates of the Mahometan lunar year are adjusted by those of the Christian era. The fall of Roderic on the field of battle is attested by both the domestic chroniclers of that period, as well as by the Saracens. (*Incerti Auctoris Additio ad Joannem Biclarensem*, apud Florez, *España Sagrada*, tom. vi. p. 430.—*Isidori Pacensis Episcopi Chronicon*, apud Florez, *España Sagrada*, tom. viii. p. 290.) The tales of the ivory and marble chariot, of the gallant steed Orelia and magnificent vestments of Roderic, discovered after the fight on the banks of the Guadalete, of his probable escape and subsequent seclusion among the mountains of Portugal, which have been thought worthy of Spanish history, have found a much more appropriate place in their romantic national ballads, as well as in the more elaborate productions of Scott and Southey.

[7] "Whatever curses," says an eye-witness, whose meagre diction is quickened on this occasion into something like sublimity, "whatever curses were denounced by the prophets of old against Jerusalem, whatever fell upon ancient Babylon, whatever miseries Rome inflicted upon the glorious

company of the martyrs, all these were visited upon the once happy and prosperous, but now desolated Spain." *Pacensis Chronicon*, apud Florez, *España Sagrada*, tom. viii. p. 292.

[8] The frequency of this alliance may be inferred from an extraordinary, though, doubtless, extravagant statement cited by Zurita. The ambassadors of James II., of Aragon, in 1311, represented to the sovereign pontiff, Clement V., that, of the 200,000 souls, which then composed the population of Granada, there were not more than 500 of pure Moorish descent. *Anales*, tom. iv. fol. 314.

[9] The famous persecutions of Cordova under the reigns of Abderrahman II. and his son, which, to judge from the tone of Castilian writers, might vie with those of Nero and Diocletian, are admitted by Morales (*Obras*, tom. x. p. 74) to have occasioned the destruction of only forty individuals. Most of these unhappy fanatics solicited the crown of martyrdom by an open violation of the Mahometan laws and usages. The details are given by Florez, in the tenth volume of his collection.

[10] Bleda, *Corónica de los Moros de España*, (Valencia, 1618,) lib. 2, cap. 16, 17.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. i. pp. 83 et seq. 179.—Conde, *Dominacion de los Arabes*, Pról., p. vii. and tom. i. pp. 29-54, 75, 87.—Morales, *Obras*, tom. vi. pp. 407-417; tom. vii. pp. 262- 264.—Florez, *España Sagrada*, tom. x. pp. 237-270.—*Fuero Juzgo*, Int. p. 40.

[11] Conde, *Dominacion de los Arabes*, part. 2, cap. 1-46.

[12] *Ibid.*, ubi supra.—Masdeu, *Historia Crítica*, tom. xiii. pp. 178, 187.

[13] The same taste is noticed at the present day, by a traveller, whose pictures glow with the warm colors of the east. "Aussi dès que vous approchez, en Europe ou en Asie, d'une terre possédée par les Musulmans,

vous la reconnaissez de loin au riche et sombre voile de verdure qui flotte gracieusement sur elle:—des arbres pour s'asseoir à leur ombre, des fontaines jaillissantes pour rêver à leur bruit, du silence et des mosquées aux légers minarets, s'élevant à chaque pas du sein d'une terre pieuse." Lamartine, *Voyage en Orient*, tome i. p. 172.

[14] Conde, *Dominacion de los Arabes*, tom. i. pp. 199, 265, 284, 285, 417, 446, 447, et alibi.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. i. pp. 227-230 et seq.

[15] Conde, *Dominacion de los Arabes*, tom. i. pp. 211, 212, 226.—Swinburne, *Travels through Spain*, (London, 1787,) let. 35.—Xerif Aledris, conocido por El Nubiense, *Descripcion de España, con Traduccion y Notas de Conde*, (Madrid, 1799,) pp. 161, 162.—Morales, *Obras*, tom. x. p. 61.—Chénier, *Recherches Historiques sur les Maures, et Histoire de l'Empire de Maroc*, (Paris, 1787,) tom. ii. p. 312.—Laborde, *Itinéraire*, tome iii. p. 226.

[16] Conde, *Dominacion de los Arabes*, tom. i. pp. 214, 228, 270, 611.—Masdeu, *Historia Crítica*, tom. xiii. p. 118.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. i. pp. 338-343.—Casiri quotes from an Arabic historian the conditions on which Abderrahman I. proffered his alliance to the Christian princes of Spain, viz. the annual tribute of 10,000 ounces of gold, 10,000 pounds of silver, 10,000 horses, etc., etc. The absurdity of this story, inconsiderately repeated by historians, if any argument were necessary to prove it, becomes sufficiently manifest from the fact, that the instrument is dated in the 142d year of the Hegira, being a little more than fifty years after the conquest. See *Bibliotheca Arabico-Hispana Escorialensis*, (Matriti, 1760,) tom. ii. p. 104.

[17] *Hist. Naturalis*, lib. 33, cap. 4.

[18] Introduction à l'Histoire Naturelle de l'Espagne, traduite par Flavigny, (Paris, 1776,) p. 411.

[19] See a sensible essay by the Abbé Correa da Serra on the husbandry of the Spanish Arabs, contained in tom. i. of Archives Littéraires de l'Europe, (Paris, 1804.)—Masdeu, Historia Crítica, tom. xiii. pp. 115, 117, 127, 131.—Conde, Dominacion de los Arabes, tom. i. cap. 44.—Casiri, Bibliotheca Escorialensis, tom. i. p. 338.

An absurd story has been transcribed from Cardonne, with little hesitation, by almost every succeeding writer upon this subject. According to him, (Hist. d'Afrique et d'Espagne, tom. i. p. 338,) "the banks of the Guadalquivir were lined with no less than twelve thousand villages and hamlets." The length of the river, not exceeding three hundred miles, would scarcely afford room for the same number of farm-houses. Conde's version of the Arabic passage represents twelve thousand hamlets, farms, and castles, to have "been scattered over the regions watered by the Gaudalquivir;" indicating by this indefinite statement nothing more than the extreme populousness of the province of Andalusia.

[20] Casiri, Bibliotheca Escorialensis, tom. ii. pp. 38, 202.—Conde, Dominacion de los Arabes, part. 2, cap. 88.

[21] Storia della Letteratura Italiana, (Roma, 1782-97,) tom. iii. p. 231.—Turner, History of the Anglo-Saxons, (London, 1820,) vol. iii. p. 137.—Andres, Dell' Origine, de' Progressi e dello Stato Attuale d'Ogni Letteratura, (Venezia, 1783,) part. 1, cap. 8, 9.—Casiri, Bibliotheca Escorialensis, tom. ii. p. 149.—Masdeu, Historia Critica, tom. xiii. pp. 165, 171.—Conde, Dominacion de los Arabes, part. 2, cap. 93.—Among the accomplished women of this period, Valadata, the daughter of the caliph Mahomet, is celebrated as having frequently carried away the palm of eloquence in her discussions with the most learned academicians. Others again, with an

intrepidity that might shame the degeneracy of a modern *blue*, plunged boldly into the studies of philosophy, history, and jurisprudence.

[22] Garibay, Compendio, lib. 39, cap. 3.

[23] Zurita, Anales, lib. 20, cap. 42.

[24] L. Marineo, Cosas Memorables, fol. 169.

[25] Conde, Dominacion de los Arabes, tom. ii. p. 147.—Casiri, Bibliotheca Escorialensis, tom. ii. pp. 248 et seq.—Pedraza, Antigüedad y Excelencias de Granada, (Madrid, 1608,) lib. 1.—Pedraza has collected the various etymologies of the term *Granada*, which some writers have traced to the fact of the city having been the spot where the *pomegranate* was first introduced from Africa; others to the large quantity of *grain* in which its vega abounded; others again to the resemblance which the city, divided into two hills thickly sprinkled with houses, bore to a half-opened pomegranate. (Lib. 2, cap. 17.) The arms of the city, which were in part composed of a pomegranate, would seem to favor the derivation of its name from that of the fruit.

[26] Pedraza, Antigüedad de Granada, fol. 101.—Denina, Delle Rivoluzioni d'Italia, (Venezia, 1816,) Capmany y Montpalau, Memorias Históricas sobre la Marina, Comercio, y Artes de Barcelona, (Madrid, 1779-92,) tom. iii. p. 218; tom. iv. pp. 67 et seq.—Conde, Dominacion de los Arabes, tom. iii. cap. 26.—The ambassador of the emperor Frederic III., on his passage to the court of Lisbon in the middle of the fifteenth century, contrasts the superior cultivation, as well as general civilization, of Granada at this period with that of the other countries of Europe through which he had travelled. Sismondi, Histoire des Républiques Italiennes du Moyen-Age, (Paris, 1818,) tom. ix. p. 405.

[27] Casiri, *Bibliotheca Escorialensis*, tom. ii. pp. 250-258.—The fifth volume of the royal Spanish Academy of History contains an erudite essay by Conde on Arabic money, principally with reference to that coined in Spain, pp. 225-315.

[28] A specification of a royal donative in that day may serve to show the martial spirit of the age. In one of these, made by the king of Granada to the Castilian sovereign, we find twenty noble steeds of the royal stud, reared on the banks of the Xenil, with superb caparisons, and the same number of scimitars richly garnished with gold and jewels; and, in another, mixed up with perfumes and cloth of gold, we meet with a litter of tame lions. (Conde, *Dominacion de los Arabes*, tom. iii. pp. 163, 183.) This latter symbol of royalty appears to have been deemed peculiarly appropriate to the kings of Leon. Ferreras informs us that the ambassadors from France at the Castilian court, in 1434, were received by John II. with a full-grown domesticated lion crouching at his feet. (*Hist. d'Espagne*, tom. vi. p. 401.) The same taste appears still to exist in Turkey. Dr. Clarke, in his visit to Constantinople, met with one of these terrific pets, who used to follow his master, Hassan Pacha, about like a dog.

[29] Conde, *Dominacion de los Arabes*, tom. iii. cap. 28.—Henriquez del Castillo (*Crónica*, cap. 138,) gives an account of an intended duel between two Castilian nobles, in the presence of the king of Granada, as late as 1470. One of the parties, Don Alfonso de Aguilar, failing to keep his engagement, the other rode round the lists in triumph, with his adversary's portrait contemptuously fastened to the tail of his horse.

[30] It must be admitted, that these ballads, as far as facts are concerned, are too inexact to furnish other than a very slippery foundation for history. The most beautiful portion perhaps of the Moorish ballads, for example, is taken up with the feuds of the Abencerrages in the latter days of Granada.

Yet this family, whose romantic story is still repeated to the traveller amid the ruins of the Alhambra, is scarcely noticed, as far as I am aware, by contemporary writers, foreign or domestic, and would seem to owe its chief celebrity to the apocryphal version of Cinés Perez de Hyta, whose "Milesian tales," according to the severe sentence of Nic. Antonio, "are fit only to amuse the lazy and the listless." (Bibliotheca Nova, tom. i. p. 536.)

But, although the Spanish ballads are not entitled to the credit of strict historical documents, they may yet perhaps be received in evidence of the prevailing character of the social relations of the age; a remark indeed predicable of most works of fiction, written by authors contemporary with the events they describe, and more especially so of that popular minstrelsy, which, emanating from a simple, uncorrupted class, is less likely to swerve from truth, than more ostentatious works of art. The long cohabitation of the Saracens with the Christians, (full evidence of which is afforded by Capmany, (Mem. de Barcelona, tom. iv. Apend. no. 11,) who quotes a document from the public archives of Catalonia, showing the great number of Saracens residing in Aragon even in the thirteenth and fourteenth centuries, the most flourishing period of the Granadian empire,) had enabled many of them confessedly to speak and write the Spanish language with purity and elegance. Some of the graceful little songs, which are still chanted by the peasantry of Spain in their dances, to the accompaniment of the castanet, are referred by a competent critic (Conde, De la Poesía Oriental, MS.) to an Arabian origin. There can be little hazard, therefore, in imputing much of this peculiar minstrelsy to the Arabians themselves, the contemporaries, and perhaps the eye-witnesses, of the events they celebrate.

[31] Casiri (Bibliotheca Escorialensis, tom. ii. p. 259) has transcribed a passage from an Arabian author of the fourteenth century, inveighing bitterly against the luxury of the Moorish ladies, their gorgeous apparel and

habits of expense, "amounting almost to insanity," in a tone which may remind one of the similar philippic by his contemporary Dante, against his fair countrywomen of Florence.—Two ordinances of a king of Granada, cited by Conde in his History, prescribed the separation of the women from the men in the mosques; and prohibit their attendance on certain festivals, without the protection of their husbands or some near relative.—Their *femmes savantes*, as we have seen, were in the habit of conferring freely with men of letters, and of assisting in person at the academical *séances*.—And lastly, the frescoes alluded to in the text represent the presence of females at the tournaments, and the fortunate knight receiving the palm of victory from their hands.

[32] Conde, *Dominacion de los Arabes*, tom. i. p. 340; tom. iii. p. 119.

[33] Casiri, on Arabian authority, computes it at 200,000 men. *Bibliotheca Escurialensis*, tom. i. p. 338.

[34] Pulgar, *Reyes Católicos*, p. 250.

[35] *Mem. de la Acad. de Hist.*, tom. vi. p. 169.—These ruined fortifications still thickly stud the border territories of Granada; and many an Andalusian mill, along the banks of the Guadaya and Guadalquivir, retains its battlemented tower, which served for the defence of its inmates against the forays of the enemy.

[36] D'Herbelot, (*Bib. Orientale*, tom. i. p. 630,) among other authentic traditions of Mahomet, quotes one as indicating his encouragement of letters, viz. "That the ink of the doctors and the blood of the martyrs are of equal price." M. Oelsner (*Des Effets de la Religion de Mohammed*, Paris, 1810) has cited several others of the same liberal import. But such traditions cannot be received in evidence of the original doctrine of the prophet. They

are rejected as apocryphal by the Persians and the whole sect of the Shiites, and are entitled to little weight with a European.

[37] When the caliph Al Mamon encouraged, by his example as well as patronage, a more enlightened policy, he was accused by the more orthodox Mussulmans of attempting to subvert the principles of their religion. See Pococke, *Spec. Hist. Arabum*, (Oxon. 1650,) p. 166.

[38] Andres, *Letteratura*, part. 1, cap. 8, 10.—Casiri, *Bibliotheca Escorialensis*, tom. ii. pp. 71, 251, et passim.

[39] Casiri mentions one of these universal geniuses, who published no less than a thousand and fifty treatises on the various topics of Ethics, History, Law, Medicine, etc.! *Bibliotheca Escorialensis*, tom. ii. p. 107. — See also tom. i. p. 370; tom. ii. p. 71 et alibi.—Zuñiga, *Annales de Sevilla*, p. 22.—D'Herbelot, *Bib. Orientale*, voce *Tarikh*.—Masdeu, *Historia Crítica*, tom. xiii. pp. 203, 205.—Andres, *Letteratura*, part. 1, cap. 8.

[40] Consult the sensible, though perhaps severe, remarks of Degerando on Arabian science. (*Hist. de la Philosophie*, tom. iv. cap. 24.)—The reader may also peruse with advantage a disquisition on Arabian metaphysics in Turner's *History of England*, (vol. iv. pp. 405-449.—Brucker, *Hist. Philosophiae*, tom. in. p. 105.)—Ludovicus Vives seems to have been the author of the imputation in the text. (Nic. Antonio, *Bibliotheca Vetus*, tom. ii. p. 394.) Averroes translated some of the philosophical works of Aristotle from the Greek into Arabic; a Latin version of which translation was afterwards made. Though D'Herbelot is mistaken (*Bib. Orientale*, art. *Roschd*) in saying that Averroes was the first who translated Aristotle into Arabic; as this had been done two centuries before, at least, by Honain and others in the ninth century, (see Casiri, *Bibliotheca Escorialensis*, tom. i. p. 304,) and Bayle has shown that a Latin version of the Stagirite was used by the Europeans before the alleged period. See art. *Averroes*.

[41] Sprengel, *Histoire de la Médecine*, traduite par Jourdan, (Paris, 1815,) tom. ii. pp. 263 et seq.

[42] Degerando, *Hist. de la Philosophie*, tom. iv. ubi supra.

[43] *Bibliotheca Escorialensis*, tom. ii. p. 9.—Andres, *Letteratura*, part. 1, cap. 10.

[44] *Letteratura Italiana*, tom. v. p. 87.

[45] The battle of Crécy furnishes the earliest instance on record of the use of artillery by the European Christians; although Du Cange, among several examples which he enumerates, has traced a distinct notice of its existence as far back as 1338. (*Glossarium ad Scriptores Mediae et Infimae Latinitatis*, (Paris, 1739,) and *Supplément*, (Paris, 1766,) voce *Bombarda*.) The history of the Spanish Arabs carries it to a much earlier period. It was employed by the Moorish king of Granada at the siege of Baza, in 1312 and 1325. (Conde, *Dominacion de los Arabes*, tom. iii. cap. 18.—Casiri, *Bibliotheca Escorialensis*, tom. ii. p. 7.) It is distinctly noticed in an Arabian treatise as ancient as 1249; and, finally, Casiri quotes a passage from a Spanish author at the close of the eleventh Century, (whose MS., according to Nic. Antonio, though familiar to scholars, lies still entombed in the dust of libraries,) which describes the use of artillery in a naval engagement of that period between the Moors of Tunis and of Seville. Casiri, *Bibliotheca Escorialensis*, tom. ii. p. 8.—Nic, Antonio, *Bibliotheca Vetus*, tom. ii. p. 12.

[46] Petrarch complains, in one of his letters from the country, that "jurisconsults and divines, nay his own valet, had taken to rhyming; and he was afraid the very cattle might begin to low in verse;" apud De Sade, *Mémoires pour la Vie de Pétrarque*, tom. iii. p. 243.

[47] Andres, *Letteratura*, part. 1, cap. 11.—Yet this popular assertion is contradicted by Reinesius, who states, that both Homer and Pindar were translated into Arabic by the middle of the eighth century. See Fabricius, *Bibliotheca Graeca*, (Hamb. 1712-38,) tom. xii. p. 753.

[48] Sir William Jones, *Traité sur la Poésie Orientale*, sec. 2.—Sismondi says that Sir W. Jones is mistaken in citing the history of Timour by Ebn. Arabschah, as an Arabic epic. (*Littérature du Midi*, tom. i. p. 57.) It is Sismondi who is mistaken, since the English critic states that the Arabs have no heroic poem, and that this poetical prose history is not accounted such even by the Arabs themselves.

[49] It would require much more learning than I am fortified with, to enter into the merits of the question, which has been raised respecting the probable influence of the Arabian on the literature of Europe. A. V. Schlegel, in a work of little bulk, but much value, in refuting with his usual vivacity the extravagant theory of Andres, has been led to conclusions of an opposite nature, which may be thought perhaps scarcely less extravagant. (*Observations sur la Langue et la Littérature Provençales*, p. 64.) It must indeed seem highly improbable that the Saracens, who, during the Middle Ages, were so far superior in science and literary culture to the Europeans, could have resided so long in immediate contact with them, and in those very countries indeed which gave birth to the most cultivated poetry of that period, without exerting some perceptible influence upon it. Be this as it may, its influence on the Castilian cannot reasonably be disputed. This has been briefly traced by Conde in an "Essay on Oriental Poetry," *Poesia Oriental*, whose publication he anticipates in the Preface to his "History of the Spanish Arabs," but which still remains in manuscript. (The copy I have used is in the library of Mr. George Ticknor.) He professes in this work to discern in the earlier Castilian poetry, in the *Cid*, the *Alexander*, in Berceo's, the arch-priest of Hita's, and others of similar antiquity, most of the

peculiarities and varieties of Arabian verse; the same cadences and number of syllables, the same intermixture of assonances and consonances, the double hemistich and prolonged repetition of the final rhyme. From the same source he derives much of the earlier rural minstrelsy of Spain, as well as the measures of its romances and seguidillas; and in the Preface to his History, he has ventured on the bold assertion, that the Castilian owes so much of its vocabulary to the Arabic, that it may be almost accounted a dialect of the latter. Conde's criticisms, however, must be quoted with reserve. His habitual studies had given him such a keen relish for Oriental literature, that he was, in a manner, *denaturalized* from his own.

[50] Byron's beautiful line may seem almost a version of Conde's Spanish text, "sucesos de armas y de amores con muy estraños lances y en elegante estilo."—Dominacion de los Arabes, tom. i. p. 457.

[51] Sismondi, in his Littérature du Midi, (tom. i. pp. 267 et seq.), and more fully in his Républiques Italiennes, (tom. xvi. pp. 448 et seq.), derives the jealousy of the sex, the ideas of honor, and the deadly spirit of revenge, which distinguished the southern nations of Europe in the fifteenth and sixteenth centuries, from the Arabians. Whatever be thought of the jealousy of the sex, it might have been supposed that the principles of honor and the spirit of revenge might, without seeking further, find abundant precedent in the feudal habits and institutions of our European ancestors.

[52] "Quas *perversivnes* potius, quam *versiones* meritó dixeris." Bibliotheca Escorialensis, tom. i. p. 266.

CHAPTER IX.

WAR OF GRANADA.—SURPRISE OF ZAHARA.—CAPTURE OF ALHAMA.

1481-1482.

Zahara Surprised by the Moors.—Marquis of Cadiz.—His Expedition against

Alhama.—Valor of the Citizens.—Desperate Struggle.—Fall of Alhama.—Consternation of the Moors.—Vigorous Measures of the Queen.

No sooner had Ferdinand and Isabella restored internal tranquillity to their dominions, and made the strength effective which had been acquired by their union under one government, than they turned their eyes to those fair regions of the Peninsula, over which the Moslem crescent had reigned triumphant for nearly eight centuries. Fortunately, an act of aggression on the part of the Moors furnished a pretext for entering on their plan of conquest, at the moment when it was ripe for execution. Aben Ismael, who had ruled in Granada during the latter part of John the Second's reign, and the commencement of Henry the Fourth's, had been partly indebted for his throne to the former monarch; and sentiments of gratitude, combined with a naturally amiable disposition, had led him to foster as amicable relations with the Christian princes, as the jealousy of two nations, that might be considered the natural enemies of each other, would permit; so that,

notwithstanding an occasional border foray, or the capture of a frontier fortress, such a correspondence was maintained between the two kingdoms, that the nobles of Castile frequently resorted to the court of Granada, where, forgetting their ancient feuds, they mingled with the Moorish cavaliers in the generous pastimes of chivalry.

Muley Abul Hacen, who succeeded his father in 1466, was of a very different temperament. His fiery character prompted him, when very young, to violate the truce by an unprovoked inroad into Andalusia; and, although after his accession domestic troubles occupied him too closely to allow leisure for foreign war, he still cherished in secret the same feelings of animosity against the Christians. When, in 1476, the Spanish sovereigns required as the condition of a renewal of the truce, which he solicited, the payment of the annual tribute imposed on his predecessors, he proudly replied that "the mints of Granada coined no longer gold, but steel." His subsequent conduct did not belie the spirit of this Spartan answer. [1]

At length, towards the close of the year 1481, the storm which had been so long gathering burst upon Zahara, a small fortified town on the frontier of Andalusia, crowning a lofty eminence, washed at its base by the river Guadalete, which from its position seemed almost inaccessible. The garrison, trusting to these natural defences, suffered itself to be surprised on the night of the 20th of December, by the Moorish monarch; who, scaling the walls under favor of a furious tempest, which prevented his approach from being readily heard, put to the sword such of the guard as offered resistance, and swept away the whole population of the place, men, women, and children, in slavery to Granada.

The intelligence of this disaster caused deep mortification to the Spanish sovereigns, especially to Ferdinand, by whose grandfather Zahara had been recovered from the Moors. Measures were accordingly taken for

strengthening the whole line of frontier, and the utmost vigilance was exerted to detect some vulnerable point of the enemy, on which retaliation might be successfully inflicted. Neither were the tidings of their own successes welcomed, with the joy that might have been expected, by the people of Granada. The prognostics, it was said, afforded by the appearance of the heavens, boded no good. More sure prognostics were afforded in the judgments of thinking men, who deprecated the temerity of awakening the wrath of a vindictive and powerful enemy, "Woe is me!" exclaimed an ancient Alfaki, on quitting the hall of audience, "the ruins of Zahara will fall on our own heads; the days of the Moslem empire in Spain are now numbered!" [2]

It was not long before the desired opportunity for retaliation presented itself to the Spaniards. One Juan de Ortega, a captain of *escaladores*, or sealers, so denominated from the peculiar service in which they were employed in besieging cities, who had acquired some reputation under John the Second, in the wars of Roussillon, reported to Diego de Merlo, assistant of Seville, that the fortress of Albania, situated in the heart of the Moorish territories, was so negligently guarded, that it might be easily carried by an enemy, who had skill enough to approach it. The fortress, as well as the city of the same name, which it commanded, was built, like many others in that turbulent period, along the crest of a rocky eminence, encompassed by a river at its base, and, from its natural advantages, might be deemed impregnable. This strength of position, by rendering all other precautions apparently superfluous, lulled its defenders into a security like that which had proved so fatal to Zahara. Alhama, as this Arabic name implies, was famous for its baths, whose annual rents are said to have amounted to five hundred thousand ducats. The monarchs of Granada, indulging the taste common to the people of the east, used to frequent this place, with their court, to refresh themselves with its delicious waters, so that Alhama became embellished with all the magnificence of a royal residence. The

place was still further enriched by its being the *dépôt* of the public taxes on land, which constituted a principal branch of the revenue, and by its various manufactures of cloth, for which its inhabitants were celebrated throughout the kingdom of Granada. [3]

Diego de Merlo, although struck with the advantages of this conquest, was not insensible to the difficulties with which it would be attended; since Alhama was sheltered under the very wings of Granada, from which it lay scarcely eight leagues distant, and could be reached only by traversing the most populous portion of the Moorish territory, or by surmounting a precipitous sierra, or chain of mountains, which screened it on the north. Without delay, however, he communicated the information which he had received to Don Rodrigo Ponce de Leon, marquis of Cadiz, as the person best fitted by his capacity and courage for such an enterprise. This nobleman, who had succeeded his father, the count of Arcos, in 1469, as head of the great house of Ponce de Leon, was at this period about thirty-nine years of age. Although a younger and illegitimate son, he had been preferred to the succession in consequence of the extraordinary promise which his early youth exhibited. When scarcely seventeen years old, he achieved a victory over the Moors, accompanied with a signal display of personal prowess. [4] Later in life, he formed a connection with the daughter of the marquis of Villena, the factious minister of Henry the Fourth, through whose influence he was raised to the dignity of marquis of Cadiz. This alliance attached him to the fortunes of Henry, in his disputes with his brother Alfonso, and subsequently with Isabella, on whose accession, of course, Don Rodrigo looked with no friendly eye. He did not, however, engage in any overt act of resistance, but occupied himself with prosecuting an hereditary feud which he had revived with the duke of Medina Sidonia, the head of the Guzmans; a family, which from ancient times had divided with his own the great interests of Andalusia. The pertinacity with which this feud was conducted, and the desolation which it

carried not only into Seville, but into every quarter of the province, have been noticed in the preceding pages. The vigorous administration of Isabella repressed these disorders, and after abridging the overgrown power of the two nobles, effected an apparent (it was only apparent) reconciliation between them. The fiery spirit of the marquis of Cadiz, no longer allowed to escape in domestic broil, urged him to seek distinction in more honorable warfare; and at this moment he lay in his castle at Arcos, looking with a watchful eye over the borders, and waiting, like a lion in ambush, the moment when he could spring upon his victim.

Without hesitation, therefore, he assumed the enterprise proposed by Diego de Merlo, imparting his purpose to Don Pedro Henriquez, *adelantado* of Andalusia, a relative of Ferdinand, and to the alcaides of two or three neighboring fortresses. With the assistance of these friends he assembled a force which, including those who marched under the banner of Seville, amounted to two thousand five hundred horse and three thousand foot. His own town of Marchena was appointed as the place of rendezvous. The proposed route lay by the way of Antequera, across the wild sierras of Alzerifa. The mountain passes, sufficiently difficult at a season when their numerous ravines were choked up by the winter torrents, were rendered still more formidable by being traversed in the darkness of night; for the party, in order to conceal their movements, lay by during the day. Leaving their baggage on the banks of the Yeguas, that they might move forward with greater celerity, the whole body at length arrived, after a rapid and most painful inarch, on the third night from their departure, in a deep valley about half a league from Alhama. Here the marquis first revealed the real object of the expedition to his soldiers, who, little dreaming of anything beyond a mere border inroad, were transported with joy at the prospect of the rich booty so nearly within their grasp. [5]

The next morning, being the 28th of February, a small party was detached, about two hours before dawn, under the command of John de Ortega, for the purpose of scaling the citadel, while the main body moved forward more leisurely under the marquis of Cadiz, in order to support them. The night was dark and tempestuous, circumstances which favored their approach in the same manner as with the Moors at Zahara. After ascending the rocky heights which were crowned by the citadel, the ladders were silently placed against the walls, and Ortega, followed by about thirty others, succeeded in gaining the battlements unobserved. A sentinel, who was found sleeping on his post, they at once despatched, and, proceeding cautiously forward to the guard-room, put the whole of the little garrison to the sword, after the short and ineffectual resistance that could be opposed by men suddenly roused from slumber. The city in the mean time was alarmed, but it was too late; the citadel was taken; and the outer gates, which opened into the country, being thrown open, the marquis of Cadiz entered with trumpet sounding and banner flying, at the head of his army, and took possession of the fortress. [6]

After allowing the refreshment necessary to the exhausted spirits of his soldiers, the marquis resolved to sally forth at once upon the town, before its inhabitants could muster in sufficient force to oppose him. But the citizens of Alhama, showing a resolution rather to have been expected from men trained in a camp, than from peaceful burghers of a manufacturing town, had sprung to arms at the first alarm, and, gathering in the narrow street on which the portal of the castle opened, so completely commanded it with their arquebuses and crossbows, that the Spaniards, after an ineffectual attempt to force a passage, were compelled to recoil upon their defences, amid showers of bolts and balls which occasioned the loss, among others, of two of their principal alcaides.

A council of war was then called, in which it was even advised by some, that the fortress, after having been dismantled, should be abandoned as incapable of defence against the citizens on the one hand, and the succors which might be expected speedily to arrive from Granada, on the other. But this counsel was rejected with indignation by the marquis of Cadiz, whose fiery spirit rose with the occasion; indeed, it was not very palatable to most of his followers, whose cupidity was more than ever inflamed by the sight of the rich spoil, which, after so many fatigues, now lay at their feet. It was accordingly resolved to demolish part of the fortifications which looked towards the town, and at all hazards to force a passage into it. This resolution was at once put into execution; and the marquis, throwing himself into the breach thus made, at the head of his men-at-arms, and shouting his war-cry of "St. James and the Virgin," precipitated himself into the thickest of the enemy. Others of the Spaniards, running along the out-works contiguous to the buildings of the city, leaped into the street, and joined their companions there, while others again sallied from the gates, now opened for the second time. [7]

The Moors, unshaken by the fury of this assault, received the assailants with brisk and well-directed volleys of shot and arrows; while the women and children, thronging the roofs and balconies of the houses, discharged on their heads boiling oil, pitch, and missiles of every description. But the weapons of the Moors glanced comparatively harmless from the mailed armor of the Spaniards, while their own bodies, loosely arrayed in such habiliments as they could throw over them in the confusion of the night, presented a fatal mark to their enemies. Still they continued to maintain a stout resistance, checking the progress of the Spaniards by barricades of timber hastily thrown across the streets; and, as their intrenchments were forced one after another, they disputed every inch of ground with the desperation of men who fought for life, fortune, liberty, all that was most dear to them. The contest hardly slackened till the close of day, while the

kennels literally ran with blood, and every avenue was choked up with the bodies of the slain. At length, however, Spanish valor proved triumphant in every quarter, except where a small and desperate remnant of the Moors, having gathered their wives and children around them, retreated as a last resort into a large mosque near the walls of the city, from which they kept up a galling fire on the close ranks of the Christians. The latter, after enduring some loss, succeeded in sheltering themselves so effectually under a roof or canopy constructed of their own shields, in the manner practised in war previous to the exclusive use of fire-arms, that they were enabled to approach so near the mosque, as to set fire to its doors; when its tenants, menaced with suffocation, made a desperate sally, in which many perished, and the remainder surrendered at discretion. The prisoners thus made were all massacred on the spot, without distinction, of sex or age, according to the Saracen accounts. But the Castilian writers make no mention of this; and, as the appetites of the Spaniards were not yet stimulated by that love of carnage, which they afterwards displayed in their American wars, and which was repugnant to the chivalrous spirit with which their contests with the Moslems were usually conducted, we may be justified in regarding it as an invention of the enemy. [8]

Alhama was now delivered up to the sack of the soldiery, and rich indeed was the booty which fell into their hands,—gold and silver plate, pearls, jewels, fine silks and cloths, curious and costly furniture, and all the various appurtenances of a thriving, luxurious city. In addition to which, the magazines were found well stored with the more substantial and, at the present juncture, more serviceable supplies of grain, oil, and other provisions. Nearly a quarter of the population is said to have perished in the various conflicts of the day, and the remainder, according to the usage of the time, became the prize of the victors. A considerable number of Christian captives, who were found immured in the public prisons, were restored to freedom, and swelled the general jubilee with their grateful acclamations.

The contemporary Castilian chroniclers record also, with no less satisfaction, the detection of a Christian renegade, notorious for his depredations on his countrymen, whose misdeeds the marquis of Cadiz requited by causing him to be hung up over the battlements of the castle, in the face of the whole city. Thus fell the ancient city of Alhama, the first conquest, and achieved with a gallantry and daring unsurpassed by any other during this memorable war. [9]

The report of this disaster fell like the knell of their own doom on the ears of the inhabitants of Granada. It seemed as if the hand of Providence itself must have been stretched forth to smite the stately city, which, reposing as it were under the shadow of their own walls, and in the bosom of a peaceful and populous country, was thus suddenly laid low in blood and ashes. Men now read the fulfilment of the disastrous omens and predictions which ushered in the capture of Zahara. The melancholy *romance* or ballad, with the burden of *Ay de mi Alhama*, "Woe is me, Alhama," composed probably by some one of the nation not long after this event, shows how deep was the dejection which settled on the spirits of the people. The old king, Abul Hacen, however, far from resigning himself to useless lamentation, sought to retrieve his loss by the most vigorous measures. A body of a thousand horse was sent forward to reconnoitre the city, while he prepared to follow with as powerful levies, as he could enforce, of the militia of Granada. [10]

The intelligence of the conquest of Alhama diffused general satisfaction throughout Castile, and was especially grateful to the sovereigns, who welcomed it as an auspicious omen of the ultimate success of their designs upon the Moors. They were attending mass in their royal palace of Medina del Campo, when they received despatches from the marquis of Cadiz, informing them of the issue of his enterprise. "During all the while he sat at dinner," says a precise chronicler of the period, "the prudent Ferdinand was

revolving in his mind the course best to be adopted." He reflected that the Castilians would soon be beleaguered by an overwhelming force from Granada, and he determined at all hazards to support them. He accordingly gave orders to make instant preparation for departure; but, first, accompanied the queen, attended by a solemn procession of the court and clergy, to the cathedral church of St. James; where Te Deum was chanted, and a humble thanksgiving offered up to the Lord of hosts for the success with which he had crowned their arms. Towards evening, the king set forward on his journey to the south, escorted by such nobles and cavaliers as were in attendance on his person, leaving the queen to follow more leisurely, after having provided reinforcements and supplies requisite for the prosecution of the war. [11]

On the 5th of March, the king of Granada appeared before the walls of Alhama, with an army which amounted to three thousand horse and fifty thousand foot. The first object which encountered his eyes was the mangled remains of his unfortunate subjects, which the Christians, who would have been scandalized by an attempt to give them the rites of sepulture, had from dread of infection thrown over the walls, where they now lay half devoured by birds of prey and the ravenous dogs of the city. The Moslem troops, transported with horror and indignation at this hideous spectacle, called loudly to be led to the attack. They had marched from Granada with so much precipitation, that they were wholly unprovided with artillery, in the use of which they were expert for that period; and which was now the more necessary, as the Spaniards had diligently employed the few days which intervened since their occupation of the place, in repairing the breaches in the fortifications, and in putting them in a posture of defence. But the Moorish ranks were filled with the flower of their chivalry; and their immense superiority of numbers enabled them to make their attacks simultaneously on the most distant quarters of the town, with such

unintermitted vivacity, that the little garrison, scarcely allowed a moment for repose, was wellnigh exhausted with fatigue. [12]

At length, however, Abul Hacen, after the loss of more than two thousand of his bravest troops in these precipitate assaults, became convinced of the impracticability of forcing a position, whose natural strength was so ably seconded by the valor of its defenders, and he determined to reduce the place by the more tardy but certain method of blockade. In this he was favored by one or two circumstances. The town, having but a single well within its walls, was almost wholly indebted for its supplies of water to the river which flowed at its base. The Moors, by dint of great labor, succeeded in diverting the stream so effectually, that the only communication with it, which remained open to the besieged, was by a subterraneous gallery or mine, that had probably been contrived with reference to some such emergency by the original inhabitants. The mouth of this passage was commanded in such a manner by the Moorish archers, that no egress could be obtained without a regular skirmish, so that every drop of water might be said to be purchased with the blood of Christians; who, "if they had not possessed the courage of Spaniards," says a Castilian writer, "would have been reduced to the last extremity." In addition to this calamity, the garrison began to be menaced with scarcity of provisions, owing to the improvident waste of the soldiers, who supposed that the city, after being plundered, was to be razed to the ground and abandoned. [13]

At this crisis they received the unwelcome tidings of the failure of an expedition destined for their relief by Alonso de Aguilar. This cavalier, the chief of an illustrious house since rendered immortal by the renown of his younger brother, Gonsalvo de Cordova, had assembled a considerable body of troops, on learning the capture of Alhama, for the purpose of supporting his friend and companion in arms, the marquis of Cadiz. On reaching the shores of the Yeguas, he received, for the first time, advices of the

formidable host which lay between him and the city, rendering hopeless any attempt to penetrate into the latter with his inadequate force. Contenting himself, therefore, with recovering the baggage, which the marquis's army in its rapid march, as has been already noticed, had left on the banks of the river, he returned to Antequera. [14]

Under these depressing circumstances, the indomitable spirit of the marquis of Cadiz seemed to infuse itself into the hearts of his soldiers. He was ever in the front of danger, and shared the privations of the meanest of his followers; encouraging them to rely with undoubting confidence on the sympathies which their cause must awaken in the breasts of their countrymen. The event proved that he did not miscalculate. Soon after the occupation of Alhama, the marquis, foreseeing the difficulties of his situation, had despatched missives, requesting the support of the principal lords and cities of Andalusia. In this summons he had omitted the duke of Medina Sidonia, as one who had good reason to take umbrage at being excluded from a share in the original enterprise. Henrique de Guzman, duke of Medina Sidonia, possessed a degree of power more considerable than any other chieftain in the south. His yearly rents amounted to nearly sixty thousand ducats, and he could bring into the field, it was said, from his own resources an army little inferior to what might be raised by a sovereign prince. He had succeeded to his inheritance in 1468, and had very early given his support to the pretensions of Isabella. Notwithstanding his deadly feud with the marquis of Cadiz, he had the generosity, on the breaking out of the present war, to march to the relief of the marchioness when beleaguered, during her husband's absence, by a party of Moors from Ronda, in her own castle of Arcos. He now showed a similar alacrity in sacrificing all personal jealousy at the call of patriotism. [15]

No sooner did he learn the perilous condition of his countrymen in Alhama, than he mustered the whole array of his household troops and

retainers, which, when combined with those of the marquis de Villena, of the count de Cabra, and those from Seville, in which city the family of the Guzmans had long exercised a sort of hereditary influence, swelled to the number of five thousand horse and forty thousand foot. The duke of Medina Sidonia, putting himself at the head of this powerful body, set forward without delay on his expedition.

When King Ferdinand in his progress to the south had reached the little town of Adamuz, about five leagues from Cordova, he was informed of the advance of the Andalusian chivalry, and instantly sent instructions to the duke to delay his march, as he intended to come in person and assume the command. But the latter, returning a respectful apology for his disobedience, represented to his master the extremities to which the besieged were already reduced, and without waiting for a reply pushed on with the utmost vigor for Alhama. The Moorish monarch, alarmed at the approach of so powerful a reinforcement, saw himself in danger of being hemmed in between the garrison on the one side, and these new enemies on the other. Without waiting their appearance on the crest of the eminence which separated him from them, he hastily broke up his encampment, on the 29th of March, after a siege of more than three weeks, and retreated on his capital. [16]

The garrison of Alhama viewed with astonishment the sudden departure of their enemies; but their wonder was converted into joy, when they beheld the bright arms and banners of their countrymen, gleaming along the declivities of the mountains. They rushed out with tumultuous transport to receive them and pour forth their grateful acknowledgments, while the two commanders, embracing each other in the presence of their united armies, pledged themselves to a mutual oblivion of all past grievances; thus affording to the nation the best possible earnest of future successes, in the

voluntary extinction of a feud, which had desolated it for so many generations.

Notwithstanding the kindly feelings excited between the two armies, a dispute had wellnigh arisen respecting the division of the spoil, in which the duke's army claimed a share, as having contributed to secure the conquest which their more fortunate countrymen had effected. But these discontents were appeased, though with some difficulty, by their noble leader, who besought his men not to tarnish the laurels already won, by mingling a sordid avarice with the generous motives which had promoted them to the expedition. After the necessary time devoted to repose and refreshment, the combined armies proceeded to evacuate Alhama, and having left in garrison Don Diego Merlo, with a corps of troops of the hermandad, returned into their own territories. [17]

King Ferdinand, after receiving the reply of the duke of Medina Sidonia, had pressed forward his march by the way of Cordova, as far as Lucena, with the intention of throwing himself at all hazards into Alhama. He was not without much difficulty dissuaded from this by his nobles, who represented the temerity of the enterprise, and its incompetency to any good result, even should he succeed, with the small force of which he was master. On receiving intelligence that the siege was raised, he returned to Cordova, where he was joined by the queen towards the latter part of April. Isabella had been employed in making vigorous preparation for carrying on the war, by enforcing the requisite supplies, and summoning the crown vassals, and the principal nobility of the north, to hold themselves in readiness to join the royal standard in Andalusia. After this, she proceeded by rapid stages to Cordova, notwithstanding the state of pregnancy, in which she was then far advanced.

Here the sovereigns received the unwelcome information, that the king of Granada, on the retreat of the Spaniards, had again sat down before Alhama; having brought with him artillery, from the want of which he had suffered so much in the preceding siege. This news struck a damp into the hearts of the Castilians, many of whom recommended the total evacuation of a place, "which" they said, "was so near the capital that it must be perpetually exposed to sudden and dangerous assaults; while, from the difficulty of reaching it, it would cost the Castilians an incalculable waste of blood and treasure in its defence. It was experience of these evils, which had led to its abandonment in former days, when it had been recovered by the Spanish arms from the Saracens."

Isabella was far from being shaken by these arguments. "Glory," she said, "was not to be won without danger. The present war was one of peculiar difficulties and danger, and these had been well calculated before entering upon it. The strong and central position of Alhama made it of the last importance, since it might be regarded as the key of the enemy's country. This was the first blow struck during the war, and honor and policy alike forbade them to adopt a measure, which could not fail to damp the ardor of the nation." This opinion of the queen, thus decisively expressed, determined the question, and kindled a spark of her own enthusiasm in the breasts of the most desponding. [18]

It was settled that the king should march to the relief of the besieged, taking with him the most ample supplies of forage and provisions, at the head of a force strong enough to compel the retreat of the Moorish monarch. This was effected without delay; and, Abul Hacen once more breaking up his camp on the rumor of Ferdinand's approach, the latter took possession of the city without opposition, on the 14th of May. The king was attended by a splendid train of his prelates and principal nobility; and he prepared with their aid to dedicate his new conquest to the service of the

cross, with all the formalities of the Romish church. After the ceremony of purification, the three principal mosques of the city were consecrated by the cardinal of Spain, as temples of Christian worship. Bells, crosses, a sumptuous service of plate, and other sacred utensils, were liberally furnished by the queen; and the principal church of Santa Maria de la Encarnacion long exhibited a covering of the altar, richly embroidered by her own hands. Isabella lost no opportunity of manifesting, that she had entered into the war, less from motives of ambition, than of zeal for the exaltation of the true faith. After the completion of these ceremonies, Ferdinand, having strengthened the garrison with new recruits under the command of Portocarrero, lord of Palma, and victualled it with three months' provisions, prepared for a foray into the vega of Granada. This he executed in the true spirit of that merciless warfare, so repugnant to the more civilized usage of later times, not only by sweeping away the green, unripened crops, but by cutting down the trees, and eradicating the vines; and then, without so much as having broken a lance in the expedition, returned in triumph to Cordova. [19]

Isabella in the mean while was engaged in active measures for prosecuting the war. She issued orders to the various cities of Castile and Leon, as far as the borders of Biscay and Guipuscoa, prescribing the *repartimiento*, or subsidy of provisions, and the quota of troops, to be furnished by each district respectively, together with an adequate supply of ammunition and artillery. The whole were to be in readiness before Loja, by the 1st of July; when Ferdinand was to take the field in person at the head of his chivalry, and besiege that strong post. As advices were received, that the Moors of Granada were making efforts to obtain the co-operation of their African brethren in support of the Mahometan empire in Spain, the queen caused a fleet to be manned under the command of her two best admirals, with instructions to sweep the Mediterranean as far as the Straits

of Gibraltar, and thus effectually cut off all communication with the Barbary coast. [20]

FOOTNOTES

[1] Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. pp. 467-469.—Conde, *Dominacion de los Arabes*, tom. iii. cap. 32, 34.

[2] Bernaldez, *Reyes Católicos*, MS., cap. 51.—Conde, *Dominacion de los Arabes*, tom. iii. cap. 34.—Pulgar, *Reyes Católicos*, p. 180.—L. Marineo, *Cosas Memorables*, fol. 171.—Marmol, *Historia del Rebelion y Castigo de los Moriscos*, (Madrid, 1797,) lib. 1, cap. 12.

Lebrija states, that the revenues of Granada, at the commencement of this war, amounted to a million of gold ducats, and that it kept in pay 7000 horsemen on its peace establishment, and could send forth 21,000 warriors from its gates. The last of these estimates would not seem to be exaggerated. *Rerum Gestarum Decades*, ii. lib. 1, cap. 1.

[3] Estrada, *Poblacion de España*, tom. ii. pp. 247, 248.—El Nubiense, *Descripcion de España*, p. 222, nota.—Pulgar, *Reyes Católicos*, p. 181.—Marmol, *Rebelion de Moriscos*, lib. 1, cap. 12.

[4] Zuñiga, *Annales de Sevilla*, pp. 349, 362. This occurred in the fight of Madroño, when Don Rodrigo, stooping to adjust his buckler, which had been unlaced, was suddenly surrounded by a party of Moors. He snatched a sling from one of them, and made such brisk use of it, that, after disabling several, he succeeded in putting them to flight; for which feat, says Zuñiga, the king complimented him with the title of "the youthful David."

Don Juan, count of Arcos, had no children born in wedlock, but a numerous progeny by his concubines. Among these latter, was Doña

Leonora Nuñez de Prado, the mother of Don Rodrigo. The brilliant and attractive qualities of this youth so far won the affections of his father, that the latter obtained the royal sanction (a circumstance not infrequent in an age when the laws of descent were very unsettled) to bequeath him his titles and estates, to the prejudice of more legitimate heirs.

[5] Bernaldez, Reyes Católicos, MS., cap. 52.—L. Marineo, Cosas Memorables, fol. 171.—Pulgar computes the marquis's army at 3000 horse and 4000 foot.—Reyes Católicos, p. 181.—Conde, Dominacion de los Arabes, tom. iii. cap. 34.

[6] Lebrija, Rerum Gestarum Decades, ii. lib. 1, cap. 2.—Carbajal, Anales, MS., año 1482.—Bernaldez, Reyes Católicos, MS., cap. 52.—Zurita, Anales, tom. iv. fol. 315.—Cardonne, Hist. d'Afrique et d'Espagne, tom. iii. pp. 252, 253.

[7] Bernaldez, Reyes Católicos, MS., ubi supra.—Conde, Dominacion de los Arabes, cap. 34.—L. Marineo, Cosas Memorables, fol. 172.

[8] Conde, Dominacion de los Arabes, ubi supra.—Pulgar, Reyes Católicos, pp. 182, 183.—Mariana, Hist. de España, tom. ii. pp. 545, 546.

[9] Bernaldez, Reyes Católicos, MS., cap. 52.—Pulgar, Reyes Católicos, ubi supra.—Cardonne, Hist. d'Afrique et d'Espagne, tom. iii. p. 254.

[10]

"Passeavase el Key Moro
For la ciudad de Granada,
Desde las puertas de Elvira
Hasta las de Bivarambla.
Ay de mi Alhama!

"Cartas le fueron venidas
Que Alhama era ganada.
Las cartas echó en el fuego,
Y al mensagero matava.
Ay de mi Alhama!

"Hombres, niños y mugeres,
Lloran tan grande perdida.
Lloravan todas las damas
Quantas en Granada avia.
Ay de mi Alhama!

"Por las calles y ventanas
Mucho luto parecia;
Llora el Rey como fembra,
Qu' es mucho lo que perdía.
Ay de mi Alhama!"

The *romance*, according to Hyta, (not the best voucher for a fact,) caused such general lamentation, that it was not allowed to be sung by the Moors after the conquest. (Guerras Civiles de Granada, tom. i. p. 350.) Lord Byron, as the reader recollects, has done this ballad into English. The version has the merit of fidelity. It is not his fault if his Muse appears to little advantage in the plebeian dress of the Moorish minstrel.

[11] L. Marineo, Cosas Memorables, fol. 172.—Conde, Dominacion de los Arabes, tom. iii. cap. 34.—Carbajal, Anales, MS., año 1482.—Mariana, Hist. de España, tom. ii. pp. 545, 546.

[12] Bernaldez, Reyes Católicos, MS., cap. 52.—Bernaldez swells the Moslem army to 5500 horse, and 80,000 foot, but I have preferred the more

moderate and probable estimate of the Arabian authors. Conde, *Dominacion de los Arabes*, tom. iii. cap. 34.—Pulgar, *Reyes Católicos*, loc. cit.

[13] Garibay, *Compendio*, tom. ii. lib. 18, cap. 23.—Pulgar, *Reyes Católicos*, pp. 183, 184.

[14] Bernaldez, *Reyes Católicos*, MS., cap. 52.

[15] Zuñiga, *Annales de Sevilla*, p. 360.—L. Marineo, *Cosas Memorables*, fol. 24, 172.—Lebrija, *Rerum Gestarum Decades*, lib. 1, cap. 3.

[16] Pulgar, *Reyes Católicos*, pp. 183, 184. Bernaldez, *Reyes Católicos*, MS., cap. 53.—Ferrerias, *Hist. d'Espagne*, tom. vii. p. 572.—Zuñiga, *Annales de Sevilla*, pp. 392, 393.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. p. 257.

[17] Pulgar, *Reyes Católicos*, pp. 183-186.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 28.

[18] Bernaldez, *Reyes Católicos*, MS., cap. 53, 54.—Pulgar states that Ferdinand took the more southern route of Antequera, where he received the tidings of the Moorish king's retreat. The discrepancy is of no great consequence; but as Bernaldez, whom I have followed, lived in Andalusia, the theatre of action, he may be supposed to have had more accurate means of information.—Pulgar, *Reyes Católicos*, pp. 187, 188.

[19] Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 28.—Bernaldez, *Reyes Católicos*, MS., cap. 54, 55.—Lebrija, *Rerum Gestarum Decades*, lib. 1, cap. 6.—Conde, *Dominacion de los Arabes*, cap. 34.—Salazar de Mendoza, *Crón. del Gran Cardenal*, pp. 180, 181.—Marmol, *Rebelion de Moriscos*, lib. 1, cap. 12.

During this second siege, a body of Moorish knights to the number of forty succeeded in scaling the walls of the city in the night, and had nearly reached the gates, with the intention of throwing them open to their countrymen, when they were overpowered, after a desperate resistance, by the Christians, who acquired a rich booty, as many of them were persons of rank. There is considerable variation in the authorities, in regard to the date of Ferdinand's occupation of Alhama. I have been guided, as before, by Bernaldez.

[20] Pulgar, Reyes Católicos, pp. 188, 189.

CHAPTER X.

WAR OF GRANADA.—UNSUCCESSFUL ATTEMPT ON LOJA.—DEFEAT IN THE AXARQUIA.

1482-1483.

Unsuccessful Attempt on Loja.—Revolution in Granada.—Expedition to the Axarquia.—Military Array.—Moorish Preparations.—Bloody Conflict among the Mountains.—The Spaniards force a Passage.—The Marquis of Cadiz Escapes.

Loja stands not many leagues from Albania, on the banks of the Xenil, which rolls its clear current through a valley luxuriant with vineyards and olive-gardens; but the city is deeply intrenched among hills of so rugged an aspect, that it has been led not inappropriately to assume as the motto on its arms, "A flower among thorns." Under the Moors, it was defended by a strong fortress, while the Xenil, circumscribing it like a deep moat upon the south, formed an excellent protection against the approaches of a besieging army; since the river was fordable only in one place, and traversed by a single bridge, which might be easily commanded by the city. In addition to these advantages, the king of Granada, taking warning from the fate of Alhama, had strengthened its garrison with three thousand of his choicest

troops, under the command of a skilful and experienced warrior, named Ali Atar. [1]

In the mean while, the efforts of the Spanish sovereigns to procure supplies adequate to the undertaking against Loja had not been crowned with success. The cities and districts, of which the requisitions had been made, had discovered the tardiness usual in such unwieldy bodies, and their interest, moreover, was considerably impaired by their distance from the theatre of action. Ferdinand on mustering his army, towards the latter part of June, found that it did not exceed four thousand horse and twelve thousand, or indeed, according to some accounts, eight thousand foot; most of them raw militia, who, poorly provided with military stores and artillery, formed a force obviously inadequate to the magnitude of his enterprise. Some of his counsellors would have persuaded him, from these considerations, to turn his arms against some weaker and more assailable point than Loja. But Ferdinand burned with a desire for distinction in the new war, and suffered his ardor for once to get the better of his prudence. The distrust felt by the leaders seems to have infected the lower ranks, who drew the most unfavorable prognostics from the dejected mien of those who bore the royal standard to the cathedral of Cordova, in order to receive the benediction of the church before entering on the expedition. [2]

Ferdinand, crossing the Xenil at Ecija, arrived again on its banks before Loja, on the 1st of July. The army encamped among the hills, whose deep ravines obstructed communication between its different quarters; while the level plains below were intersected by numerous canals, equally unfavorable to the manoeuvres of the men-at-arms. The duke of Villa Hermosa, the king's brother, and captain-general of the hermandad, an officer of large experience, would have persuaded Ferdinand to attempt, by throwing bridges across the river lower down the stream, to approach the city on the other side. But his counsel was overruled by the Castilian

officers, to whom the location of the camp had been intrusted, and who neglected, according to Zurita, to advise with the Andalusian chiefs, although far better instructed than themselves in Moorish warfare. [3]

A large detachment of the army was ordered to occupy a lofty eminence, at some distance, called the Heights of Albohacen, and to fortify it with such few pieces of ordnance as they had, with the view of annoying the city. This commission was intrusted to the marquises of Cadiz and Villena, and the grand-master of Calatrava; which last nobleman had brought to the field about four hundred horse and a large body of infantry from the places belonging to his order in Andalusia. Before the intrenchment could be fully completed, Ali Atar, discerning the importance of this commanding station, made a sortie from the town, for the purpose of dislodging his enemies. The latter poured out from their works to encounter him; but the Moslem general, scarcely waiting to receive the shock, wheeled his squadrons round, and began a precipitate retreat. The Spaniards eagerly pursued; but, when they had been drawn to a sufficient distance from the redoubt, a party of Moorish *ginetes*, or light cavalry, who had crossed the river unobserved during the night and lain in ambush, after the wily fashion of Arabian tactics, darted from their place of concealment, and, galloping into the deserted camp, plundered it of its contents, including the lombards, or small pieces of artillery, with which it was garnished. The Castilians, too late perceiving their error, halted from the pursuit, and returned with as much speed as possible to the defence of their camp. Ali Atar, turning also, hung close on their rear, so that, when the Christians arrived at the summit of the hill, they found themselves hemmed in between the two divisions of the Moorish army. A brisk action now ensued, and lasted nearly an hour; when the advance of reinforcements from the main body of the Spanish army, which had been delayed by distance and impediments on the road, compelled the Moors to a prompt but orderly retreat into their own city. The Christians sustained a heavy loss, particularly in the death of Rodrigo Tellez

Giron, grand-master of Calatrava. He was hit by two arrows, the last of which, penetrating the joints of his harness beneath his sword-arm, as he was in the act of raising it, inflicted on him a mortal wound, of which he expired in a few hours, says an old cronicler, after having confessed, and performed the last duties of a good and faithful Christian. Although scarcely twenty- four years of age, this cavalier had given proofs of such signal prowess, that he was esteemed one of the best knights of Castile; and his death threw a general gloom over the army. [4]

Ferdinand now became convinced of the unsuitableness of a position, which neither admitted of easy communication between the different quarters of his own camp, nor enabled him to intercept the supplies daily passing into that of his enemy. Other inconveniences also pressed on him. His men were so badly provided with the necessary utensils for dressing their food, that they were obliged either to devour it raw, or only half cooked. Most of them being new recruits, unaccustomed to the privations of war, and many exhausted by a wearisome length of march before joining the army, they began openly to murmur, and even to desert in great numbers. Ferdinand therefore resolved to fall back as far as Rio Frio, and await there patiently the arrival of such fresh reinforcements as might put him in condition to enforce a more rigorous blockade.

Orders were accordingly issued to the cavaliers occupying the Heights of Albohacen to break up their camp, and fall back on the main body of the army. This was executed on the following morning before dawn, being the 4th of July. No sooner did the Moors of Loja perceive their enemy abandoning his strong position, than they sallied forth in considerable force to take possession of it. Ferdinand's men, who had not been advised of the proposed manoeuvre, no sooner beheld the Moorish array brightening the crest of the mountain, and their own countrymen rapidly descending, than they imagined that these latter had been surprised in their intrenchments

during the night, and were now flying before the enemy. An alarm instantly spread through the whole camp. Instead of standing to their defence, each one thought only of saving himself by as speedy a flight as possible. In vain did Ferdinand, riding along their broken files, endeavor to reanimate their spirits and restore order. He might as easily have calmed the winds, as the disorder of a panic-struck mob, unschooled by discipline or experience. Ali Atar's practised eye speedily discerned the confusion which prevailed through the Christian camp. Without delay, he rushed forth impetuously at the head of his whole array from the gates of Loja, and converted into a real danger what had before been only an imaginary one. [5]

At this perilous moment, nothing but Ferdinand's coolness could have saved the army from total destruction. Putting himself at the head of the royal guard, and accompanied by a gallant band of cavaliers, who held honor dearer than life, he made such a determined stand against the Moorish advance, that Ali Atar was compelled to pause in his career. A furious struggle ensued betwixt this devoted little band and the whole strength of the Moslem army. Ferdinand was repeatedly exposed to imminent peril. On one occasion he was indebted for his safety to the marquis of Cadiz, who, charging at the head of about sixty lances, broke the deep ranks of the Moorish column, and, compelling it to recoil, succeeded in rescuing his sovereign. In this adventure, he narrowly escaped with his own life, his horse being shot under him, at the very moment when he had lost his lance in the body of a Moor. Never did the Spanish chivalry shed its blood more freely. The constable, count de Haro, received three wounds in the face. The duke of Medina Celi was unhorsed and brought to the ground, and saved with difficulty by his own men; and the count of Tendilla, whose encampment lay nearest the city, received several severe blows, and would have fallen into the hands of the enemy, had it not been for the timely aid of his friend, the young count of Zuñiga.

The Moors, finding it so difficult to make an impression on this iron band of warriors, began at length to slacken their efforts, and finally allowed Ferdinand to draw off the remnant of his forces without further opposition. The king continued his retreat without halting, as far as the romantic site of the Peña de los Enamorados, about seven leagues distant from Loja; and, abandoning all thoughts of offensive operations for the present, soon after returned to Cordova. Muley Abul Hacen arrived the following day with a powerful reinforcement from Granada, and swept the country as far as Rio Frio. Had he come but a few hours sooner, there would have been few Spaniards left to tell the tale of the rout of Loja. [6]

The loss of the Christians must have been very considerable, including the greater part of the baggage and the artillery. It occasioned deep mortification to the queen; but, though a severe, it proved a salutary lesson. It showed the importance of more extensive preparations for a war, which must of necessity be a war of posts; and it taught the nation to entertain greater respect for an enemy, who, whatever might be his natural strength, must become formidable when armed with the energy of despair.

At this juncture, a division among the Moors themselves did more for the Christians, than any successes of their own. This division grew out of the vicious system of polygamy, which sows the seeds of discord among those, whom nature and our own happier institutions unite most closely. The old king of Granada had become so deeply enamored of a Greek slave, that the Sultana Zoraya, jealous lest the offspring of her rival should supplant her own in the succession, secretly contrived to stir up a spirit of discontent with her husband's government. The king, becoming acquainted with her intrigues, caused her to be imprisoned in the fortress of the Alhambra. But the sultana, binding together the scarfs and veils belonging to herself and attendants, succeeded, by means of this perilous conveyance, in making her escape, together with her children, from the upper apartments of the tower

in which she was lodged. She was received with joy by her own faction. The insurrection soon spread among the populace, who, yielding to the impulses of nature, are readily roused by a tale of oppression; and the number was still further swelled by many of higher rank, who had various causes of disgust with the oppressive government of Abul Hacen. [7] The strong fortress of the Alhambra, however, remained faithful to him. A war now burst forth in the capital which deluged its streets with the blood of its citizens. At length the sultana triumphed; Abul Hacen was expelled from Granada, and sought a refuge in Malaga, which, with Baza, Guadix, and some other places of importance, still adhered to him; while Granada, and by far the larger portion of the kingdom, proclaimed the authority of his elder son, Abu Abdallah, or Boabdil, as he is usually called by the Castilian writers. The Spanish sovereigns viewed with no small interest these proceedings of the Moors, who were thus wantonly fighting the battles of their enemies. All proffers of assistance on their part, however, being warily rejected by both factions, notwithstanding the mutual hatred of each other, they could only await with patience the termination of a struggle, which, whatever might be its results in other respects, could not fail to open the way for the success of their own arms. [8]

No military operations worthy of notice occurred during the remainder of the campaign, except occasional *cavalgadas* or inroads, on both sides, which, after the usual unsparing devastation, swept away whole herds of cattle, and human beings, the wretched cultivators of the soil. The quantity of booty frequently carried off on such occasions, amounting, according to the testimony of both Christian and Moorish writers, to twenty, thirty, and even fifty thousand head of cattle, shows the fruitfulness and abundant pasturage in the southern regions of the Peninsula. The loss inflicted by these terrible forays fell, eventually, most heavily on Granada, in consequence of her scanty territory and insulated position, which cut her off from all foreign resources.

Towards the latter end of October, the court passed from Cordova to Madrid, with the intention of remaining there the ensuing winter. Madrid, it may be observed, however, was so far from being recognized as the capital of the monarchy at this time, that it was inferior to several other cities in wealth and population, and was even less frequented than some others, as Valladolid for example as a royal residence.

On the 1st of July, while the court was at Cordova, died Alfonso de Carillo, the factious archbishop of Toledo, who contributed more than any other to raise Isabella to the throne, and who, with the same arm, had wellnigh hurled her from it. He passed the close of his life in retirement and disgrace at his town of Alcalá de Henares, where he devoted himself to science, especially to alchymy; in which illusory pursuit he is said to have squandered his princely revenues with such prodigality, as to leave them encumbered with a heavy debt. He was succeeded in the primacy by his ancient rival, Don Pedro Gonzalez de Mendoza, cardinal of Spain; a prelate whose enlarged and sagacious views gained him deserved ascendancy in the councils of his sovereigns. [9]

The importance of their domestic concerns did not prevent Ferdinand and Isabella from giving a vigilant attention to what was passing abroad. The conflicting relations growing out of the feudal system occupied most princes, till the close of the fifteenth century, too closely at home to allow them often to turn their eyes beyond the borders of their own territories. This system was indeed now rapidly melting away. But Louis the Eleventh may perhaps be regarded as the first monarch, who showed anything like an extended interest in European politics. He informed himself of the interior proceedings of most of the neighboring courts, by means of secret agents whom he pensioned there. Ferdinand obtained a similar result by the more honorable expedient of resident embassies, a practice which he is said to have introduced, [10] and which, while it has greatly facilitated commercial

intercourse, has served to perpetuate friendly relations between different countries, by accustoming them to settle their differences by negotiation rather than the sword.

The position of the Italian states, at this period, whose petty feuds seemed to blind them to the invasion which menaced them from the Ottoman empire, was such as to excite a lively interest throughout Christendom, and especially in Ferdinand, as sovereign of Sicily. He succeeded, by means of his ambassadors at the papal court, in opening a negotiation between the belligerents, and in finally adjusting the terms of a general pacification, signed December 12th, 1482. The Spanish court, in consequence of its friendly mediation on this occasion, received three several embassies with suitable acknowledgments, on the part of the pope Sixtus the Fourth, the college of cardinals, and the city of Rome; and certain marks of distinction were conferred by his Holiness on the Castilian envoys, not enjoyed by those of any other potentate. This event is worthy of notice as the first instance of Ferdinand's interference in the politics of Italy, in which at a later period he was destined to act so prominent a part. [11]

The affairs of Navarre at this time were such as to engage still more deeply the attention of the Spanish sovereigns. The crown of that kingdom had devolved, on the death of Leonora, the guilty sister of Ferdinand, on her grandchild, Francis Phoebus, whose mother, Magdeleine of France, held the reins of government during her son's minority. [12] The near relationship of this princess to Louis the Eleventh, gave that monarch an absolute influence in the councils of Navarre. He made use of this to bring about a marriage between the young king, Francis Phoebus, and Joanna Beltraneja, Isabella's former competitor for the crown of Castile, notwithstanding this princess had long since taken the veil in the convent of Santa Clara at Coimbra. It is not easy to unravel the tortuous politics of King Louis. The Spanish writers impute to him the design of enabling Joanna by this alliance to establish her

pretensions to the Castilian throne, or at least to give such employment to its present proprietors, as should effectually prevent them from disturbing him in the possession of Roussillon. However this may be, his intrigues with Portugal were disclosed to Ferdinand by certain nobles of that court, with whom he was in secret correspondence. The Spanish sovereigns, in order to counteract this scheme, offered the hand of their own daughter Joanna, afterwards mother of Charles the Fifth, to the king of Navarre. But all negotiations relative to this matter were eventually defeated by the sudden death of this young prince, not without strong suspicions of poison. He was succeeded on the throne by his sister Catharine. Propositions were then made by Ferdinand and Isabella, for the marriage of this princess, then thirteen years of age, with their infant son John, heir apparent of their united monarchies. [13] Such an alliance, which would bring under one government nations corresponding in origin, language, general habits, and local interests, presented great and obvious advantages. It was however evaded by the queen dowager, who still acted as regent, on the pretext of disparity of age in the parties. Information being soon after received that Louis the Eleventh was taking measures to make himself master of the strong places in Navarre, Isabella transferred her residence to the frontier town of Logroño, prepared to resist by arms, if necessary, the occupation of that country by her insidious and powerful neighbor. The death of the king of France, which occurred not long after, fortunately relieved the sovereigns from apprehensions of any immediate annoyance on that quarter. [14]

Amid their manifold concerns, Ferdinand and Isabella kept their thoughts anxiously bent on their great enterprise, the conquest of Granada. At a congress general of the deputies of the hermandad, held at Pinto, at the commencement of the present year, 1483, with the view of reforming certain abuses in that institution, a liberal grant was made of eight thousand men, and sixteen thousand beasts of burden, for the purpose of conveying supplies to the garrison in Alhama. But the sovereigns experienced great

embarrassment from the want of funds. There is probably no period in which the princes of Europe felt so sensibly their own penury, as at the close of the fifteenth century; when, the demesnes of the crown having been very generally wasted by the lavishness or imbecility of its proprietors, no substitute had as yet been found in that searching and well-arranged system of taxation which prevails at the present day. The Spanish sovereigns, notwithstanding the economy which they had introduced into the finances, felt the pressure of these embarrassments, peculiarly, at the present juncture. The maintenance of the royal guard and of the vast national police of the hermandad, the incessant military operations of the late campaign, together with the equipment of a navy, not merely for war, but for maritime discovery, were so many copious drains of the exchequer. [15] Under these circumstances, they obtained from the pope a grant of one hundred thousand ducats, to be raised out of the ecclesiastical revenues in Castile and Aragon. A bull of crusade was also published by his Holiness, containing numerous indulgences for such as should bear arms against the infidel, as well as those who should prefer to commute their military service for the payment of a sum of money. In addition to these resources, the government was enabled on its own credit, justified by the punctuality with which it had redeemed its past engagements, to negotiate considerable loans with several wealthy individuals. [16]

With these funds the sovereigns entered into extensive arrangements for the ensuing campaign; causing cannon, after the rude construction of that age, to be fabricated at Huesca, and a large quantity of stone balls, then principally used, to be manufactured in the Sierra de Constantina; while the magazines were carefully provided with ammunition and military stores.

An event not unworthy of notice is recorded by Pulgar, as happening about this time. A common soldier, named John de Corral, contrived, under false pretences, to obtain from the king of Granada a number of Christian

captives, together with a large sum of money, with which he escaped into Andalusia. The man was apprehended by the warden of the frontier of Jaen; and, the transaction being reported to the sovereigns, they compelled an entire restitution of the money, and consented to such a ransom for the liberated Christians as the king of Granada should demand. This act of justice, it should be remembered, occurred in an age when the church itself stood ready to sanction any breach of faith, however glaring, towards heretics and infidels. [17]

While the court was detained in the north, tidings were received of a reverse sustained by the Spanish arms, which plunged the nation in sorrow far deeper than that occasioned by the rout at Loja. Don Alonso de Cardenas, grand-master of St. James, an old and confidential servant of the crown, had been intrusted with the defence of the frontier of Ecija. While on this station, he was strongly urged to make a descent on the environs of Malaga, by his *adalides* or scouts, men who, being for the most part Moorish deserters or renegadoes, were employed by the border chiefs to reconnoitre the enemy's country, or to guide them in their marauding expeditions. [18] The district around Malaga was famous under the Saracens for its silk manufactures, of which it annually made large exports to other parts of Europe. It was to be approached by traversing a savage sierra, or chain of mountains, called the Axarquia, whose margin occasionally afforded good pasturage, and was sprinkled over with Moorish villages. After threading its defiles, it was proposed to return by an open road that turned the southern extremity of the sierra along the sea-shore. There was little to be apprehended, it was stated, from pursuit, since Malaga was almost wholly unprovided with cavalry. [19]

The grand-master, falling in with the proposition, communicated it to the principal chiefs on the borders; among others, to Don Pedro Henriquez, adelantado of Andalusia, Don Juan de Silva, count of Cifuentes, Don

Alonso de Aguilar, and the marquis of Cadiz. These nobleman, collecting their retainers, repaired to Antequera, where the ranks were quickly swelled by recruits from Cordova, Seville, Xerez, and other cities of Andalusia, whose chivalry always readily answered the summons to an expedition over the border. [20]

In the mean while, however, the marquis of Cadiz had received such intelligence from his own *adalides*, as led him to doubt the expediency of a march through intricate defiles, inhabited by a poor and hardy peasantry; and he strongly advised to direct the expedition against the neighboring town of Almojia. But in this he was overruled by the grand-master and the other partners of his enterprise; many of whom, with the rash confidence of youth, were excited rather than intimidated by the prospect of danger.

On Wednesday, the 19th of March, this gallant little army marched forth from the gates of Antequera. The van was intrusted to the adelantado Henriquez and Don Alonso de Aguilar. The centre divisions were led by the marquis of Cadiz and the count of Cifuentes, and the rear-guard by the grand-master of St. James. The number of foot, which is uncertain, appears to have been considerably less than that of the horse, which amounted to about three thousand, containing the flower of Andalusian knighthood, together with the array of St. James, the most opulent and powerful of the Spanish military orders. Never, says an Aragonese historian, had there been seen in these times a more splendid body of chivalry; and such was their confidence, he adds, that they deemed themselves invincible by any force which the Moslems could bring against them. The leaders took care not to encumber the movements of the army with artillery, camp equipage, or even much forage and provisions, for which they trusted to the invaded territory. A number of persons, however, followed in the train, who, influenced by desire rather of gain than of glory, had come provided with money, as well as commissions from their friends, for the purchase of rich spoil, whether of

slaves, stuffs, or jewels, which they expected would be won by the good swords of their comrades, as in Alhama. [21]

After travelling with little intermission through the night, the army entered the winding defiles of the Axarquia; where their progress was necessarily so much impeded by the character of the ground, that most of the inhabitants of the villages, through which they passed, had opportunity to escape with the greater part of their effects to the inaccessible fastnesses of the mountains. The Spaniards, after plundering the deserted hamlets of whatever remained, as well as of the few stragglers, whether men or cattle, found still lingering about them, set them on fire. In this way they advanced, marking their line of march with the usual devastation that accompanied these ferocious forays, until the columns of smoke and fire, which rose above the hill-tops, announced to the people of Malaga the near approach of an enemy.

The old king Muley Abul Hacen, who lay at this time in the city, with a numerous and well-appointed body of horse, contrary to the reports of the adalides, would have rushed forth at once at their head, had he not been dissuaded from it by his younger brother Abdallah, who is better known in history by the name of El Zagal, or "the Valiant;" an Arabic epithet, given him by his countrymen to distinguish him from his nephew, the ruling king of Granada. To this prince Abul Hacen intrusted the command of the corps of picked cavalry, with instructions to penetrate at once into the lower level of the sierra, and encounter the Christians entangled in its passes; while another division, consisting chiefly of arquebusiers and archers, should turn the enemy's flank by gaining the heights under which he was defiling. This last corps was placed under the direction of Reduan Benegas, a chief of Christian lineage, according to Bernaldez, and who may perhaps be identified with the Reduan that, in the later Moorish ballads, seems to be shadowed forth as the personification of love and heroism. [22]

The Castilian army in the mean time went forward with a buoyant and reckless confidence, and with very little subordination. The divisions occupying the advance and centre, disappointed in their expectations of booty, had quitted the line of march, and dispersed in small parties in search of plunder over the adjacent country; and some of the high-mettled young cavaliers had the audacity to ride up in defiance to the very walls of Malaga. The grand master of St. James was the only leader who kept his columns unbroken, and marched forward in order of battle. Things were in this state, when the Moorish cavalry under El Zagal, suddenly emerging from one of the mountain passes, appeared before the astonished rear-guard of the Christians. The Moors spurred on to the assault, but the well-disciplined chivalry of St. James remained unshaken. In the fierce struggle which ensued, the Andalusians became embarrassed by the narrowness of the ground on which they were engaged, which afforded no scope for the manoeuvres of cavalry; while the Moors, trained to the wild tactics of mountain warfare, went through their usual evolutions, retreating and returning to the charge with a celerity that sorely distressed their opponents and at length threw them into some disorder. The grand master, in consequence, despatched a message to the marquis of Cadiz, requesting his support. The latter, putting himself at the head of such of his scattered forces as he could hastily muster, readily obeyed the summons. Discerning on his approach the real source of the grand master's embarrassment, he succeeded in changing the field of action by drawing off the Moors to an open reach of the valley, which allowed free play to the movements of the Andalusian horse, when the combined squadrons pressed so hard on the Moslems, that they were soon compelled to take refuge within the depths of their own mountains. [23]

In the mean while, the scattered troops of the advance, alarmed by the report of the action, gradually assembled under their respective banners, and fell back upon the rear. A council of war was then called. All further

progress seemed to be effectually intercepted. The country was everywhere in arms. The most that now could be hoped, was, that they might be suffered to retire unmolested with such plunder as they had already acquired. Two routes lay open for this purpose. The one winding along the sea-shore, wide and level, but circuitous, and swept through the whole range of its narrow entrance by the fortress of Malaga. This determined them unhappily to prefer the other route, being that by which they had penetrated the Axarquia, or rather a shorter cut, by which the adalides undertook to conduct them through its mazes. [24]

The little army commenced its retrograde movement with undiminished spirit. But it was now embarrassed with the transportation of its plunder, and by the increasing difficulties of the sierra, which, as they ascended its sides, was matted over with impenetrable thickets, and broken up by formidable ravines or channels, cut deep into the soil by the mountain torrents. The Moors were now seen mustering in considerable numbers along the heights, and, as they were expert marksmen, being trained by early and assiduous practice, the shots from their arquebuses and cross-bows frequently found some assailable point in the harness of the Spanish men- at-arms. At length, the army, through the treachery or ignorance of the guides, was suddenly brought to a halt by arriving in a deep glen or enclosure, whose rocky sides rose with such boldness as to be scarcely practicable for infantry, much less for horse. To add to their distresses, daylight, without which they could scarcely hope to extricate themselves, was fast fading away. [25]

In this extremity no other alternative seemed to remain, than to attempt to regain the route from which they had departed. As all other considerations were now subordinate to those of personal safety, it was agreed to abandon the spoil acquired at so much hazard, which greatly retarded their movements. As they painfully retraced their steps, the darkness of the night

was partially dispelled by numerous fires, which blazed along the hill-tops, and which showed the figures of their enemies flitting to and fro like so many spectres. It seemed, says Bernaldez, as if ten thousand torches were glancing along the mountains. At length, the whole body, faint with fatigue and hunger, reached the borders of a little stream, which flowed through a valley, whose avenues, as well as the rugged heights by which it was commanded, were already occupied by the enemy, who poured down mingled volleys of shot, stones, and arrows on the heads of the Christians. The compact mass presented by the latter afforded a sure mark to the artillery of the Moors; while they, from their scattered position, as well as from the defences afforded by the nature of the ground, were exposed to little annoyance in return. In addition to lighter missiles, the Moors occasionally dislodged large fragments of rock, which, rolling with tremendous violence down the declivities of the hills, spread frightful desolation through the Christian ranks. [26]

The dismay occasioned by these scenes, occurring amidst the darkness of night, and heightened by the shrill war-cries of the Moors, which rose around them on every quarter, seems to have completely bewildered the Spaniards, even their leaders. It was the misfortune of the expedition, that there was but little concert between the several commanders, or, at least, that there was no one so pre-eminent above the rest as to assume authority at this awful moment. So far, it would seem, from attempting escape, they continued in their perilous position, uncertain what course to take, until midnight; when at length, after having seen their best and bravest followers fall thick around them, they determined at all hazards to force a passage across the sierra in the face of the enemy. "Better lose our lives," said the grand master of St. James, addressing his men, "in cutting a way through the foe, than be butchered without resistance, like cattle in the shambles." [27]

The marquis of Cadiz, guided by a trusty adalid, and accompanied by sixty or seventy lances, was fortunate enough to gain a circuitous route less vigilantly guarded by the enemy, whose attention was drawn to the movements of the main body of the Castilian army. By means of this path, the marquis, with his little band, succeeded, after a painful march, in which his good steed sunk under him oppressed with wounds and fatigue, in reaching a valley at some distance from the scene of action, where he determined to wait the coming up of his friends, who he confidently expected would follow on his track. [28]

But the grand master and his associates, missing this track in the darkness of the night, or perhaps preferring another, breasted the sierra in a part where it proved extremely difficult of ascent. At every step the loosened earth gave way under the pressure of the foot, and, the infantry endeavoring to support themselves by clinging to the tails and manes of the horses, the jaded animals, borne down with the weight, rolled headlong with their riders on the ranks below, or were precipitated down the sides of the numerous ravines. The Moors, all the while, avoiding a close encounter, contented themselves with discharging on the heads of their opponents an uninterrupted shower of missiles of every description. [29]

It was not until the following morning, that the Castilians, having surmounted the crest of the eminence, began the descent into the opposite valley, which they had the mortification to observe was commanded on every point by their vigilant adversary, who seemed now in their eyes to possess the powers of ubiquity. As the light broke upon the troops, it revealed the whole extent of their melancholy condition. How different from the magnificent array which, but two days previous, marched forth with such high and confident hopes from the gates of Antequera! their ranks thinned, their bright arms defaced and broken, their banners rent in pieces, or lost,—as had been that of St. James, together with its gallant *alferez*,

Diego Becerra, in the terrible passage of the preceding night,—their countenances aghast with terror, fatigue, and famine. Despair now was in every eye, all subordination was at an end. No one, says Pulgar, heeded any longer the call of the trumpet, or the wave of the banner. Each sought only his own safety, without regard to his comrade. Some threw away their arms; hoping by this means to facilitate their escape, while in fact it only left them more defenceless against the shafts of their enemies. Some, oppressed with fatigue and terror, fell down and died without so much as receiving a wound. The panic was such that, in more than one instance, two or three Moorish soldiers were known to capture thrice their own number of Spaniards. Some, losing their way, strayed back to Malaga and were made prisoners by females of the city, who overtook them in the fields. Others escaped to Alhama or other distant places, after wandering seven or eight days among the mountains, sustaining life on such wild herbs and berries as they could find, and lying close during the day. A greater number succeeded in reaching Antequera, and, among these, most of the leaders of the expedition. The grand master of St. James, the adelantado Henriquez, and Don Alonso de Aguilar effected their escape by scaling so perilous a part of the sierra that their pursuers cared not to follow. The count de Cifuentes was less fortunate. [30] That nobleman's division was said to have suffered more severely than any other. On the morning after the bloody passage of the mountain, he found himself suddenly cut off from his followers, and surrounded by six Moorish cavaliers, against whom he was defending himself with desperate courage, when their leader, Reduan Benegas, struck with the inequality of the combat, broke in, exclaiming, "Hold, this is unworthy of good knights." The assailants sunk back abashed by the rebuke, and left the count to their commander. A close encounter then took place between the two chiefs; but the strength of the Spaniard was no longer equal to his spirit, and, after a brief resistance, he was forced to surrender to his generous enemy. [31]

The marquis of Cadiz had better fortune. After waiting till dawn for the coming up of his friends, he concluded that they had extricated themselves by a different route. He resolved to provide for his own safety and that of his followers, and, being supplied with a fresh horse, accomplished his escape, after traversing the wildest passages of the Axarquía for the distance of four leagues, and got into Antequera with but little interruption from the enemy. But, although he secured his personal safety, the misfortunes of the day fell heavily on his house; for two of his brothers were cut down by his side, and a third brother, with a nephew, fell into the hands of the enemy. [32]

The amount of slain in the two days' actions is admitted by the Spanish writers to have exceeded eight hundred, with double that number of prisoners. The Moorish force is said to have been small, and its loss comparatively trifling. The numerical estimates of the Spanish historians, as usual, appear extremely loose; and the narrative of their enemies is too meagre in this portion of their annals to allow any opportunity of verification. There is no reason, however, to believe them in any degree exaggerated.

The best blood of Andalusia was shed on this occasion. Among the slain, Bernaldez reckons two hundred and fifty, and Pulgar four hundred persons of quality, with thirty commanders of the military fraternity of St. James. There was scarcely a family in the south, but had to mourn the loss of some one of its members by death or captivity; and the distress was not a little aggravated by the uncertainty which hung over the fate of the absent, as to whether they had fallen in the field, or were still wandering in the wilderness, or were pining away existence in the dungeons of Malaga and Granada. [33]

Some imputed the failure of the expedition to treachery in the adalides, some to want of concert among the commanders. The worthy Curate of Los Palacios concludes his narrative of the disaster in the following manner. "The number of the Moors was small, who inflicted this grievous defeat on the Christians. It was, indeed, clearly miraculous, and we may discern in it the special interposition of Providence, justly offended with the greater part of those that engaged in the expedition; who, instead of confessing, partaking the sacrament, and making their testaments, as becomes good Christians, and men that are to bear arms in defence of the Holy Catholic faith, acknowledged that they did not bring with them suitable dispositions, but, with little regard to God's service, were influenced by covetousness and love of ungodly gain." [34]

FOOTNOTES

[1] Estrada, Poblacion de España, tom. ii. pp. 242, 243.—Zurita, Anales, tom. iv. fol. 317.—Cardonne, Hist. d'Afrique et d'Espagne, tom. iii. p. 261.

[2] Bernaldez, Reyes Católicos, MS., cap. 58.—Mariana, Hist. de España, tom. ii, pp. 249, 250.—Cardonne, Hist. d'Afrique et d'Espagne, tom. iii. pp. 259, 260.

[3] L. Marineo, Cosas Memorables, fol. 173.—Pulgar, Reyes Católicos, p. 187.—Zurita, Anales, tom. iv. fol. 316, 317.

[4] Rades y Andrada, Las Tres Ordenes, fol. 80, 81.—L. Marineo, Cosas Memorables, fol. 173.—Lebrija, Rerum Gestarum Decades, ii. lib. 1, cap. 7.—Conde, Dominacion de los Arabes, tom. iii. p. 214.—Carbajal, Anales, MS., año 1482.

[5] Pulgar, Reyes Católicos, pp. 189-191.—Bernaldez, Reyes Católicos, MS., cap. 58.—Conde, Dominacion de los Arabes, tom. iii. pp. 214-217.—Cardonne, Hist. d'Afrique et d'Espagne, tom. iii. pp. 260, 261.

[6] Bernaldez, Reyes Católicos, MS., cap. 58.—Conde, Dominacion de los Arabes, tom. iii. pp. 214-217.—Pulgar, Reyes Católicos, ubi supra.—Lebrija, Rerum Gestarum Decades, ii. lib. 1, cap. 7.—The *Peña de los Enamorados* received its name from a tragical incident in Moorish history. A Christian slave succeeded in inspiring the daughter of his master, a wealthy Mussulman of Granada, with a passion for himself. The two lovers, after some time, fearful of the detection of their intrigue, resolved to mate their escape into the Spanish territory. Before they could effect their purpose, however, they were hotly pursued by the damsel's father at the head of a party of Moorish horsemen, and overtaken near a precipice which rises between Archidona and Antequera. The unfortunate fugitives, who had scrambled to the summit of the rocks, finding all further escape impracticable, after tenderly embracing each other threw themselves headlong from the dizzy heights, preferring this dreadful death to falling into the hands of their vindictive pursuers. The spot consecrated as the scene of this tragic incident has received the name of *Rock of the Lovers*. The legend is prettily told by Mariana, (Hist. de España, tom. ii. pp. 253, 254,) who concludes with the pithy reflection, that "such constancy would have been truly admirable, had it been shown in defence of the true faith, rather than in the gratification of lawless appetite."

[7] Conde, Dominacion de los Arabes, tom. iii. pp. 214-217.—Cardonne, Hist. d'Afrique et d'Espagne, tom. iii. pp. 262, 263.—Marmol, Rebelion de Moriscos, lib. 1, cap. 12.—Bernaldez states that great umbrage was taken at the influence which the king of Granada allowed a person of Christian lineage, named Venegas, to exercise over him. Pulgar hints at the bloody massacre of the Abencerrages, which, without any better authority that I

know of, forms the burden of many an ancient ballad, and has lost nothing of its romantic coloring under the hand of Cinés Perez de Hyta.

[8] Cardonne, Hist. d'Afrique et d'Espagne, ubi supra.—Conde, Dominacion de los Arabes, ubi supra.

Boabdil was surnamed "el Chico," *the Little*, by the Spanish writers, to distinguish him from an uncle of the same name; and "el Zogoybi," *the Unfortunate*, by the Moors, indicating that he was the last of his race destined to wear the diadem of Granada. The Arabs, with great felicity, frequently select names significant of some quality in the objects they represent. Examples of this may be readily found in the southern regions of the Peninsula, where the Moors lingered the longest. The etymology of Gibraltar, Gebal Tarik, *Mount of Tarik*, is well known. Thus, Algeziras comes from an Arabic word which signifies *an island*: Alpuxarras comes from a term signifying *herbage* or *pasturage*: Arrecife from another, signifying *causeway* or *high road*, etc. The Arabic word *wad* stands for *river*. This without much violence has been changed into *guad*, and enters into the names of many of the southern streams; for example, Guadalquivir, *great river*, Guadiana, *narrow* or *little river*, Guadalete, etc. In the same manner the term Medina, *Arabicè* "city," has been retained as a prefix to the names of many of the Spanish towns, as Medina Celi, Medina del Campo, etc. See Conde's notes to El Nubiense, Description de España, passim.

[9] Salazar de Mendoza, Crón. del Gran Cardenal, p. 181.—Pulgar, Claros Varones, tit. 20.—Carbajal, Anales, MS., año 1483.—Aleson, Annales de Navarra, tom. v. p. 11, ed. 1766.—Peter Martyr, Opus Epist., epist. 158.

[10] Fred. Marslaar, De Leg. 2, 11.—M. de Wicquefort derives the word *ambassadeur* (anciently in English *ambassador*) from the Spanish word

embiar, "to send." See Rights of Embassadors, translated by Digby (London, 1740,) book 1, chap. 1.

[11] Sismondi, Républiques Italiennes, tom. xi. cap. 88.—Pulgar, Reyes Católicos, pp. 195-198.—Zurita, Anales, tom iv. fol. 218.

[12] Aleson, Annales de Navarre, lib. 34, cap. 1.—Histoire du Royaume de Navarre, p. 558. Leonora's son, Gaston de Foix, prince of Viana, was slain by an accidental wound from a lance, at a tourney at Lisbon, in 1469. By the princess Magdeleine, his wife, sister of Louis XI, he left two children, a son and daughter, each of whom in turn succeeded to the crown of Navarre. Francis Phoebus ascended the throne on the demise of his grandmother Leonora, in 1479. He was distinguished by his personal graces and beauty, and especially by the golden lustre of his hair, from which, according to Aleson, he derived his cognomen of Phoebus. As it was an ancestral name, however, such an etymology may be thought somewhat fanciful.

[13] Ferdinand and Isabella had at this time four children; the infant Don John, four years and a half old, but who did not live to come to the succession, and the infantas Isabella, Joanna, and Maria; the last, born at Cordova during the summer of 1482.

[14] Aleson, Annales de Navarre, lib. 34, cap. 2; lib. 35, cap. 1.—Histoire du Royaume de Navarre, pp. 578, 579.—La Clède, Hist. de Portugal, tom. iii. pp. 438-441.—Pulgar, Reyes Católicos, p. 199.—Mariana, Hist. de España, tom. ii. p. 551.

[15] Lebrija, Rerum Gestarum Decades, ii. lib. 2, cap. 1.

Besides the armada in the Mediterranean, a fleet under Pedro de Vera was prosecuting a voyage of discovery and conquest to the Canaries at this time.

[16] Pulgar, Reyes Católicos, p. 199.—Mariana, tom. ii. p. 551.—Coleccion de Cédulas y Otros Documentos, (Madrid, 1829,) tom. iii. no. 25.

For this important collection, a few copies of which, only, were printed for distribution, at the expense of the Spanish government, I am indebted to the politeness of Don A. Calderon de la Barca.

[17] Bernaldez, Reyes Católicos, MS., cap. 58.—Pulgar, Reyes Católicos, p. 202.

Juan de Corral imposed on the king of Granada by means of certain credentials, which he had obtained from the Spanish sovereigns without any privity on their part to his fraudulent intentions. The story is told in a very blind manner by Pulgar.

It may not be amiss to mention here a doughty feat performed by another Castilian envoy, of much higher rank, Don Juan de Vera. This knight, while conversing with certain Moorish cavaliers in the Alhambra, was so much scandalized by the freedom with which one of them treated the immaculate conception, that he gave the circumcised dog the lie, and smote him a sharp blow on the head with his sword. Ferdinand, say Bernaldez, who tells the story, was much gratified with the exploit, and recompensed the good knight with many honors.

[18] The *adalid* was a guide, or scout, whose business it was to make himself acquainted with the enemy's country, and to guide the invaders into it. Much dispute has arisen respecting the authority and functions of this officer. Some writers regard him as an independent leader, or commander; and the Dictionary of the Academy defines the term *adalid* by these very words. The Siete Partidas, however, explains at length the peculiar duties of this officer, conformably to the account I have given. (Ed. de la Real Acad. (Madrid, 1807,) part. 2, tit. 2, leyes 1-4.) Bernaldez, Pulgar, and the other

chroniclers of the Granadine war, repeatedly notice him in this connection. When he is spoken of as a captain, or leader, as he sometimes is in these and other ancient records, his authority, I suspect, is intended to be limited to the persons who aided him in the execution of his peculiar office.—It was common for the great chiefs, who lived on the borders, to maintain in their pay a number of these *adalides*, to inform them of the fitting time and place for making a foray. The post, as may well be believed, was one of great trust and personal hazard.

[19] Pulgar, Reyes Católicos, p. 203.—L. Marineo, Cosas Memorables, fol. 173.—Zurita, Anales, tom. iv. fol. 320.

[20] Oviedo, Quincuagenas, MS., bat. 1, quinc. 1, dial. 36.—Lebrija, Rerum Gestarum Decades, ii. lib. 2, cap. 2.

The title of *adelantado* implies in its etymology one preferred or placed before others. The office is of great antiquity; some have derived it from the reign of St. Ferdinand in the thirteenth century, but Mendoza proves its existence at a far earlier period. The adelantado was possessed of very extensive judicial authority in the province or district in which he presided, and in war was invested with supreme military command. His functions, however, as well as the territories over which he ruled, have varied at different periods. An adelantado seems to have been generally established over a border province, as Andalusia for example. Marina discusses the civil authority of this officer, in his Teoría, tom. ii. cap. 23. See also Salazar de Mendoza, Dignidades, lib. 2, cap. 15.

[21] Bernaldez, Reyes Católicos, MS., cap. 60.—Rades y Andrada, Las Tres Ordenes, fol. 71.—Zurita, Anales, tom. iv. fol. 320.—Zuñiga, Annales de Sevilla, fol. 395.—Lebrija, Rerum Gestarum Decades, ii. lib. 2, cap. 2.—Oviedo, Quincuagenas, MS., bat. 1, quinc. 1, dial. 36.

[22] Conde, *Dominacion de los Arabes*, tom. iii. p. 217.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. pp. 264-267.—Bernaldez, *Reyes Católicos*, MS., cap. 60.

[23] Conde, *Dominacion de los Arabes*, tom. iii. p. 217.—Pulgar, *Reyes Católicos*, p. 204.—Rades y Andrada, *Las Tres Ordenes*, fol. 71, 72.

[24] Mariana, *Hist. de España*, tom. ii. pp. 552, 553.—Pulgar, *Reyes Católicos*, p. 205.—Zurita, *Anales*, tom. iv. fol. 321.

[25] Pulgar, *Reyes Católicos*, p. 205.—Garibay, *Compendio*, tom. ii. p. 636.

[26] Bernaldez, *Reyes Católicos*, MS., cap. 60.—Pulgar, *Reyes Católicos*, *ubi supra*.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. pp. 264-267.

[27] Pulgar, *Reyes Católicos*, p. 206.—Rades y Andrada, *Las Tres Ordenes*, fol. 71, 72.

[28] Pulgar, *Reyes Católicos*, *loc. cit.*—Bernaldez, *Reyes Católicos*, MS., cap. 60.

[29] Pulgar, *Reyes Católicos*, p. 206. Mr. Irving, in his "Conquest of Granada," states that the scene of the greatest slaughter in this rout is still known to the inhabitants of the Axarquía by the name of *La Cuesta de la Matanza*, or "The Hill of the Massacre."

[30] Oviedo, who devotes one of his dialogues to this nobleman, says of him, "Fue una de las buenas lanzos de nuestra España en su tiempo; y muy sabio y prudente caballero. Hallose en grandes cargos y negocios de paz y de guerra." *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 36.

[31] Conde, *Dominacion de los Arabes*, tom. iii, p. 218.—Zurita, *Anales*, tom. iv. fol. 321.—Carbajal, *Anales*, MS., año 1483.—Pulgar, *Reyes Católicos*, ubi supra.—Bernaldez, *Reyes Católicos*, MS., cap. 60.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. pp. 266, 267.—The count, according to Oviedo, remained a long while a prisoner in Granada, until he was ransomed by the payment of several thousand doblas of gold. *Quincuagenas*, MS., bat. 1, quinc. 1, dial 36.

[32] Bernaldez, *Reyes Católicos*, MS., cap. 60.—Marmol says that three brothers and two nephews of the marquis, whose names he gives, were all slain. *Rebellion de Moriscos*, lib. 1, cap. 12.

[33] Zuñiga, *Annales de Sevilla*, fol. 395.—Bernaldez, *Reyes Católicos*, MS., ubi supra.—Pulgar, *Reyes Católicos*, p. 206.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 1, dial. 38.—Marmol, *Rebellion de Moriscos*, lib. 1, cap. 12.

[34] *Reyes Católicos*, MS., cap. 60. Pulgar has devoted a large space to the unfortunate expedition to the Axarquia. His intimacy with the principal persons of the court enabled him, no doubt, to verify most of the particulars which he records. The Curate of Los Palacios, from the proximity of his residence to the theatre of action, may be supposed also to have had ample means for obtaining the requisite information. Yet their several accounts, although not strictly contradictory, it is not always easy to reconcile with one another. The narratives of complex military operations are not likely to be simplified under the hands of monkish bookmen. I have endeavored to make out a connected tissue from a comparison of the Moslem with the Castilian authorities. But here the meagreness of the Moslem annals compels us to lament the premature death of Conde. It can hardly be expected, indeed, that the Moors should have dwelt with much amplification on this humiliating period. But there can be little doubt, that

far more copious memorials of theirs than any now published, exist in the Spanish libraries; and it were much to be wished that some Oriental scholar would supply Conde's deficiency, by exploring these authentic records of what may be deemed, as far as Christian Spain is concerned, the most glorious portion of her history.

CHAPTER XI.

WAR OF GRANADA.—GENERAL VIEW OF THE POLICY PURSUED IN THE CONDUCT OF THIS WAR

1483-1487.

Defeat and Capture of Abdallah.—Policy of the Sovereigns.—Large Trains

of Artillery.—Description of the Pieces.—Stupendous Roads.—Isabella's Care of the Troops.—Her Perseverance.—Discipline of the Army.—Swiss Mercenaries.—English Lord Scales.—Magnificence of the Nobles.—Isabella

Visits the Camp.—Ceremonies on the Occupation of a City.

The young monarch, Abu Abdallah, was probably the only person in Granada who did not receive with unmingled satisfaction the tidings of the rout in the Axarquía. He beheld with secret uneasiness the laurels thus acquired by the old king his father, or rather by his ambitious uncle El Zagal, whose name now resounded from every quarter as the successful champion of the Moslems. He saw the necessity of some dazzling enterprise, if he would maintain an ascendancy even over the faction which had seated him on the throne. He accordingly projected an excursion, which, instead of terminating in a mere border foray, should lead to the achievement of some permanent conquest.

He found no difficulty, while the spirits of his people were roused, in raising a force of nine thousand foot, and seven hundred horse, the flower of Granada's chivalry. He strengthened his army still further by the presence of Ali Atar, the defender of Loja, the veteran of a hundred battles, whose military prowess had raised him from the common file up to the highest post in the army; and whose plebeian blood had been permitted to mingle with that of royalty, by the marriage of his daughter with the young king Abdallah.

With this gallant array, the Moorish monarch sallied forth from Granada. As he led the way through the avenue which still bears the name of the gate of Elvira, [1] the point of his lance came in contact with the arch and was broken. This sinister omen was followed by another more alarming. A fox, which crossed the path of the army, was seen to run through the ranks, and, notwithstanding the showers of missiles discharged at him, to make his escape unhurt. Abdallah's counsellors would have persuaded him to abandon, or at least postpone, an enterprise of such ill augury. But the king, less superstitious, or from the obstinacy with which feeble minds, when once resolved, frequently persist in their projects, rejected their advice, and pressed forward on his march. [2]

The advance of the party was not conducted so cautiously but that it reached the ear of Don Diego Fernandez de Cordova, *alcayde de los donzeles*, or captain of the royal pages, who commanded in the town of Lucena, which he rightly judged was to be the principal object of attack. He transmitted the intelligence to his uncle the count of Cabra, a nobleman of the same name with himself, who was posted at his own town of Baena, requesting his support. He used all diligence in repairing the fortifications of the city, which, although extensive and originally strong, had fallen somewhat into decay; and, having caused such of the population as were

rendered helpless by age or infirmity to withdraw into the interior defences of the place, he coolly waited the approach of the enemy. [3]

The Moorish army, after crossing the borders, began to mark its career through the Christian territory with the usual traces of devastation, and, sweeping across the environs of Lucena, poured a marauding foray into the rich *campiña* of Cordova, as far as the walls of Aguilar; whence it returned, glutted with spoil, to lay siege to Lucena about the 21st of April.

The count of Cabra, in the mean while, who had lost no time in mustering his levies, set forward at the head of a small but well-appointed force, consisting of both horse and foot, to the relief of his nephew. He advanced with such celerity that he had wellnigh surprised the beleaguering army. As he traversed the sierra, which covered the Moorish flank, his numbers were partially concealed by the inequalities of the ground; while the clash of arms and the shrill music, reverberating among the hills, exaggerated their real magnitude in the apprehension of the enemy. At the same time the *alcayde de los donzeles* supported his uncle's advance by a vigorous sally from the city. The Granadine infantry, anxious only for the preservation of their valuable booty, scarcely waited for the encounter, before they began a dastardly retreat, and left the battle to the cavalry. The latter, composed, as has been said, of the strength of the Moorish chivalry, men accustomed in many a border foray to cross lances with the best knights of Andalusia, kept their ground with their wonted gallantry. The conflict, so well disputed, remained doubtful for some time, until it was determined by the death of the veteran chieftain Ali Atar, "the best lance," as a Castilian writer has styled him, "of all Morisma," who was brought to the ground after receiving two wounds, and thus escaped by an honorable death the melancholy spectacle of his country's humiliation. [4]

The enemy, disheartened by this loss, soon began to give ground. But, though hard pressed by the Spaniards, they retreated in some order, until they reached the borders of the Xenil, which were thronged with the infantry, vainly attempting a passage across the stream, swollen by excessive rains to a height much above its ordinary level. The confusion now became universal, horse and foot mingling together; each one, heedful only of life, no longer thought of his booty. Many, attempting to swim the stream, were borne down, steed and rider, promiscuously in its waters. Many more, scarcely making show of resistance, were cut down on the banks by the pitiless Spaniards. The young king Abdallah, who had been conspicuous during that day in the hottest of the fight, mounted on a milk-white charger richly caparisoned, saw fifty of his loyal guard fall around him. Finding his steed too much jaded to stem the current of the river, he quietly dismounted and sought a shelter among the reedy thickets that fringed its margin, until the storm of battle should have passed over. In this lurking-place, however, he was discovered by a common soldier named Martin Hurtado, who, without recognizing his person, instantly attacked him. The prince defended himself with his scimitar, until Hurtado, being joined by two of his countrymen, succeeded in making him prisoner. The men, overjoyed at their prize (for Abdallah had revealed his rank, in order to secure his person from violence), conducted him to their general, the count of Cabra. The latter received the royal captive with a generous courtesy, the best sign of noble breeding, and which, recognized as a feature of chivalry, affords a pleasing contrast to the ferocious spirit of ancient warfare. The good count administered to the unfortunate prince all the consolations which his state would admit; and subsequently lodged him in his castle of Baena, where he was entertained with the most delicate and courtly hospitality. [5]

Nearly the whole of the Moslem cavalry were cut up, or captured, in this fatal action. Many of them were persons of rank, commanding high

ransoms. The loss inflicted on the infantry was also severe, including the whole of their dear-bought plunder. Nine, or indeed, according to some accounts, two and twenty banners fell into the hands of the Christians in this action; in commemoration of which the Spanish sovereigns granted to the count of Cabra, and his nephew, the alcaide de los donzeles, the privilege of bearing the same number of banners on their escutcheon, together with the head of a Moorish king, encircled by a golden coronet, with a chain of the same metal around the neck. [6]

Great was the consternation occasioned by the return of the Moorish fugitives to Granada, and loud was the lament through its populous streets; for the pride of many a noble house was laid low on that day, and their king (a thing unprecedented in the annals of the monarchy) was a prisoner in the land of the Christians. "The hostile star of Islam," exclaims an Arabian writer, "now scattered its malignant influences over Spain, and the downfall of the Mussulman empire was decreed."

The sultana Zoraya, however, was not of a temper to waste time in useless lamentation. She was aware that a captive king, who held his title by so precarious a tenure as did her son Abdallah, must soon cease to be a king even in name. She accordingly despatched a numerous embassy to Cordova, with proffers of such a ransom for the prince's liberation, as a despot only could offer, and few despots could have the authority to enforce. [7]

King Ferdinand, who was at Vitoria with the queen, when he received tidings of the victory of Lucena, hastened to the south to determine on the destination of his royal captive. With some show of magnanimity, he declined an interview with Abdallah, until he should have consented to his liberation. A debate of some warmth occurred in the royal council at Cordova, respecting the policy to be pursued; some contending that the

Moorish monarch was too valuable a prize to be so readily relinquished, and that the enemy, broken by the loss of their natural leader, would find it difficult to rally under one common head, or to concert any effective movement. Others, and especially the marquis of Cadiz, urged his release, and even the support of his pretensions against his competitor, the old king of Granada; insisting that the Moorish empire would be more effectually shaken by internal divisions, than by any pressure of its enemies from without. The various arguments were submitted to the queen, who still held her court in the north, and who decided for the release of Abdallah, as a measure best reconciling sound policy with generosity to the vanquished. [8]

The terms of the treaty, although sufficiently humiliating to the Moslem prince, were not materially different from those proposed by the sultana Zoraya. It was agreed that a truce, of two years should be extended to Abdallah, and to such places in Granada as acknowledged his authority. In consideration of which, he stipulated to surrender four hundred Christian captives without ransom, to pay twelve thousand doblas of gold annually to the Spanish sovereigns, and to permit a free passage, as well as furnish supplies, to their troops passing through his territories, for the purpose of carrying on the war against that portion of the kingdom which still adhered to his father. Abdallah moreover bound himself to appear when summoned by Ferdinand, and to surrender his own son, with the children of his principal nobility, as sureties for his fulfilment of the treaty. Thus did the unhappy prince barter away his honor and his country's freedom for the possession of immediate, but most precarious sovereignty; a sovereignty, which could scarcely be expected to survive the period when he could be useful to the master whose breath had made him. [9]

The terms of the treaty being thus definitively settled, an interview was arranged to take place between the two monarchs at Cordova. The Castilian

courtiers would have persuaded their master to offer his hand for Abdallah to salute, in token of his feudal supremacy; but Ferdinand replied, "Were the king of Granada in his own dominions, I might do this; but not while he is a prisoner in mine." The Moorish prince entered Cordova with an escort of his own knights, and a splendid throng of Spanish chivalry, who had marched out of the city to receive him. When Abdallah entered the royal presence, he would have prostrated himself on his knees; but Ferdinand, hastening to prevent him, embraced him with every demonstration of respect. An Arabic interpreter, who acted as orator, then, expatiated, in florid hyperbole, on the magnanimity and princely qualities of the Spanish king, and the loyalty and good faith of his own master. But Ferdinand interrupted his eloquence, with the assurance that "his panegyric was superfluous, and that he had perfect confidence that the sovereign of Granada would keep his faith as became a true knight and a king." After ceremonies so humiliating to the Moorish prince, notwithstanding the veil of decorum studiously thrown over them, he set out with his attendants for his capital, escorted by a body of Andalusian horse to the frontier, and loaded with costly presents by the Spanish king, and the general contempt of his court. [10]

Notwithstanding the importance of the results in the war of Granada, a detail of the successive steps by which they were achieved would be most tedious and trifling. No siege or single military achievement of great moment occurred until nearly four years from this period, in 1487; although, in the intervening time, a large number of fortresses and petty towns, together with a very extensive tract of territory, were recovered from the enemy. Without pursuing the chronological order of events, it is probable that the end of history will be best attained by presenting a concise view of the general policy pursued by the sovereigns in the conduct of the war.

The Moorish wars under preceding monarchs had consisted of little else than *cavalgadas*, or inroads into the enemy's territory, [11] which, pouring like a torrent over the land, swept away whatever was upon the surface, but left it in its essential resources wholly unimpaired. The bounty of nature soon repaired the ravages of man, and the ensuing harvest seemed to shoot up more abundantly from the soil, enriched by the blood of the husbandman. A more vigorous system of spoliation was now introduced. Instead of one campaign, the army took the field in spring and autumn, intermitting its efforts only during the intolerable heats of summer, so that the green crop had no time to ripen, ere it was trodden down under the iron heel of war.

The apparatus for devastation was also on a much greater scale than had ever before been witnessed. From the second year of the war, thirty thousand foragers were reserved for this service, which they effected by demolishing farmhouses, granaries, and mills, (which last were exceedingly numerous in a land watered by many small streams,) by eradicating the vines, and laying waste the olive-gardens and plantations of oranges, almonds, mulberries, and all the rich varieties that grew luxuriant in this highly-favored region. This merciless devastation extended for more than two leagues on either side of the line of march. At the same time, the Mediterranean fleet cut off all supplies from the Barbary coast, so that the whole kingdom might be said to be in a state of perpetual blockade. Such and so general was the scarcity occasioned by this system, that the Moors were glad to exchange their Christian captives for provisions, until such ransom was interdicted by the sovereigns, as tending to defeat their own measures. [12]

Still there was many a green and sheltered valley in Granada, which yielded its returns unmolested to the Moorish husbandman; while his granaries were occasionally enriched with the produce of a border foray.

The Moors too, although naturally a luxurious people, were patient of suffering, and capable of enduring great privation. Other measures, therefore, of a still more formidable character, became necessary in conjunction with this rigorous system of blockade.

The Moorish towns were for the most part strongly defended, presenting within the limits of Granada, as has been said, more than ten times the number of fortified places that are now scattered over the whole extent of the Peninsula. They stood along the crest of some precipice, or bold sierra, whose natural strength was augmented by the solid masonry with which they were surrounded, and which, however insufficient to hold out against modern artillery, bade defiance to all the enginery of battering warfare known previously to the fifteenth century. It was this strength of fortification, combined with that of their local position, which frequently enabled a slender garrison in these places to laugh to scorn all the efforts of the proudest Castilian armies.

The Spanish sovereigns were convinced that they must look to their artillery as the only effectual means for the reduction of these strong-holds. In this, they as well as the Moors were extremely deficient, although Spain appears to have furnished earlier examples of its use than any other country in Europe. Isabella, who seems to have had the particular control of this department, caused the most skilful engineers and artisans to be invited into the kingdom from France, Germany, and Italy. Forges were constructed in the camp, and all the requisite materials prepared for the manufacture of cannon, balls, and powder. Large quantities of the last were also imported from Sicily, Flanders, and Portugal. Commissaries were established over the various departments, with instructions to provide whatever might be necessary for the operatives; and the whole was intrusted to the supervision of Don Francisco Ramirez, an hidalgo of Madrid, a person of much experience, and extensive military science, for that day. By these efforts,

unremittingly pursued during the whole of the war, Isabella assembled a train of artillery, such as was probably not possessed at that time by any other European potentate. [13]

Still, the clumsy construction of the ordnance betrayed the infancy of the art. More than twenty pieces of artillery used at the siege of Baza, during this war, are still to be seen in that city, where they long served as columns in the public market-place. The largest of the lombards, as the heavy ordnance was called, are about twelve feet in length, consisting of iron bars two inches in breadth, held together by bolts and rings of the same metal. These were firmly attached to their carriages, incapable either of horizontal or vertical movement. It was this clumsiness of construction which led Machiavelli, some thirty years after, to doubt the expediency of bringing cannon into field engagements; and he particularly recommends in his treatise on the Art of War, that the enemy's fire should be evaded by intervals in the ranks being left open opposite to his cannon. [14]

The balls thrown from these engines were sometimes of iron, but more usually of marble. Several hundred of the latter have been picked up in the fields around Baza, many of which are fourteen inches in diameter, and weigh a hundred and seventy-five pounds. Yet this bulk, enormous as it appears, shows a considerable advance in the art since the beginning of the century, when the stone balls discharged, according to Zurita, at the siege of Balaguer, weighed not less than five hundred and fifty pounds. It was very long before the exact proportions requisite for obtaining the greatest effective force could be ascertained. [15]

The awkwardness with which their artillery was served, corresponded with the rudeness of its manufacture. It is noticed as a remarkable circumstance by the chronicler, that two batteries, at the siege of Albahar, discharged one hundred and forty balls in the course of a day. [16] Besides

this more usual kind of ammunition, the Spaniards threw from their engines large globular masses, composed of certain inflammable ingredients mixed with gunpowder, "which, scattering long trains of light," says an eye-witness, "in their passage through the air, filled the beholders with dismay, and, descending on the roofs of the edifices, frequently occasioned extensive conflagration." [17]

The transportation of their bulky engines was not the least of the difficulties which the Spaniards had to encounter in this war. The Moorish fortresses were frequently intrenched in the depths of some mountain labyrinth, whose rugged passes were scarcely accessible to cavalry. An immense body of pioneers, therefore, was constantly employed in constructing roads for the artillery across these sierras, by levelling the mountains, filling up the intervening valleys with rocks, or with cork trees and other timber that grew prolific in the wilderness, and throwing bridges across the torrents and precipitous *barrancos*. Pulgar had the curiosity to examine one of the causeways thus constructed preparatory to the siege of Cambil, which, although six thousand pioneers were constantly employed in the work, was attended with such difficulty, that it advanced only three leagues in twelve days. It required, says the historian, the entire demolition of one of the most rugged parts of the sierra, which no one could have believed practicable by human industry. [18]

The Moorish garrisons, perched on their mountain fastnesses, which, like the eyry of some bird of prey, seemed almost inaccessible to man, beheld with astonishment the heavy trains of artillery, emerging from the passes, where the foot of the hunter had scarcely been known to venture. The walls which encompassed their cities, although lofty, were not of sufficient thickness to withstand long the assaults of these formidable engines. The Moors were deficient in heavy ordnance. The weapons on which they chiefly relied for annoying the enemy at a distance were the arquebus and

cross-bow, with the last of which they were unerring marksmen, being trained to it from infancy. They adopted a custom, rarely met with in civilized nations of any age, of poisoning their arrows; distilling for this purpose the juice of aconite, or wolfsbane, which they found in the *Sierra Nevada*, or Snowy Mountains, near Granada. A piece of linen or cotton cloth steeped in this decoction was wrapped round the point of the weapon, and the wound inflicted by it, however trivial in appearance, was sure to be mortal. Indeed, a Spanish writer, not content with this, imputes such malignity to the virus that a drop of it, as he asserts, mingling with the blood oozing from a wound, would ascend the stream into the vein, and diffuse its fatal influence over the whole system! [19]

Ferdinand, who appeared at the head of his armies throughout the whole of this war, pursued a sagacious policy in reference to the beleaguered cities. He was ever ready to meet the first overtures to surrender, in the most liberal spirit; granting protection of person, and such property as the besieged could transport with them, and assigning them a residence, if they preferred it, in his own dominions. Many, in consequence of this, migrated to Seville and other cities of Andalusia, where they were settled on estates which had been confiscated by the inquisitors; who looked forward, no doubt, with satisfaction to the time, when they should be permitted to thrust their sickle into the new crop of heresy, whose seeds were thus sown amid the ashes of the old one. Those who preferred to remain in the conquered Moorish territory, as Castilian subjects, were permitted the free enjoyment of personal rights and property, as well as of their religion; and, such was the fidelity with which Ferdinand redeemed his engagements during the war, by the punishment of the least infraction of them by his own people, that many, particularly of the Moorish peasantry, preferred abiding in their early homes to removing to Granada, or other places of the Moslem dominion. It was perhaps a counterpart of the same policy, which led Ferdinand to chastise any attempt at revolt, on the part of his new Moorish

subjects, the Mudejares, as they were called, with an unsparing rigor, which merits the reproach of cruelty. Such was the military execution inflicted on the rebellious town of Benemaquez, where he commanded one hundred and ten of the principal inhabitants to be hung above the walls, and, after consigning the rest of the population, men, women, and children, to slavery, caused the place to be razed to the ground. The humane policy, usually pursued by Ferdinand, seems to have had a more favorable effect on his enemies, who were exasperated, rather than intimidated, by this ferocious act of vengeance. [20]

The magnitude of the other preparations corresponded with those for the ordnance department. The amount of forces assembled at Cordova, we find variously stated at ten or twelve thousand horse, and twenty, and even forty thousand foot, exclusive of foragers. On one occasion, the whole number, including men for the artillery service and the followers of the camp, is reckoned at eighty thousand. The same number of beasts of burden were employed in transporting the supplies required for this immense host, as well as for provisioning the conquered cities standing in the midst of a desolated country. The queen, who took this department under her special cognizance, moved along the frontier, stationing herself at points most contiguous to the scene of operations. There, by means of posts regularly established, she received hourly intelligence of the war. At the same time she transmitted the requisite munitions for the troops, by means of convoys sufficiently strong to secure them against the irruptions of the wily enemy. [21]

Isabella, solicitous for everything that concerned the welfare of her people, sometimes visited the camp in person, encouraging the soldiers to endure the hardships of war, and relieving their necessities by liberal donations of clothes and money. She caused also a number of large tents, known as "the queen's hospitals," to be always reserved for the sick and

wounded, and furnished them with the requisite attendants and medicines, at her own charge. This is considered the earliest attempt at the formation of a regular camp hospital, on record. [22]

Isabella may be regarded as the soul of this war. She engaged in it with the most exalted views, less to acquire territory than to re-establish the empire of the Cross over the ancient domain of Christendom. On this point, she concentrated all the energies of her powerful mind, never suffering herself to be diverted by any subordinate interest from this one great and glorious object. When the king, in 1484, would have paused a while from the Granadine war, in order to prosecute his claims to Roussillon against the French, on the demise of Louis the Eleventh, Isabella strongly objected to it; but, finding her remonstrance ineffectual, she left her husband in Aragon, and repaired to Cordova, where she placed the cardinal of Spain at the head of the army, and prepared to open the campaign in the usual vigorous manner. Here, however, she was soon joined by Ferdinand, who, on a cooler revision of the subject, deemed it prudent to postpone his projected enterprise.

On another occasion, in the same year, when the nobles, fatigued with the service, had persuaded the king to retire earlier than usual, the queen, dissatisfied with the proceeding, addressed a letter to her husband, in which, after representing the disproportion of the results to the preparations, she besought him to keep the field as long as the season should serve. The grandees, says Lebrija, mortified at being surpassed in zeal for the holy war by a woman, eagerly collected their forces, which had been partly disbanded, and returned across the borders to renew hostilities. [23]

A circumstance, which had frequently frustrated the most magnificent military enterprises under former reigns, was the factions of these potent vassals, who, independent of each other, and almost of the crown, could

rarely be brought to act in efficient concert for a length of time, and broke up the camp on the slightest personal jealousy, Ferdinand experienced something of this temper in the duke of Medina Celi, who, when he had received orders to detach a corps of his troops to the support of the count of Benavente, refused, replying to the messenger, "Tell your master, that I came here to serve him at the head of my household troops, and they go nowhere without me as their leader." The sovereigns managed this fiery spirit with the greatest address, and, instead of curbing it, endeavored to direct it in the path of honorable emulation. The queen, who as their hereditary sovereign received a more deferential homage from her Castilian subjects than Ferdinand, frequently wrote to her nobles in the camp, complimenting some on their achievements, and others less fortunate on their intentions, thus cheering the hearts of all, says the chronicler, and stimulating them to deeds of heroism. On the most deserving she freely lavished those honors which cost little to the sovereign, but are most grateful to the subject. The marquis of Cadiz, who was pre-eminent above every other captain in this war for sagacity and conduct, was rewarded, after his brilliant surprise of Zahara, with the gift of that city, and the titles of Marquis of Zahara and Duke of Cadiz. The warrior, however, was unwilling to resign the ancient title under which he had won his laurels, and ever after subscribed himself, Marquis Duke of Cadiz. [24] Still more emphatic honors were conferred on the count de Cabra, after the capture of the king of Granada. When he presented himself before the sovereigns, who were at Vitoria, the clergy and cavaliers of the city marched out to receive him, and he entered in solemn procession on the right hand of the grand cardinal of Spain. As he advanced up the hall of audience in the royal palace, the king and queen came forward to welcome him, and then seated him by themselves at table, declaring that "the conqueror of kings should sit with kings." These honors were followed by the more substantial gratuity of a hundred thousand maravedies annual rent; "a fat donative," says an old

chronicler, "for so lean a treasury." The young alcayde de los donzeles experienced a similar reception on the ensuing day. Such acts of royal condescension were especially grateful to the nobility of a court, circumscribed beyond every other in Europe by stately and ceremonious etiquette. [25]

The duration of the war of Granada was such as to raise the militia throughout the kingdom nearly to a level with regular troops. Many of these levies, indeed, at the breaking out of the war, might pretend to this character. Such were those furnished by the Andalusian cities, which had been long accustomed to skirmishes with their Moslem neighbors. Such too was the well-appointed chivalry of the military orders, and the organized militia of the hermandad, which we find sometimes supplying a body of ten thousand men for the service. To these may be added the splendid throng of cavaliers and hidalgos, who swelled the retinues of the sovereigns and the great nobility. The king was attended in battle by a body-guard of a thousand knights, one-half light, and the other half heavy armed, all superbly equipped and mounted, and trained to arms from childhood, under the royal eye.

Although the burden of the war bore most heavily on Andalusia, from its contiguity to the scene of action, yet recruits were drawn in abundance from the most remote provinces, as Galicia, Biscay, and the Asturias, from Aragon, and even the transmarine dominions of Sicily. The sovereigns did not disdain to swell their ranks with levies of a humbler description, by promising an entire amnesty to those malefactors, who had left the country in great numbers of late years to escape justice, on condition of their serving in the Moorish war. Throughout this motley host the strictest discipline and decorum were maintained. The Spaniards have never been disposed to intemperance; but the passion for gaming, especially with dice,

to which they seem to have been immoderately addicted at that day, was restrained by the severest penalties. [26]

The brilliant successes of the Spanish sovereigns diffused general satisfaction throughout Christendom, and volunteers flocked to the camp from France, England, and other parts of Europe, eager to participate in the glorious triumphs of the Cross. Among these was a corps of Swiss mercenaries, who are thus simply described by Pulgar. "There joined the royal standard a body of men from Switzerland, a country in upper Germany. These men were bold of heart, and fought on foot. As they were resolved never to turn their backs upon the enemy, they wore no defensive armor, except in front; by which means they were less encumbered in fight. They made a trade of war, letting themselves out as mercenaries; but they espoused only a just quarrel, for they were devout and loyal Christians, and above all abhorred rapine as a great sin." [27] The Swiss had recently established their military renown by the discomfiture of Charles the Bold, when they first proved the superiority of infantry over the best-appointed chivalry of Europe. Their example no doubt contributed to the formation of that invincible Spanish infantry, which, under the Great Captain and his successors, may be said to have decided the fate of Europe for more than half a century.

Among the foreigners was one from the distant isle of Britain, the earl of Rivers, or conde de Escalas, as he is called from his patronymic, Scales, by the Spanish writers. "There came from Britain," says Peter Martyr, "a cavalier, young, wealthy, and high-born. He was allied to the blood royal of England. He was attended by a beautiful train of household troops three hundred in number, armed after the fashion of their land with long-bow and battle-axe." This nobleman particularly distinguished himself by his gallantry in the second siege of Loja, in 1486. Having asked leave to fight after the manner of his country, says the Andalusian chronicler, he

dismounted from his good steed, and putting himself at the head of his followers, armed like himself *en blanco*, with their swords at their thighs, and battle-axes in their hands, he dealt such terrible blows around him as filled even the hardy mountaineers of the north with astonishment. Unfortunately, just as the suburbs were carried, the good knight, as he was mounting a scaling-ladder, received a blow from a stone, which dashed out two of his teeth, and stretched him senseless on the ground. He was removed to his tent, where he lay some time under medical treatment; and, when he had sufficiently recovered, he received a visit from the king and queen, who complimented him on his prowess, and testified their sympathy for his misfortune. "It is little," replied he, "to lose a few teeth in the service of him, who has given me all. Our Lord," he added, "who reared this fabric, has only opened a window, in order to discern the more readily what passes within." A facetious response, says Peter Martyr, which gave uncommon satisfaction to the sovereigns. [28]

The queen, not long after, testified her sense of the earl's services by a magnificent largess, consisting, among other things, of twelve Andalusian horses, two couches with richly wrought hangings and coverings of cloth of gold, with a quantity of fine linen, and sumptuous pavilions for himself and suite. The brave knight seems to have been satisfied with this state of the Moorish wars; for he soon after returned to England, and in 1488 passed over to France, where his hot spirit prompted him to take part in the feudal factions of that country, in which he lost his life, fighting for the duke of Brittany. [29]

The pomp with which the military movements were conducted in these campaigns, gave the scene rather the air of a court pageant, than that of the stern array of war. The war was one, which, appealing both to principles of religion and patriotism, was well calculated to inflame the imaginations of the young Spanish cavaliers; and they poured into the field, eager to display

themselves under the eye of their illustrious queen, who, as she rode through the ranks mounted on her war-horse, and clad in complete mail, afforded no bad personification of the genius of chivalry. The potent and wealthy barons exhibited in the camp all the magnificence of princes. The pavilions decorated with various-colored pennons, and emblazoned with the armorial bearings of their ancient houses, shone with a splendor, which a Castilian writer likens to that of the city of Seville. [30] They always appeared surrounded by a throng of pages in gorgeous liveries, and at night were preceded by a multitude of torches, which shed a radiance like that of day. They vied with each other in the costliness of their apparel, equipage, and plate, and in the variety and delicacy of the dainties with which their tables were covered. [31]

Ferdinand and Isabella saw with regret this lavish ostentation, and privately remonstrated with some of the principal grandees on its evil tendency, especially in seducing the inferior and poorer nobility into expenditures beyond their means. This Sybarite indulgence, however, does not seem to have impaired the martial spirit of the nobles. On all occasions, they contended with each other for the post of danger. The duke del Infantado, the head of the powerful house of Mendoza, was conspicuous above all for the magnificence of his train. At the siege of Illora, 1486, he obtained permission to lead the storming party. As his followers pressed onwards to the breach, they were received with such a shower of missiles as made them falter for a moment. "What, my men," cried he, "do you fail me at this hour? Shall we be taunted with bearing more finery on our backs than courage in our hearts? Let us not, in God's name, be laughed at as mere holyday soldiers!" His vassals, stung by this rebuke, rallied, and, penetrating the breach, carried the place by the fury of their assault. [32]

Notwithstanding the remonstrances of the sovereigns against this ostentation of luxury, they were not wanting in the display of royal state and

magnificence on all suitable occasions. The Curate of Los Palacios has expatiated with elaborate minuteness on the circumstances of an interview between Ferdinand and Isabella in the camp before Moclin, in 1486, where the queen's presence was solicited for the purpose of devising a plan of future operations. A few of the particulars may be transcribed, though at the hazard of appearing trivial to readers, who take little interest in such details.

On the borders of the Yeguas, the queen was met by an advanced corps, under the command of the marquis-duke of Cadiz, and, at the distance of a league and a half from Moclin, by the duke del Infantado, with the principal nobility and their vassals, splendidly accoutred. On the left of the road was drawn up in battle array the militia of Seville, and the queen, making her obeisance to the banner of that illustrious city, ordered it to pass to her right. The successive battalions saluted the queen as she advanced, by lowering their standards, and the joyous multitude announced with tumultuous acclamations her approach to the conquered city.

The queen was accompanied by her daughter, the infanta Isabella, and a courtly train of damsels, mounted on mules richly caparisoned. The queen herself rode a chestnut mule, seated on a saddle-chair embossed with gold and silver. The housings were of a crimson color, and the bridle was of satin, curiously wrought with letters of gold. The infanta wore a skirt of fine velvet, over others of brocade; a scarlet mantilla of the Moorish fashion; and a black hat trimmed with gold embroidery. The king rode forward at the head of his nobles to receive her. He was dressed in a crimson doublet, with *chausses*, or breeches, of yellow satin. Over his shoulders was thrown a cassock or mantle of rich brocade, and a sopravest of the same materials concealed his cuirass. By his side, close girt, he wore a Moorish scimitar, and beneath his bonnet his hair was confined by a cap or headdress of the finest stuff.

Ferdinand was mounted on a noble war-horse of a bright chestnut color. In the splendid train of chivalry which attended him, Bernaldez dwells with much satisfaction on the English lord Scales. He was followed by a retinue of five pages arrayed in costly liveries. He was sheathed in complete mail, over which was thrown a French surcoat of dark silk brocade. A buckler was attached by golden clasps to his arm, and on his head he wore a white French hat with plumes. The caparisons of his steed were azure silk, lined with violet and sprinkled over with stars of gold, and swept the ground, as he managed his fiery courser with an easy horsemanship that excited general admiration.

The king and queen, as they drew near, bowed thrice with formal reverence to each other. The queen at the same time raising her hat, remained in her coif or headdress, with her face uncovered; Ferdinand, riding up, kissed her affectionately on the cheek, and then, according to the precise chronicler, bestowed a similar mark of tenderness on his daughter Isabella, after giving her his paternal benediction. The royal party were then escorted to the camp, where suitable accommodations had been provided for the queen and her fair retinue. [33]

It may readily be believed that the sovereigns did not neglect, in a war like the present, an appeal to the religious principle so deeply seated in the Spanish character. All their public acts ostentatiously proclaimed the pious nature of the work in which they were engaged. They were attended in their expeditions by churchmen of the highest rank, who not only mingled in the councils of the camp, but, like the bold bishop of Jaen, or the grand cardinal Mendoza, buckled on harness over rochet and hood, and led their squadrons to the field. [34] The queen at Cordova celebrated the tidings of every new success over the infidel, by solemn procession and thanksgiving, with her whole household, as well as the nobility, foreign ambassadors, and municipal functionaries. In like manner Ferdinand, on the return from his

campaigns, was received at the gates of the city, and escorted in solemn pomp beneath a rich canopy of state to the cathedral church, where he prostrated himself in grateful adoration of the Lord of hosts. Intelligence of their triumphant progress in the war was constantly transmitted to the pope, who returned his benediction, accompanied by more substantial marks of favor, in bulls of crusade, and taxes on ecclesiastical rents. [35]

The ceremonials observed on the occupation of a new conquest were such as to affect the heart no less than the imagination. "The royal *alferez*," says Marineo, "raised the standard of the Cross, the sign of our salvation, on the summit of the principal fortress; and all who beheld it prostrated themselves on their knees in silent worship of the Almighty, while the priests chanted the glorious anthem, *Te Deum laudamus*. The ensign or pennon of St. James, the chivalric patron of Spain, was then unfolded, and all invoked his blessed name. Lastly was displayed the banner of the sovereigns, emblazoned with the royal arms; at which the whole army shouted forth, as if with one voice, 'Castile, Castile!' After these solemnities, a bishop led the way to the principal mosque, which, after the rites of purification, he consecrated to the service of the true faith." The standard of the Cross above referred to was of massive silver, and was a present from Pope Sixtus the Fourth to Ferdinand, in whose tent it was always carried throughout these campaigns. An ample supply of bells, vases, missals, plate, and other sacred furniture, was also borne along with the camp, being provided by the queen for the purified mosques. [36]

The most touching part of the incidents usually occurring at the surrender of a Moorish city was the liberation of the Christian captives immured in its dungeons. On the capture of Ronda, in 1485, more than four hundred of these unfortunate persons, several of them cavaliers of rank, some of whom had been taken in the fatal expedition of the Axarquía, were restored to the light of heaven. On being brought before Ferdinand, they prostrated

themselves on the ground, bathing his feet with tears, while their wan and wasted figures, their dishevelled locks, their beards reaching down to their girdles, and their limbs loaded with heavy manacles, brought tears into the eye of every spectator. They were then commanded to present themselves before the queen at Cordova, who liberally relieved their necessities, and, after the celebration of public thanksgiving, caused them to be conveyed to their own homes. The fetters of the liberated captives were suspended in the churches, where they continued to be revered by succeeding generations as the trophies of Christian warfare. [37]

Ever since the victory of Lucena, the sovereigns had made it a capital point of their policy to foment the dissensions of their enemies. The young king Abdallah, after his humiliating treaty with Ferdinand, lost whatever consideration he had previously possessed. Although the sultana Zoraya, by her personal address, and the lavish distribution of the royal treasures, contrived to maintain a faction for her son, the better classes of his countrymen despised him as a renegade, and a vassal of the Christian king. As their old monarch had become incompetent, from increasing age and blindness, to the duties of his station in these perilous times, they turned their eyes on his brother Abdallah, surnamed El Zagal, or "The Valiant," who had borne so conspicuous a part in the rout of the Axarquia. The Castilians depict this chief in the darkest colors of ambition and cruelty; but the Moslem writers afford no such intimation, and his advancement to the throne at that crisis seems to be in some measure justified by his eminent talents as a military leader.

On his way to Granada, he encountered and cut to pieces a body of Calatrava knights from Alhama, and signalized his entrance into his new capital by bearing along the bloody trophies of heads dangling from his saddlebow, after the barbarous fashion long practised in these wars. [38] It was observed that the old king Abul Hacen did not long survive his

brother's accession. [39] The young king Abdallah sought the protection of the Castilian sovereigns in Seville, who, true to their policy, sent him back into his own dominions with the means of making headway against his rival. The *alfakies* and other considerate persons of Granada, scandalized at these fatal feuds, effected a reconciliation, on the basis of a division of the kingdom between the parties. But wounds so deep could not be permanently healed. The site of the Moorish capital was most propitious to the purposes of faction. It covered two swelling eminences, divided from each other by the deep waters of the Darro. The two factions possessed themselves respectively of these opposite quarters. Abdallah was not ashamed to strengthen himself by the aid of Christian mercenaries; and a dreadful conflict was carried on for fifty days and nights, within the city, which swam with the blood that should have been shed only in its defence. [40]

Notwithstanding these auxiliary circumstances, the progress of the Christians was comparatively slow. Every cliff seemed to be crowned with a fortress; and every fortress was defended with the desperation of men willing to bury themselves under its ruins. The old men, women, and children, on occasions of a siege, were frequently despatched to Granada. Such was the resolution, or rather ferocity of the Moors, that Malaga closed its gates against the fugitives from Alora, after its surrender, and even massacred some of them in cold blood. The eagle eye of El Zagal seemed to take in at a glance the whole extent of his little territory, and to detect every vulnerable point in his antagonist, whom he encountered where he least expected it; cutting off his convoys, surprising his foraging parties, and retaliating by a devastating inroad on the borders. [41]

No effectual and permanent resistance, however, could be opposed to the tremendous enginery of the Christians. Tower and town fell before it. Besides the principal towns of Cartama, Coin, Setenil, Ronda, Marbella,

Illora, termed by the Moors "the right eye," Moclin, "the shield" of Granada, and Loja, after a second and desperate siege in the spring of 1486, Bernaldez enumerates more than seventy subordinate places in the Val de Cartama, and thirteen others after the fall of Marbella. Thus the Spaniards advanced their line of conquest more than twenty leagues beyond the western frontier of Granada. This extensive tract they strongly fortified and peopled, partly with Christian subjects, and partly with Moorish, the original occupants of the soil, who were secured in the possession of their ancient lands, under their own law. [42]

Thus the strong posts, which may be regarded as the exterior defences of the city of Granada, were successively carried. A few positions alone remained of sufficient strength to keep the enemy at bay. The most considerable of these was Malaga, which from its maritime situation afforded facilities for a communication with the Barbary Moors, that the vigilance of the Castilian cruisers could not entirely intercept. On this point, therefore, it was determined to concentrate all the strength of the monarchy, by sea and land, in the ensuing campaign of 1487.

* * * * *

Two of the most important authorities for the war of Granada are Fernando del Pulgar and Antonio de Lebrija, or Nebrissensis, as he is called from the Latin *Nebrissa*.

Few particulars have been preserved respecting the biography of the former. He was probably a native of Pulgar, near Toledo. The Castilian writers recognize certain provincialisms in his style belonging to that district. He was secretary to Henry IV., and was charged with various confidential functions by him. He seems to have retained his place on the accession of Isabella, by whom he was appointed national historiographer in 1482, when, from certain remarks in his letters, it would appear he was

already advanced in years. This office, in the fifteenth century, comprehended, in addition to the more obvious duties of an historian, the intimate and confidential relations of a private secretary. "It was the business of the chronicler," says Bernaldez, "to carry on foreign correspondence in the service of his master, acquainting himself with whatever was passing in other courts and countries, and, by the discreet and conciliatory tenor of his epistles, to allay such feuds as might arise between the king and his nobility, and establish harmony between them." From this period Pulgar remained near the royal person, accompanying the queen in her various progresses through the kingdom, as well as in her military expeditions into the Moorish territory. He was consequently an eye-witness of many of the warlike scenes which he describes, and, from his situation at the court, had access to the most ample and accredited sources of information. It is probable he did not survive the capture of Granada, as his history falls somewhat short of that event. Pulgar's chronicle, in the portion containing a retrospective survey of events previous to 1482, may be charged with gross inaccuracy. But, in all the subsequent period, it may be received as perfectly authentic, and has all the air of impartiality. Every circumstance relating to the conduct of the war is developed with equal fulness and precision. His manner of narration, though prolix, is perspicuous, and may compare favorably with that of contemporary writers. His sentiments may compare still more advantageously in point of liberality, with those of the Castilian historians of a later age.

Pulgar left some other works, of which his commentary on the ancient satire of "Mingo Revulgo," his "Letters," and his "Claros Varones," or sketches of illustrious men, have alone been published. The last contains notices of the most distinguished individuals of the court of Henry IV., which, although too indiscriminately encomiastic, are valuable subsidiaries to an accurate acquaintance with the prominent actors of the period. The

last and most elegant edition of Pulgar's Chronicle was published at Valencia in 1780, from the press of Benito Montfort, in large folio.

Antonio de Lebrija was one of the most active and erudite scholars of this period. He was born in the province of Andalusia, in 1444. After the usual discipline at Salamanca, he went at the age of nineteen to Italy, where he completed his education in the university of Bologna. He returned to Spain ten years after, richly stored with classical learning and the liberal arts that were then taught in the flourishing schools of Italy. He lost no time in dispensing to his countrymen his various acquisitions. He was appointed to the two chairs of grammar and poetry (a thing unprecedented) in the university of Salamanca, and lectured at the same time in these distinct departments. He was subsequently preferred by Cardinal Ximenes to a professorship in his university of Alcalá de Henares, where his services were liberally requited, and where he enjoyed the entire confidence of his distinguished patron, who consulted him on all matters affecting the interests of the institution. Here he continued, delivering his lectures and expounding the ancient classics to crowded audiences, to the advanced age of seventy-eight, when he was carried off by an attack of apoplexy.

Lebrija, besides his oral tuition, composed works on a great variety of subjects, philological, historical, theological, etc. His emendation of the sacred text was visited with the censure of the Inquisition, a circumstance which will not operate to his prejudice with posterity. Lebrija was far from being circumscribed by the narrow sentiments of his age. He was warmed with a generous enthusiasm for letters, which kindled a corresponding flame in the bosoms of his disciples, among whom may be reckoned some of the brightest names in the literary annals of the period. His instruction effected for classical literature in Spain what the labors of the great Italian scholars of the fifteenth century did for it in their country; and he was rewarded with the substantial gratitude of his own age, and such empty

honors as could be rendered by posterity. For very many years, the anniversary of his death was commemorated by public services, and a funeral panegyric, in the university of Alcalá.

The circumstances attending the composition of his Latin Chronicle, so often quoted in this history, are very curious. Carbajal says, that he delivered Pulgar's Chronicle, after that writer's death, into Lebrija's hands for the purpose of being translated into Latin. The latter proceeded in his task, as far as the year 1486. His history, however, can scarcely be termed a translation, since, although it takes up the same thread of incident, it is diversified by many new ideas and particular facts. This unfinished performance was found among Lebrija's papers, after his decease, with a preface containing not a word of acknowledgment to Pulgar. It was accordingly published for the first time, in 1545 (the edition referred to in this history), by his son Sancho, as an original production of his father. Twenty years after, the first edition of Pulgar's original Chronicle was published at Valladolid, from the copy which belonged to Lebrija, by his grandson Antonio. This work appeared also as Lebrija's. Copies however of Pulgar's Chronicle were preserved in several private libraries; and two years later, 1567, his just claims were vindicated by an edition at Saragossa, inscribed with his name as its author.

Lebrija's reputation has sustained some injury from this transaction, though most undeservedly. It seems probable, that he adopted Pulgar's text as the basis of his own, intending to continue the narrative to a later period. His unfinished manuscript being found among his papers after his death, without reference to any authority, was naturally enough given to the world as entirely his production. It is more strange, that Pulgar's own Chronicle, subsequently printed as Lebrija's, should have contained no allusion to its real author. The History, although composed as far as it goes with sufficient elaboration and pomp of style, is one that adds, on the whole, but little to

the fame of Lebrija. It was at best but adding a leaf to the laurel on his brow, and was certainly not worth a plagiarism.

FOOTNOTES

[1]

"Por esa puerta de Elvira
sale muy gran cabalgada:
cuanto del *hidalgo moro*,
cuánto de la yegua baya.

* * * * *

"Cuánta pluma y gentileza, cuánto capellar de grana, cuánto bayo
borceguf, cuánto raso que se esmalta,

"Cuánto de espuela de oro,
cuánta estribera de plata!
Toda es gente valerosa,
y esperta para batalla.

"En medio de todos ellos
va el rey Chico de Granada,
mirando las damas moras
de las torres del Alhambra.

"La reina mora su madre
de esta manera le habla;
'Alá te guarde, mi hijo,
Mahoma vaya en tu guarda.'" Hyta, Guerras de Granada, tom. i. p. 232.

[2] Conde, *Dominacion de los Arabes*, tom. iii. cap. 36.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. pp. 267-271.—Bernaldez, *Reyes Católicos*, MS., cap. 60.—Pedraza, *Antiguedad de Granada*, fol. 10.—Marmol, *Rebellion de Moriscos*, lib. 1, cap. 12.

[3] Pulgar, *Reyes Católicos*, part. 3, cap. 20.

The *donzeles*, of which Diego de Cordova was alcaide, or captain, were a body of young cavaliers, originally brought up as pages in the royal household, and organized as a separate corps of the militia. Salazar de Mendoza, *Dignidades*, p. 259.—See also Morales, *Obras*, tom. xiv. p. 80.

[4] Conde, *Dominacion de los Arabes*, tom. iii. cap. 36.—Abarca, *Reyes de Aragon*, tom. ii. fol. 302.—Carbajal, *Anales*, MS., año 1483.—Bernaldez, *Reyes Católicos*, MS., cap. 61.—Pulgar, *Crónica*, cap. 20.—Marmol, *Rebellion de Moriscos*, lib. 1, cap. 12.

[5] Garibay, *Compendio*, tom. ii. p. 637.—Pulgar, *Reyes Católicos*, *ubi supra*.—Bernaldez, *Reyes Católicos*, MS., cap. 61.—Conde, *Dominacion de los Arabes*, tom. iii. cap. 36.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. pp. 271-274.

The various details, even to the site of the battle, are told in the usual confused and contradictory manner by the garrulous chroniclers of the period. All authorities, however, both Christian and Moorish, agree as to its general results.

[6] Mendoza, *Dignidades*, p. 382.—Oviedo, *Quincuagenas*, MS., bat. 1, quinc. 4, dial. 9.

[7] Conde, *Dominacion de los Arabes*, tom. iii. cap. 36.—Cardonne, *Hist. d'Afrique et d'Espagne*, pp. 271-274.

[8] Pulgar, *Reyes Católicos*, cap. 23.—Marmol, *Rebelion de Moriscos*, lib. 1, cap. 12.

Charles V. does not seem to have partaken of his grandfather's delicacy in regard to an interview with his royal captive, or indeed to any part of his deportment towards him.

[9] Pulgar, *Reyes Católicos*, *ubi supra*.—Conde, *Dominacion de los Arabes*, cap. 36.

[10] Pulgar, *Reyes Católicos*, *loc. cit.*—Conde, *Dominacion de los Arabes*, cap. 36.

[11] The term *cavalgada* seems to be used indifferently by the ancient Spanish writers to represent a marauding party, the foray itself, or the booty taken in it.

[12] Pulgar, *Reyes Católicos*, cap. 22.—*Mem. de la Acad. de Hist.*, tom. vi. *Ilust.* 6.

[13] Pulgar, *Reyes Católicos*, cap. 32, 41.—Zurita, *Anales*, tom. iv lib. 20, cap. 59.—Lebrija, *Rerum Gestarum Decades*, ii. lib. 3, cap. 5.

[14] Machiavelli, *Arte della Guerra*, lib. 3.

[15] *Mem. de la Acad. de Hist.*, tom. vi. *Ilust.* 6.

According to Gibbon, the cannon used by Mahomet in the siege of Constantinople, about thirty years before this time, threw stone balls, which weighed above 600 pounds. The measure of the bore was twelve

palms.

Decline and Fall of the Roman Empire, chap. 68.

[16] Mem. de la Acad. de Hist., tom. vi. Ilust. 6.

We get a more precise notion of the awkwardness with which the artillery was served in the infancy of the science, from a fact recorded in the Chronicle of John II., that at the siege of Setenil, in 1407, five lombards were able to discharge only forty shot in the course of a day. We have witnessed an invention, in our time, that of our ingenious countryman, Jacob Perkins, by which a gun, with the aid of that miracle-worker, steam, is enabled to throw a thousand bullets in a single minute.

[17] L. Marineo, Cosas Memorables, fol. 174.—Pulgar, Reyes Católicos, cap. 44. Some writers, as the Abbé Mignot, (*Histoire des Rois Catholiques Ferdinand et Isabelle*, (Paris, 1766,) tom. i. p. 273,) have referred the invention of bombs to the siege of Ronda. I find no authority for this. Pulgar's words are, "They made many iron balls, large and small, some of which they cast in a mould, having reduced the iron to a state of fusion, so that it would run like any other metal."

[18] Pulgar, Reyes Católicos, cap. 51.—Bernaldez, Reyes Católicos, MS., cap. 82.

[19] Mendoza, Guerra de Granada, (Valencia, 1776,) pp. 73, 74.—Zurita, Anales, tom. iv. lib. 20, cap. 59.—Mem. de la Acad. de Hist., tom. vi. p. 168. According to Mendoza, a decoction of the quince furnished the most effectual antidote known against this poison.

[20] Abarca, Reyes de Aragon, tom. ii. fol. 304.—Lebrija, *Rerum Gestarum Decades*, ii. lib. 4, cap. 2.—Bernaldez, Reyes Católicos, MS., cap. 76.—Marmol, *Rebellion de Moriscos*, lib. 1, cap. 12.

Pulgar, who is by no means bigoted for the age, seems to think the literal terms granted by Ferdinand to the enemies of the faith stand in need of perpetual apology. See *Reyes Católicos*, cap. 44 et passim.

[21] Bernaldez, *Reyes Católicos*, MS., cap. 75.—Pulgar, *Reyes Católicos*, cap. 21, 33, 42.—Lebrija, *Rerum Gestarum Decades*, ii. lib. 8, cap. 6.—Marmol, *Rebelion de Moriscos*, lib. 1, cap. 13.

[22] *Mem. de la Acad. de Hist.*, tom. vi. Ilust. 6.

[23] Lebrija, *Rerum Gestarum Decades*, ii. lib. 3, cap. 6.—Pulgar, *Reyes Católicos*, cap. 31.

[24] After another daring achievement, the sovereigns granted him and his heirs the royal suit worn by the monarchs of Castile on Ladyday; a present, says Abarca, not to be estimated by its cost. *Reyes de Aragon*, tom. ii. fol. 308.

[25] Abarca, *Reyes de Aragon*, ubi supra.—Peter Martyr, *Opus Epist.*, lib. 1, epist. 41.—Bernaldez, *Reyes Católicos*, MS., cap. 68.—Zurita, *Anales*, tom. iv. cap. 58.

[26] Pulgar, *Reyes Católicos*, cap. 31, 67, 69.—Lebrija, *Rerum Gestarum Decades*, ii. lib. 2, cap. 10.

[27] *Reyes Católicos*, cap. 21.

[28] Peter Martyr, *Opus Epist.*, lib. 1, epist. 62.—Bernaldez, *Reyes Católicos*, MS., cap. 78.

[29] Guillaume de Ialigny, *Histoire de Charles VIII.*, (Paris, 1617,) pp. 90-94.

[30] Bernaldez, Reyes Católicos, MS., cap. 75.—This city, even before the New World had poured its treasures into its lap, was conspicuous for its magnificence, as the ancient proverb testifies. Zuñiga, *Annales de Sevilla*, p. 183.

[31] Pulgar. Reyes Católicos, cap. 41.

[32] Pulgar, Reyes Católicos, cap. 59.—This nobleman, whose name was Íñigo Lopez de Mendoza, was son of the first duke, Diego Hurtado, who supported Isabella's claims to the crown. Oviedo was present at the siege of Illora, and gives a minute description of his appearance there. "He came," says that writer, "attended by a numerous body of cavaliers and gentlemen, as befitted so great a lord. He displayed all the luxuries which belong to a time of peace; and his tables, which were carefully served, were loaded with rich and curiously wrought plate, of which he had a greater profusion than any other grandee in the kingdom." In another place he says, "The duke Íñigo was a perfect Alexander for his liberality, in all his actions princely, maintaining unbounded hospitality among his numerous vassals and dependents, and beloved throughout Spain. His palaces were garnished with the most costly tapestries, jewels, and rich stuffs of gold and silver. His chapel was filled with accomplished singers and musicians; his falcons, hounds, and his whole hunting establishment, including a magnificent stud of horses, not to be matched by any other nobleman in the kingdom. Of the truth of all which," concludes Oviedo, "I myself have been an eye-witness, and enough others can testify." See Oviedo, (*Quincuagenas*, MS., bat. 1, quinc. 1, dial. 8,) who has given the genealogy of the Mendozas and Mendozinos, in all its endless ramifications.

[33] Bernaldez, Reyes Católicos, MS., cap. 80.—The lively author of "A Year in Spain" describes, among other suits of armor still to be seen in the museum of the armory at Madrid, those worn by Ferdinand and his

illustrious consort. "In one of the most conspicuous stations is the suit of armor usually worn by Ferdinand the Catholic. He seems snugly seated upon his war-horse with a pair of red velvet breeches, after the manner of the Moors, with lifted lance and closed visor. There are several suits of Ferdinand and of his queen Isabella, who was no stranger to the dangers of a battle. By the comparative heights of the armor, Isabella would seem to be the bigger of the two, as she certainly was the better." *A Year in Spain*, by a young American, (Boston, 1829,) p. 116.

[34] Cardinal Mendoza, in the campaign of 1485, offered the queen to raise a body of 3000 horse, and march at its head to the relief of Alhama, and at the same time to supply her with such sums of money as might be necessary in the present exigency. Pulgar, *Reyes Católicos*, cap. 50.

[35] In 1486, we find Ferdinand and Isabella performing a pilgrimage to the shrine of St. James of Compostella. Carbajal, *Anales*, MS., año 86.

[36] L. Marineo, *Cosas Memorables*, fol. 173.—Bernaldez, *Reyes Católicos*, MS., cap. 82, 87.

[37] Pulgar, *Reyes Católicos*, cap. 47.—Bernaldez, *Reyes Católicos*, MS., cap. 75.

[38] Conde, *Dominacion de los Arabes*, tom. iii. cap. 37.—Cardonne, *Hist. d'Afrique et d'Espagne*, tom. iii. pp. 276, 281, 282.—Abarca, *Reyes de Aragon*, tom. ii. fol. 304.

"El enjaeza el caballo
Be las cabezas de fama,"

says one of the old Moorish ballads. A garland of Christian heads seems to have been deemed no unsuitable present from a Moslem knight to his

lady love. Thus one of the Zegries triumphantly asks,

"¿Que Cristianos habeis muerto,
O escalado que murallas?
¿O que cabezas famosas
Aveis presentado a damas?"

This sort of trophy was also borne by the Christian cavaliers. Examples of this may be found even as late as the siege of Granada. See, among others, the ballad beginning

"A vista de los dos Reyes."

[39] The Arabic historian alludes to the vulgar report of the old king's assassination by his brother, but leaves us in the dark in regard to his own opinion of its credibility. "Algunos dicen que le procuro la muerte su hermano el Rey Zagal; pero Dios lo sabe, que es el unico eterno e inmutable."—Conde, *Domination de los Arabes*, tom. in. cap. 38.

[40] Conde, *Dominacion de los Arabes*, tom. iii. cap. 38.—Cardonne, *Hist. d'Afrique et d'Espagne*, pp. 291, 292.—Mariana, *Hist. de España*, lib. 25, cap. 9.—Marmol, *Rebellion de Moriscos*, lib. 1, cap. 12.

"Muy revuelta anda Granada en armas y fuego ardiendo, y los ciudadanos de ella duras muertes padeciendo;

Por tres reyes que hay esquivos, cada uno pretendiendo el mando, cetro y corona de Granada y su gobierno," etc.

See this old *romance*, mixing up fact and fiction, with more of the former than usual, in Hyta, *Guerras de Granada*, tom. i. p. 292.

[41] Among other achievements, Zagal surprised and beat the count of Cabra in a night attack upon Moclin, and wellnigh retaliated on that nobleman his capture of the Moorish king Abdallah. Pulgar, *Reyes Católicos*, cap. 48.

[42] Bernaldez, *Reyes Católicos*, MS., cap. 75.—Pulgar, *Reyes Católicos*, cap. 48.—Lebrija, *Rerum Gestarum Decades*, ii. lib. 3, cap. 5, 7; lib. 4, cap. 2, 3.—Marmol, *Rebellion de Moriscos*, lib. 1, cap. 12.

END OF VOL. I.

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